

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[28 NE3d 534, 5 NYS3d 355]

In the Matter of JEFFREY P. DORRANCE.

Decided March 26, 2015

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8) (b) of whether the Honorable Jeffrey P. Dorrance should be suspended from the office of Justice of the Green Island Town Court, Albany County.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8) (b), suspended a Town Court Justice from office, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Jeffrey P. Dorrance is suspended, with pay, effective immediately, from the office of Justice of the Green Island Town Court, Albany County, pursuant to New York Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8) (b).

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Association of Mortgage Investors for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Association of Financial Guaranty Insurers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by National Credit Union Administration Board for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by LNR Partners, LLC et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Chamber of Commerce of the United States of America et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Mortgage Bankers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Steven L. Schwarcz for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Ethan J. Leib et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 112 AD3d 522.

Motion by Federal Home Loan Bank of Boston et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

In the Matter of CAROLANN BAKER, Respondent, v CHRISTOPHER BAKER, Appellant.

Submitted January 20, 2015; decided March 26, 2015

Reported below, 122 AD3d 924.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JENNIFER CANGRO, Appellant, v PARK SOUTH TOWERS ASSOCIATES et al., Respondents.

Decided March 26, 2015

Reported below, 123 AD3d 602.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARVIN DENNARD, Appellant, v CITY OF BUFFALO EXAMINING BOARD OF PLUMBERS, Respondent.

Decided March 26, 2015

Reported below, 124 AD3d 1337.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JEVON HENRY, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Submitted March 9, 2015; decided March 26, 2015

Reported below, 120 AD3d 868.

Motion by Prisoners' Legal Services of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. A copy of the brief must be served and an original and two copies filed within seven days.

In the Matter of MICHAEL LEE, Appellant, v DEPARTMENT OF CORRECTIONAL SERVICES et al., Respondents.

Submitted December 29, 2014; decided March 26, 2015

Reported below, 120 AD3d 1497.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]). Motion for poor person relief dismissed as academic.

Judge STEIN taking no part.

In the Matter of NATURAL RESOURCES DEFENSE COUNCIL, INC.,
et al., Appellants, v NEW YORK STATE DEPARTMENT OF
ENVIRONMENTAL CONSERVATION, Respondent.

Submitted March 2, 2015; decided March 26, 2015

Reported below, 120 AD3d 1235.

Motion by Nadia B. Ahmad et al. for leave to file a brief *amici curiae* on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of NATURAL RESOURCES DEFENSE COUNCIL, INC.,
et al., Appellants, v NEW YORK STATE DEPARTMENT OF
ENVIRONMENTAL CONSERVATION, Respondent.

Submitted March 2, 2015; decided March 26, 2015

Reported below, 120 AD3d 1235.

Motion by City of New York et al. for leave to appear *amici curiae* on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of NATURAL RESOURCES DEFENSE COUNCIL, INC.,
et al., Appellants, v NEW YORK STATE DEPARTMENT OF
ENVIRONMENTAL CONSERVATION, Respondent.

Submitted March 9, 2015; decided March 26, 2015

Reported below, 120 AD3d 1235.

Motion by Citizens Campaign for the Environment for leave to file a brief *amicus curiae* on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of NATURAL RESOURCES DEFENSE COUNCIL, INC.,
et al., Appellants, v NEW YORK STATE DEPARTMENT OF
ENVIRONMENTAL CONSERVATION, Respondent.

Submitted March 9, 2015; decided March 26, 2015

Reported below, 120 AD3d 1235.

Motion by East of Hudson Coalition for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD
DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et
al., Defendants, and CRANE CO., Appellant.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 121 AD3d 230.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ABDEL-
OUAHAD AFILAL, Appellant.

Submitted March 2, 2015; decided March 26, 2015

Reported below, 43 Misc 3d 142(A), 2014 NY Slip Op 50851(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTONIO
ARAGON, Appellant.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 44 Misc 3d 140(A), 2014 NY Slip Op 51281(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMELL S. CARAWAY, Appellant.

Submitted March 16, 2015; decided March 26, 2015

Reported below, 117 AD3d 840.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EARL COLEMAN, Respondent.

Submitted March 16, 2015; decided March 26, 2015

Reported below, 110 AD3d 76.

Motion for assignment of counsel granted and Jane M. Bloom, Esq., PO Box 209, Monticello, New York 12701 assigned as counsel to the respondent on the appeal herein.

Judge STEIN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN J. CONNOLLY, Appellant.

Submitted February 23, 2015; decided March 26, 2015

Reported below, 118 AD3d 1449.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PERRY C. GRIGGS, Appellant.

Submitted February 23, 2015; decided March 26, 2015

Reported below, 117 AD3d 1523.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD R. HEATLEY, Appellant.

Submitted March 2, 2015; decided March 26, 2015

Reported below, 116 AD3d 23.

On the Court's own motion, appeal dismissed upon the ground that the criminal prosecution abated by reason of defendant's death (*see People v Ortiz*, 77 NY2d 821 [1990]).

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCUS D. HOGAN, Appellant.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 118 AD3d 1263.

Motion for assignment of counsel granted and Shirley A. Gorman, Esq., PO Box 629, 19 Market St., Brockport, New York 14420 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KEITH JOHNSON, Respondent.

Submitted March 16, 2015; decided March 26, 2015

Reported below, 123 AD3d 573.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAYMOND LEACH, Appellant.

Submitted March 2, 2015; decided March 26, 2015

Reported below, 115 AD3d 677.

Motion for assignment of counsel granted and Steven A. Feldman, Esq., care of Feldman and Feldman, 626 Reckson Plaza, West Tower, 6th Floor, Uniondale, New York 11556 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS J. SINCERBEAUX, Appellant.

Submitted March 16, 2015; decided March 26, 2015

Reported below, 121 AD3d 1577.

Motion for poor person relief granted.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES SMITH, Appellant.

Submitted February 23, 2015; decided March 26, 2015

Reported below, 122 AD3d 456.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER STOVER, Appellant.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 123 AD3d 1232.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge STEIN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LAWRENCE
WATSON, Respondent.

Submitted March 2, 2015; decided March 26, 2015

Reported below, 124 AD3d 95.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CHRIS-
TIAN WILLIAMS, Respondent.

Submitted February 23, 2015; decided March 26, 2015

Reported below, 123 AD3d 240.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

THE MINISTERS AND MISSIONARIES BENEFIT BOARD, Interpleader
Plaintiff, v LEON SNOW et al., Appellants. Estate of CLARK
FLESHER et al., Respondents.

Decided March 26, 2015

See 780 F3d 150.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

VIVIANE ETIENNE MEDICAL CARE, P.C., as Assignee of Alem
Cardenas, Respondent, v COUNTRY-WIDE INS. Co., Appel-
lant.

Submitted March 23, 2015; decided March 26, 2015

Reported below, 114 AD3d 33.

Motion by American Transit et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

[28 NE3d 1181, 5 NYS3d 741]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY MERCADO, Appellant.

Decided March 26, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 28, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bruce Allen, J., at suppression hearing; Thomas A. Farber, J., at plea and sentencing), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the third degree.

Defendant was arrested after the police, having observed defendant commit two traffic violations, stopped the vehicle defendant was driving, were told by defendant that he did not have a driver's license, and discovered over 120 glassine envelopes of heroin in the trunk of the vehicle that defendant admitted belonged to him. Supreme Court denied defendant's suppression motion. The Appellate Division concluded that Supreme Court properly denied defendant's suppression motion because the totality of the information available to the police justified their request to search the trunk of defendant's car, and defendant validly consented to that search.

People v Mercado, 120 AD3d 441, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Search of Vehicle and Trunk

In a drug prosecution in which the Appellate Division affirmed Supreme Court's denial of defendant's motion to suppress evidence discovered after a search of the trunk of a motor vehicle driven by defendant, the determinations regarding founded suspicion of criminality justifying a request to search the car, and then the trunk, and defendant's consent to a search of the vehi-

cle, all involved mixed questions of law and fact. As the determinations were supported by the record, they were beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Claudia Flores of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Allen J. Vickey of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The determinations regarding founded suspicion of criminality justifying a request to search the car, and then the trunk, and defendant's consent to a search of the vehicle, all involve mixed questions of law and fact. The determinations are supported by the record, and are beyond further review (*see People v Valerio*, 95 NY2d 924, 925 [2000]).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[29 NE3d 235, 6 NYS3d 226]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY C., Appellant.

Decided March 31, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 17, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Arlene D. Goldberg, J.), which had convicted defendant, upon a plea of guilty, of robbery in the first degree, and sentenced him as a juvenile offender.

The Appellate Division concluded that Supreme Court properly exercised its discretion in denying youthful offender treatment to defendant, who failed to comply with a treatment program and committed another armed robbery while awaiting sentencing upon his plea of guilty of robbery in the first degree.

People v Anthony C., 119 AD3d 471, affirmed.

HEADNOTE

Crimes — Sentence — Youthful Offender — Appellate Review

An order of the Appellate Division, which had affirmed a Supreme Court order denying defendant youthful offender treatment and sentencing him as a juvenile offender upon his plea of guilty of robbery in the first degree, was affirmed. The Appellate Division opinion did not suggest a misapprehension or misapplication of its authority to review youthful offender adjudications for abuse of discretion (CPL 720.20 [1] [a]), or under its broad interest-of-justice jurisdiction (*see* CPL 470.15 [6] [b]).

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*David J. Klem* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Susan Gliner* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The Appellate Division opinion does not suggest a misapprehension or misapplication of its authority to review youthful offender adjudications for abuse of discretion (CPL 720.20 [1] [a]), or under its broad interest-of-justice jurisdiction (*see* CPL 470.15 [6] [b]; *People v Dawn Maria C.*, 67 NY2d 625, 627 [1986]).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[29 NE3d 888, 6 NYS3d 541]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS
FORD, Appellant.

Argued February 18, 2015; decided March 26, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 4, 2013. The Appellate Division affirmed so much of an order of the Supreme Court, Kings County (John P. Walsh, J.), which, after a hearing, had designated defendant a level three sex offender pursuant to Correction Law article 6-C.

People v Ford, 112 AD3d 600, reversed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Failure to Accept Responsibility — What Constitutes Refusal to Participate in Treatment

Defendant sex offender's inability to participate in sex offender treatment due to his prison disciplinary violations was not tantamount to a refusal to participate in treatment under the Sex Offender Registration Act (SORA) Guidelines, and, therefore, did not warrant the Supreme Court's assessment of 15 points under risk factor 12 for failure to accept responsibility. Refusal contemplates an intentional explicit rejection of what is being offered, and there was no indication here that defendant explicitly refused treatment. Conduct that places a defendant in a position where he or she could not receive treatment is not equal to refusal to participate in treatment. Inferring refusal from a defendant's disciplinary record is not supported by the SORA Guidelines, which state that points should be assessed where a defendant refuses treatment or is expelled from treatment. To account for a defendant's repeated disciplinary violations, beyond assessing a defendant points under risk factor 13 for his or her conduct while confined, the People may seek an upward departure based on the risk assessment instrument not taking into account the considerable number of disciplinary violations incurred by a defendant, or based on the defendant not receiving sex offender treatment.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Michael C. Taglieri* and *Scott A. Rosenberg* of counsel), for appellant.

Kenneth P. Thompson, District Attorney, Brooklyn (*Anthea H. Bruffee* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be reversed, without costs, and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

In January 2009, defendant entered a livery cab and requested that the female driver take him to a particular address in Brooklyn. While in the cab, defendant pointed a gun at the victim and stole her money and wallet. Defendant then demanded that she pull her pants down, and after the victim complied, defendant inserted two of his fingers into her vagina. Defendant pleaded guilty to sexual abuse in the first degree and was sentenced to a determinate term of three years' imprisonment and five years of postrelease supervision. While imprisoned, defendant committed 16 tier II and four tier III disciplinary violations. As a consequence of the disciplinary penalties, defendant's violations prevented him from participating in any sex offender treatment while incarcerated.

In anticipation of defendant's Sex Offender Registration Act (SORA) hearing, the Board of Examiners of Sex Offenders prepared a risk assessment instrument (RAI) assessing defendant a total of 100 points, making him a presumptive level two sex offender. As relevant here, the Board assessed 10 points under risk factor 13 for unsatisfactory conduct while confined. However, the Board did not assess any points for post-offense behavior under risk factor 12. The Board recommended an upward departure to level three based on the violent and opportunistic nature of defendant's crime, his failure to participate in sex offender treatment, and his lack of remorse for the crime.

Supreme Court questioned whether defendant should have been assessed points under failure to accept responsibility because his multiple prison violations prevented him from participating in sex offender treatment. The People then urged that the court assess points under risk factor 12 or grant an upward departure. Defendant objected to the assessment of points and opposed an upward departure. Ultimately, the court assessed 15 points for failure to accept responsibility, reasoning that defendant put "himself into a situation where he end[ed] up in special housing and, therefore, [could not] receive treatment." The court, however, determined that the People failed to meet their burden for an upward departure. With the additional 15 points under risk factor 12, defendant was adjudicated a level three sex offender. The Appellate Division affirmed (*People v Ford*, 112 AD3d 600 [2013]), stating that

“Supreme Court properly considered . . . defendant’s lengthy disciplinary record while incarcerated, which prevented him from participating in a sex offender treatment program, as evidence of a refusal of treatment” (*id.* at 600 [citations omitted]). This Court granted defendant’s motion for leave to appeal (22 NY3d 1135 [2014]).

The SORA Guidelines provide:

“An offender who does not accept responsibility for his [or her] conduct or minimizes what occurred is a poor prospect for rehabilitation. Such acknowledgment is critical, since an offender’s ability to identify and modify the thoughts and behaviors that are proximal to his [or her] sexual misconduct is often a prerequisite to stopping that misconduct.” (Sex Offender Registration Act: Risk Assessment Guidelines and Commentary at 15 [2006] [citation omitted].)

In calculating an offender’s risk level for post-offense behavior, 15 points are added under risk factor 12 if an “offender has refused or been expelled from treatment since such conduct is powerful evidence of the offender’s continued denial and his [or her] unwillingness to alter his [or her] behavior” (*id.* at 16). Alternatively, the Board may assess an offender 10 points under risk factor 12 for failure to accept responsibility based on other facts indicating the defendant’s lack of remorse.

Whether a defendant’s prison disciplinary violations which prevent him or her from attending treatment can trigger an assessment of points under risk factor 12 has not been addressed by this Court. We hold that defendant’s inability to participate in sex offender treatment due to his disciplinary violations was not tantamount to a refusal to participate in treatment under the SORA Guidelines. Refusal contemplates an intentional explicit rejection of what is being offered. There is no indication here that defendant explicitly refused treatment. Conduct that places a defendant in a position where he or she could not receive treatment is not equal to refusal to participate in treatment. Inferring refusal from a defendant’s disciplinary record is not supported by the Guidelines, which state that points should be assessed where a defendant refuses treatment or is expelled from treatment.

Certainly defendant had a substantial number of disciplinary violations. Beyond assessing a defendant points under risk factor 13 for his or her conduct while confined, the People may

seek an upward departure based on the RAI not adequately taking into account the considerable number of disciplinary violations incurred by a defendant. Additionally, the People may seek an upward departure based on the defendant not receiving sex offender treatment. This is a route available to the People to account for a defendant's repeated disciplinary violations. Supreme Court erred as a matter of law in determining that defendant's disciplinary violations were tantamount to a refusal to participate in sex offender treatment.

Based upon the error of the lower courts, this proceeding should be remitted for appropriate designation of defendant's risk level without the assessment of 15 points under risk factor 12 for refusal to participate in treatment.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order reversed, without costs, and case remitted to Supreme Court, Kings County, for further proceedings in accordance with the memorandum herein.

[29 NE3d 893, 6 NYS3d 546]

In the Matter of KATIE KICKERTZ, Respondent, v NEW YORK UNIVERSITY, Appellant.

Argued February 10, 2015; decided April 2, 2015

SUMMARY

APPEAL from a judgment of the Supreme Court, New York County (Alice Schlesinger, J.), entered July 24, 2013, in a proceeding pursuant to CPLR article 78. The Supreme Court granted the petition and annulled respondent's decision to expel petitioner from the New York University College of Dentistry. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 11, 2012. The Appellate Division, with two Justices dissenting, had (1) reversed, on the law, a judgment of that Supreme Court (30 Misc 3d 1220[A], 2011 NY Slip Op 50131[U] [2011]), which, insofar as appealed from, had granted respondent's motion to dismiss the proceeding, denied the petition and dismissed the proceeding, (2) vacated the judgment, and (3) reinstated and granted the petition.

Matter of Kickertz v New York Univ., 99 AD3d 502, modified.

HEADNOTE

Proceeding against Body or Officer — Dismissal of Petition — Answer

In a CPLR article 78 proceeding challenging respondent university's expulsion of petitioner student based on a determination of academic misconduct, the Appellate Division, which reversed and vacated Supreme Court's judgment dismissing the petition pursuant to CPLR 3211, and reinstated and granted the petition, erred by failing to remand to Supreme Court to permit respondent to file an answer pursuant to CPLR 7804 (f). Where a respondent moves to dismiss a CPLR article 78 petition and the motion is denied, "the court shall permit the respondent to answer, upon such terms as may be just" (CPLR 7804 [f]), unless the facts are so fully presented in the parties' respective papers that it is clear that no dispute as to the facts exists and no prejudice will result from the failure to require an answer. Here, since the motion papers did not establish the absence of triable issues of fact as to whether respondent substantially complied with its established disciplinary procedures, the procedure dictated by CPLR 7804 (f) should have been followed and respondent permitted to answer.

APPEARANCES OF COUNSEL

Hogan Lovells US LLP, New York City (*Ira M. Feinberg* and *Jordan L. Estes* of counsel), for appellant.

Leeds Brown Law, P.C., Carle Place (*Bryan Arbeit* and *Jeffrey K. Brown* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment appealed from and the order of the Appellate Division brought up for review should be modified, without costs, by vacating that portion of the order granting the petition and remitting to Supreme Court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

Based on a determination of academic misconduct, New York University (NYU or the University) expelled Katie Kickertz from its College of Dentistry without possibility of readmission. In this CPLR article 78 proceeding, petitioner Kickertz sought a judgment directing respondent NYU to reinstate her as a student, grant her the degree of Doctor of Dental Surgery and award attorneys' fees. The University now appeals as of right, pursuant to CPLR 5601 (d), from Supreme Court's judgment granting Kickertz's petition. In so doing, NYU brings up for review the Appellate Division's prior nonfinal order which, with two Justices dissenting in part, reversed and vacated Supreme Court's earlier judgment dismissing Kickertz's petition pursuant to CPLR 3211 (30 Misc 3d 1220[A], 2011 NY Slip

Op 50131[U] [Sup Ct, NY County 2011]); and reinstated and granted the petition (99 AD3d 502 [1st Dept 2012]).

The principal issue raised by this appeal is whether the Appellate Division erred by failing to remand to Supreme Court to permit NYU to file an answer pursuant to CPLR 7804 (f). That provision specifies that where a respondent moves to dismiss a CPLR article 78 petition and the motion is denied, “the court *shall* permit the respondent to answer, upon such terms as may be just” (emphasis added). We have indicated, however, that a court need not do so if the “*facts are so fully presented*” in the papers of the respective parties that it is clear that no dispute as to the facts exists and no prejudice will result from the failure to require an answer” (*Matter of Nassau BOCES Cent. Council of Teachers v Board of Coop. Educ. Servs. of Nassau County*, 63 NY2d 100, 102 [1984] [emphasis added]). Since “the motion papers” in *BOCES* “clearly did not establish that there were no triable issues of fact,” we held that “the procedure dictated by CPLR 7804 (subd [f]) should have been followed” (*id.* at 104). For the same reason, NYU should be permitted to answer in this case.

A student subject to disciplinary action at a private educational institution is not entitled to the “full panoply of due process rights” (*Matter of Ebert v Yeshiva Univ.*, 28 AD3d 315, 315 [1st Dept 2006]). Such an institution need only ensure that its published rules are “substantially observed” (*Tedeschi v Wagner Coll.*, 49 NY2d 652, 660 [1980]). And here, triable issues of fact exist with regard to whether NYU substantially complied with its established disciplinary procedures. Because of our disposition of this appeal, we do not reach and express no opinion about the propriety of the penalty imposed or any other issue raised by the parties and decided by the courts below.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, STEIN and FAHEY concur; Judge ABDUS-SALAAM taking no part.

Judgment appealed from and order of the Appellate Division brought up for review modified, without costs, by vacating that portion of the Appellate Division order granting the petition and remitting to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

[29 NE3d 896, 6 NYS3d 549]

ROSEMOND BARNEY-YEBOAH, Respondent, v METRO-NORTH COMMUTER RAILROAD, Appellant.

Decided April 2, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 4, 2014. The Appellate Division reversed, on the law and the facts, an order of the Supreme Court, New York County (Joan A. Madden, J.; op 2013 NY Slip Op 30021[U] [2013]), which had denied plaintiff's motion for partial summary judgment on the issue of liability, and granted the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of the Supreme Court, properly made?"

Plaintiff, a passenger on defendant's train, who was allegedly injured when a ceiling panel in the train car swung open and struck her in the head, testified that she was seated on the train when she heard a loud sound; the next thing she knew, she was on her knees with people around her yelling; and, after the commotion, she looked up and saw a hanging panel—a cabinet utility door that had hit her in the head. Defendant's foreman testified that the train's HVAC and ventilation system was accessible through the ceiling panel that hit plaintiff; that to his knowledge, no one but defendant's personnel accessed the ceiling panels; and that he had no explanation for how the accident occurred. The Appellate Division determined that plaintiff demonstrated a claim under the doctrine of *res ipsa loquitur*, and granted plaintiff's summary judgment motion on the issue of liability. The Court concluded that an affirmation from defendant's attorney which opined that the only logical conclusion, considering the testimony from defendant's foreman, was that the accident occurred because of tampering by unauthorized individuals, was insufficient to defeat plaintiff's motion, especially considering the foreman's testimony that, to his knowledge, no one but defendant's personnel accessed the ceiling panels.

Barney-Yeboah v Metro-North Commuter R.R., 120 AD3d 1023, reversed.

HEADNOTE**Negligence — Res Ipsa Loquitur — Summary Judgment**

In a negligence action to recover damages for an injury allegedly sustained by plaintiff, a passenger on defendant railroad's train, when a ceiling panel in the train car swung open and struck her in the head, the Appellate Division erred when it granted plaintiff's motion for partial summary judgment on the issue of liability based on the doctrine of *res ipsa loquitur*. The circumstantial proof presented by plaintiff was not so convincing and the defendant's response so weak that the inference of defendant's negligence was inescapable.

APPEARANCES OF COUNSEL

Krez & Flores, LLP, New York City (*Paul A. Krez* of counsel), for appellant.

Buttafuoco & Associates PLLC, Woodbury (*Jason M. Murphy* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, Supreme Court's order reinstated, and the certified question answered in the negative. This is not the type of rare case in which the circumstantial proof presented by plaintiff "is so convincing and the defendant's response so weak that the inference of defendant's negligence is inescapable" (*Morejon v Rais Constr. Co.*, 7 NY3d 203, 209 [2006]).

Chief Judge LIPPMAN and Judges READ, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Judge PIGOTT dissents and votes to affirm for reasons stated in the memorandum at the Appellate Division (120 AD3d 1023 [2014]).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, order of Supreme Court, New York County, reinstated, and certified question answered in the negative, in a memorandum.

[29 NE3d 896, 6 NYS3d 549]

In the Matter of ANTHONY J. RUSSO, Respondent, v NEW YORK CITY DEPARTMENT OF EDUCATION, Appellant.

Decided April 7, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an or-

der of that Court, entered July 3, 2014. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, New York County (Geoffrey D. Wright, J.; op 2013 NY Slip Op 33875[U] [2013]), which, in a proceeding pursuant to Education Law § 3020-a (5) and CPLR 7511 to vacate an arbitration award finding petitioner teacher guilty of incompetence and imposing a penalty of termination, had denied the petition and granted respondent New York City Department of Education's cross motion to dismiss the petition. The modification consisted of denying the cross motion, and granting the petition to the extent of remanding the matter to respondent for imposition of a lesser penalty. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court to deny respondent's cross motion and grant the petition to the extent of remanding to respondent for imposition of a lesser penalty and otherwise affirmed, properly made?"

Petitioner teacher was employed by respondent New York City Department of Education for more than 21 years when he was terminated. After 18 years of satisfactory ratings, he was assigned to a self-contained special education class, and during that assignment, he received three years of unsatisfactory ratings. At a subsequent disciplinary hearing, the Hearing Officer determined that petitioner was guilty of seven out of nine of the specified charges spanning the three-year period and deemed petitioner's performance to be unsatisfactory. The Appellate Division, while not disputing the specific findings of the Hearing Officer concerning petitioner's deficiencies in the management of the special education class, determined that under the circumstances presented, the penalty of termination was shocking to one's sense of fairness.

Matter of Russo v New York City Dept. of Educ., 119 AD3d 416, reversed.

HEADNOTE

Schools — Teachers — Termination of Employment — Judicial Review

In a proceeding pursuant to Education Law § 3020-a (5) and CPLR 7511 to vacate an arbitration award finding petitioner teacher guilty of incompetence and imposing a penalty of termination, an order of the Appellate Division, which remanded the matter to respondent New York City Department of Education for imposition of a lesser penalty, was reversed and respondent's cross motion to dismiss the petition granted in its entirety. It could not be said that the penalty of termination shocked the judicial conscience.

APPEARANCES OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (*Kathy Chang Park* and *Richard Dearing* of counsel), for appellant.

Anthony J. Russo, respondent pro se.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order insofar as appealed from reversed, with costs, New York City Department of Education's cross motion to dismiss the petition granted in its entirety, and certified question answered in the negative. We cannot say that "the penalty of [termination] . . . shocks the judicial conscience" (*Matter of Kelly v Safir*, 96 NY2d 32, 40 [2001]; see *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 234-235 [1974]).

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(March 1, 2015 through March 31, 2015)

Sidney W., Matter of, v Chanta J.	2d Dept: 112 AD3d 950	3/30/15
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APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2015 through March 31, 2015)

Farias v Simon	1st Dept: 122 AD3d 466	3/5/15
Gitelson v Quinn	1st Dept: 118 AD3d 403	3/9/15
Kirschner, Matter of, v Fisher	1st Dept: 117 AD3d 567	3/18/15
Morrishill, Matter of, v Prack	3d Dept: 120 AD3d 1474	3/23/15
O'Brien, Matter of, v DiNapoli	3d Dept: 116 AD3d 1124	3/12/15
Thomas v Gray	2d Dept: 121 AD3d 1091	3/9/15

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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2015 through March 31, 2015)

People v Adeola	2d Dept: 123 AD3d 837 (Queens)	denied 3/25/15 (Lippman, Ch. J.)
People v Adomako	1st Dept: 123 AD3d 461 (Bronx)	denied 3/26/15 (Read, J.)
People v Allah	App Div, 4th Dept, 2/18/14 (Cayuga)	denied reconsideration 3/25/15 (Read, J.)
People v Allen (Ron)	1st Dept: 125 AD3d 414 (NY)	denied 3/19/15 (Fahey, J.)
People v Allen (Tirey)	2d Dept: 118 AD3d 902 (Westchester)	denied 3/30/15 (Pigott, J.)
People v Allen (William)	4th Dept: 120 AD3d 1595 (Erie)	denied 3/5/15 (Lippman, Ch. J.)
People v Almonor	2d Dept: 122 AD3d 763 (Queens)	denied 3/30/15 (Pigott, J.)
People v Atkinson	3d Dept: 124 AD3d 1149 (Warren)	denied 3/26/15 (Read, J.)
People v Badalamenti	2d Dept: 124 AD3d 672 (Nassau)	granted 3/31/15 (Fahey, J.)
People v Barbosa	1st Dept: 124 AD3d 419 (NY)	denied 3/25/15 (Lippman, Ch. J.)
People v Barill	4th Dept: 120 AD3d 951 (Erie)	denied reconsideration 3/25/15 (Lippman, Ch. J.)
People v Bateman	3d Dept: 124 AD3d 983 (Broome)	denied 3/26/15 (Read, J.)
People v Belton	1st Dept: 124 AD3d 501 (NY)	denied 3/26/15 (Read, J.)
People v Bouknight	2d Dept: 116 AD3d 875 (Kings)	denied 3/25/15 (Lippman, Ch. J.)
People v Bowens	1st Dept: 120 AD3d 1148 (NY)	denied 3/26/15 (Read, J.)
People v Brooks (Jason)	4th Dept: 125 AD3d 1381 (Monroe)	withdrawn 3/26/15 (Stein, J.) (Appeal No. 1)
People v Brooks (Jason)	4th Dept: 125 AD3d 1388 (Monroe)	withdrawn 3/26/15 (Stein, J.) (Appeal No. 2)
People v Brown (Keston)	1st Dept: 121 AD3d 556 (NY)	denied 3/26/15 (Rivera, J.)
People v Brown (Zavion)	2d Dept: 123 AD3d 938 (Kings)	denied 3/26/15 (Read, J.)
People v Bryant	1st Dept: 123 AD3d 451 (NY)	denied 3/30/15 (Pigott, J.)
People v Campbell	App Div, 4th Dept, 10/21/13 (Erie)	dismissed 3/26/15 (Read, J.)
People v Carper	4th Dept: 124 AD3d 1319 (Chautauqua)	denied 3/26/15 (Read, J.)

People v Castillo	1st Dept: 122 AD3d 516 (NY)	denied 3/26/15 (Rivera, J.)
People v Castillo Dieguez	4th Dept: 124 AD3d 1344 (Orleans)	denied 3/24/15 (Lippman, Ch. J.)
People v Charles	3d Dept: 124 AD3d 986 (Sullivan)	denied 3/19/15 (Fahey, J.)
People v Cherry	1st Dept: 121 AD3d 620 (NY)	denied 3/30/15 (Pigott, J.)
People v Clarke	2d Dept: 122 AD3d 765 (Queens)	granted 3/25/15 (Lippman, Ch. J.)
People v Colburn	3d Dept: 123 AD3d 1292 (Franklin)	denied 3/26/15 (Read, J.)
People v Collins	2d Dept: 122 AD3d 873 (Suffolk)	denied 3/19/15 (Pigott, J.)
People v Craig	4th Dept: 117 AD3d 1485 (Erie)	denied 3/5/15 (Lippman, Ch. J.)
People v Curry	3d Dept: 123 AD3d 1381 (Sullivan)	denied 3/26/15 (Read, J.)
People v Danford	App Div, 3d Dept: 2014 NY Slip Op 92649(U) (Cortland)	dismissed 3/6/15 (Lippman, Ch. J.)
People v Davidson (Richard)	2d Dept: 122 AD3d 937 (Nassau)	denied 3/9/15 (Read, J.)
People v Davidson (Richard)	2d Dept: 122 AD3d 939 (Nassau)	denied 3/9/15 (Read, J.)
People v Davis (Billy)	1st Dept: 124 AD3d 444 (NY)	denied 3/26/15 (Read, J.)
People v Davis (Sharrod)	4th Dept: 122 AD3d 1345 (Monroe)	denied 3/30/15 (Pigott, J.)
People v Davis (Sharrowl)	4th Dept: 122 AD3d 1345 (Monroe)	denied 3/30/15 (Pigott, J.)
People v Deckard	1st Dept: 124 AD3d 498 (NY)	denied 3/26/15 (Read, J.)
People v Dieguez-Castillo (Arcides)	4th Dept: 124 AD3d 1344 (Orleans)	denied 3/24/15 (Lippman, Ch. J.)
People v Dorcinvil	2d Dept: 122 AD3d 874 (Kings)	denied 3/26/15 (Read, J.)
People v Dragicevich	County Ct, 7/24/14 (Wayne)	denied reconsideration 3/26/15 (Read, J.)
People v Easton	4th Dept: 122 AD3d 1299 (Niagara)	denied 3/30/15 (Pigott, J.)
People v Eastwick	App Div, 1st Dept, 9/26/13 (Bronx)	dismissed 3/30/15 (Pigott, J.)
People v Ellis	App Div, 1st Dept: 2013 NY Slip Op 80984(U) (Bronx)	denied 3/26/15 (Read, J.)
People v Fair	1st Dept: 121 AD3d 578 (NY)	denied 3/26/15 (Rivera, J.)
People v Foote	3d Dept: 121 AD3d 1292 (Broome)	denied 3/26/15 (Rivera, J.)
People v Garcia	1st Dept: 124 AD3d 491 (NY)	denied 3/26/15 (Read, J.)

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People v Gilmore	4th Dept: 120 AD3d 1595 (Erie)	denied 3/5/15 (Lippman, Ch. J.)
People v Goforth	4th Dept: 122 AD3d 1310 (Wyoming)	denied 3/9/15 (Read, J.)
People v Gouveia	2d Dept: 124 AD3d 795 (Kings)	denied 3/26/15 (Read, J.)
People v Guzman	2d Dept: 123 AD3d 1054 (Queens)	denied 3/26/15 (Read, J.)
People v Henderson	2d Dept: 120 AD3d 1258 (Kings)	granted 3/25/15 (Lippman, Ch. J.)
People v Hill	2d Dept: 123 AD3d 1146 (Westchester)	denied 3/26/15 (Read, J.)
People v Hughes	4th Dept: 124 AD3d 1380 (Erie)	denied 3/26/15 (Read, J.)
People v Jackson	App Div, 4th Dept, 10/24/14 (Onondaga)	dismissed 3/30/15 (Pigott, J.)
People v Johnson (Andrew)	4th Dept: 124 AD3d 1318 (Niagara)	denied 3/26/15 (Read, J.)
People v Johnson (Chad)	2d Dept: 123 AD3d 1055 (Suffolk)	denied 3/26/15 (Read, J.)
People v Johnson (Marcellus)	1st Dept: 120 AD3d 1154 (NY)	granted 3/19/15 (Pigott, J.)
People v Katehis	2d Dept: 117 AD3d 1080 (Kings)	denied 3/26/15 (Rivera, J.)
People v Koltun	App Div, 2d Dept: 2014 NY Slip Op 92760(U) (Orange)	dismissed 3/6/15 (Lippman, Ch. J.)
People v Kruger	2d Dept: 68 AD3d 784 (Orange)	denied 3/26/15 (Read, J.)
People v Lewis	1st Dept: 121 AD3d 633 (NY)	denied 3/26/15 (Rivera, J.)
People v Lindsay	2d Dept: 123 AD3d 1144 (Westchester)	denied 3/31/15 (Fahey, J.)
People v Liu Yong	App Div, 1st Dept: 2014 NY Slip Op 90099(U) (NY)	denied 3/10/15 (Read, J.)
People v Lloyd	3d Dept: 118 AD3d 1117 (Albany)	denied 3/26/15 (Rivera, J.)
People v Ludwigsen	2d Dept: 118 AD3d 726 (Kings)	denied 3/26/15 (Rivera, J.)
People v Luther	County Ct, 9/26/14 (Monroe)	denied 3/9/15 (Read, J.)
People v Manor	4th Dept: 121 AD3d 1581 (Monroe)	granted 3/19/15 (Pigott, J.)
People v Marte	1st Dept: 123 AD3d 592 (NY)	denied 3/24/15 (Lippman, Ch. J.)
People v Martin	4th Dept: 122 AD3d 1424 (Erie)	denied 3/30/15 (Pigott, J.)
People v Martinez	1st Dept: 122 AD3d 486 (Bronx)	denied 3/26/15 (Rivera, J.)
People v Maurau	1st Dept: 121 AD3d 578 (NY)	denied 3/26/15 (Rivera, J.)

People v Mayhand	4th Dept: 120 AD3d 970 (Monroe)	denied 3/26/15 (Rivera, J.)
People v McDaniel	2d Dept: 120 AD3d 1437 (Kings)	denied reconsideration 3/25/15 (Lippman, Ch. J.)
People v Mercado	App Div, 2d Dept: 2007 NY Slip Op 76107(U) (Westchester)	dismissed 3/26/15 (Read, J.)
People v Michalska	1st Dept: 123 AD3d 458 (NY)	denied 3/10/15 (Read, J.)
People v Miller	4th Dept: 122 AD3d 1369 (Monroe)	denied 3/9/15 (Read, J.)
People v Mills	2d Dept: 124 AD3d 912 (Kings)	denied 3/19/15 (Fahey, J.)
People v Milton	1st Dept: 123 AD3d 443 (NY)	denied 3/30/15 (Pigott, J.)
People v Mitchell (Edward)	2d Dept: 123 AD3d 1056 (Kings)	denied 3/26/15 (Read, J.)
People v Mitchell (Terrel)	2d Dept: 123 AD3d 945 (Queens)	denied 3/26/15 (Read, J.)
People v Molinero	1st Dept: 125 AD3d 468 (Bronx)	denied 3/31/15 (Stein, J.)
People v Morales	1st Dept: 123 AD3d 612 (NY)	denied 3/26/15 (Read, J.)
People v Mosley	3d Dept: 121 AD3d 1169 (Rensselaer)	denied reconsideration 3/26/15 (Lippman, Ch. J.)
People v Mourao	1st Dept: 121 AD3d 578 (NY)	denied 3/26/15 (Rivera, J.)
People v Myhand	4th Dept: 120 AD3d 970 (Monroe)	denied 3/26/15 (Rivera, J.)
People v Navarro	1st Dept: 124 AD3d 488 (Bronx)	denied 3/31/15 (Fahey, J.)
People v O'Leary	County Ct, 8/26/14 (Livingston)	denied 3/26/15 (Rivera, J.)
People v Oseni	2d Dept: 118 AD3d 1028 (Westchester)	denied 3/10/15 (Abdus-Salaam, J.)
People v Pagan	2d Dept: 124 AD3d 804 (Kings)	denied 3/26/15 (Read, J.)
People v Perez	App Term, 1st Dept: 46 Misc 3d 133(A) (NY)	denied 3/26/15 (Read, J.)
People v Perp	3d Dept: 124 AD3d 986 (Sullivan)	denied 3/19/15 (Fahey, J.)
People v Phillips (Jason)	2d Dept: 123 AD3d 1146 (Westchester)	denied 3/26/15 (Read, J.)
People v Phillips (Marquis)	1st Dept: 123 AD3d 524 (NY)	denied 3/9/15 (Read, J.)
People v Piletas	2d Dept: 123 AD3d 741 (Kings)	denied 3/26/15 (Read, J.)

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People v Quezada	2d Dept: 122 AD3d 948 (Queens)	denied 3/9/15 (Read, J.)
People v Qureshi (Sher)	App Term, 2d Dept, 9th & 10th Jud Dists: 45 Misc 3d 57 (Nassau)	denied reconsideration 3/26/15 (Read, J.)
People v Qureshi (Sher)	App Term, 2d Dept, 9th & 10th Jud Dists: 45 Misc 3d 126(A) (Nassau)	denied reconsideration 3/26/15 (Read, J.)
People v Ramey	3d Dept: 123 AD3d 1290 (Schenectady)	denied 3/26/15 (Read, J.)
People v Randolph	1st Dept: 122 AD3d 522 (NY)	denied 3/9/15 (Read, J.)
People v Reed	4th Dept: 124 AD3d 1393 (Monroe)	denied 3/26/15 (Read, J.)
People v Rennick	2d Dept: 123 AD3d 1146 (Kings)	denied 3/24/15 (Lippman, Ch. J.)
People v Rivera (Amira)	1st Dept: 124 AD3d 434 (NY)	denied 3/26/15 (Read, J.)
People v Rivera (Iran)	2d Dept: 116 AD3d 986 (Westchester)	denied 3/5/15 (Lippman, Ch. J.)
People v Santana	2d Dept: 122 AD3d 949 (Queens)	denied 3/9/15 (Read, J.)
People v Scurry	2d Dept: 123 AD3d 949 (Kings)	denied 3/26/15 (Read, J.)
People v Serrano (Jimmy)	1st Dept: 124 AD3d 417 (NY)	denied 3/23/15 (Lippman, Ch. J.)
People v Serrano (Marino)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 45 Misc 3d 69 (Kings)	granted 3/27/15 (Lippman, Ch. J.)
People v Shaffer	County Ct, 10/3/14 (Niagara)	denied 3/30/15 (Pigott, J.)
People v Smith (Dwayne)	2d Dept: 123 AD3d 950 (Kings)	denied 3/26/15 (Read, J.)
People v Smith (Labradford)	4th Dept: 118 AD3d 1492 (Onondaga)	denied 3/10/15 (Abdus-Salaam, J.)
People v Smith (Sandy)	3d Dept: 123 AD3d 1233 (Clinton)	denied 3/26/15 (Read, J.)
People v Smith (Terry)	App Div, 2d Dept: 2015 NY Slip Op 60155(U) (Suffolk)	dismissed 3/13/15 (Abdus-Salaam, J.)
People v Smoke	3d Dept: 123 AD3d 1233 (Clinton)	denied 3/26/15 (Read, J.)
People v Spirles	4th Dept: 124 AD3d 1418 (Monroe)	denied 3/26/15 (Read, J.)
People v Sullivan	4th Dept: 119 AD3d 1335 (Ontario)	denied 3/10/15 (Abdus-Salaam, J.)
People v Terrell	3d Dept: 123 AD3d 1341 (Franklin)	denied 3/26/15 (Read, J.)
People v Terry	2d Dept: 122 AD3d 882 (Kings)	denied 3/26/15 (Rivera, J.)

People v Texidor	2d Dept: 123 AD3d 746 (Kings)	denied 3/13/15 (Pigott, J.)
People v Thompson	1st Dept: 106 AD3d 527 (NY)	denied 3/5/15 (Lippman, Ch. J.)
People v Trahan	2d Dept: 124 AD3d 699 (Suffolk)	denied 3/24/15 (Lippman, Ch. J.)
People v Tull	1st Dept: 123 AD3d 633 (NY)	denied 3/26/15 (Read, J.)
People v Tuper	3d Dept: 118 AD3d 1144 (Franklin)	denied 3/10/15 (Abdus-Salaam, J.)
People v Tuszynski	4th Dept: 120 AD3d 1568 (Onondaga)	denied 3/5/15 (Lippman, Ch. J.)
People v Umoja	App Div, 2d Dept: 2014 NY Slip Op 92253(U) (Kings)	dismissed 3/26/15 (Read, J.)
People v Vasquez	App Div, 1st Dept: 2014 NY Slip Op 92448(U) (NY)	denied 3/25/15 (Lippman, Ch. J.)
People v Villanueva	2d Dept: 123 AD3d 951 (Kings)	denied 3/26/15 (Read, J.)
People v Walker	2d Dept: 123 AD3d 1065 (Kings)	denied 3/26/15 (Read, J.)
People v Walters	2d Dept: 120 AD3d 1272 (Nassau)	denied 3/26/15 (Rivera, J.)
People v Ward	1st Dept: 123 AD3d 590 (Bronx)	denied 3/26/15 (Read, J.)
People v Washington (Kyan)	App Div, 2d Dept: 2014 NY Slip Op 92769(U) (Kings)	dismissed 3/10/15 (Abdus-Salaam, J.)
People v Washington (Vernon)	4th Dept: 124 AD3d 1388 (Onondaga)	denied 3/23/15 (Lippman, Ch. J.)
People v Weathers	2d Dept: 124 AD3d 702 (Kings)	denied 3/26/15 (Read, J.)
People v Whitley	4th Dept: 124 AD3d 1319 (Monroe)	denied 3/23/15 (Lippman, Ch. J.)
People v Williams (Calvin)	1st Dept: 122 AD3d 502 (NY)	denied 3/26/15 (Read, J.)
People v Williams (Carl)	1st Dept: 122 AD3d 512 (NY)	denied 3/9/15 (Read, J.)
People v Williams (Jermaine)	App Div, 3d Dept: 2014 NY Slip Op 89081(U) (Rensselaer)	denied reconsideration 3/26/15 (Read, J.)
People v Williams (Warren)	3d Dept: 123 AD3d 1374 (Schenectady)	denied 3/25/15 (Lippman, Ch. J.)
People v Woods	2d Dept: 123 AD3d 1154 (Queens)	denied 3/26/15 (Read, J.)
People v Yong Liu	App Div, 1st Dept: 2014 NY Slip Op 90099(U) (NY)	denied 3/10/15 (Read, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(March 1, 2015 through March 31, 2015)

People v Carver	4th Dept: 124 AD3d 1276 (Monroe)	granted 3/17/15 (Whalen, J.)
People v Hull	3d Dept: 125 AD3d 1099 (Delaware)	granted 3/26/15 (Lynch, J.)
People v Nelson	2d Dept: 125 AD3d 58 (Kings)	granted 3/27/15 (Dickerson, J.)

[30 NE3d 896, 8 NYS3d 253]

KEITH HOLMES, Respondent, v BUSINESS RELOCATION SERVICES, INC., Defendant/Third-Party Plaintiff-Appellant. UNITED STAFFING SYSTEMS, INC., Third-Party Defendant-Respondent.

Decided March 26, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 8, 2014. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Alison Y. Tuitt, J.; op 2013 NY Slip Op 33872[U] [2013]), which, to the extent appealed from as limited by the briefs, had denied defendant's motion for summary judgment dismissing the complaint as barred by the Workers' Compensation Law. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

Plaintiff was assigned to work for defendant, for two days, as a truck driver by his general employer, a temporary employment company. He used defendant's trucks and was told where and when to deliver and pick up voting machines, and his general employer relinquished contact with and direct supervision of him after assigning him to defendant. Although plaintiff was accompanied by one of defendant's supervisors during his deliveries and pickups, the supervisor testified that he did not supervise drivers. The Appellate Division concluded that issues of fact existed as to whether defendant was the special employer of plaintiff.

* Includes only applications that were granted.

Holmes v Business Relocation Servs., Inc., 117 AD3d 468, affirmed.

HEADNOTE

Workers' Compensation — Existence of Employer-Employee Relationship — Special Employer — Presumption of Continuing General Employment

The Appellate Division correctly determined that issues of fact remained as to the alleged special employment relationship between plaintiff and defendant, the alleged special employer, to which plaintiff was assigned to work for two days by his general employer. It could not be said, as a matter of law, that defendant overcame the presumption of continuing general employment by clearly demonstrating surrender of control by the general employer and assumption of control by the special employer.

APPEARANCES OF COUNSEL

Lester Schwab Katz & Dwyer, LLP, New York City (*Daniel S. Kotler* of counsel), for third-party plaintiff-appellant.

Burns & Harris, New York City (*Blake G. Goldfarb* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative. As a matter of law, it cannot be said that Business Relocation Services, Inc., the alleged special employer, overcame the presumption of continuing general employment by “clear[ly] demonstrati[ng] . . . surrender of control by the general employer and assumption of control by the special employer” (*Thompson v Grumman Aerospace Corp.*, 78 NY2d 553, 557 [1991]). The Appellate Division correctly determined that issues of fact remained as to the alleged special employment relationship.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

MARK FABIANO et al., Respondents, v STATE OF NEW YORK, Appellant.

Submitted February 2, 2015; decided March 31, 2015

Reported below, 123 AD3d 1262.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RICHARD N. GOLDEN, Respondent, v BERNADETTE M. LYNCH, Appellant.

Submitted February 9, 2015; decided March 31, 2015

Reported below, 2014 NY Slip Op 84426(U).

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 1079 (2014)].

Judges STEIN and FAHEY taking no part.

GREATER NEW YORK TAXI ASSOCIATION et al., Appellants, v NEW YORK CITY TAXI AND LIMOUSINE COMMISSION, a Charter-Mandated Agency, et al., Respondents, and NISSAN TAXI MARKETING, N.A., LLC, et al., Intervenors-Respondents.

Submitted March 16, 2015; decided March 31, 2015

Reported below, 121 AD3d 21.

Motion for a stay granted.

JOSEPH MARTENS, as Commissioner of Environmental Conservation, et al., Respondents, v FREDERICK J. NERONI et al., Appellants.

Decided March 31, 2015

Reported below, 121 AD3d 1312.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge STEIN taking no part.

In the Matter of MICHAEL O.F. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FAUSAT O., Appellant.

In the Matter of JOSEPH O.A., JR. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FAUSAT O., Appellant.

Decided March 31, 2015

Reported below, 119 AD3d 785; 2014 NY Slip Op 89334(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the orders appealed from do not finally determine the proceedings within the meaning of the Constitution.

In the Matter of MING TUNG et al., Appellants, v CHINA BUDDHIST ASSOCIATION et al., Respondents.

Decided March 31, 2015

Reported below, 124 AD3d 13.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCOS LLIBRE, Appellant.

Submitted January 5, 2015; decided March 31, 2015

Reported below, 2014 NY Slip Op 73663(U).

Motion to dismiss appeal denied. A criminal leave application to the Court of Appeals is assigned to and decided by a single Judge of the Court of Appeals (*see* CPL 460.20 [4]; Rules of Ct of Appeals [22 NYCRR] § 500.20). While a motion to the full Court of Appeals to dismiss the appeal may be made on the ground that there is no jurisdiction over the appeal, a motion may not be made, as it has been here, upon the ground that leave was improvidently granted. Such motion does not constitute a basis for the full Court of Appeals to dismiss an appeal taken pursuant to leave of a single Judge of the Court of Appeals.

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted January 20, 2015; decided March 31, 2015

Reported below, 2014 NY Slip Op 93769(U); 2014 NY Slip Op 93770(U).

Motions for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motions for poor person relief dismissed as academic.

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted February 2, 2015; decided March 31, 2015

Reported below, 2015 NY Slip Op 61199(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RCM ELMWOOD LLC et al., Respondents, v CAROL NIZNIK, Appellant.

Submitted January 26, 2015; decided March 31, 2015

On the Court's own motion, appeal dismissed, without costs, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for a stay dismissed as academic.

In the Matter of SOLOMON R. MICHAEL R., Respondent. USHER P., Nonparty Appellant.

Decided March 31, 2015

Reported below, 123 AD3d 934.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

SUSAN STASSA, Respondent, v GEORGE STASSA, Appellant.

Submitted January 20, 2015; decided March 31, 2015

Reported below, 123 AD3d 804.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of STATE FARM MUTUAL AUTOMOBILE INSURANCE
COMPANY, Appellant, v PATRICK FITZGERALD, Respondent.

Decided March 31, 2015

Reported below, 112 AD3d 166.

Reargument ordered and case set down for argument during a future session of the Court of Appeals.

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, ABDUS-SALAAM, STEIN and FAHEY.

Taking no part: Judge RIVERA.

SUE/PERIOR CONCRETE & PAVING, INC., Respondent, v LEWISTON
GOLF COURSE CORPORATION, Appellant, et al., Defendants.

Submitted January 5, 2015; decided March 31, 2015

Reported below, 109 AD3d 80.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 24 NY3d 538 (2014)].

Judges STEIN and FAHEY taking no part.

SUE/PERIOR CONCRETE & PAVING, INC., Respondent, v LEWISTON
GOLF COURSE CORPORATION, Appellant, et al., Defendants.

Submitted January 12, 2015; decided March 31, 2015

Reported below, 109 AD3d 80.

Motion by the Seneca Nation of Indians for leave to appear amicus curiae on the motion for reargument herein granted and the brief is accepted as filed [*see* 24 NY3d 538 (2014)].

Judges STEIN and FAHEY taking no part.

ROBERT THOMAS, Respondent, v RITA GRAY, Appellant.

Submitted February 9, 2015; decided March 31, 2015

Reported below, 121 AD3d 1091.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

MICHAEL A. CERVINI, Respondent, v CISCO GENERAL CONSTRUCTION, INC., Appellant.

Submitted February 9, 2015; decided April 2, 2015

Reported below, 123 AD3d 1077.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RAFAEL CORTORREAL, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted February 9, 2015; decided April 2, 2015

Reported below, 123 AD3d 1337.

Motion for leave to appeal granted. Motion for poor person relief granted.

Judge STEIN taking no part.

NOEL DAVIDSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 9, 2015; decided April 2, 2015

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

In the Matter of JESSICA GRAHAM, Appellant, v CHARLES T. RAWLEY, Respondent.

Submitted February 23, 2015; decided April 2, 2015

Reported below, 2015 NY Slip Op 62870(U); 2015 NY Slip Op 62869(U).

Motions for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motions for poor person relief dismissed as academic.

SEDINA LEVIN, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION (HARLEM HOSPITAL CENTER), Respondent.

Submitted January 12, 2015; decided April 2, 2015

Reported below, 119 AD3d 480; 2014 NY Slip Op 88989(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of LUCINDA A. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; LUBA A., Appellant. (Proceeding No. 1.)

In the Matter of MANUEL A., Respondent, v LUBA A., Appellant. (Proceeding No. 2.)

Submitted March 2, 2015; decided April 2, 2015

Reported below, 120 AD3d 492.

Motion for leave to appeal etc. denied. Motion for poor person relief dismissed as academic.

In the Matter of DONTIE S. MITCHELL, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Submitted February 17, 2015; decided April 2, 2015

Reported below, 120 AD3d 1475; 2014 NY Slip Op 93951(U); 2014 NY Slip Op 87775(U).

On the Court's own motion, appeal, insofar as taken from the September 2014 Appellate Division judgment, dismissed, without costs, upon the ground that it is untimely (*see* CPLR 5513 [a]); appeal, insofar as taken from the October 2014 and December 2014 Appellate Division orders denying the motions for costs and disbursements and for reconsideration, dismissed, without costs, upon the ground that such orders do not finally determine the proceeding within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from the September 2014 Appellate Division judgment, dismissed upon the ground that it is untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the October 2014 and December 2014 Appellate Division orders denying the motions for costs and disbursements and for reconsideration, dismissed upon the ground that such orders do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NYC C.L.A.S.H., INC., Appellant, v NEW YORK STATE OFFICE OF PARKS, RECREATION AND HISTORIC PRESERVATION et al., Respondents.

Submitted February 9, 2015; decided April 2, 2015

Reported below, 125 AD3d 105.

Motion for leave to appeal denied as unnecessary.

JOHN PICKERING-GEORGE, Also Known as JOHN ROBERT DALEY, Appellant, v MATHEW M. WAMBUA et al., Respondents.

Submitted January 26, 2015; decided April 2, 2015

Reported below, 117 AD3d 583.

On the Court's own motion, appeal, insofar as taken from the May 2014 Appellate Division judgment, dismissed, without costs, upon the ground that it is untimely (*see* CPLR 5513 [a]); appeal, insofar as taken from the October 2014 Supreme Court order, dismissed, without costs, upon the ground that it does not lie (CPLR 5601). Motion, insofar as it seeks leave to appeal from the May 2014 Appellate Division judgment, dismissed upon the ground that it is untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the October 2014 Supreme Court order, dismissed upon the ground that it does not lie (CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted February 23, 2015; decided April 2, 2015

Reported below, 2015 NY Slip Op 62877(U); 2015 NY Slip Op 62876(U); 2015 NY Slip Op 62875(U); 2015 NY Slip Op 62874(U).

Motions for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motions for poor person relief dismissed as academic.

UNION-ENDICOTT CENTRAL SCHOOL DISTRICT et al., Appellants,
v JOANNE PETERS, Respondent. (Action No. 1.)

In the Matter of the Arbitration between UNION-ENDICOTT CENTRAL SCHOOL DISTRICT, Appellant, and ENDICOTT TEACHERS' ASSOCIATION, on Behalf of JOANNE PETERS, Respondent. (Proceeding No. 1.)

In the Matter of UNION-ENDICOTT CENTRAL SCHOOL DISTRICT, Appellant, v ENDICOTT TEACHERS' ASSOCIATION et al., Respondents. (Proceeding No. 2.)

Submitted February 17, 2015; decided April 2, 2015

Reported below, 123 AD3d 1198.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as modified Supreme Court's order by confirming the arbitration award and, as so modified, affirmed so much of Supreme Court's order denying the petition to vacate or modify the arbitration award, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

Judge STEIN taking no part.

RAFIA AHMED, Individually and as Executrix of NAFIS AHMED, Deceased, Appellant, v JOHN PANNONE, M.D., et al., Respondents, et al., Defendant.

Submitted February 9, 2015; decided April 7, 2015

Reported below, 116 AD3d 802.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TALIV ALI, Appellant, v STATE OF NEW YORK, Respondent.

Submitted March 2, 2015; decided April 7, 2015

Reported below, 2015 NY Slip Op 62619(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOHN HOGAN, Appellant, v DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION et al., Respondents.

Submitted February 23, 2015; decided April 7, 2015

Reported below, 2014 NY Slip Op 86651(U).

Motion for reargument denied [*see* 24 NY3d 1098 (2015)].

Judges STEIN and FAHEY taking no part.

In the Matter of LAZY ACRES PARK, LLC, Respondent, v PAUL FERRETTI et al., Appellants.

Submitted February 23, 2015; decided April 7, 2015

Reported below, 118 AD3d 1406.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in Town Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

Judge FAHEY taking no part.

In the Matter of LAZY ACRES PARK, LLC, Respondent, v PAUL FERRETTI et al., Appellants.

Submitted March 9, 2015; decided April 7, 2015

Reported below, 118 AD3d 1406.

Motion by the National Consumer Law Center et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge FAHEY taking no part.

PS 157 LOFTS LLC et al., Respondents, v KIMBERLY AUSTIN et al., Appellants.

Decided April 7, 2015

Reported below, 2014 NY Slip Op 78635(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Court of Appeals does not have jurisdiction to entertain the appeal (NY Const, art VI, § 3; CPLR 5601).

Judges STEIN and FAHEY taking no part.

PS 157 LOFTS LLC et al., Respondents, v KIMBERLY AUSTIN et al., Appellants.

Submitted March 23, 2015; decided April 7, 2015

Reported below, 2014 NY Slip Op 89036(U).

Motion, insofar as it seeks reargument, denied; motion, insofar as it seeks leave to appeal, dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (NY Const, art VI, § 3; CPLR 5602) [*see* 24 NY3d 1213 (2015)].

Judges STEIN and FAHEY taking no part.

ZENICA SEGERMAN, Appellant, v LUTHERAN MEDICAL CENTER et al., Respondents.

Submitted March 9, 2015; decided April 7, 2015

Reported below, 2014 NY Slip Op 88645(U).

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 1115 (2015)].

Judges STEIN and FAHEY taking no part.

In the Matter of SYNERGY, LLC, et al., Appellants, v SUSAN KIBLER, Assessor, Town of Covington, et al., Respondents, and WYOMING CENTRAL SCHOOL DISTRICT, Intervenor-Respondent. (Action No. 1.)

In the Matter of SYNERGY, LLC, et al., Appellants, v SUSAN KIBLER, Assessor, Town of Covington, et al., Respondents, and WYOMING CENTRAL SCHOOL DISTRICT, Intervenor-Respondent. (Action No. 2.)

Submitted February 23, 2015; decided April 7, 2015

Reported below, 124 AD3d 1261, 1263.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the Supreme Court judgment, denied; motion, insofar as it seeks leave to appeal from the other Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SYNERGY, LLC, et al., Appellants, v SUSAN KIBLER, Assessor, Town of Covington, et al., Respondents, and WYOMING CENTRAL SCHOOL DISTRICT, Intervenor-Respondent. (Action No. 1.)

In the Matter of SYNERGY, LLC, et al., Appellants, v SUSAN KIBLER, Assessor, Town of Covington, et al., Respondents, and WYOMING CENTRAL SCHOOL DISTRICT, Intervenor-Respondent. (Action No. 2.)

Submitted March 16, 2015; decided April 7, 2015

Reported below, 124 AD3d 1261, 1263.

Motion by the Commissioner of Agriculture and Markets for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

DREW M. VEROST et al., Respondents, v MITSUBISHI CATERPIL-
LAR FORKLIFT AMERICA, INC., et al., Defendants, and NUT-
TALL GEAR, LLC, et al., Appellants.

Submitted February 23, 2015; decided April 7, 2015

Reported below, 124 AD3d 1219.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of MASAO YONAMINE, Appellant, v NEW YORK
CITY POLICE DEPARTMENT et al., Respondents.

Submitted February 23, 2015; decided April 7, 2015

Reported below, 121 AD3d 598.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the proceeding within the meaning of the Constitu-
tion. Motion for poor person relief dismissed as academic.

[31 NE3d 112, 8 NYS3d 650]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KHARYE
JARVIS, Respondent.

Argued February 19, 2015; decided April 7, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division
of the Supreme Court in the Fourth Judicial Department, from
an order of that Court, entered January 3, 2014. The Appellate
Division (1) reversed, on the law, a judgment of the Monroe
County Court (Charles T. Maloy, J.), which had convicted de-
fendant, upon a jury verdict, of murder in the second degree
(two counts), and (2) granted a new trial.

People v Jarvis, 113 AD3d 1058, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Cumulative Effect of Counsel's Lapses

In a murder prosecution, where the evidence against defendant was particularly weak since credibility issues affected each of the prosecutor's major witnesses, the cumulative effect of counsel's lapses deprived defendant of meaningful representation. Counsel's failure to invoke the trial court's prior preclusion order, coupled with his presentation of an alibi defense for the wrong day of the week, could have led to defendant's conviction.

APPEARANCES OF COUNSEL

Sandra Doorley, District Attorney, Rochester (*Geoffrey Kaeuper* of counsel), for appellant.

William G. Pixley, Pittsford, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Counsel's failure to invoke the court's prior preclusion order, coupled with his presentation of an alibi defense for the wrong day of the week, could have led to defendant's conviction. In this case, where the evidence against defendant was particularly weak since credibility issues affected each of the prosecutor's major witnesses, the cumulative effect of counsel's lapses deprived defendant of meaningful representation (*People v Oathout*, 21 NY3d 127, 132 [2013]).

PIGOTT, J. (dissenting). In 1992, following a jury trial, defendant was convicted, on compelling evidence, of two counts of murder in the second degree for the fatal shooting of two men. Now, 23 years later, the majority holds that defense counsel was ineffective for not objecting at trial when the prosecutor elicited testimony from a prosecution witness, Charlotte Barnwell, that defendant threatened her prior to her testimony. County Court had earlier ruled that such testimony was inadmissible unless the issue of Barnwell's delay in coming forward was raised on cross-examination. The majority further holds that defense counsel's presentation of an alibi defense through three alibi witnesses constitutes ineffective assistance. In my view, defendant failed to meet his burden of establishing the absence of a strategic or other legitimate explanation for defense counsel's alleged errors. Therefore, I dissent and would affirm the judgment of conviction.

In *People v Baldi*, this Court held that in order for a defendant to succeed on his claim of ineffective assistance of counsel, defendant must prove that he was deprived of a fair trial by

less than “meaningful representation” determined by counsel’s performance “viewed in totality” (*People v Oathout*, 21 NY3d 127, 128 [2013], citing *Baldi*, 54 NY2d 137, 147 [1981]). Further, we have said that in reviewing claims of ineffective assistance, we must take care “to avoid both confusing true ineffectiveness [of counsel] with mere losing tactics and according undue significance to retrospective analysis” (*Baldi*, 54 NY2d at 146).

Defense counsel undoubtedly conducted a diligent defense throughout the trial. He capably argued motions including the mid-trial *Molineux/Ventimiglia* hearing, delivered a cogent opening statement, cross-examined the People’s witnesses, lodged appropriate objections and offered an articulate closing argument that identified weaknesses in the People’s proof. Defense counsel attacked the prosecution’s proof as to identity, offering three witnesses in support of an alibi and, further, challenged the credibility of each of the People’s witnesses throughout the trial. Moreover, defense counsel’s effectiveness was demonstrated by the length of the jury’s deliberations before it eventually convicted defendant. Given the breadth of defense counsel’s representation, it could not reasonably be said, on this record, that defendant was denied meaningful representation.

The majority bases its holding, in part, on a claimed “lapse” of defense counsel in failing to object to Barnwell’s limited-use testimony. In *People v Rivera*, this Court held that in order “[t]o prevail on a claim of ineffective assistance of counsel, it is incumbent on defendant to demonstrate the absence of strategic or other legitimate explanations for counsel’s failure” to object (71 NY2d 705, 709 [1988]). “Absent such a showing, it will be presumed that [defense] counsel acted in a competent manner and exercised professional judgment” in choosing not to object (*id.*). We further noted that only “[i]n the rare case, it might be possible from the trial record alone to reject all legitimate explanations for counsel’s failure” (*id.*).

In this case, the majority ignores the fact that the People offered a number of strategic reasons why defense counsel may not have objected to Barnwell’s limited-use testimony. For instance, defense counsel may have decided not to object in order to avoid focusing the jury’s attention to Barnwell’s testimony altogether (see *People v Taylor*, 1 NY3d 174, 177

[2003]). Just prior to the line of questioning concerning the threat, Barnwell had provided damaging testimony that before the shootings she overheard defendant threaten to kill one of the victims.

Alternatively, defense counsel may have sought to use Barnwell's testimony to defendant's advantage by calling attention to her difficulties in testifying. It is evident from the record that throughout the prosecution's case-in-chief Barnwell appeared uncooperative, hesitant and unreliable. In fact, the prosecution asked 11 questions—with two objections by defense counsel—before finally eliciting testimony from Barnwell that she overheard defendant threaten that he was going to shoot the victim. Additionally, Barnwell was unable to recall the threat defendant directed at her without the use of her prior statement to the police. Defense counsel had good reason to believe that Barnwell would continue to undercut her own credibility with her continued reluctance and vacillations.

Also evident from the record is defense counsel's execution of this strategy. On cross-examination, defense counsel challenged Barnwell's inability to recall the threat without use of a prior recollection recorded. In summation, defense counsel argued at length about Barnwell's unreliable testimony, stressing her relationship to the victims and further urging the jurors to disregard her statements. In particular, he argued:

“You cannot separate some of what she says from her manner in which she says it. This is a case where if you ask to have her testimony read back and then you listen to it, it might make some degree of sense. But you have to remember that when she was testifying, the Judge had to instruct her at one point to answer the question. And the second thing is the most critical piece of evidence she claims she has, she tells the District Attorney she forgot. Well, I forgot that. She had to go off and read her statement, then says, Oh, yeah, now I remember.”

Towards the end of summation, defense counsel returned to Barnwell's credibility, urging the jury to find Barnwell's testimony unbelievable. What is more, the jury requested a read-back of Barnwell's testimony and nonetheless remained deadlocked.

Therefore, “[t]he decision not to object to prosecutorial actions . . . simply ‘reflect[ed]’ “a reasonable and legitimate strat-

egy under the circumstances and evidence presented” ’ ’ (Taylor, 1 NY3d at 177, quoting *People v Tonge*, 93 NY2d 838, 840 [1999]). Accordingly, while defense counsel’s decision not to object may have been debatable, it is beyond me how the majority can possibly state, on this record, that defendant met his burden of establishing the absence of strategic or legitimate reasons for “[c]ounsel’s failure to invoke the court’s prior preclusion order” (majority mem at 969).

Furthermore, I disagree with the majority’s conclusion that defendant, on this record, met his burden of establishing the absence of strategic or other legitimate explanations for the presentation of an alibi defense through the testimony of defendant’s girlfriend and her mother.

Here, the subject murders occurred at approximately 1:20 a.m. on Tuesday, June 4, 1991. Two alibi witnesses, defendant’s girlfriend and her mother, testified to defendant’s whereabouts on the evening of June 3rd and the early morning hours of June 4th, but incorrectly identified the days of the week on which those dates fell.

As the Appellate Division acknowledged, in reliance on *People v Cabrera* (234 AD2d 557, 558 [1996]), *People v Long* (81 AD2d 521, 521-522 [1981]), and *Henry v Poole* (409 F3d 48, 65-66 [2005], *cert denied* 547 US 1040 [2006]), presenting an alibi defense for the wrong date or time has been found to constitute ineffective assistance of counsel (113 AD3d 1058, 1061 [4th Dept 2014]). However, in each of these cases, the defense counsel interjected the errors into the alibi witnesses’ testimony. In *Cabrera*, the defense counsel’s questions focused on a Friday evening when the robbery of which the defendant was convicted occurred early Friday morning (*see* 234 AD2d at 558). In *Long*, the defense counsel “direct[ed] [the witness’s] attention to July 22, 1978 in the evening of that day” when the robbery actually occurred in the early morning hours of July 22 (81 AD2d at 521). Likewise, in *Henry*, the attorney specifically keyed the testimony in his question to the night of August 10, 24 hours after the robbery, thereby leading the witness to testify as to the incorrect night (*see* 409 F3d at 64).

In this case, however, defense counsel never directed the alibi witnesses to the incorrect days of the week; he only questioned them with respect to their memory of June 3 and 4, the day before and the day of the murders. The alibi witnesses gratuitously and erroneously offered that they were providing alibis for a Friday morning even though defense counsel

questioned them specifically about June 3 and 4. Defense counsel cannot possibly be faulted for the witnesses' failed memories or for their addition of details that were deleterious to defendant's alibi defense.

To the extent the majority suggests that defense counsel was in fact responsible for the discrepancies exposed in the alibi witnesses' testimony, it is suggesting that defense counsel suborned perjury and such a claim is predicated on facts not found in the record on appeal.*

In short, it is impossible on the record on appeal alone to reject all legitimate explanations for defense counsel's alleged errors and therefore determine defendant was denied effective assistance of counsel. The claims should be raised in a postconviction application under CPL article 440, where the basis of the claims may be fully developed (*see People v Brown*, 45 NY2d 852 [1978]).

Chief Judge LIPPMAN and Judges READ, RIVERA, ABDUS-SALAAM and STEIN concur; Judge PIGOTT dissents in an opinion; Judge FAHEY taking no part.

Order affirmed, in a memorandum.

[31 NE3d 1194, 9 NYS3d 597]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v WILLIAM BROWN, Respondent.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PATRICK THOMAS, Respondent.

Argued February 12, 2015; decided March 26, 2015

SUMMARY

APPEAL, in the first above-entitled action, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 16, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Michael R. Sonberg, J., at suppression hearing; Cassandra M.

* See generally Manuel Berrélez et al., Note, *Disappearing Dilemmas: Judicial Construction of Ethical Choice as Strategic Behavior in the Criminal Defense Context*, 23 Yale L & Pol'y Rev 225 (2005).

Mullen, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of grand larceny in the third and fourth degrees and fraudulent accosting; (2) granted defendant's motion to suppress the out-of-court identification; and (3) remanded the matter for a new trial preceded by an independent source hearing.

APPEAL, in the second above-entitled action, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 16, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Michael R. Sonberg, J., at suppression hearing; Cassandra M. Mullen, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of grand larceny in the third and fourth degrees and fraudulent accosting; (2) granted defendant's motion to suppress the out-of-court identification and property seized from him; and (3) remanded the matter for a new trial preceded by an independent source hearing.

People v Brown, 115 AD3d 38, appeal dismissed.

People v Thomas, 115 AD3d 69, appeal dismissed.

HEADNOTE

Crimes — Appeal — Matters Appealable — Mixed Question of Law and Fact — Reasonable Suspicion to Stop and Detain Defendants

In a criminal prosecution in which the Appellate Division determined that Supreme Court should have suppressed the showup identifications of both defendants and the property seized from one of the defendants because the police lacked reasonable suspicion to stop and detain defendants, the appeals from the Appellate Division orders reversing the judgments of conviction were dismissed for failing to fulfill the requirements of CPL 450.90 (2) (a). Whether the circumstances of a particular case rise to the level of reasonable suspicion presents a mixed question of law and fact. Because the reversals were thus not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]), the appeals were not authorized to be taken.

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (*David M. Cohn*, *Alan Gadlin* and *Yuval Simchi-Levi* of counsel), for appellant in the first and second above-entitled actions.

Robert S. Dean, Center for Appellate Litigation, New York City (*Bruce D. Austern* of counsel), for respondent in the first above-entitled action.

Dechert LLP, New York City (*Hector Gonzalez*, *Laura E. Meehan* and *James M. McGuire* of counsel), and *Seymour W. James*,

Jr., Legal Aid Society, Criminal Appeals Bureau, New York City (*David Crow* and *Andrew Fine* of counsel), for respondent in the second above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

The appeals should be dismissed for failure to fulfill the requirements of CPL 450.90 (2) (a).

The Appellate Division, with two Justices dissenting, determined that Supreme Court should have suppressed the showup identification of defendant William Brown (115 AD3d 38 [1st Dept 2014]) and the showup identification of and property seized from defendant Patrick Thomas (115 AD3d 69 [1st Dept 2014]) because the police lacked reasonable suspicion to stop and detain them. Accordingly, the Court reversed the judgment of conviction and sentence in each case, granted defendants' respective motions to suppress and remanded for a new trial preceded by an independent source hearing. In each case, one of the dissenting Justices granted the People leave to appeal to us (2014 NY Slip Op 66369[U] [1st Dept 2014]; 2014 NY Slip Op 66368[U] [1st Dept 2014]).

Whether the circumstances of a particular case rise to the level of reasonable suspicion presents a mixed question of law and fact (*see e.g. People v Howard*, 74 NY2d 943 [1989] [dismissing an appeal from an Appellate Division order of reversal involving the mixed question of whether the police harbored a reasonable suspicion that the defendant was about to commit a crime]). Because the Appellate Division's reversals were thus not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]), these appeals are not authorized to be taken.

While acknowledging that "determinations as to reasonable suspicion typically present a mixed question of law and fact," the dissent cites *People v McRay* (51 NY2d 594 [1980]) for the proposition that these cases instead involve a straight-up question of law—namely, "the minimum showing necessary to establish reasonable suspicion" (dissenting op at 976 [internal quotation marks omitted]). In *McRay*, though, the Appellate Division reversed the suppression court on the ground that the People's proof was insufficient as a matter of law to support probable cause to arrest (*id.* at 605). When we disagreed and reversed, we therefore remitted to the Appellate Division for

factual review, emphasizing that an inference of probable cause was permitted, but not required, on the facts established (*id.* at 605-606). Here, by contrast, the Appellate Division reversed the suppression court because, when exercising its independent fact-finding powers, it drew a different inference from the established facts, thus deciding a mixed question of law and fact. The dissenting Judge strongly disagrees with the Appellate Division. But the views of individual Judges of this Court on the merits of defendants' suppression motions are beside the point because the Criminal Procedure Law simply does not vest us with jurisdiction to entertain these appeals.

PIGOTT, J. (dissenting). Although determinations as to reasonable suspicion typically present a mixed question of law and fact, where the issue presented involves the "minimum showing necessary to establish" reasonable suspicion, "a question of law is presented for [our] review" (*People v McRay*, 51 NY2d 594, 601 [1980]). Here, the Appellate Division erred as a matter of law in holding that the undisputed facts and the reasonable inferences drawn therefrom failed to satisfy the minimum showing necessary to establish reasonable suspicion. Therefore, I dissent and would reverse the order of the Appellate Division and remit the cases to that Court for a review of the facts in accordance with this Court's decision in *People v McRay*.

In the early morning hours of December 9, 2010, Sergeant Kenneth Monahan and Officers Edward Carey and Thomas Donovan, members of the "cabaret unit," a unit whose primary duty is the "midnight enforcement of bars and nightclubs," including "drug sales, fraudulent accostings [and] loitering for prostitution," were on uniformed patrol in the Times Square area.

At around 1:30 a.m., Officer Carey encountered defendant Brown—whom he had previously arrested twice for fraudulent accosting—outside of a club near Times Square and directed him to leave the area.

Three hours later, at around 4:30 a.m., while sitting in an unmarked police van, the officers spotted defendants Brown and Thomas running down the middle of Broadway in Times Square, looking back over their shoulders as they ran. Officer Carey apprised his colleagues of Brown's identity. Sergeant Monahan recognized Thomas as someone who associated with people, other than Brown, who preyed on victims in the Times Square area. The officers exited the van, called to defendants

and both men stopped. Brown, who was out of breath, sat on the ground. Neither Brown nor Thomas was placed in handcuffs. Sergeant Monahan contemporaneously located a robbery victim outside of the club where Officer Carey had seen Brown three hours earlier. After the victim identified both Brown and Thomas as the perpetrators, they were placed under arrest. The victim's Rolex and \$185 in cash were recovered from Thomas.

Defendants thereafter moved to suppress the showup identification. After a suppression hearing where the court heard testimony from two of the police officers, Supreme Court denied the motion. A divided Appellate Division reversed, ordered suppression of the victim's out-of-court identification, and remanded for a new trial, holding that "[t]he fact that the officers observed defendant[s] . . . running does not elevate the level of suspicion" (115 AD3d 38, 40 [1st Dept 2014]).

"Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, the CPL authorizes a forcible stop and detention of that person" (*People v De Bour*, 40 NY2d 210, 223 [1976], citing CPL 140.50 [1]). Reasonable suspicion is defined as "the quantum of knowledge sufficient to induce an ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand" (*People v Cantor*, 36 NY2d 106, 112-113 [1975]). A stop based on reasonable suspicion will be upheld if the officer can identify "specific and articulable facts" that, together "with any logical deductions, reasonably prompted th[e] intrusion" (*id.* at 113).

Here, the officers observed defendants running down a major thoroughfare in the early morning hours, looking back over their shoulders. They recognized the two men because they were known to have engaged in, or had been associated with people engaged in, crimes in that area. The officers also knew that Brown had a history of fraudulent accosting in the Times Square area. In fact, only three hours earlier Officer Carey had observed Brown in front of the club and directed him to leave. The officers also knew that Thomas fraternized with people, other than Brown, involved in similar scams. Clearly, under these circumstances, the police officers possessed reasonable suspicion to stop Brown and Thomas. They would have been derelict in their duty had they not done so.

The present case is factually akin to the circumstances in *People v Evans* (65 NY2d 629 [1985]), where this Court

determined that the initial stop of the defendant was based on reasonable suspicion where the arresting officers observed the defendant running from a subway station, carrying a white shopping bag and looking over his shoulder several times, and then trying to gain entrance to one apartment building after another. In concluding that the stop was reasonable, this Court held: “Although each factor, standing alone, could be susceptible to an innocent interpretation, a view of the entire circumstances indicates that the officers entertained a reasonable suspicion that the defendant had committed a crime . . . and was attempting to flee” (*id.* at 630).

Likewise, in this case, the combination of the officers’ particular knowledge of each defendant’s criminal history coupled with defendants’ flight from an area where defendants were known to fraternize, while looking over their shoulders, was sufficient to provide the officers with reasonable suspicion (*see People v Sierra*, 83 NY2d 928, 929 [1994] [“flight . . . combined with other specific circumstances indicating that the suspect may be engaged in criminal activity, may give rise to reasonable suspicion”]).

Moreover, the motion court’s finding of reasonable suspicion under these circumstances is not inconsistent with our holding in *People v Johnson* (64 NY2d 617 [1984]). There we held that an officer’s knowledge that a suspect had previously burglarized houses in a neighborhood in which the suspect was walking did not *by itself* amount to reasonable suspicion (*see id.* at 619), but indicated that we might have reached a different conclusion had the suspect been fleeing the scene (*see id.* [noting that “there (was) no other testimony suggesting that his behavior was furtive or his movements unusual”]).

The officers plainly had reason to believe that defendants had engaged in criminal activity. As we cautioned in *People v Chestnut* (51 NY2d 14 [1980]),

“[c]ourts simply must not, in this difficult area of street encounters between private citizens and law enforcement officers, attempt to dissect each individual act by the policemen; rather, the events must be viewed and considered as a whole, remembering that reasonableness is the key principle when undertaking the task of balancing the competing interests presented” (*id.* at 23).

Indeed, “[b]y disapproving of the stop of defendant[s], . . . [the majority] is discouraging police work that is not only constitu-

tionally proper but also laudable. Such a precedent will serve to impede effective law enforcement and interfere with the protection and safety of the public” (*People v Brown*, 115 AD3d 38, 41 [2014, Tom, J.P. and Saxe, J., dissenting]). I would reverse the order of the Appellate Division and remit the cases to that Court for a review of the facts in accordance with this Court’s decision in *People v McRay*.

Chief Judge LIPPMAN and Judges READ, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Judge PIGOTT dissents in an opinion.

In each case: Appeal dismissed upon the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]), in a memorandum.

AURORA LOAN SERVICES, LLC, Respondent, v MONIQUE TAYLOR et al., Appellants, et al., Defendants.

Submitted April 6, 2015; decided May 5, 2015

Reported below, 114 AD3d 627.

Motion by MERSCORP Holdings, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

JAMES BRADY, Appellant, v JEFFREY KATZ et al., Respondents.

JAMES BRADY, Appellant, v 450 WEST 31ST STREET OWNER’S CORP. et al., Respondents.

Submitted March 9, 2015; decided May 5, 2015

Reported below, 2015 NY Slip Op 61839(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution. Motion for a stay dismissed as academic.

EMIGRANT SAVINGS BANK-BROOKLYN/QUEENS, as Assignee of
Emigrant Mortgage Company, Inc., Respondent, v BONIFA-
CIO MAKINANO, Appellant, et al., Defendants.

Submitted April 27, 2015; decided May 5, 2015

Reported below, 126 AD3d 934.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

GREATER NEW YORK TAXI ASSOCIATION et al., Appellants, v New
YORK CITY TAXI AND LIMOUSINE COMMISSION, a Charter-
Mandated Agency, et al., Respondents, and NISSAN TAXI
MARKETING, N.A., LLC, et al., Intervenors-Respondents.

Submitted April 6, 2015; decided May 5, 2015

Reported below, 121 AD3d 21.

Motion by Design Trust for Public Space et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

GREEN TREE CREDIT, LLC, Formerly Known as CONSECO FI-
NANCE CREDIT CORP., Respondent, v GODFREY JELKS,
Individually and as Executor of EVA T. CLARK, Deceased,
Appellant, et al., Defendants.

Submitted February 23, 2015; decided May 5, 2015

Reported below, 120 AD3d 1300.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARK ROBERT GORDON, Appellant, v CHUBB GROUP OF INSUR-
ANCE COMPANY et al., Respondents.

Decided May 5, 2015

Reported below, 114 AD3d 482; 2014 NY Slip Op 90110(U).

Appeal, insofar as taken from the November 2014 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal, insofar as taken from the February 2014 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of TERRI A. JABLONSKI, Appellant.
COMMISSIONER OF LABOR, Respondent.

Decided May 5, 2015

Reported below, 126 AD3d 1224.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ERIKA KWASNIK, Respondent, v JOHN B. KING,
as Commissioner of Education of the State of New York, et
al., Respondents, and BOARD OF EDUCATION OF THE NOR-
WICH CITY SCHOOL DISTRICT et al., Appellants.

Submitted February 23, 2015; decided May 5, 2015

Reported below, 123 AD3d 1264.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of IRENE LEUNG, Appellant, v NEW YORK CITY
DEPARTMENT OF BUILDINGS et al., Respondents.

Decided May 5, 2015

Reported below, 123 AD3d 1032.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of LOURDES G., Respondent, v JULIO P., Appellant.

Submitted March 2, 2015; decided May 5, 2015

Reported below, 115 AD3d 510.

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 1051 (2014)].

Judges STEIN and FAHEY taking no part.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et al., Defendants, and CRANE Co., Appellant.

Submitted April 20, 2015; decided May 5, 2015

Reported below, 121 AD3d 230.

Motion by The Retired Enlisted Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of PATROLMEN'S BENEVOLENT ASSOCIATION OF THE CITY OF NEW YORK, INC., et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Submitted April 27, 2015; decided May 5, 2015

Reported below, 119 AD3d 1.

Motion by Harry Nespoli, as Chair and on behalf of the New York City Municipal Labor Committee, for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEROY CARVER, Appellant.

Submitted April 20, 2015; decided May 5, 2015

Reported below, 124 AD3d 1276.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
HENDERSON, Appellant.

Submitted April 20, 2015; decided May 5, 2015

Reported below, 120 AD3d 1258.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAR-
CELLUS JOHNSON, Appellant.

Submitted April 27, 2015; decided May 5, 2015

Reported below, 120 AD3d 1154.

Motion for assignment of counsel granted and Stanley Neustadter, care of Cardozo Law School Criminal Appeals Clinic, 55 Fifth Avenue, 11th Floor, New York, NY 10003 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY
A. LATIMER, Appellant.

Submitted April 27, 2015; decided May 5, 2015

Reported below, 116 AD3d 1065.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE
D. MANOR, Appellant.

Submitted April 20, 2015; decided May 5, 2015

Reported below, 121 AD3d 1581.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOEL NELSON, Appellant.

Submitted April 20, 2015; decided May 5, 2015

Reported below, 125 AD3d 58.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY PARSON, JR., Appellant.

Submitted April 6, 2015; decided May 5, 2015

Reported below, 122 AD3d 1441.

Motion for assignment of counsel granted and David C. Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BAASIL REYNOLDS, Appellant.

Submitted April 27, 2015; decided May 5, 2015

Reported below, 117 AD3d 478.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL SIMMONS, Appellant.

Submitted February 17, 2015; decided May 5, 2015

Reported below, 123 AD3d 617.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LOUIS SPEAKS, Appellant.

Submitted March 30, 2015; decided May 5, 2015

Reported below, 124 AD3d 689.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

JARROD PEREZ, Appellant, v LENORE FLEISCHER et al., Individually and Doing Business as 608 PARTNERSHIP, Respondents.

Submitted March 2, 2015; decided May 5, 2015

Reported below, 122 AD3d 1157.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge STEIN taking no part.

PHILIP SELDON, Appellant, v LEWIS BRISBOIS BISGAARD & SMITH LLP, et al., Respondents.

Submitted February 9, 2015; decided May 5, 2015

Reported below, 116 AD3d 490.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBIN WATSON, Appellant, v NEW YORK CITY
HOUSING AUTHORITY, Respondent.

Submitted April 6, 2015; decided May 5, 2015

Reported below, 2015 NY Slip Op 65012(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief and a stay dismissed as academic.

[31 NE3d 595, 9 NYS3d 178]

In the Matter of JEFFREY P. DORRANCE.

Decided May 12, 2015

SUMMARY

CONSIDERATION, by the Court of Appeals, of whether the suspension of the Honorable Jeffrey P. Dorrance from the office of Justice of the Green Island Town Court, Albany County, should be continued.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals continued the suspension, with pay, of a Town Court Justice from office.

OPINION OF THE COURT

On consideration of the continuation of this Court's March 26, 2015 suspension, with pay, of the Honorable Jeffrey P. Dorrance from his office of Justice of the Green Island Town Court, Albany County (25 NY3d 925 [2015]), it is determined that the suspension continue, with pay, effective immediately.

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2015 through April 30, 2015)

Gumbs v Flushing Town
Center III, L.P.

1st Dept: 114 AD3d 573

4/24/15

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2015 through April 30, 2015)

People v Abdulla ¹	4th Dept: 118 AD3d 1462 (Onondaga)	denied 3/26/15 (Rivera, J.)
People v Alexander	1st Dept: 124 AD3d 557 (NY)	denied 4/7/15 (Stein, J.)
People v Alamo	3d Dept: 122 AD3d 1000 (Greene)	denied 4/2/15 (Lippman, Ch. J.)
People v Ali	2d Dept: 124 AD3d 789 (Queens)	denied 4/1/15 (Stein, J.)
People v Allen	4th Dept: 122 AD3d 1423 (Erie)	denied 4/7/15 (Pigott, J.)
People v Alvarez	1st Dept: 122 AD3d 505 (NY)	denied 4/7/15 (Pigott, J.)
People v Ameer	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 2015 NY Slip Op 61395(U) (Kings)	denied 4/10/15 (Abdus-Salaam, J.)
People v Angona	4th Dept: 119 AD3d 1406 (Oswego)	denied 4/13/15 (Abdus-Salaam, J.)
People v Aponte	App Div, 4th Dept, 11/12/14 (Niagara)	dismissed 4/3/15 (Abdus-Salaam, J.)
People v Astwood	2d Dept: 122 AD3d 936 (Richmond)	denied 4/13/15 (Pigott, J.)
People v Ausby	App Term, 1st Dept: 46 Misc 3d 126(A) (Bronx)	denied reconsideration 4/27/15 (Lippman, Ch. J.)
People v Ayala	2d Dept: 121 AD3d 1124 (Queens)	denied 4/17/15 (Lippman, Ch. J.)
People v Ballinger	2d Dept: 125 AD3d 784 (Kings)	denied 4/2/15 (Fahey, J.)
People v Barnes	3d Dept: 119 AD3d 1290 (Albany)	denied 4/13/15 (Abdus-Salaam, J.)
People v Bayron	1st Dept: 119 AD3d 444 (NY)	denied 4/17/15 (Abdus-Salaam, J.)
People v Berry	1st Dept: 122 AD3d 414 (NY)	granted 4/2/15 (Rivera, J.)
People v Best	2d Dept: 120 AD3d 707 (Queens)	denied 4/13/15 (Abdus-Salaam, J.)
People v Blackshear	4th Dept: 125 AD3d 1384 (Oneida)	denied 4/1/15 (Stein, J.)
People v Bo	3d Dept: 121 AD3d 1404 (Columbia)	denied 4/7/15 (Fahey, J.)
People v Bonapart	2d Dept: 123 AD3d 839 (Nassau)	denied 4/13/15 (Pigott, J.)

1. Omitted from March 2015 list.

People v Bonavito	4th Dept: 121 AD3d 1499 (Erie)	denied 4/6/15 (Stein, J.)
People v Bonnett	2d Dept: 125 AD3d 683 (Richmond)	denied 4/23/15 (Fahey, J.)
People v Bridgeforth	2d Dept: 119 AD3d 600 (Queens)	granted 4/2/15 (Rivera, J.)
People v Brown	1st Dept: 123 AD3d 413 (NY)	denied 4/21/15 (Pigott, J.)
People v Builder	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 137(A) (Kings)	denied 4/13/15 (Abdus-Salaam, J.)
People v Campbell	App Term, 1st Dept: 46 Misc 3d 139(A) (NY)	denied ² 4/14/15 (Fahey, J.)
People v Cadeno	4th Dept: 124 AD3d 1382 (Monroe)	denied 4/23/15 (Pigott, J.) (Appeal No. 2)
People v Cane	3d Dept: 123 AD3d 1301 (Franklin)	denied 4/24/15 (Pigott, J.)
People v Carpenter	1st Dept: 123 AD3d 479 (NY)	denied 4/13/15 (Pigott, J.)
People v Carter-Doucette	4th Dept: 124 AD3d 1323 (Chautauqua)	denied 4/20/15 (Pigott, J.)
People v Cedeno (Jacinto)	4th Dept: 124 AD3d 1376 (Monroe)	denied 4/23/15 (Pigott, J.) (Appeal No. 1)
People v Cedeno (Jacinto)	4th Dept: 124 AD3d 1382 (Monroe)	denied 4/23/15 (Pigott, J.) (Appeal No. 2)
People v Chambers	2d Dept: 125 AD3d 785 (Queens)	denied 4/23/15 (Fahey, J.)
People v Chance	2d Dept: 125 AD3d 993 (Kings)	denied 4/24/15 (Fahey, J.)
People v Clarke	3d Dept: 121 AD3d 1404 (Columbia)	denied 4/7/15 (Fahey, J.)
People v Cobb ³	4th Dept: 120 AD3d 1610 (Monroe)	denied 3/26/15 (Rivera, J.)
People v Cohen	1st Dept: 123 AD3d 614 (NY)	denied 4/13/15 (Pigott, J.)
People v Collins	2d Dept: 119 AD3d 956 (Kings)	denied 4/10/15 (Abdus-Salaam, J.)
People v Cunningham	2d Dept: 119 AD3d 601 (Kings)	denied 4/2/15 (Lippman, Ch. J.)
People v Curet	App Div, 1st Dept: 2014 NY Slip Op 88392(U) (Bronx)	denied 4/20/15 (Pigott, J.)
People v Davidson	1st Dept: 121 AD3d 612 (NY)	denied 4/7/15 (Pigott, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Afilal* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [App Term, 1st Dept 2014], *lv granted* 24 NY3d 1218 [2015]).

3. Omitted from March 2015 list.

MEMORANDA

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People v Davis	2d Dept: 117 AD3d 749 (Kings)	denied 4/17/15 (Abdus-Salaam, J.)
People v Daza	2d Dept: 125 AD3d 881 (Kings)	denied 4/9/15 (Fahey, J.)
People v DeJesus	1st Dept: 123 AD3d 517 (NY)	denied 4/13/15 (Pigott, J.)
People v Devault	3d Dept: 124 AD3d 1140 (Sullivan)	denied 4/22/15 (Fahey, J.)
People v Doe	3d Dept: 122 AD3d 1000 (Greene)	denied 4/2/15 (Lippman, Ch. J.)
People v Donofrio	2d Dept: 123 AD3d 941 (Westchester)	denied 4/23/15 (Pigott, J.)
People v Dunmeyer	4th Dept: 125 AD3d 1478 (Niagara)	denied 4/7/15 (Stein, J.)
People v Dym	2d Dept: 122 AD3d 878 (Rockland)	denied 4/7/15 (Lippman, Ch. J.)
People v Edrees	2d Dept: 123 AD3d 842 (Kings)	denied 4/21/15 (Pigott, J.)
People v Ellis (Justin)	2d Dept: 123 AD3d 1054 (Orange)	denied 4/17/15 (Fahey, J.)
People v Ellis (Sandra)	4th Dept: 125 AD3d 1330 (Monroe)	denied 4/27/15 (Lippman, Ch. J.)
People v English	1st Dept: 118 AD3d 558 (NY)	denied 4/13/15 (Abdus-Salaam, J.)
People v Fitzgerald	1st Dept: 125 AD3d 447 (NY)	denied 4/17/15 (Stein, J.)
People v Fuller	4th Dept: 124 AD3d 1394 (Jefferson)	denied 4/3/15 (Lippman, Ch. J.)
People v Garcia (Joseph)	1st Dept: 120 AD3d 406 (NY)	denied 4/13/15 (Pigott, J.)
People v Garcia (Valentin)	1st Dept: 125 AD3d 488 (NY)	denied 4/14/15 (Stein, J.)
People v Granger	2d Dept: 122 AD3d 940 (Queens)	denied 4/13/15 (Pigott, J.)
People v Guerin	County Ct, 5/30/14 (Cattaraugus)	granted 4/8/15 (Pigott, J.)
People v Hadfield	3d Dept: 119 AD3d 1217 (St. Lawrence)	denied 4/17/15 (Lippman, Ch. J.)
People v Harmon	1st Dept: 125 AD3d 501 (NY)	denied 4/20/15 (Lippman, Ch. J.)
People v Harris	3d Dept: 121 AD3d 1423 (Cortland)	denied 4/7/15 (Pigott, J.)
People v Harrison	4th Dept: 124 AD3d 1311 (Monroe)	denied 4/21/15 (Pigott, J.)
People v Helmus	2d Dept: 125 AD3d 884 (Suffolk)	denied 4/20/15 (Stein, J.)
People v Herring	2d Dept: 119 AD3d 958 (Orange)	denied 4/13/15 (Abdus-Salaam, J.)

People v Hoffert	4th Dept: 125 AD3d 1386 (Lewis)	denied 4/7/15 (Stein, J.)
People v Holmes	App Term, 1st Dept: 46 Misc 3d 140(A) (NY)	denied 4/27/15 (Lippman, Ch. J.)
People v Hubbs	2d Dept: 121 AD3d 711 (Suffolk)	denied 4/17/15 (Lippman, Ch. J.)
People v Hudson	App Term, 2d Dept, 9th & 10th Jud Dists: 44 Misc 3d 134(A) (Suffolk)	denied 4/10/15 (Abdus-Salaam, J.)
People v Jackson (Anthony)	2d Dept: 117 AD3d 966 (Nassau)	withdrawn 4/17/15 (Lippman, Ch. J.)
People v Jackson (Tommy)	4th Dept: 119 AD3d 1346 (Onondaga)	denied 4/9/15 (Abdus-Salaam, J.)
People v Jagroo	2d Dept: 123 AD3d 945 (Queens)	denied 4/20/15 (Pigott, J.)
People v Jefferson	4th Dept: 125 AD3d 1463 (Monroe)	denied 4/21/15 (Stein, J.)
People v Jones	1st Dept: 123 AD3d 594 (NY)	denied 4/13/15 (Pigott, J.)
People v Kessler	4th Dept: 122 AD3d 1402 (Genesee)	denied 4/7/15 (Pigott, J.)
People v Khan (Mahadaye)	3d Dept: 127 AD3d 1250 (Albany)	denied 4/9/15 (Fahey, J.)
People v Khan (Mala)	3d Dept: 127 AD3d 1250 (Albany)	denied 4/9/15 (Fahey, J.)
People v Kreutter ⁴	4th Dept: 121 AD3d 1534 (Wyoming)	denied 3/26/15 (Rivera, J.)
People v Kumar	1st Dept: 118 AD3d 642 (NY)	denied 4/10/15 (Abdus-Salaam, J.)
People v Lazaro	2d Dept: 125 AD3d 1007 (Kings)	withdrawn 4/27/15 (Read, J.)
People v Leycock	1st Dept: 124 AD3d 550 (Bronx)	denied 4/7/15 (Lippman, Ch. J.)
People v Lightfoot	2d Dept: 124 AD3d 802 (Westchester)	denied 4/6/15 (Stein, J.)
People v Lincoln	2d Dept: 124 AD3d 803 (Orange)	denied 4/2/15 (Fahey, J.)
People v Lopez (Efrain)	4th Dept: 119 AD3d 1426 (Monroe)	denied 4/9/15 (Abdus-Salaam, J.)
People v Lopez (Efrain)	4th Dept: 119 AD3d 1426 (Monroe)	denied 4/9/15 (Abdus-Salaam, J.)
People v Lubrano	3d Dept: 117 AD3d 1239 (Ulster)	denied 4/2/15 (Lippman, Ch. J.)
People v Lugg	2d Dept: 124 AD3d 679 (Westchester)	denied 4/7/15 (Stein, J.)

4. Omitted from March 2015 list.

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People v Marin	1st Dept: 124 AD3d 491 (Bronx)	denied 4/7/15 (Lippman, Ch. J.)
People v Martinez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 45 Misc 3d 134(A) (Queens)	denied 4/7/15 (Pigott, J.)
People v McGregor	3d Dept: 119 AD3d 1235 (St. Lawrence)	denied 4/10/15 (Abdus-Salaam, J.)
People v McRae	2d Dept: 123 AD3d 848 (Suffolk)	denied 4/7/15 (Pigott, J.)
People v Melo	1st Dept: 123 AD3d 474 (NY)	denied 4/7/15 (Pigott, J.)
People v Miller	1st Dept: 125 AD3d 561 (NY)	denied 4/22/15 (Fahey, J.)
People v Mills	App Div, 4th Dept, 9/3/14 (Genesee)	dismissed 4/23/15 (Pigott, J.)
People v Monroe	3d Dept: 125 AD3d 1048 (Warren)	denied 4/2/15 (Fahey, J.)
People v Narvaez	1st Dept: 125 AD3d 415 (NY)	denied 4/1/15 (Stein, J.)
People v Nasher	1st Dept: 125 AD3d 416 (Bronx)	denied 4/7/15 (Stein, J.)
People v Nelson	App Div, 2d Dept: 2015 NY Slip Op 60539(U) (Kings)	dismissed 4/2/15 (Lippman, Ch. J.)
People v Nestman	App Div, 3d Dept: 2015 NY Slip Op 62611(U) (Ulster)	denied 4/8/15 (Lippman, Ch. J.)
People v Nieves	1st Dept: 125 AD3d 466 (NY)	denied 4/7/15 (Fahey, J.)
People v Ortolaza	3d Dept: 120 AD3d 843 (Ulster)	denied 4/10/15 (Abdus-Salaam, J.)
People v Pallateri	2d Dept: 120 AD3d 514 (Queens)	denied 4/13/15 (Abdus-Salaam, J.)
People v Pantan	1st Dept: 114 AD3d 450 (Bronx)	granted upon reconsideration 4/8/15 (Lippman, Ch. J.)
People v Patino	1st Dept: 119 AD3d 409 (NY)	denied 4/10/15 (Abdus-Salaam, J.)
People v Patrick	3d Dept: 125 AD3d 1053 (Washington)	denied 4/27/15 (Lippman, Ch. J.)
People v Peters	3d Dept: 126 AD3d 1029 (Chemung)	denied 4/24/15 (Fahey, J.)
People v Phillips	1st Dept: 124 AD3d 493 (NY)	denied 4/6/15 (Stein, J.)
People v Pittman	3d Dept: 119 AD3d 1242 (Ulster)	denied 4/10/15 (Abdus-Salaam, J.)
People v Quilez ⁵	1st Dept: 119 AD3d 434 (NY)	denied 3/26/15 (Rivera, J.)

5. Omitted from March 2015 list.

People v Racks	2d Dept: 125 AD3d 692 (Kings)	denied ⁶ 4/7/15 (Fahey, J.)
People v Reyes	App Div, 1st Dept: 2014 NY Slip Op 92433(U) (NY)	denied 4/13/15 (Pigott, J.)
People v Reynolds	1st Dept: 117 AD3d 478 (NY)	granted 4/2/15 (Rivera, J.)
People v Reynoso	1st Dept: 125 AD3d 475 (NY)	denied 4/7/15 (Stein, J.)
People v Richards	3d Dept: 124 AD3d 1146 (Ulster)	denied 4/13/15 (Fahey, J.)
People v Rios	1st Dept: 125 AD3d 510 (NY)	denied 4/22/15 (Fahey, J.)
People v Robinson	3d Dept: 123 AD3d 1224 (Columbia)	denied 4/13/15 (Pigott, J.)
People v Rodriguez (Carlos)	1st Dept: 125 AD3d 476 (NY)	denied 4/2/15 (Fahey, J.)
People v Rodriguez (Emanuel)	4th Dept: 124 AD3d 1388 (Erie)	denied 4/24/15 (Pigott, J.) (Appeal No. 1)
People v Rodriguez (Emanuel)	4th Dept: 124 AD3d 1389 (Erie)	denied 4/24/15 (Pigott, J.) (Appeal No. 2)
People v Rodriguez (Emmanuel)	4th Dept: 122 AD3d 1425 (Erie)	denied 4/20/15 (Pigott, J.)
People v Rosario	1st Dept: 125 AD3d 407 (NY)	denied 4/23/15 (Fahey, J.)
People v Sanders	1st Dept: 123 AD3d 482 (NY)	denied 4/20/15 (Pigott, J.)
People v Schrock	App Div, 4th Dept, 1/22/15 (Cattaraugus)	dismissed 4/10/15 (Abdus-Salaam, J.)
People v Shoemaker	3d Dept: 119 AD3d 1073 (Clinton)	denied 4/13/15 (Abdus-Salaam, J.)
People v Skidds	3d Dept: 123 AD3d 1342 (St. Lawrence)	denied 4/20/15 (Pigott, J.)
People v Smith (Alan)	2d Dept: 118 AD3d 920 (Dutchess)	denied reconsideration 4/21/15 (Pigott, J.)
People v Smith (George)	1st Dept: 122 AD3d 446 (NY)	denied 4/17/15 (Lippman, Ch. J.)
People v Spellicy	3d Dept: 123 AD3d 1228 (Fulton)	denied 4/23/15 (Pigott, J.)
People v Stanley	2d Dept: 124 AD3d 919 (Kings)	denied 4/14/15 (Stein, J.)
People v Stewart	4th Dept: 119 AD3d 1455 (Onondaga)	denied 4/10/15 (Abdus-Salaam, J.)

6. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v King* (110 AD3d 1005 [2d Dept 2013], *lv granted* 23 NY3d 1022 [2014]).

MEMORANDA

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People v Terry	1st Dept: 124 AD3d 409 (NY)	denied 4/24/15 (Pigott, J.)
People v The General	4th Dept: 124 AD3d 1376 (Monroe)	denied 4/23/15 (Pigott, J.) (Appeal No. 1)
People v Thompson	App Div, 2d Dept: 2015 NY Slip Op 60542(U) (Kings)	dismissed 4/2/15 (Abdus-Salaam, J.)
People v Toback	3d Dept: 125 AD3d 1060 (Ulster)	denied 4/9/15 (Fahey, J.)
People v "Trigger Trey"	2d Dept: 124 AD3d 922 (Orange)	denied 4/22/15 (Fahey, J.)
People v Velazquez	3d Dept: 125 AD3d 1063 (Warren)	denied 4/2/15 (Fahey, J.)
People v Velez	App Div, 1st Dept, 2015 NY Slip Op 62540(U) (NY)	denied 4/14/15 (Stein, J.)
People v Villatoro	App Term, 2d Dept, 9th & 10th Jud Dists: 44 Misc 3d 133(A) (Suffolk)	denied 4/10/15 (Abdus-Salaam, J.)
People v Vivenzio	4th Dept: 124 AD3d 1352 (Cayuga)	denied 4/20/15 (Pigott, J.)
People v Wallace	2d Dept: 123 AD3d 1151 (Queens)	denied 4/21/15 (Pigott, J.)
People v Wares	3d Dept: 124 AD3d 1079 (Ulster)	denied 4/8/15 (Fahey, J.)
People v Wayne B.	1st Dept: 124 AD3d 492 (Bronx)	denied 4/7/15 (Lippman, Ch. J.)
People v Wheeler	3d Dept: 124 AD3d 1136 (Ulster)	denied 4/7/15 (Fahey, J.)
People v Wilkins	1st Dept: 125 AD3d 534 (NY)	denied 4/13/15 (Fahey, J.)
People v Williams (Cedric)	2d Dept: 124 AD3d 920 (Kings)	denied 4/9/15 (Fahey, J.)
People v Williams (Tevin)	2d Dept: 124 AD3d 922 (Orange)	denied 4/22/15 (Fahey, J.)
People v Wilson	4th Dept: 120 AD3d 1531 (Monroe)	granted 4/23/15 (Pigott, J.)
People v Yunga	2d Dept: 122 AD3d 951 (Queens)	denied 4/13/15 (Pigott, J.)
People v Z	3d Dept: 123 AD3d 1224 (Columbia)	denied 4/13/15 (Pigott, J.)

[32 NE3d 387, 10 NYS3d 172]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLIF-
FORD GRAHAM, Appellant.

Argued March 25, 2015; decided May 5, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 7, 2013. The Appellate Division affirmed a judgment of Supreme Court, Onondaga County (John J. Brunetti, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a forged instrument in the first degree (two counts) and petit larceny (two counts).

People v Graham, 107 AD3d 1421, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant failed to preserve for review the issue of whether the police were required to again read him his *Miranda* rights when they interviewed him a second time, at his request and in the presence of counsel, since he did not make that argument in his motion papers to the trial court or at the hearing to suppress statements made during the second interview. Moreover, while a general objection—such as that contained in defendant’s omnibus motion—is sufficient to preserve an issue for review by the Court of Appeals when the trial court “expressly decided the question raised on appeal” (CPL 470.05 [2]), here, the trial court did not expressly decide the issue of whether the police were required to advise defendant of his right to remain silent under the circumstances presented by the second interview. Rather, the court’s decision was focused on the right to counsel and whether counsel was required to be present for the entirety of that interview.

APPEARANCES OF COUNSEL

Hiscock Legal Aid Society, Syracuse (*Piotr Banasiak* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (*James P. Maxwell* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

After defendant attempted to use counterfeit \$20 bills to pay for a hotel room and buy groceries at a convenience store, he was arrested and taken to the Criminal Investigations Division of the Syracuse Police Department. A detective read defendant

his *Miranda* rights, which he waived. Defendant did not, at that time, provide consistent answers to the detectives' questions regarding who had given him the counterfeit money. The detectives, therefore, ended the interrogation and told defendant that, if he wanted to give them any further information that would be useful to their investigation, he would have to arrange to speak to them through defense counsel.

Approximately three weeks later, defense counsel contacted the detectives and indicated that defendant wished to share additional information about the source of the counterfeit money. Defendant spoke at length with counsel in private before meeting with one of the detectives, and counsel was present for a portion of the ensuing conversation until leaving, with defendant's consent, to attend to a prior commitment. It is undisputed that defendant was not advised of his *Miranda* rights at this second interview. During that interview, he made statements that were allegedly inculpatory.

Defendant subsequently moved, in a pro se omnibus motion, for suppression of the statements that he made to the detectives. He asserted that his statements were the product of "custodial interrogation," and were made in violation of his Fifth and Fourteenth Amendment rights under the Federal Constitution, as well as his rights under the State Constitution and CPL 60.45. Supreme Court directed a "pre-trial hearing . . . on defendant's motion to suppress [his] statement(s) based upon *Miranda v. Arizona*, 384 US 436 [1966] and traditional involuntariness grounds."

During the suppression hearing, defendant asked the court how long his initial waiver of his *Miranda* rights remained valid, and the People conceded that the waiver was good only for the day on which he was first arrested. Defendant then conducted a cross-examination of the detective with whom he spoke during the second interview. Supreme Court attempted to direct defendant's focus by stating, "[s]ee, you're not going into the circumstances surrounding your *Miranda* rights," and pointing out that defendant's questions had no bearing on "whether the interrogation session was legal."

Supreme Court's efforts to focus defendant on a possible violation of his *Miranda* rights were to no avail and, at the close of the suppression hearing, defendant made an argument that the police lacked probable cause to arrest him. Rejecting that argument "because the orders directing the hearings did not involve any type of probable cause issue," the court denied

suppression of the statements made by defendant during the second interview. As relevant here, the court reasoned that

“defendant was in custody on the matter, represented by counsel on the matter and therefore he could not waive counsel on the matter unless counsel was present, which did occur. Once a counsel waiver occurred in counsel’s presence and the client agreed to submit to the interview on the topic at hand, to wit: counterfeit bills, counsel’s presence thereafter is not required.”

The matter proceeded to trial, at the close of which a jury found defendant guilty of two counts each of criminal possession of a forged instrument in the first degree and petit larceny. Upon defendant’s appeal, the Appellate Division affirmed (107 AD3d 1421 [2013]). Regarding defendant’s motion to suppress statements made during the second interview, the Court concluded that “[i]nasmuch as defendant’s counsel was present during the first 20 minutes of the interview and informed the detectives that defendant was willing to cooperate, it was permissible for the officers to infer from defendant’s conduct and his attorney’s assurances that defendant’s waiver of his *Miranda* rights was made on the advice of counsel” (*id.* at 1422-1423). A Judge of this Court granted defendant leave to appeal (23 NY3d 963 [2014]).

Because we conclude that defendant failed to preserve the issue that he raises on this appeal, we affirm. “Under article VI, § 3 of the New York State Constitution, the Court of Appeals, with limited exceptions, is empowered to consider only ‘questions of law’ ” (*People v Gray*, 86 NY2d 10, 20 [1995]; see *People v Hawkins*, 11 NY3d 484, 491 [2008]). As relevant here, CPL 470.05 (2) provides that a question of law regarding a ruling is presented in a criminal proceeding “when a protest thereto was registered, by the party claiming error, at [a] time . . . when the court had an opportunity of effectively changing the same . . . or if in response to a protest by a party, the court expressly decided the question raised on appeal.”

The issue argued on this appeal is whether the police were required to again read defendant his *Miranda* rights when they interviewed him a second time, at his request and in the presence of counsel. In particular, defendant contends that the courts below erred in determining that the presence of counsel obviated the need for police to advise him of his right to remain silent during the second interview. Defendant, however, did not

make this argument in his motion papers to the trial court or at the suppression hearing.

Moreover, while a general objection—such as that contained in defendant’s omnibus motion—is sufficient to preserve an issue for our review when the trial court “expressly decided the question raised on appeal” (CPL 470.05 [2]; see *People v Smith*, 22 NY3d 462, 465 [2013]; *People v Prado*, 4 NY3d 725, 726 [2004]), here, Supreme Court did not expressly decide the issue of whether the police were required to advise defendant of his right to remain silent under the circumstances presented by the second interview. Rather, the court’s decision was focused on the right to counsel and whether counsel was required to be present for the entirety of that interview. The court decided that counsel’s continued presence was not required once defendant waived his right to counsel in counsel’s presence and agreed to speak to police regarding the counterfeit bills. Inasmuch as defendant made only a general motion for suppression and it cannot be said that the court expressly decided the issue that defendant raises on this appeal, preservation has not been established and that issue is, therefore, beyond our power to review (see *People v Turriago*, 90 NY2d 77, 83-84 [1997]; *People v Johnson*, 83 NY2d 831, 834 [1994]).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur; Judge FAHEY taking no part.

Order affirmed, in a memorandum.

[32 NE3d 384, 10 NYS3d 169]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PER-
NELL A. FLANDERS, Appellant.

Argued March 25, 2015; decided May 5, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered November 8, 2013. The Appellate Division affirmed a judgment of the Oneida County Court (Barry M. Donalty, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree, assault in the first degree, criminal possession of a weapon in the second degree, and reckless endangerment in the first degree.

People v Flanders, 111 AD3d 1263, affirmed.

HEADNOTE

Crimes — Indictment — Duplicious Counts — Counts Alleging Use of Two Weapons to Commit Crimes Not Rendered Duplicious

In a prosecution arising from an incident in which defendant shot the victim twice, with two different guns, two counts of the indictment charging defendant with assault in the first degree and reckless endangerment in the first degree, alleging that he committed those acts by use of a .380 caliber semi-automatic pistol and a .22 caliber rifle, were not rendered duplicious by the trial court's instructions or the evidence. A count is duplicious if it charges more than one offense (CPL 200.30 [1]). Whether multiple acts may be charged as a continuing crime is resolved by reference to the language in the penal statute to determine whether the statutory definition of the crime necessarily contemplates a single act. Here, the trial court's initial instruction to the jury on those two counts tracked the conjunctive language of the indictment, and a subsequent instruction in response to a jury note advised that the jury could find that either or both of the weapons were involved. The People were not required to prove that defendant used both weapons in order to prove that he was guilty of assault and reckless endangerment in the first degree, because the offenses could be committed by doing any one of several things (Penal Law §§ 120.10 [1]; 120.25). Moreover, there was evidence at trial that defendant attacked the victim out of one impulse—to seek revenge for an alleged assault on his sister. Although defendant used two guns, this was a single incident.

APPEARANCES OF COUNSEL

John J. Raspante, Utica, for appellant.

Scott D. McNamara, District Attorney, Utica (*Steven G. Cox* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was indicted on one count each of attempted murder in the second degree (Penal Law §§ 110.00, 125.25 [1]), assault in the first degree (Penal Law § 120.10 [1]), criminal possession of a weapon in the second degree (Penal Law § 265.03 [1] [b]) and reckless endangerment in the first degree (Penal Law § 120.25). Following trial, he was convicted of all four counts.

There was evidence at trial that defendant shot the victim following an argument between the victim's fiancée and the mother of the victim's child, who is defendant's sister. On the evening of the shooting, the victim saw defendant drive by his house slowly with his vehicle lights off and then pull over. The victim approached defendant to inquire why he was there. Dur-

ing the conversation, the other occupant of defendant's vehicle got out of the car and punched the victim in the head, which led to a fistfight. Defendant approached the victim, pistol-whipped him in the head and then shot him, first with a .380 caliber semi-automatic pistol and then with a .22 caliber rifle that defendant retrieved from his car. The victim's fiancée was in the immediate vicinity at the time of the shooting.

Two counts of the indictment charged defendant with assault in the first degree and reckless endangerment in the first degree, alleging that he committed those acts by use of a .380 semi-automatic pistol *and* a .22 rifle. The trial court's instruction to the jury on those counts tracked that conjunctive language. During their deliberations, the jurors sent out a note asking, with regard to those counts, whether they must believe that both guns were involved and fired by the defendant. In response to the question, the trial court instructed the jury that it "must be proven to your satisfaction beyond a reasonable doubt, that either of the weapons were involved or both, as long as you find that there was a deadly weapon involved."

On this record, defendant's current contentions that the jury instruction and the evidence at trial rendered the indictment duplicitous lack merit. CPL 200.30 (1) requires that "[e]ach count of an indictment . . . charge one offense only." Thus, a count is duplicitous if it charges more than one offense. In *People v Shack* (86 NY2d 529, 540-541 [1995]), this Court held that "[w]hether multiple acts may be charged as a continuing crime is resolved by reference to the language in the penal statute to determine whether the statutory definition of the crime necessarily contemplates a single act." Under Penal Law § 120.10 (1), a person is guilty of assault in the first degree when "[w]ith intent to cause serious physical injury to another person, he [or she] causes such injury to such person or to a third person by means of a deadly weapon or a dangerous instrument." Thus, the prosecution was not required to prove that defendant used two weapons. Penal Law § 120.25 states that a person is guilty of reckless endangerment in the first degree when, "under circumstances evincing a depraved indifference to human life, he [or she] recklessly engages in conduct which creates a grave risk of death to another person." Again, the prosecution was not required to prove that defendant used both weapons.

People v Charles (61 NY2d 321 [1984]), relied upon by the Appellate Division, is instructive here. In *Charles*, the defend-

ant was charged with receiving a bribe in the second degree. The indictment charged that defendant solicited, agreed to accept *and* accepted a bribe. The statute, however, defined receiving a bribe in the second degree as occurring when a public servant “solicits, accepts or agrees to accept any benefit from another person” (*id.* at 325). The defendant contended that the prosecution was bound by the use of the conjunctive language and that the court’s instruction using the language of the statute, rather than the language of the indictment, was error. This Court rejected that argument, holding that “[t]he use of the conjunctive ‘and’ rather than the disjunctive ‘or’ in the indictment charged more than the People were required to prove under the statute and did not bind the prosecution to prove all three acts” (*id.* at 327). Here, as in *Charles*, the People were not required to prove that defendant used both weapons in order to prove that he was guilty of assault and reckless endangerment in the first degree, because the offenses “may be committed by doing any one of several things” (*id.* [internal quotation marks omitted]).

Furthermore, the evidence at trial did not render the charges duplicitous. There was evidence that defendant attacked the victim out of one impulse—to seek revenge for the fiancée’s alleged assault on defendant’s sister. We noted in *People v Alonzo* (16 NY3d 267, 270 [2011]) that “[a]s a general rule . . . it may be said that where a defendant, in an uninterrupted course of conduct directed at a single victim, violates a single provision of the Penal Law, he commits but a single crime.” Although defendant used two guns, this was a single incident (*see e.g. People v Wells*, 7 NY3d 51 [2006] [a single count of attempted murder in the second degree was not duplicitous even where the evidence could not establish with certainty which of two potential victims was the defendant’s intended victim]).

Thus, the counts of the indictment were not rendered duplicitous by the court’s instructions or the evidence, and we reject defendant’s contention that his counsel was ineffective for failing to seek dismissal of the attempted murder in the second degree, assault in the first degree and reckless endangerment in the first degree counts.

We have considered defendant’s remaining argument and consider it to be without merit.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur; Judge FAHEY taking no part.

Order affirmed, in a memorandum.

[32 NE3d 377, 10 NYS3d 162]

In the Matter of TRENASIA J., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 1.)

In the Matter of RAYMOND J., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 2.)

In the Matter of TAVIA J., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 3.)

In the Matter of BRIJE D., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 4.)

Argued February 11, 2015; decided May 5, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 26, 2013. The Appellate Division, affirmed, insofar as reviewed, an order of disposition of the Family Court of Kings County (Daniel Turbow, J.), entered in related child abuse and neglect proceedings pursuant to Family Court Act article 10. The appeal to the Appellate Division brought up for review a fact-finding order of that Family Court which had, after a hearing, found that respondent (1) abused Brije D. by committing an act of attempted sexual abuse in the second degree, and (2) derivatively neglected Trenasia J., Raymond J., and Tavia J.

Matter of Trenasia J. (Frank J.), 107 AD3d 992, affirmed.

HEADNOTE

Parent, Child and Family — Abused or Neglected Child — Person Legally Responsible

In related abuse and neglect proceedings pursuant to Family Court Act article 10 arising out of respondent's sexual abuse of his 11-year-old niece during an overnight visit at respondent's home, there was record support for the lower courts' findings that respondent was a "person legally responsible" (Family Ct Act § 1012 [g]) for his niece's care at the relevant time and that he derivatively neglected his own children, who were in the home at the time of the incident. Whether a particular person has acted as the functional equivalent of a parent, and was thus a person legally responsible for a child's care, is a discretionary, fact-intensive inquiry based on factors including the frequency and nature of the contact, the nature and extent of the control

exercised by the respondent over the child's environment, the duration of the respondent's contact with the child, and the respondent's relationship to the child's parents. The child had been staying at respondent's home for a week prior to the incident, and, during the year before the incident, she had visited respondent's home eight or nine times and four of those occasions were overnight visits. Respondent and the child also interacted at family functions such as family reunions, holidays and birthday parties. Thus, the total contacts between respondent and the child were significant. The incident occurred in respondent's home during an overnight visit, and he was the only adult present at the time. Moreover, the child's mother testified that if her sister, respondent's wife, was not home, respondent was expected to care for the child. Although not dispositive, the existence of a familial relationship was appropriately considered.

APPEARANCES OF COUNSEL

Maxine H. Park, New York City, for appellant.

Zachary W. Carter, Corporation Counsel, New York City (*Kathy Chang Park, Richard Dearing* and *Larry A. Sonnen-shein* of counsel), for respondent.

Karen P. Simmons, The Children's Law Center, Brooklyn (*Barbara H. Dildine* and *Janet Neustaetter* of counsel), Attorney for the J. Children.

Seymour W. James, Jr., The Legal Aid Society, New York City (*Marcia Egger* and *Tamara A. Steckler* of counsel), Attorney for the Child Brije D.

Lansner & Kubitschek, New York City (*David J. Lansner* of counsel), and *The Bronx Defenders*, Bronx (*Emma S. Ketteringham* and *Saul Zipkin* of counsel), for The Bronx Defenders and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

The primary issue in this appeal is whether appellant Frank J. was a "person legally responsible" (PLR) as defined by Family Court Act § 1012 (g) and our decision in *Matter of Yolanda D.* (88 NY2d 790 [1996]). We agree with the Appellate Division, and disagree with the dissent, that the evidence was sufficient to establish that Frank J. was a PLR for the subject child at the relevant time.

Frank J. is the uncle of the subject child through marriage, and the father of three children (the J children). In February 2011, the Administration for Children's Services (ACS) filed petitions against Frank J. alleging that according to state-

ments made by the subject child, Frank J. “forcefully attempted to have sexual intercourse” with her “after entering the bathroom while she was taking a shower” during an overnight visit at Frank J.’s home on December 31, 2010. The child, who was 11 years old at the time of incident, alleged that while she was taking a shower, Frank J. entered the bathroom and asked her if she wanted to make \$5, warning her against telling her mother. The child alleged that Frank J. forcibly grabbed her by her hips, pulled her towards him, and attempted to pull out his penis. The child then ran crying to her cousin’s room, put on some clothes and ran out of the house to a nearby supermarket where an ambulance was called.

The Family Court Act defines a “respondent” in a child protective proceeding as “any parent or other person legally responsible for a child’s care who is alleged to have abused or neglected such child” (Family Ct Act § 1012 [a]). A person legally responsible for a child is defined as

“the child’s custodian, guardian, [or] any other person responsible for the child’s care at the relevant time. Custodian may include any person continually or at regular intervals found in the same household as the child when the conduct of such person causes or contributes to the abuse or neglect of the child” (Family Ct Act § 1012 [g]).

Frank J. moved to dismiss the petition for want of jurisdiction, arguing that he was not a PLR because he was neither the guardian nor custodian of the child, and she was never a member of his household. The attorney for the J children supported Frank J.’s motion to dismiss. After a hearing on the motion to dismiss, where the court heard testimony from the responding police officer and the child’s mother, Family Court, Kings County, denied Frank J.’s motion to dismiss, stating that there was no “serious question that [Frank J.] is a [PLR] within . . . the meaning” of the statute. The matter then proceeded to a fact-finding hearing, at which the subject child, the responding police officer, and Frank J. testified. The child’s testimony essentially tracked the allegations of the complaint, as did the testimony of the responding officer, who reported the child’s version of the incident. Frank J. denied the allegations, and testified that the child had become upset when he scolded her for eating in one of the bedrooms. Upon conclusion of the testimony, the Family Court held that Frank J. abused the child “by committing an act of attempted sexual abuse in the

[s]econd [d]egree” and found that, as a result, he had derivatively neglected his own children.

The Appellate Division affirmed (*Matter of Trenasia J. [Frank J.]*, 107 AD3d 992 [2013]). The Court stated that “[c]ontrary to [Frank J.’s] contention, . . . Family Court correctly found him to be a [PLR] . . . within the meaning of the Family Court Act” (107 AD3d at 993, citing *Matter of Yolanda D.*, 88 NY2d 790, 797 [1996], and *Matter of Christopher W.*, 299 AD2d 268 [1st Dept 2002]). The Court determined that ACS established by a preponderance of the evidence that Frank J. abused the child. Additionally, the Court stated that the finding of derivative neglect was also proper because Frank J.’s “attempt to sexually abuse his niece while his two young daughters were home, at a time when he was the sole adult present, evinced a flawed understanding of his duties as a parent and impaired parental judgment” (*id.* at 993-994). This Court granted Frank J.’s motion for leave to appeal (22 NY3d 859 [2014]).

Matter of Yolanda D. (88 NY2d 790 [1996]) is this Court’s seminal decision on the factors to consider in determining who is a PLR under Family Court Act § 1012 (g). In that case we recognized

“that parenting functions are not always performed by a parent but may be discharged by other persons, including custodians, guardians and paramours, who perform caretaking duties commonly associated with parents. Thus, the common thread running through the various categories of persons legally responsible for a child’s care is that these persons serve as the functional equivalent of parents” (*id.* at 795).

We held that deciding whether “a particular person has acted as the functional equivalent of a parent is a discretionary, fact-intensive inquiry which will vary according to the particular circumstances of each case” (*id.* at 796). We listed factors to be considered when determining who is a PLR, which include (1) “the frequency and nature of the contact,” (2) “the nature and extent of the control exercised by the respondent over the child’s environment,” (3) “the duration of the respondent’s contact with the child,” and (4) “the respondent’s relationship to the child’s parent(s)” (*id.*). This Court also stated that “article 10 should not be construed to include persons who assume fleeting or temporary care of a child such as a supervisor of a play-date or an overnight visitor or those persons who provide

extended daily care of children in institutional settings, such as teachers" (*id.*).

Yolanda D. concerned whether a respondent uncle, who was alleged to have abused his 12-year-old niece during her visits to his Pennsylvania home, was a PLR. The uncle described the contact between him and his niece as six to seven visits during the summer of 1991, with three to four overnight visits. The uncle's girlfriend who lived in the house at the time stated that the niece spent two weekends a month during the summer at his home. The evidence indicated that the niece and her mother lived in New York and the niece's mother did not accompany her on these visits to Pennsylvania. Additionally, the uncle regularly visited his niece's home. Family Court and the Appellate Division determined that the uncle was a PLR, and we agreed because the uncle was "regularly in the same household as [the child] during the relevant time, an environment he controlled, and he regarded his relationship with [the child] as close and familial" and further he permitted the child "to stay overnight in his home, [thereby] provid[ing] shelter, a traditional parental function, in an area geographically distant from the child's own household" (*id.* at 797).

Based on the evidence admitted during Frank J.'s hearing, there is record support for Family Court's affirmed finding of fact that Frank J. was a PLR under Family Court Act § 1012 (g) and *Yolanda D.* With respect to "the frequency and nature of the contact," and "the duration of the respondent's contact with the child," under *Yolanda D.*, the responding police officer testified without objection that the child informed her that she had been staying at Frank J.'s home for a week prior to the incident. The child's mother testified that during the year before this incident, the child had visited Frank J.'s home eight or nine times and four of those occasions were overnight visits. There was also testimony that Frank J. and the child interacted at family functions such as family reunions, holidays and birthday parties. Thus, the total contacts between Frank J. and the child were significant.

As to "the nature and extent of the control exercised by the respondent over the child's environment," this incident occurred in Frank J.'s home during an overnight visit, and he was the only adult present at the time. Additionally, Family Court noted in its oral decision denying Frank J.'s motion to dismiss that the child's mother "testified that she expected her sister to care for the child, but if the sister wasn't there then [Frank J.] was

expected to care for the child.” Finally, in considering “respondent’s relationship to the child’s parent(s),” Frank J. is related to the child through marriage, as his wife’s sister is the child’s mother. Although the existence of a familial relationship is not dispositive, it is appropriately considered in determining whether a respondent is a PLR.

Applying the *Yolanda D.* factors to these facts—given the nature and length of the contacts between Frank J. and the child, his control over the child’s environment and their familial relationship—record support exists for the lower courts’ determination that Frank J. is a PLR under Family Court Act § 1012 (g) and for the determination of derivative neglect.

RIVERA, J. (concurring in part and dissenting in part). In order for an individual to be a “person legally responsible for [a] child’s care” (PLR) under Family Court Act § 1012 (g), and thus a proper respondent in a child protective proceeding, such person must serve “as the functional equivalent of a parent in a familial or household setting” (*Matter of Yolanda D.*, 88 NY2d 790, 796 [1996]). As interpreted by this Court, section 1012 (g) does not extend to “persons who assume fleeting or temporary care of a child” (*id.*). Given the need in these cases for judicial findings regarding personal relationships and interactions, as well as an assessment of the parental functions undertaken by nonparents, a proper determination of whether a respondent’s actions are “analogous to parenting” requires a well-developed factual record of the nature and extent of a respondent’s caretaker responsibilities (*id.*).

Unlike the majority I consider the record in this appeal insufficient, as a matter of law, to support the Family Court’s determination that Frank J. is a PLR because the record is devoid of facts regarding the nature and duration of Frank J.’s caretaker responsibilities, especially given the mother’s testimony that Frank J.’s wife, the child’s aunt, was in charge of the child’s care when the mother was absent. Moreover, the record suggests that the Family Court relied disproportionately on some undefined normative-based assumption about Frank J. and the child’s familial bond, in contravention of this Court’s interpretation of the statute. I therefore dissent.

In *Yolanda D.* this Court set forth a non-exhaustive list of factors that a court should consider as part of its “discretionary, fact-intensive inquiry” into whether a person is a functional equivalent of a parent (*id.*). The Court identified as relevant “the frequency and nature of the contact between the child and

respondent, the nature and extent of the control exercised by the respondent over the child's environment, the duration of the respondent's contact with the child, and the respondent's relationship to the child's parent(s)" (*id.*). These factors "illustrate some of the salient considerations in making an appropriate determination" (*id.*). No one factor is dispositive, but rather each is to be accorded a weight appropriate to the "circumstances of the particular case," mindful that the "purpose of the inquiry will remain constant" (*id.*). Essentially, they embody this Court's recognition that the focus is on the person's responsibility for "caretaking duties commonly associated with parents" and the person's connection to the child (*id.* at 795).

Careful consideration of the record herein, with an eye to the "purpose of the inquiry" attendant to a section 1012 (g) PLR assessment, establishes that it does not support a determination that Frank J. is a PLR within the meaning of section 1012 (g). The majority concludes otherwise, and, applying the factors set forth in *Yolanda D.*, relies, in part, on the sum total of the contacts between Frank J. and the child, characterizing them as "significant." However, the record is simply not clear as to the contacts between Frank J. and the child. Significantly, the majority's analysis fails to consider Frank J.'s actual responsibilities for the child's care during any of the visits to the home, or the nature of the interactions during the times when they are supposedly in contact. Yet, these details are essential to the section 1012 (g) "fact-intensive inquiry." Of course, it is simply not possible to assess the relevant facts because the record here is best characterized by its sheer vagueness regarding the contacts and Frank J.'s role. Indeed, it lacks critical details as to the nature and extent of Frank J.'s contacts and responsibilities over the child necessary to elevate him to "the functional equivalent of a parent" (*id.* at 796).

As is the case in this appeal, *Yolanda D.* involved an uncle/niece relationship. However, unlike the facts that established the uncle's parenting role and close relationship with his niece in *Yolanda D.*, the record here lacks evidence of a similar bond or of Frank J.'s parental responsibilities during the few times that he interacted with the child. In *Yolanda D.* the niece visited her uncle's apartment unaccompanied six or seven times, approximately every other week, during the summer in which the abuse occurred. Here, Frank J. had some unspecified amount of contact with the child a total of eight or nine days across an entire year, which included traditional family gather-

ings like cookouts and birthday parties.* While in both *Yolanda D.* and the instant appeal the children stayed overnight approximately four times, in *Yolanda D.* those visits were during a concentrated period of the summer. Whereas here, the mother testified that the child stayed overnight three times in February the year preceding the abuse and possibly on Thanksgiving Day in November. Thus, the child went almost a year without visiting her uncle and aunt's home. Moreover, in *Yolanda D.* the visits were planned specifically to allow the niece to spend time with the uncle. Here, the mother testified that the child went to the home of the uncle and aunt to visit her cousins, Frank J. and the aunt's children. When asked why her daughter went to the home, the mother did not even mention Frank J. Instead, she said her daughter visited "[b]ecause she love[s] . . . my sister and her cousins[,] [s]he wants to play with her cousins." Thus, far from establishing that Frank J. and the child interacted in a parent relationship, and that they were "pretty close," as was the case of the uncle and niece in *Yolanda D.*, here the evidence establishes that Frank J. and the child had limited contact, usually in the company of other family members, and that the child visited the home because she wanted to be with her aunt and cousins (*id.* at 797).

Moreover, Frank J., unlike the uncle in *Yolanda D.*, was not the person primarily responsible for the child during her visits to the household. According to the mother's testimony, it was her sister, Frank J.'s wife and the child's aunt, who was responsible for the child when she visited Frank J.'s home. The mother expected that on those occasions when the aunt was not present Frank J. would care for the child, meaning that the mother left the care of the child by default to Frank J. only when the aunt was unavailable. However, there is no factual rendition—from the mother or anyone else—establishing the frequency and nature of Frank J.'s contact with the child during those times when the aunt was absent. The record thus establishes that so long as the aunt was present, Frank J. did

* The majority appears to consider Officer Alonso's hearsay statement that the child told her she was staying at Frank J.'s house one week (majority mem at 1005). I find it unnecessary to consider whether Frank J.'s challenge to the officer's testimony is preserved for our review because even taking into consideration the officer's statement, the child's mother contradicted the hearsay when she testified that the child was staying only one night. Also, the mother testified the hearsay was incorrect: "[the child] hasn't spent the night over [at Frank J.'s home] like a week straight like it was said." Moreover, Family Court's ultimate decision that Frank J. was a PLR neither mentions nor relies on this hearsay.

not have the type of control and responsibility for the child that was crucial to the PLR finding in *Yolanda D.*

Additionally, Family Court appears to have placed undue significance on what it found to be a “normal uncle/niece relationship” between Frank J. and the child. However, Family Court failed to define or explain what it meant by “normal.” In any case, to the extent it relied on its own understanding of a normative-based assessment of what constitutes a family, that was error, and in contravention of the statutory intent. As this Court made clear in *Yolanda D.*, section 1012 (g) “embod[ies] legislative recognition of the reality that parenting functions are not always performed by a parent but may be discharged by other persons” (*id.* at 795). The Court specifically identified persons who are not “family” in the traditional sense—such as paramours—as those “who perform caretaking duties commonly associated with parents” (*id.* at 794-795 [noting that “custodians, guardians and paramours” may discharge parenting functions and the legislative history demonstrates an intent to include persons “without legal custody of the child . . . within the jurisdiction of (the) Family Court”], citing Letter from Sponsor, May 25, 1972, Bill Jacket, L 1972, ch 1015, proposing an amendment to section 1012 [g]). Moreover, “respondent’s relationship to the child’s parent(s)” is but one variable for the court’s consideration in its PLR determination, and is by no means outcome determinative. The application of those factors to the facts in *Yolanda D.* is instructive, for if the existence of a familial relationship were enough to satisfy the statute, there would have been no need to discuss the frequency of visits and the close relationship between the uncle and child in that case.

Without factual information as to the nature and frequency of Frank J.’s contact with the child, the record is insufficient to establish that he served as a functional equivalent of a parent in a household setting (*id.* at 795). Rather, Frank J.’s relationship to the child is more akin to that of a “person[] who assume[s] fleeting or temporary care of a child” (*id.* at 796). Therefore, the Appellate Division erroneously affirmed the finding that Frank J. was a person legally responsible for the child’s care within the meaning of section 1012 (g), and I would reverse as related to the petition alleging attempted abuse of the child.

With respect to the petitions concerning Frank J.’s three children, I agree with the majority that the Appellate Division

properly affirmed Family Court's derivative neglect determination. An article 10 child protective proceeding to determine abuse or neglect "may be originated by a child protective agency" (Family Ct Act § 1031 [d]), at which the agency must establish by a preponderance of the evidence that respondent derivatively neglected respondent's own children (*see Matter of Tammie Z.*, 66 NY2d 1, 3 [1985]). At such proceeding, "proof of the abuse or neglect of one child shall be admissible evidence on the issue of the abuse or neglect of any other child" (Family Ct Act § 1046 [a] [i]). A "child" is defined as "any person or persons alleged to have been abused or neglected" (Family Ct Act § 1012 [b]).

Here, the Administration for Children's Services filed petitions, in its role as child protective agency, against Frank J., alleging he derivatively neglected his children, ages 11, 10 and 2, based on his abuse of his niece while his daughters were present in the home. As the father of the three children named in the petitions, Frank J. clearly falls within the statutory definition of a "respondent" for purposes of this child protective proceeding (Family Ct Act § 1012 [a] ["(r)espondent" includes any parent]). The fact that Frank J. does not meet the statutory definition of a PLR concerning the care of another child does not foreclose the agency from proceeding against him with respect to his own children (*see Matter of Jamel T. [Gemayel T.]*, 120 AD3d 504, 505 [2d Dept 2014] [holding that allegations of abuse against child who is not "subject of . . . proceedings may form the basis of a finding that (respondent) derivatively neglected . . . children"]; *Matter of Kennedie M. [Douglas M.]*, 89 AD3d 1544, 1545 [4th Dept 2011] ["court may make a finding of derivative neglect even if the child who was sexually abused is not (the) subject of the neglect petition"]; *Matter of Kole HH.*, 61 AD3d 1049, 1052-1053 [3d Dept 2009] [holding that although respondent did not qualify as a PLR with respect to the victim of abuse, that abuse could still form the basis of a derivative neglect finding as against respondent's own children]). Thus, the agency was within its authority to present evidence of Frank J.'s abuse of the child in order to meet its burden.

The evidence at the hearing established Frank J.'s attempted abuse, described by the child herself. Moreover, it is undisputed that the acts occurred while two of Frank J.'s children were home, within earshot of one of his daughters. On this record, the evidence is sufficient to support a finding of derivative neglect.

Judges READ, PIGOTT, ABDUS-SALAAM and FAHEY concur; Judge RIVERA dissents in part in an opinion in which Chief Judge LIPPMAN and Judge STEIN concur.

Order affirmed, without costs, in a memorandum.

[32 NE3d 390, 10 NYS3d 175]

In the Matter of P. DAVID SOARES, as District Attorney of Albany County, Respondent, v WILLIAM A. CARTER, as Judge of the City Court of Albany, Appellant, and COLIN DONNARUMA et al., Respondents.

Argued March 23, 2015; decided May 7, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 23, 2014. The Appellate Division affirmed that part of a judgment of the Supreme Court, Albany County (Richard Platkin, J.; op 41 Misc 3d 195 [2013]), entered in a proceeding pursuant to CPLR article 78, which had granted petitioner's application for a writ of prohibition to the extent of prohibiting and enjoining respondent William A. Carter from enforcing his orders of November 26, 2012 and May 24, 2013 insofar as they required petitioner to call witnesses or put on proof at the suppression hearings in the underlying criminal cases.

Matter of Soares v Carter, 113 AD3d 993, affirmed.

HEADNOTE

Proceeding against Body or Officer — Prohibition — Enjoining Trial Judge from Compelling Prosecution

Petitioner District Attorney was entitled to a writ of prohibition to the extent of enjoining respondent City Court Judge from enforcing his orders compelling the People to call witnesses or put on proof at a suppression hearing in an underlying prosecution. A trial court cannot order the People to call witnesses at a suppression hearing or enforce such a directive through its contempt powers. Any attempt by respondent to compel prosecution through the use of his contempt power exceeded his jurisdictional authority, since it is within the sole discretion of each district attorney's executive power to orchestrate the prosecution of those who violate the criminal laws of the state (*see* County Law § 700 [1]; *see also* NY Const, art XIII, § 13). Where the court assumes the role of the district attorney by compelling prosecution, it has acted beyond its jurisdiction. The writ did not prohibit respondent from exercising his general contempt powers to enforce lawful orders or ensure petitioner's compliance with the Criminal Procedure Law. Rather, the writ

was limited to prohibiting respondent from requiring the People to pursue prosecution, namely by calling witnesses or putting on proof at the suppression hearing.

APPEARANCES OF COUNSEL

E. Stewart Jones, PLLC, Troy (*James C. Knox* of counsel), for appellant.

P. David Soares, District Attorney, Albany (*Christopher D. Horn* and *Vincent Stark* of counsel), for P. David Soares, respondent.

Law Office of Mark S. Mishler, P.C., Albany (*Mark S. Mishler* of counsel), and *Kindlon Shanks & Associates*, Albany (*Kathy Manley* of counsel), for Colin Donnaruma and others, respondents.

Frank A. Sedita, III, *Morrie I. Kleinbart* and *Tammy J. Smiley* for District Attorneys Association of the State of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

The underlying prosecution in this matter stems from defendants' participation in protest demonstrations in the City of Albany in support of the Occupy Movement. Defendants were arrested and charged with disorderly conduct. In addition, one of the defendants was charged with resisting arrest. The Albany County District Attorney offered each defendant a six-month adjournment in contemplation of dismissal. City Court refused to accept the pleas unless they were combined with a requirement of community service. Defendants rejected that condition.

The People then sent a letter to the court indicating that they had decided to discontinue prosecuting defendants' cases. Defendants moved to dismiss the charges against them based in part upon the People's letter. The court denied defendants' motions to dismiss, holding that the People had not complied with the proper procedures for terminating a case under the Criminal Procedure Law, and that if the People "fail[ed] to appear at the next scheduled court date, th[e] court may be forced to utilize one of the few available options left to it under these

circumstances, including, but not limited to, its contempt powers.” *

The People sent a second letter to the court reiterating that, although they would be present at any scheduled court dates, they would not call any witnesses. During a scheduled suppression hearing, the People informed the court that they had no witnesses to call; to which the Judge responded that the People had no witnesses to call because they refused to call them and were thereby willfully refusing to participate. The Judge again noted that he could use the court’s contempt powers if the People continued to refuse to participate. The District Attorney then commenced this CPLR article 78 proceeding. Supreme Court granted the District Attorney’s request for a writ in the nature of prohibition, only to the extent of enjoining the Judge from enforcing his orders compelling the People to call witnesses or offer proof (41 Misc 3d 195 [2013]). The Appellate Division affirmed Supreme Court’s grant of the narrowly tailored writ (113 AD3d 993 [2014]), and we agree.

“Prohibition is available to restrain an inferior court or Judge from exceeding its or his [or her] powers in a proceeding over which the court has jurisdiction” (*La Rocca v Lane*, 37 NY2d 575, 577 [1975], *cert denied* 424 US 968 [1976]; *see Matter of Lee v County Ct. of Erie County*, 27 NY2d 432, 437 [1971], *cert denied* 404 US 823 [1971]). To demonstrate a clear legal right to the extraordinary writ of prohibition, a petitioner is required to show that the challenged action was “in reality so serious an excess of power incontrovertibly justifying and requiring summary correction” (*La Rocca*, 37 NY2d at 580).

“The concept of the separation of powers is the bedrock of the system of government adopted by this State in establishing three coordinate and coequal branches of government, each charged with performing particular functions” (*Matter of Maron v Silver*, 14 NY3d 230, 258 [2010]). Under the doctrine of separation of powers, courts lack the authority to compel the prosecution of criminal actions (*see Matter of Cantwell v Ryan*, 3 NY3d 626, 628 [2004]). Such a right is solely within the broad authority and discretion of the district attorney’s executive power to conduct all phases of criminal prosecution (*see County Law § 700* [1]; *People v Cajigas*, 19 NY3d 697, 703 [2012]).

* The People indicated that they chose not to move to dismiss the charges pursuant to Criminal Procedure Law § 170.40 (1), because in their view the Judge would likely deny the motion.

The courts below correctly determined that a trial court cannot order the People to call witnesses at a suppression hearing or enforce such a directive through its contempt powers. Any attempt by the Judge here to compel prosecution through the use of his contempt power exceeded his jurisdictional authority. It is within the sole discretion of each district attorney's executive power to orchestrate the prosecution of those who violate the criminal laws of this state (*see* County Law § 700 [1]; *see also* NY Const, art XIII, § 13). Where the court assumes the role of the district attorney by compelling prosecution, it has acted beyond its jurisdiction. Thus, issuance of a writ here to preclude a limited ultra vires act was appropriate. Contrary to the Judge's argument, the writ does not prohibit him from exercising his general contempt powers to enforce lawful orders or ensure the District Attorney's compliance with the Criminal Procedure Law. Rather, the writ is limited to prohibiting him from requiring the People to pursue prosecution, namely by calling witnesses or putting on proof at the suppression hearing. Consequently, the courts below properly granted the writ.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Judge STEIN taking no part.

Order affirmed, without costs, in a memorandum.

LEON BEHAR et al., Respondents, v QUAKER RIDGE GOLF CLUB, INC., Appellant.

Submitted March 9, 2015; decided May 7, 2015

Reported below, 118 AD3d 833; 2015 NY Slip Op 61668(U); 2014 NY Slip Op 83432(U).

Motion, insofar as it seeks leave to appeal from the June 2014 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (24 NY3d 1063 [2014]) from the same Appellate Division order from which it currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion for leave to appeal otherwise dismissed upon the ground that the remaining orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

DEIDRE HOLMES CLARK, Appellant, v ALLEN & OVERY, LLP, Respondent.

Submitted March 30, 2015; decided May 7, 2015

Reported below, 125 AD3d 497.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

ERIC M. BERMAN, P.C., et al., Respondents, v CITY OF NEW YORK et al., Appellants.

Submitted May 4, 2015; decided May 7, 2015

See 770 F3d 1002.

Motion by AARP et al. for leave to file a brief amici curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

ERIC M. BERMAN, P.C., et al., Respondents, v CITY OF NEW YORK et al., Appellants.

Submitted May 4, 2015; decided May 7, 2015

See 770 F3d 1002.

Motion by Bromberg Law Office, P.C. et al. for leave to file a brief amici curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

TIMOTHY D. GAY, Appellant, v MARIA GAY, Respondent.

Submitted March 2, 2015; decided May 7, 2015

Reported below, 2014 NY Slip Op 91059(U) (*see* 122 AD3d 1346, 1347).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by Friends of LaGuardia Place, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by Michael C. Blumm et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by New York Civic for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by New Yorkers for Parks et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by Brad Hoylman et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by New York State Conference of Mayors and Municipal Officials et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 121 AD3d 498.

Motion by Sierra Club for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of GREATER JAMAICA DEVELOPMENT CORPORATION
et al., Respondents, v NEW YORK CITY TAX COMMISSION et
al., Appellants.

Submitted April 27, 2015; decided May 7, 2015

Reported below, 111 AD3d 937.

Motion by Lawyers Alliance for New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

SHIRLEY HE, Appellant, v REALTY USA et al., Defendants, and
ROMAN BRUSILOVSKY et al., Respondents.

Submitted March 2, 2015; decided May 7, 2015

Reported below, 121 AD3d 1336.

Motion, insofar as it seeks leave to appeal as against Roman Brusilovsky and Inna Negelyov, dismissed upon the ground that as to those parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal etc. otherwise denied.

Judge STEIN taking no part.

DOUGLAS E. KAMPFER, Appellant, v JACOB DACORSI et al.,
Respondents.

Submitted April 6, 2015; decided May 7, 2015

Reported below, 126 AD3d 1067.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of DANIEL KASCKAROW, Appellant, v BOARD OF EXAMINERS OF SEX OFFENDERS OF STATE OF NEW YORK, Respondent.

Submitted April 6, 2015; decided May 7, 2015

Reported below, 106 AD3d 915.

Motion to expand the record on appeal denied.

KATHERINE MATHIS et al., Appellants, v D.D. DYLAN, LLC, Respondent.

Submitted March 2, 2015; decided May 7, 2015

Reported below, 119 AD3d 908; 2015 NY Slip Op 61691(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS BASILE, Appellant.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 40 Misc 3d 44.

Motion by Civil Rights Research Center for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS BASILE, Appellant.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 40 Misc 3d 44.

Motion by National Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BERRY, Appellant.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 122 AD3d 414.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH BRIDGEFORTH, Appellant.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 119 AD3d 600.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EVERETT M. DURANT, Appellant.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 112 AD3d 1366.

Motion by The Innocence Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NADINE PANTON, Appellant.

Submitted May 4, 2015; decided May 7, 2015

Reported below, 114 AD3d 450.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

In the Matter of TRISTEN O. and Others, Infants. SHANEE S., Appellant; COMMISSIONER OF THE ADMINISTRATION FOR CHILDREN'S SERVICES OF THE CITY OF NEW YORK, Respondent, et al., Respondent.

Submitted March 9, 2015; decided May 7, 2015

Reported below, 125 AD3d 525.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

RICHARD WYSONG, Appellant, v FARM FAMILY CASUALTY INSURANCE COMPANY et al., Respondents.

Submitted March 9, 2015; decided May 7, 2015

Reported below, 103 AD3d 1054; 2014 NY Slip Op 89082(U); 2014 NY Slip Op 82227(U).

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 1204 (2015)].

Judges STEIN and FAHEY taking no part.

[32 NE3d 393, 10 NYS3d 178]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY N. PACHERILLE, Appellant.

Argued March 23, 2015; decided May 12, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 2, 2013. The Appellate Division affirmed (1) a judgment of the Otsego County Court (Brian D. Burns, J.), which had convicted defendant, upon his plea of guilty, of attempted murder in the

second degree, and (2) an order of that court (Joseph F. Cawley, J.), which had denied, without a hearing, defendant's motion pursuant to CPL 440.20 to set aside the sentence.

People v Pacherille, 106 AD3d 1136, affirmed.

HEADNOTE

Crimes — Appeal — Waiver of Right to Appeal — Effect on Review of Discretionary Denial of Youthful Offender Status

A valid waiver of the right to appeal, while not enforceable in the face of a failure to consider youthful offender treatment, forecloses appellate review of a sentencing court's discretionary decision to deny youthful offender status once a court has considered such treatment. Accordingly, in a criminal prosecution in which defendant pleaded guilty and waived his right to appeal, review of County Court's discretionary denial of defendant's request to be adjudicated a youthful offender was precluded by his appeal waiver, the validity of which he did not contest.

APPEARANCES OF COUNSEL

Frank Policelli, Utica, for appellant.

John M. Muehl, District Attorney, Cooperstown, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

In satisfaction of a four-count indictment, defendant pleaded guilty to attempted murder in the second degree. Under the plea agreement, he was promised a sentence of 11 years in prison, followed by five years of postrelease supervision. He waived his right to appeal.

At sentencing, County Court was presented with letters from the community, defendant's sentencing memoranda and psychiatric reports, a letter from the victim and the presentence report concerning defendant's prospects for rehabilitation. Upon consideration of all the information before it, County Court denied defendant's request to be adjudicated a youthful offender. While acknowledging defendant's mental illness, County Court determined that the illness did not outweigh the "seriousness of the crime he committed [nor] its impact on the victim and the community." As a result, the court concluded that the interests of justice would not be served by granting defendant youthful offender status (*see* CPL 720.20 [1] [a]). Defendant was then sentenced in accordance with the plea agreement. The Appellate Division affirmed (106 AD3d 1136 [2013]).

As we have repeatedly observed, a plea of guilty generally "marks the end of a criminal case, not a gateway to further lit-

igation” (*People v Taylor*, 65 NY2d 1, 5 [1985]). The plea bargaining process includes “the surrender of many guaranteed rights” (*People v Seaberg*, 74 NY2d 1, 7 [1989]), such as the right to a trial by jury and to confrontation (see *People v Hansen*, 95 NY2d 227, 230 [2000]).

A defendant may also waive the right to appeal as a condition of a plea bargain (see *Seaberg*, 74 NY2d at 5). “[G]enerally, an appeal waiver will encompass any issue that does not involve a right of constitutional dimension going to ‘the very heart of the process’” (*People v Lopez*, 6 NY3d 248, 255 [2006], quoting *Hansen*, 95 NY2d at 230). This Court has recognized that the right to a speedy trial, challenges to the legality of a court-imposed sentence, questions about a defendant’s competency to stand trial, and whether the waiver was obtained in a constitutionally acceptable manner cannot be foreclosed from appellate review (see *People v Callahan*, 80 NY2d 273, 280 [1992]).

In *People v Rudolph* (21 NY3d 497, 499 [2013]), we held that under CPL 720.20 (1) “where a defendant is eligible to be treated as a youthful offender, the sentencing court ‘must’ determine whether he or she is to be so treated.” We further held that “compliance with this statutory command cannot be dispensed with, even where [a] defendant has failed to ask to be treated as a youthful offender, or has purported to waive his or her right to make such a request” (*id.*). Thus, we created a narrow exception that when a sentencing court has entirely abrogated its responsibility to determine whether an eligible youth (see CPL 720.10 [1], [2]) is entitled to youthful offender status, an appeal waiver would not foreclose review of the court’s failure to make that determination. Here, the sentencing court did, indeed, consider defendant’s youthful offender status upon his request.

It is well settled that once considered, a youthful offender adjudication is a matter left to the sound discretion of the sentencing court and therefore any review is limited (see CPL 720.20 [1] [a]). As we held in *Lopez*,

“when a defendant enters into a guilty plea that includes a valid waiver of the right to appeal, that waiver includes any challenge to the severity of the sentence. By pleading guilty and waiving the right to appeal, a defendant has forgone review of the terms of the plea, including harshness or excessiveness of the sentence” (*People v Lopez*, 6 NY3d 248, 256 [2006]).

To the extent defendant appeals the harshness of his sentence or the sentencing court's exercise of discretion in denying youthful offender status, his appeal waiver forecloses the claim.

We therefore conclude that a valid waiver of the right to appeal, while not enforceable in the face of a *failure* to consider youthful offender treatment, forecloses appellate review of a sentencing court's discretionary decision to deny youthful offender status once a court has considered such treatment. Accordingly, our review of County Court's denial of defendant's request is precluded by his appeal waiver, the validity of which he does not contest (*see People v Brabham*, 83 AD3d 1225, 1225 [3d Dept 2011]).

RIVERA, J. (dissenting). In *People v Rudolph*, we held that CPL 720.20 (1) mandates "a youthful offender determination in every case where the defendant is eligible, even where the defendant fails to request it, or agrees to forgo it as part of a plea bargain" (21 NY3d 497, 501 [2013]). We thus foreclosed any role for a negotiated plea constraining youthful offender (YO) determination because the legislative mandate that "a court decide whether [YO] treatment is justified" provides an opportunity for juveniles to "have a real likelihood of turning their lives around," and therefore "is just too valuable, both to the offender and to the community, to be sacrificed in plea bargaining" (*id.*).

The majority acknowledges that *Rudolph* prohibits the defendant's waiver of YO consideration, but holds that a defendant may expressly waive the right to appellate review of the sentencing court's denial of YO status (majority mem at 1023). I disagree with this interpretation of the statute and *Rudolph*. Allowing for such a waiver merely serves to reestablish YO consideration as a legally valid "chip" to be leveraged in the plea bargaining process. The majority's decision thus undermines the legislative intent of CPL 720.20 (1), ignores the considerations we highlighted in *Rudolph* regarding the life-changing impact of YO treatment for juvenile offenders, and flies in the face of hard data on the ability of juveniles to fully understand their legal rights and the consequences of their choices. I therefore dissent.

Defendant, who is White and at the time of the crime was a high school student, was charged with various hate crimes for the attempted murder of an African-American fellow student. Just prior to the attack, defendant composed a suicide note that included a diatribe against African-Americans, Jews, and people of other racial and ethnic groups. Under the plea ar-

rangement, the People and defendant agreed that he would plead to attempted murder in the second degree, as a non-hate crime, in full satisfaction of the indictment, and in exchange for an 11-year sentence recommendation.

In extending the plea offer, the People demanded that defendant admit that he chose the victim due to his race, that defendant wrote the suicide note and that he agree to its introduction into evidence as part of the record, and that he not allege that he was the victim of bullying or make any other excuses for his actions. The People also required that defendant waive his right to appeal. During the plea allocution defendant pleaded guilty to attempted murder in the second degree, and admitted that he had shot the victim "because he was African American." As agreed, defendant made no mention of bullying by the victim.

Prior to sentencing, defendant submitted a lengthy memorandum requesting that the court grant YO treatment, arguing that his crime was the result of mental illness, a mitigating factor. Then at the sentencing hearing, defense counsel argued that defendant should be adjudicated a youthful offender, pointing to defendant's mental illness and asserting that the victim had bullied defendant in the past. The presentence report prepared by the Otsego County Probation Department recommended that defendant not be adjudicated a youthful offender, and the prosecutor also objected to a YO finding.

County Court denied YO treatment and, pursuant to the plea agreement, imposed a determinate sentence of 11 years, with five years' postrelease supervision. At the sentencing hearing, the court stated it considered the seriousness of the crime and its racist and bigoted nature. The court further discussed defendant's mental illness, and concluded, "[a]lthough his psychological needs are a mitigating factor to be considered in determining the length of his sentence, the Court feels obligated to note that his mental illness does not justify his conduct." The court then stated:

"Today [defendant] asks the Court to vacate, that is essentially erase his conviction, and sentence him to little or no additional jail time as a youthful offender.

"The Court has considered this request and denies it. Due to the violent nature of his crime and its resulting harm and his admission during the plea

allocation [that] his actions were racially motivated, the Court cannot say the interests of justice would be served by granting youthful offender status or by not imposing the agreed upon sentence.”

The Appellate Division affirmed defendant’s conviction (*People v Pacherille*, 106 AD3d 1136, 1137 [3d Dept 2013]). As relevant to the matter before us, the Court concluded that defendant’s waiver of his right to appeal foreclosed his abuse of discretion challenge to County Court’s denial of his request for YO treatment. After the Appellate Division rendered its decision, and while defendant’s application for leave to appeal was pending before this Court, we issued our decision in *People v Rudolph*.

Pursuant to CPL 720.20 (1), “[u]pon conviction of an eligible youth, . . . at the time of pronouncing sentence the court must determine whether or not the eligible youth is a youthful offender.” We held in *Rudolph* that this legislative mandate grants every eligible juvenile offender a right to a YO determination (21 NY3d at 501). We also held that this right is “different,” and stands in a unique position to other rights afforded to defendants because it carries the potential for “a fresh start, without a criminal record” (*id.*). We therefore concluded that unlike other rights, “even very important ones” that a defendant may readily give up, the right to YO consideration cannot be waived, either implicitly, by defendant’s mere silence in failing to request YO consideration, or expressly, as part of a plea bargain (*id.*). In so holding, we gave force to the mandatory language of CPL 720.20 (1), and overruled *People v McGowen* (42 NY2d 905 [1977]), which had required an eligible youth to assert the right to a youthful offender adjudication or risk waiving it.

Our decision in *Rudolph* was based on the explicit statutory language of CPL 720.20 (1), and grounded in what we recognized as the singular importance of the opportunities attendant to a YO designation: the conviction being “vacated and replaced by a youthful offender finding”; a limit on the maximum sentence in a felony case; the sealing of records; and the avoidance of certain disabilities, “including disqualification from public office and public employment” (*id.* at 500-501). There can be no serious disagreement about the impact of a YO determination on a juvenile. It is nothing short of the opportunity for a young offender to become “a law-abiding, productive member of society” (*id.* at 501; *see also id.* at 505

[Grafteo, J., concurring] [“article 720 permits the sentencing court to vacate a criminal conviction that has been lawfully obtained—an extraordinary benefit unlike any other right granted in the Criminal Procedure Law. In adopting such a procedure, the legislature meant to ameliorate the sometimes harsh effect of trying eligible youth in adult courts”]).

Given our interpretation in *Rudolph* of the mandatory language of CPL 720.20 (1) that YO determinations are non-waivable, as well as our recognition of the unparalleled role that a YO determination serves in our criminal justice system, I would find the Appellate Division erroneously concluded that defendant waived appellate review of the County Court’s denial of YO status. To prohibit a plea bargain that forecloses statutorily-mandated YO consideration by the sentencing court, but permits a plea bargain that forecloses review as to whether the court abused its discretion in denying YO treatment, undermines the legislative goals of section 720.20 (1). Counter to the purpose of that section, it would mean little to an eligible youth to be considered for YO treatment only to be left with no recourse to challenge a court’s wrongful denial. Moreover, to permit a waiver of appellate review would allow a prosecutor to do indirectly what we said in *Rudolph* the statute explicitly forbids, namely, to bargain with a defendant for the right to judicial consideration of YO status and the opportunity for a new beginning (*Rudolph*, 21 NY3d at 501). Our decision in *Rudolph* could not be more direct in its conclusion that YO determinations are exempt from waivers negotiated as part of a plea. The defendant’s nonwaivable right extends to appellate review of a denial of YO status. To hold otherwise, as the majority does, risks derogation of a defendant’s right to the opportunity for the precious “fresh start,” which is the essence of the YO process.

Apart from the legislative goals and purposes that we identified in *Rudolph* as the basis for prohibiting waiver of YO consideration, further support for a decision that defendant cannot waive appellate review is found in society’s and the United States Supreme Court’s recognition of the limited capacity of juveniles to make decisions with the type of loaded future consequences that characterize an appeal of a negative YO determination. “It is generally accepted and well established that young people and adults mature at different rates and that children simply do not have the capacity to fully appreciate the world and the consequences of their actions and choices” (*People*

v Perez, 23 NY3d 89, 109 [2014, Rivera, J., dissenting]). As the United States Supreme Court has stated, “children generally are less mature and responsible than adults[;] . . . often lack the experience, perspective, and judgment to recognize and avoid choices that could be detrimental to them[;] [and] . . . are more vulnerable or susceptible to . . . outside pressures than adults” (*J. D. B. v North Carolina*, 564 US —, —, 131 S Ct 2394, 2403 [2011] [citations and internal quotation marks omitted]). Indeed,

“Studies have established that juveniles are unable to fully understand and appreciate their legal rights (*see e.g. Graham v Florida*, 560 US 48, 68 [2010] [‘developments in psychology and brain science continue to show fundamental differences between juvenile and adult minds’]). The neuroscience research data confirms juveniles do not possess the maturity necessary to make decisions that, in the case of criminal convictions, carry lifelong consequences (*see e.g. Nitin Gogtay et al., Dynamic Mapping of Human Cortical Development During Childhood Through Early Adulthood*, *Proc Natl Acad Sci*, vol 101, No. 21 at 8177 [May 25, 2004];¹¹ Linda Spear, *The Behavioral Neuroscience of Adolescence*, 108-111 [2009]). The inescapable conclusion is that the inherent differences between young people and adults impact on a defendant minor’s ability to appreciate and respond to the requirements of the appellate review process (*see e.g. Laurence Steinberg et al., Age Differences in Future Orientation and Delay Discounting*, *Child Dev*, vol 80, No. 1 at 30, 35-36 [Jan./Feb. 2009])” (*Perez*, 23 NY3d 89, 109-110 [Rivera, J., dissenting]).

The majority’s decision is at odds with the United States Supreme Court and society’s understanding based on this research, which makes plain that juveniles are not adults and should not be treated as such. We cannot ignore that “developments in the body of knowledge concerning juvenile development underscore the need for judicial procedures that are solicitous of the interests of vulnerable youth, especially under New York’s current youthful offender process in which guilt is

1. Available at <http://www.ncbi.nlm.nih.gov/pmc/articles/PMC419576/pdf/1018174.pdf> (last accessed Apr. 20, 2014).

determined in the context of a criminal justice system designed for adults” (see *Rudolph*, 21 NY3d at 506).

Nonetheless, the majority stands mute in the face of this reality. Instead, the majority relies on *People v Lopez* (6 NY3d 248 [2006]) in support of its conclusion that defendant may waive appellate review of an unfavorable YO determination. However, we have never applied *Lopez* in the context of a YO finding, and we should not do so in this case.²

In *Lopez*, this Court reiterated that “generally, an appeal waiver will encompass any issue that does not involve a right of constitutional dimension going to ‘the very heart of the process’” (*id.* at 255, quoting *People v Hansen*, 95 NY2d 227, 230 [2000]). Such waivers, the Court noted, facilitate “prompt, effective resolution of criminal litigation” (*id.*) and, “in connection with a negotiated plea and sentence,” reflect the defendant’s agreement “to end the proceedings entirely at the time of sentencing and to accept as reasonable the sentence imposed” (*id.*). The Court therefore held that “[a] defendant may not subsequently eviscerate [a plea] bargain by asking an appellate court to reduce the sentence in the interest of justice” (*id.* at 255-256). The Court highlighted the “important goals of fairness and finality in criminal matters are accomplished only insofar as the parties are confident that the ‘carefully orchestrated bargain’ of an agreed-upon sentence will not be disturbed as a discretionary matter” (*id.* at 256).

The *Lopez* Court’s concern with the integrity of the plea bargain process is simply not present in the YO context because a defendant cannot barter the right to YO consideration. As CPL 720.20 (1) provides, every convicted eligible youth must be considered for youthful offender status. In *Rudolph*, we made clear that a guilty plea could not eliminate, by its terms, this statutorily-mandated YO determination by the sentencing court. Thus, there is no carefully orchestrated plea bargain “eviscerated” by appellate consideration because there is no bargain related to a YO finding. Moreover, while a prosecutor may back away from a plea agreement in those cases where the court grants YO status, a prosecutor cannot avoid a court’s determination that an eligible youth should benefit from YO treatment (*Rudolph*, 21 NY3d at 502).

2. In briefing to this Court, neither the People nor defendant addressed the waiver of appellate review of youthful offender consideration. Indeed, the prosecutor’s statements during oral argument suggest that he interpreted *Rudolph* to prohibit such waiver.

As a practical and policy matter, the administrative efficiency concerns and the desire for finality referenced by *Lopez* are no more compelling than the assurance that a trial court has properly considered a youthful offender's opportunity for YO status. Appellate review is essential to the statutory mandate that a court must consider YO for every eligible youth so that every eligible youth has a chance at avoiding a criminal record and the disastrous consequences that flow therefrom.

Apart from whether defendant could have waived or, in fact, did waive his appellate rights of review, defendant argues his plea agreement prevented him from presenting evidence of mitigating circumstances in support of his request for YO treatment. Although the majority does not address this contention, other than to conclude that County Court actually considered defendant's request for YO treatment (majority mem at 1023), defendant's argument finds some support in the record.

It is undisputed that defendant's plea required that he admit a racial motivation for the crime, and it is this admission of a race-based motive that the court considered in denying YO status. However, if the plea prevented defendant from presenting a basis for a favorable YO determination, the plea would run counter to our holding in *Rudolph*. Thus, regardless of whether defendant could waive appellate review of the sentencing court's discretionary consideration of YO treatment, the Appellate Division should have considered whether the plea, as structured, foreclosed defendant's arguments that his actions were not racially motivated, or otherwise limited his ability to adequately present mitigating factors impacting defendant's behavior.

The Appellate Division here denied defendant the opportunity to argue that the plea violated the right to YO consideration afforded him under CPL 720.20 (1), as recognized in our holding in *Rudolph*. The majority concludes that juveniles may waive this right, even when the challenge is that the plea forecloses arguments favorable to the defendant's request. For the reasons I have stated, I find that decision unsupported by law, reason, society's understanding of the difference between young people and adults, and the ever-increasing appreciation of our criminal justice system's impact on young lives. I dissent.

Judges READ, PIGOTT, ABDUS-SALAAM and FAHEY concur; Judge RIVERA dissents in an opinion in which Chief Judge LIPPMAN concurs; Judge STEIN taking no part.

Order affirmed, in a memorandum.

MAHER ABDELQADER, Respondent, v ANWAR ABDELQADER et al.,
Appellants, et al., Defendant.

Submitted March 16, 2015; decided May 12, 2015

Reported below, 120 AD3d 1275, 1277.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

GAETANO DEMETRIO, Appellant, v STEWART TITLE INSURANCE
COMPANY, Respondent.

Submitted April 6, 2015; decided May 12, 2015

Reported below, 124 AD3d 824, 827.

Motion by United Policyholders for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JESSICA GRAHAM, Appellant, v CHARLES T.
RAWLEY, Respondent.

Submitted March 2, 2015; decided May 12, 2015

Reported below, 2015 NY Slip Op 63456(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of SHAWN GREEN, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Submitted March 16, 2015; decided May 12, 2015

Reported below, 112 AD3d 1019; 2014 NY Slip Op 85332(U).

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 913 (2015)].

Judges STEIN and FAHEY taking no part.

In the Matter of the Claim of MARYANN E. HANNA, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted March 23, 2015; decided May 12, 2015

Reported below, 121 AD3d 1153.

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 917 (2015)].

In the Matter of LING CHEN, Appellant, v REUTERS AMERICA
HOLDINGS, INC., et al., Respondents. WORKERS' COMPENSA-
TION BOARD, Respondent.

Submitted March 23, 2015; decided May 12, 2015

Reported below, 2015 NY Slip Op 64332(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

In the Matter of LATANYA MORANT, Respondent, v LONNEL ROG-
ERS et al., Respondents, SUFFOLK COUNTY DEPARTMENT OF
SOCIAL SERVICES, Appellant.

Submitted March 9, 2015; decided May 12, 2015

Reported below, 118 AD3d 703.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASHID
BILAL, Appellant.

Submitted April 6, 2015; decided May 12, 2015

Reported below, 118 AD3d 448.

Motion by appellant to strike portions of the supplemental appendix for respondent and related references in respondent's brief granted and said material deemed stricken.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASHID BILAL, Appellant.

Submitted April 27, 2015; decided May 12, 2015

Reported below, 118 AD3d 448.

Motion by respondent to enlarge the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILSON BRADLEY, Appellant.

Submitted April 6, 2015; decided May 12, 2015

Reported below, 2015 NY Slip Op 50132(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* SANTO GONZALEZ, Appellant, v JOSEPH T. SMITH, as Superintendent of Shawangunk Correctional Facility, Respondent.

Submitted March 23, 2015; decided May 12, 2015

Reported below, 122 AD3d 1045.

Motion for reconsideration of this Court's February 12, 2015 dismissal order denied [*see* 24 NY3d 1203 (2015)].

Judges STEIN and FAHEY taking no part.

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted March 2, 2015; decided May 12, 2015

Reported below, 2015 NY Slip Op 63470(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ST. LAWRENCE FACTORY STORES, Appellant, v OGDENSBURG
BRIDGE AND PORT AUTHORITY, Respondent.

Submitted March 30, 2015; decided May 12, 2015

Reported below, 121 AD3d 1226.

Motion by the Associated General Contractors of New York State for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

VIVIANE ETIENNE MEDICAL CARE, P.C., as Assignee of Alem
Cardenas, Respondent, v COUNTRY-WIDE INS. CO., Appel-
lant.

Submitted May 4, 2015; decided May 12, 2015

Reported below, 114 AD3d 33.

Motion to file brief to reply to response to amici curiae submission denied.

HASSAN O.G. ALAMIN, Appellant, v SHAKE UDDIN et al., Respon-
dents.

Submitted April 6, 2015; decided May 14, 2015

Reported below, 113 AD3d 708; 2014 NY Slip Op 73169(U).

Motion for reargument denied [*see* 24 NY3d 1205 (2015)].

Judges STEIN and FAHEY taking no part.

In the Matter of the Admission of ANONYMOUS, Appellant.

Submitted February 17, 2015; decided May 14, 2015

Reported below, 123 AD3d 1371.

Motion, insofar as it seeks leave to appeal from the November 2014 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise denied.

MARY BEEBE et al., Appellants, v ST. JOSEPH'S HOSPITAL HEALTH CENTER, Defendant, and ASSOCIATES FOR WOMEN'S MEDICINE, PLLC, et al., Respondents.

Submitted February 17, 2015; decided May 14, 2015

Reported below, 121 AD3d 1536.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

INEZ BIELECKI, Appellant, v RICHARD BIELECKI, Respondent.

Submitted April 6, 2015; decided May 14, 2015

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

In the Matter of PAULINA C. VICTORIANO CANDIA, Respondent, v SALVATORE MENDOZA CRUZ, Appellant.

Submitted March 30, 2015; decided May 14, 2015

Reported below, 125 AD3d 774.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that dismissed the appeal to that Court from the June 2013 Family Court order, dismissed upon the ground that such part of the order does not finally determine a proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

FIDELITY NATIONAL TITLE INSURANCE COMPANY, Plaintiff, v ALTSHULER SHAHAM PROVIDENT FUNDS LTD., Formerly Known as PERFECT PROVIDENT FUND LTD, Defendant/Third-Party Appellant. JAECKLE FLEISCHMANN & MUGEL LLP, Third-Party Respondent.

PERFECT PROVIDENT FUND LTD, Respondent, v JAECKLE FLEISCHMANN & MUGEL LLP, Appellant.

Submitted March 16, 2015; decided May 14, 2015

Reported below, 120 AD3d 1135.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as granted the motion of third-party defendant Jaeckle Fleischmann & Mugel LLP to dismiss the third-party complaint in the New York County action, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

FRONT, INC., Plaintiff, v PHILIP KHALIL et al., Defendants. PHILIP KHALIL, Third-Party Plaintiff-Appellant, v JEFFREY A. KIMMEL et al., Third-Party Defendants-Respondents.

Submitted April 13, 2015; decided May 14, 2015

Reported below, 103 AD3d 481.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 24 NY3d 713 (2015)].

Judges STEIN and FAHEY taking no part.

DARRYL GAITER et al., Respondents, v CITY OF BUFFALO BOARD OF EDUCATION et al., Appellants.

Submitted March 23, 2015; decided May 14, 2015

Reported below, 125 AD3d 1388.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

In the Matter of MICHAEL GRECO et al., Respondents, v GORDON C. JENKINS, as Mayor and Village Manager of the Village of Monticello, Appellant.

Submitted April 27, 2015; decided May 14, 2015

Reported below, 127 AD3d 1269.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for a stay dismissed as academic.

Judge STEIN taking no part.

In the Matter of KEVIN GRIFFIN, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, et al., Respondents.

Submitted April 13, 2015; decided May 14, 2015

Reported below, 2015 NY Slip Op 65193(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted April 6, 2015; decided May 14, 2015

Reported below, 118 AD3d 676, 677, 678.

Motion for reargument of motion for leave to appeal denied [*see* 24 NY3d 1207 (2015)]. Motion for poor person relief dismissed as academic.

Judges STEIN and FAHEY taking no part.

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents. (And Other Actions.)

Submitted April 6, 2015; decided May 14, 2015

Reported below, 2014 NY Slip Op 64670(U); 2013 NY Slip Op 86710(U); 2013 NY Slip Op 77358(U).

Motion for reconsideration of this Court's February 17, 2015 dismissal order denied [*see* 24 NY3d 1206 (2015)]. Motion for reargument of motion for leave to appeal denied [*see* 24 NY3d 902 (2014)]. Motion for poor person relief dismissed as academic.

Judges STEIN and FAHEY taking no part.

In the Matter of GREGORY MINGO, Appellant, v P. CHAPPIUS, as Superintendent of Elmira Correctional Facility, et al., Respondents.

Submitted March 2, 2015; decided May 14, 2015

Reported below, 123 AD3d 1347.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARITZ OSORIO, Appellant, v STATE OF NEW YORK, Respondent.

Submitted March 23, 2015; decided May 14, 2015

Reported below, 2014 NY Slip Op 91730(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BRENDA POMERANCE, on Behalf of Herself and in the Right of 310 WEST 52 STREET CONDOMINIUM ASSOCIATION, Appellant, v BRIAN SCOTT McGRATH et al., Respondents.

Submitted March 9, 2015; decided May 14, 2015

Reported below, 124 AD3d 481.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DAVID RAMOS, Appellant, v ALBERT PRACK, as
Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted April 13, 2015; decided May 14, 2015

Reported below, 125 AD3d 1036.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

In the Matter of THE FUND FOR LAKE GEORGE, INC., et al.,
Petitioners, and EVELYN JAEGER et al., Appellants, v TOWN
OF QUEENSBURY ZONING BOARD OF APPEALS et al., Respon-
dents.

Submitted April 27, 2015; decided May 14, 2015

Reported below, 126 AD3d 1152.

Motion for leave to appeal denied with \$100 costs and neces-
sary reproduction disbursements. Motion for a stay dismissed
as academic.

DOMINICK VALENTI, Respondent, v CLOCKTOWER PLAZA PROPER-
TIES, LTD., Appellant, et al., Defendant.

Submitted March 2, 2015; decided May 14, 2015

Reported below, 118 AD3d 776.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

[32 NE3d 927, 10 NYS3d 492]

In the Matter of DANIEL KASCKAROW, Appellant, v BOARD OF
EXAMINERS OF SEX OFFENDERS OF STATE OF NEW YORK, Re-
spondent.

Argued March 23, 2015; decided May 7, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 15, 2013. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (David I. Schmidt, J.; op 33 Misc 3d 1028 [2011]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition to review a determination of respondent Board of Examiners of Sex Offenders of the State of New York that petitioner is required to register as a sex offender pursuant to Correction Law article 6-C, and (2) dismissed the proceeding.

Matter of Kasckarow v Board of Examiners of Sex Offenders of State of N.Y., 106 AD3d 915, affirmed.

HEADNOTE**Crimes — Sex Offenders — Sex Offender Registration Act — Out-of-State Nolo Contendere Plea**

Petitioner's out-of-state nolo contendere plea to a felony requiring him to register under that state's sex offender registration laws qualified as a conviction for a sex offense within the meaning of Correction Law § 168-a (1) and (2), notwithstanding that adjudication was withheld. Nolo contendere pleas are no different from other guilty pleas, and because New York defines a conviction to include the entry of a guilty plea, regardless of the subsequent sentence or judgment, the ultimate disposition of petitioner's out-of-state conviction was irrelevant. Moreover, New York distinguishes between a conviction and a "judgment of conviction," the latter of which includes "a conviction and the sentence imposed thereon" (CPL 1.20 [15]). The legislature intended the Criminal Procedure Law to provide the definitive meaning of the term "conviction" for other criminal statutes, and it meant what it said when it defined "conviction" separately from a judgment or sentence.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Anna Pervukhin* of counsel), for appellant.

Eric T. Schneiderman, Attorney General, New York City (*Claude S. Platton*, *Barbara D. Underwood* and *Cecelia C. Chang* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, without costs.

In 1998, petitioner Daniel Kasckarow was charged in Florida with the felony offense of indecent assault for committing an act of sexual battery on a child under the age of 16 (*see Fla*

Stat §§ 794.011 [1] [h]; former 800.04 [3]). Petitioner, who contends he was 18 years old at the time of the offense and engaged in consensual sex with a 15-year-old high school classmate,* entered a plea of nolo contendere to the charge. The Florida court withheld adjudication, entering an order of supervision and placing petitioner on “sex offender probation” for four years. In 2001, he was granted early termination, but was still required to register under Florida’s sex offender registration laws for the rest of his life (*see* Fla Stat § 943.0435 [1] [a] [1] [a] [I]; [11]).

Petitioner subsequently notified New York authorities of his status as a sex offender in Florida, and of his intent to move to New York (Correction Law § 168-k [1]). The Board of Examiners of Sex Offenders determined that petitioner was required to register in New York under the Sex Offender Registration Act (SORA) because he had been convicted of a sex offense within the meaning of Correction Law § 168-a. As relevant here, SORA defines a “sex offender” as “any person who is convicted” of a “sex offense” (Correction Law § 168-a [1], [2]), and a “sex offense” includes “a conviction of . . . a felony in any other jurisdiction for which the offender is required to register as a sex offender in the jurisdiction in which the conviction occurred” (*id.* § 168-a [2] [d] [ii]).

Petitioner brought this CPLR article 78 proceeding to challenge the Board’s determination. He argued that the disposition of his Florida felony did not constitute a “conviction” within the meaning of SORA for two reasons: he pleaded nolo contendere and the Florida court withheld adjudication. Supreme Court dismissed the petition, holding that “a nolo contendere plea is generally deemed a conviction” and “nothing unique about SORA . . . suggests that a nolo contendere plea should be treated differently for purposes of SORA registration” (33 Misc 3d 1028, 1032-1033 [Sup Ct, Kings County 2011]). Further, although SORA does not define “conviction,” CPL 1.20 (13) states that “conviction includes the entry of a plea of guilty to an accusatory instrument (or counts thereof)” (*id.* at 1031 [internal quotation marks omitted]). Because petitioner’s guilty plea was a conviction, “the fact that adjudication was withheld ha[d] no bearing on whether the Florida crime constitute[d] a conviction for purposes of SORA” (*id.* at 1033). The Appellate Division affirmed (106 AD3d 915 [2d Dept 2013]), and we

* The record does not reveal the exact age of the victim or the circumstances of the sexual encounter in Florida.

granted petitioner leave to appeal (22 NY3d 851 [2013]). We now affirm.

Petitioner again contends that because *nolo contendere* pleas are not recognized in New York, they cannot serve as the basis for a conviction within the meaning of SORA. We held in *People v Daiboch* (265 NY 125 [1934]), however, that the entry of a *nolo contendere* plea in another jurisdiction, followed by a judgment placing the defendant on probation for two years, was a prior conviction for purposes of sentencing the defendant as a second offender. Although *Daiboch* did not involve SORA, we confronted the same issue presented by this case: whether a defendant's out-of-state *nolo contendere* plea for which a non-incarceratory sentence was imposed qualifies as a conviction in New York. *Nolo contendere* pleas, like *Alford* pleas, are "no different from other guilty pleas" (*Matter of Silmon v Travis*, 95 NY2d 470, 475 [2000] [recognizing that an *Alford* plea may generally be used for the same purposes as any other conviction]). And because New York defines a conviction to include the entry of a guilty plea, regardless of the subsequent sentence or judgment, the ultimate disposition of petitioner's Florida conviction is irrelevant. New York distinguishes between a conviction and a "judgment of conviction," the latter of which includes "a conviction and the sentence imposed thereon" (CPL 1.20 [15]). As we have previously observed, the legislature intended the Criminal Procedure Law to provide the "definitive meaning" of the term "conviction" for other criminal statutes, and it meant what it said when it defined "conviction" separately from a judgment or sentence (*People v Montilla*, 10 NY3d 663, 668 [2008]).

We have reviewed petitioner's remaining arguments and consider them to be without merit.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, without costs, in a memorandum.

[32 NE3d 921, 10 NYS3d 486]

ACA FINANCIAL GUARANTY CORP., Appellant, v GOLDMAN, SACHS & Co., Respondent, et al., Defendants.

Argued March 26, 2015; decided May 7, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 14, 2013. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Barbara R. Kapnick, J.; op 35 Misc 3d 1217[A], 2012 NY Slip Op 50723[U] [2012]), which, to the extent appealed from, had denied defendant's motion to dismiss the causes of action for fraudulent inducement and fraudulent concealment; (2) granted defendant's motion; and (3) dismissed the amended complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

ACA Fin. Guar. Corp. v Goldman, Sachs & Co., 106 AD3d 494, reversed.

HEADNOTE

Fraud — Reliance — Justifiable Reliance on Representations Made during Securities Transaction

In an action alleging that defendant fraudulently induced plaintiff to provide financial guaranty for an investment by concealing the fact that defendant's hedge fund client planned to take a "short" position in the investment, thereby intentionally exposing plaintiff to substantial liability, plaintiff sufficiently alleged the justifiable reliance element of its fraud in the inducement and fraudulent concealment claims. When the party to whom a misrepresentation is made has hints of its falsity, a heightened degree of diligence is required, and it cannot reasonably rely on such representations without making additional inquiry to determine their accuracy. Plaintiff alleged that it asked defendant how the hedge fund intended to participate in the transaction, and that defendant affirmatively misrepresented to plaintiff that the fund would be the equity investor. Plaintiff was under no duty to insist on a "prophylactic provision" in an agreement and, in any event, there was no written agreement between the parties in which such a provision could have been inserted.

APPEARANCES OF COUNSEL

Kasowitz, Benson, Torres & Friedman LLP, New York City (Marc E. Kasowitz, Daniel R. Benson, Andrew K. Glenn, Trevor J. Welch and Kara F. Headley of counsel), for appellant.

Sullivan & Cromwell LLP, New York City (Richard H. Klapper, Theodore Edelman, William B. Monahan and Jessica P. Stokes of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the case remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court and the certified question answered in the negative.

Plaintiff ACA Financial Guaranty Corp. commenced this action against defendant Goldman, Sachs & Co., alleging that defendant fraudulently induced plaintiff to provide financial guaranty for a synthetic collateralized debt obligation, known as ABACUS. In its complaint, plaintiff alleges that defendant fraudulently concealed the fact that its hedge fund client Paulson & Co., which selected most of the portfolio investment securities in ABACUS, planned to take a “short” position in ABACUS, thereby intentionally exposing plaintiff to substantial liability; had plaintiff known this information, it would not have agreed to the guaranty.

Defendant moved to dismiss the complaint pursuant to CPLR 3211 (a) (1) and (7), contending, among other things, that plaintiff failed to sufficiently plead the “justifiable reliance” element of its fraud in the inducement and fraudulent concealment claims. Supreme Court denied the motion, but the Appellate Division reversed the order, granted defendant’s motion and dismissed the amended complaint. We now reverse.

To plead a claim for fraud in the inducement or fraudulent concealment, plaintiff must allege facts to support the claim that it justifiably relied on the alleged misrepresentations. It is well established that

“if the facts represented are not matters peculiarly within the [defendant’s] knowledge, and the [plaintiff] has the means available to [it] of knowing, by the exercise of ordinary intelligence, the truth or the real quality of the subject of the representation, [the plaintiff] must make use of those means, or [it] will not be heard to complain that [it] was induced to enter into the transaction by misrepresentations” (*Schumaker v Mather*, 133 NY 590, 596 [1892]; see *DDJ Mgt., LLC v Rhone Group L.L.C.*, 15 NY3d 147, 154 [2010]).

Moreover, “when the party to whom a misrepresentation is made has hints of its falsity, a heightened degree of diligence is required of it. It cannot reasonably rely on such representations without making additional inquiry to determine their ac-

curacy” (*Centro Empresarial Cempresa S.A. v América Móvil, S.A.B. de C.V.*, 17 NY3d 269, 279 [2011], quoting *Global Mins. & Metals Corp. v Holme*, 35 AD3d 93, 100 [1st Dept 2006], *lv denied* 8 NY3d 804 [2007]). Nevertheless, the question of what constitutes reasonable reliance is not generally a question to be resolved as a matter of law on a motion to dismiss (*DDJ Mgt., LLC*, 15 NY3d at 156).

In its complaint, plaintiff alleges that it sought assurances from defendant about Paulson’s role in ABACUS. Specifically, plaintiff alleges that it emailed defendant asking how Paulson intended to “participate” in the transaction. Plaintiff further alleges that defendant affirmatively misrepresented to plaintiff that Paulson would be the equity investor in ABACUS. Thus, at this pleading stage, plaintiff has sufficiently alleged justifiable reliance.

Contrary to defendant’s claim, our holding in *Centro Empresarial Cempresa S.A.* (17 NY3d 269) does not impose a duty on plaintiffs to insist on a “prophylactic provision” in agreements. *Centro* involved a release that accompanied a multimillion-dollar purchase agreement (*see id.* at 274). The plaintiffs in *Centro* “knew that defendants had not supplied them with the financial information to which they were entitled, triggering ‘a heightened degree of diligence’ ” (*Pappas v Tzolis*, 20 NY3d 228, 232-233 [2012], quoting *Centro Empresarial Cempresa S.A.*, 17 NY3d at 279). Despite this knowledge, the plaintiffs in *Centro* neither insisted on a prophylactic provision nor exercised due diligence by seeking the information to which they were entitled. Unlike in *Centro*, plaintiff here claims that defendant knew that Paulson was taking a position contrary to plaintiff’s interest, but withheld that information, despite plaintiff’s inquiries. Further, unlike the release in *Centro*, there was no written agreement between plaintiff and defendant in which a “prophylactic provision” could have been inserted.

Accepting the allegations of the complaint as true and providing plaintiff the benefit of every possible favorable inference as we must do on a motion to dismiss (*see AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 5 NY3d 582, 591 [2005]), plaintiff has sufficiently pleaded justifiable reliance for the causes of action for fraud in the inducement and fraudulent concealment. Additionally, defendant failed to submit documentary evidence that conclusively established the lack of justifiable reliance (*see* CPLR 3211 [a] [1]).

READ, J. (dissenting). In early 2007, Goldman, Sachs & Co. structured and marketed a synthetic collateralized debt obligation (CDO) called ABACUS 2007-AC1. This product was tied to the performance of a reference portfolio of subprime residential mortgage-backed securities, which are pools of home loans that have been securitized. Synthetic CDOs are typically divided into tranches based on the level of credit risk. Notes in the most senior tranche have the lowest risk of nonpayment due to defaults in the underlying collateral (here, the mortgages) and therefore bear the lowest interest rate. Conversely, notes in the most junior or “first loss” tranche of the synthetic CDO’s capital structure are the first to experience losses from defaults, and therefore have the highest potential rate of return.

Goldman put ABACUS together at the behest of its hedge fund client, Paulson & Co. ACA Management, a wholly owned subsidiary of ACA Financial Guaranty Corp., a bond insurer (collectively, ACA), participated in ABACUS as the third-party portfolio selection agent responsible for choosing the portfolio of reference obligations. Working with Paulson, ACA selected a portfolio of 90 subprime residential mortgage-backed securities that met the transaction’s eligibility criteria; i.e., they were issued in 2006 and early 2007 and rated Baa2 by Moody’s Investors Service. Paulson allegedly originally proposed 49 of the 90 securities ultimately selected by ACA for ABACUS. ACA unconditionally guaranteed payment for up to \$909 million, which referenced the most senior tranche of ABACUS notes.

After the housing market collapsed and ABACUS failed, ACA sued Goldman for common-law fraudulent inducement and fraudulent concealment. ACA alleges that Goldman misrepresented that Paulson had “pre-committed to take a long position in ABACUS” even though Goldman knew all along that Paulson was, in fact, “the sole short investor.” ACA claims it never would have insured ABACUS notes if it had known that Paulson had an economic incentive to select reference obligations that would fail.

The outcome of this appeal turns entirely on whether ACA has adequately pleaded the element of “justifiable reliance” necessary to sustain its fraud claims against Goldman. The majority concludes that ACA has done so, pointing to allegations that ACA “emailed [Goldman] asking how Paulson intended to ‘participate’ in the transaction,” and that Goldman “affirmatively misrepresented to [ACA] that Paulson would be the equity investor in ABACUS” (majority mem at 1045). But it is not enough for a sophisticated party like ACA to plead that it relied on Goldman’s alleged misrepresentations; to state a

cause of action for fraud, that reliance must have been justifiable, meaning that ACA must allege the “reasonable steps” that it took “to protect itself against deception” (*DDJ Mgt., LLC v Rhone Group L.L.C.*, 15 NY3d 147, 154 [2010]). Here, ACA manifestly took *no* steps to safeguard its interests. And there was an obvious and easy step that ACA might have taken; ACA might have simply asked Paulson directly what its investment position was in ABACUS.

We first articulated our rule over a century ago:

“[I]f the facts represented are not matters peculiarly within the party’s knowledge, and *the other party has the means available to him of knowing, by the exercise of ordinary intelligence, the truth or the real quality of the subject of the representation*, he must make use of those means, or he will not be heard to complain that he was induced to enter into the transaction by misrepresentations” (*Schumaker v Mather*, 133 NY 590, 596 [1892] [emphasis added]).

This rule has been “frequently applied in recent years where the plaintiff is a sophisticated business person or entity that claims to have been taken in” (*DDJ Mgt.*, 15 NY3d at 154). Thus, where a plaintiff alleges that it has taken an arguably adequate reasonable step to protect itself against the fraud complained of, we have held that it was for the trier of fact to determine if the plaintiff’s reliance was justifiable. Conversely, where a plaintiff has neglected to allege a reasonable protective step, we have held that the complaint failed, as a matter of law, to plead justifiable reliance.

DDJ Mgt. is an example of the first kind of case. There, the plaintiffs were four companies that loaned \$40 million to American Remanufacturers Holdings, Inc. (ARI or the company), a remanufacturer of automobile parts. When ARI failed to repay the loans, the plaintiffs sued the company’s stock owners, their corporate affiliates and individuals acting on their behalf (collectively, the stock owners), accusing them of “defraud[ing] [the] plaintiffs into making the loans” (*id.* at 151). In particular, the plaintiffs alleged that the stock owners presented them with false and misleading financial statements that were designed to inflate ARI’s earnings.

We assumed for purposes of the appeal that the complaint “adequately allege[d] that [the stock owners] made material misrepresentations,” which meant that “[t]he [only] question

. . . [was] whether, if the complaint's allegations are true, a jury could find that [the] plaintiffs justifiably relied on those misrepresentations" (*id.* at 152). The stock owners argued there could be no justifiable reliance because the plaintiffs did not make a reasonable inquiry into the truth of their representations.

The financial documents that the company provided the plaintiffs "contained some features that might have aroused concern in a skeptical reader who examined them carefully," and the plaintiffs did not ask questions about these aspects of the financial statements or look at ARI's records (*id.*). Yet, the plaintiffs "insist[ed] that ARI represent and warrant, in substance, that the financial statements were accurate" as a condition of closing (*id.* at 153).

We concluded that, on these facts, "[the] plaintiffs made a significant effort to protect themselves against the possibility of false financial statements: they obtained representations and warranties to the effect that nothing in the financials was materially misleading" (*id.* at 156); and that "where a plaintiff has gone to the trouble to insist on a written representation that certain facts are true, it will often be justified in accepting that representation rather than making its own inquiry" (*id.* at 154). Accordingly, we held that the plaintiffs had adequately alleged justifiable reliance, and "whether they were justified in relying on the warranties they received is a question to be resolved by the trier of fact" (*id.* at 156).

Centro Empresarial Cempresa S.A. v América Móvil, S.A.B. de C.V. (17 NY3d 269 [2011]) is an example of the second kind of case—where the complaint fails as a matter of law because a plaintiff has neglected to allege that it took reasonable steps to protect itself against fraud. There, the plaintiffs, purportedly relying on false financial information supplied by the defendants, agreed to sell business units to the defendants at a set "floor price." Although they were entitled to the financial information necessary to value these business units properly, the plaintiffs neither demanded access to it nor sought assurances as to its accuracy in the form of representations and warranties, which we had recently explicitly held in *DDJ Mgt.* might substitute for investigating the facts represented. The plaintiffs' failure to take these obvious "reasonable steps to protect [themselves] against deception" (*DDJ Mgt.*, 15 NY3d at 154) proved fatal to their fraud claim.

The majority treats representations and warranties as unworthy of serious consideration here because, "there was no

written agreement between [ACA] and [Goldman] in which a ‘prophylactic provision’ could have been inserted” (majority mem at 1045). But if assurance that Paulson was taking a net long position in ABACUS was as critical to ACA’s commercial decision-making as it now claims, ACA surely could have and would have conditioned its financial guaranty on Goldman (or Paulson, for that matter) entering into an agreement containing written representations and covenants. And in any event, Goldman points out, the guaranty was effectuated and governed by eight separate agreements involving ACA, Goldman and the bank that intermediated the transaction, and “ACA’s contracts with [the bank], and [the bank’s] corresponding contracts with Goldman . . . , could all have included prophylactic provisions concerning Paulson’s investment position, if that were important to ACA at the time.”

The federal courts, applying our New York rule, have likewise determined justifiable reliance to be lacking in situations where a plaintiff does not bother to consult a source of information that might have revealed the alleged fraud. *Lazard Freres & Co. v Protective Life Ins. Co.* (108 F3d 1531 [2d Cir 1997]) involved an attempted sale of millions of dollars in bank debt between two large and sophisticated companies. The seller allegedly made false statements with respect to the content of a certain report on the debtor’s financial condition, and because the deal was time-sensitive, the buyer made an oral commitment to purchase before reviewing the report. One of the questions on appeal was whether the buyer reasonably relied on the seller’s representations of the contents of the report. The Second Circuit opined that the buyer should have, and easily could have, protected itself from misrepresentation by demanding to see the report as a condition of closing (*id.* at 1543).

In discussing the law, the court observed that “[i]t is well established that ‘[w]here sophisticated businessmen engaged in major transactions enjoy access to critical information but fail to take advantage of that access, New York courts are particularly disinclined to entertain claims of justifiable reliance’ ” (*id.* at 1541, quoting *Grumman Allied Indus., Inc. v Rohr Indus., Inc.*, 748 F2d 729, 737 [2d Cir 1984]). The Second Circuit went on to note that this was especially true in “situations in which the relevant facts were easily accessible to the relying party,” citing instances where the plaintiffs could have “made simple inquiries” or “examine[d] the corporate records before assuming the obligations” (*id.* at 1542 [internal quotation marks omitted]).

In *Grumman*, the plaintiff alleged misrepresentations and failure to disclose material facts relating to the testing of buses. Although the plaintiff “enjoyed unfettered access to [the defendant]’s plants, personnel and documents; and . . . possessed the legal, technical and business expertise necessary to make effective use of that access,” it “neither inquired into the results of [the defendant’s] testing, nor asked to scrutinize testing reports” (748 F2d at 737-738). The Second Circuit therefore rejected the plaintiff’s fraud claim based on “the unambiguous case law and the undisputed facts” (*id.*). In doing so, the court acknowledged the general “principle that *access bars claims of reliance on misrepresentations*” (*id.* at 737 [emphasis added]), and cited cases where experienced businessmen were barred from claiming fraud when they relied solely on verbal assurances despite “undisputed access to . . . corporate records” (*id.* at 738).

Here, ACA alleges that, after its first meeting with Paulson on January 8, 2007, it was unsure how Paulson meant to “participate” in the transaction.* But unlike outside investors in ABACUS, who had no way to know that Paulson was involved in the transaction in any way, ACA was on the inside. ACA and Paulson worked *together* for a month to assemble the 90 subprime residential mortgage-backed securities in the reference portfolio. Further, ACA’s Senior Credit Committee did not give conditional approval of the financial guaranty until March 31, 2007, and the guaranty was not consummated until May 31, 2007. Yet, during that five-month stretch of unfettered access to Paulson, ACA never once asked Paulson about its investment position in ABACUS. ACA easily could have done so, and, optimally, would have demanded a written representation from Goldman and/or Paulson *before* issuing the financial guaranty essential to the transaction. Instead, like the plaintiffs in *Centro*, *Lazard Freres* and *Grumman*, ACA merely relied on what it says Goldman told it without actually checking the source (i.e., asking Paulson), or taking any other “reasonable steps to protect itself against deception” (*DDJ Mgt.*, 15 NY3d at 154).

ACA, a sophisticated financial entity, protests that it was not reasonable to query Paulson about its investment position in

* ACA’s complaint quotes the following email sent to a Goldman employee involved in the transaction by an ACA participant in ACA’s initial meeting with Paulson: “I have no idea how it went—I wouldn’t say it went poorly, not at all, but I think it didn’t help that we didn’t know exactly *how* [Paulson] want[s] to participate in the space. Can you get us some feedback?”

ABACUS because Paulson most likely would have lied, and, in any event, whether Paulson would have disclosed the truth is a factual issue that cannot be resolved on a motion to dismiss. But whether Paulson would have lied or not is irrelevant. The representations and warranties obtained by the plaintiffs in *DDJ Mgt.* were, after all, allegedly false. What matters is that the plaintiffs there took the arguably adequate reasonable step of requesting and obtaining representations and warranties to protect themselves against potential fraud. The *DDJ Mgt.* plaintiffs—unlike ACA—therefore were able to allege facts from which a trier of fact might find justifiable reliance.

Savvy commercial and financial players and inventive lawyers abound in New York. Our venerable rule requiring that the reliance necessary to establish fraud must be justifiable is designed to make sure that the courts “reject[] the claims of plaintiffs who have been so lax in protecting themselves that they cannot fairly ask for the law’s protection” and “may truly be said to have willingly assumed the business risk that the facts may not be as represented” (*DDJ Mgt.*, 15 NY3d at 154 [internal quotation marks omitted]). Because ACA cannot, as a matter of law, establish justifiable reliance on the basis of the facts alleged in its amended complaint, I respectfully dissent.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, STEIN and FAHEY concur; Judge READ dissents in an opinion in which Judge ABDUS-SALAAM concurs.

Order reversed, with costs, case remitted to the Appellate Division, First Department, for consideration of issues raised but not determined on the appeal to that court and certified question answered in the negative, in a memorandum.

[33 NE3d 1280, 12 NYS3d 11]

In the Matter of ELIZABETH MCGOVERN, Appellant, v MOUNT PLEASANT CENTRAL SCHOOL DISTRICT, Respondent.

Argued April 28, 2015; decided June 4, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second

Judicial Department, entered February 13, 2014. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Westchester County (Albert Lorenzo, J.), entered in a proceeding pursuant to CPLR article 78, which had directed that petitioner be reinstated with back pay pending a hearing to determine whether she was denied tenure and terminated from her position as a probationary teacher in bad faith, and (2) remitted the matter for entry of a judgment in favor of respondent and against petitioner denying the petition and dismissing the proceeding.

Matter of McGovern v Mount Pleasant Cent. Sch. Dist., 114 AD3d 795, affirmed.

HEADNOTE

Appeal — Preservation of Issue for Review — Termination of Employment as Probationary Teacher — Exemption from Notice of Claim Requirement

In a proceeding pursuant to CPLR article 78 challenging respondent's determination terminating petitioner's employment as a probationary teacher, petitioner's arguments that she was exempt from the notice of claim requirement in Education Law § 3813 (1) because the monetary damages sought were incidental to her primary claim for equitable relief and because she sought to enforce tenure rights by estoppel were unpreserved for review in the Court of Appeals. Even if the Appellate Division may have considered one or both of these arguments, they were not raised at Supreme Court.

APPEARANCES OF COUNSEL

Rutkin & Wolf PLLC, Bronx (*Jason M. Wolf* of counsel), for appellant.

Ingerman Smith, LLP, Harrison (*Emily J. Lucas* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Petitioner Elizabeth McGovern was employed as a teacher by respondent Mount Pleasant Central School District, commencing September 1, 2008. On June 30, 2011, before the end of her three-year probationary period, the District terminated McGovern's employment, based on the Superintendent of Schools' recommendation not to grant tenure. McGovern brought this CPLR article 78 proceeding seeking annulment of the District's determination, reinstatement with tenure and back pay. In its answer to the petition, the District asserted as

an affirmative defense that McGovern had not served a timely notice of claim as required by Education Law § 3813 (1). McGovern's sole argument in opposition to the affirmative defense was that a "[n]otice of [c]laim is not a condition precedent to a special proceeding properly brought pursuant to CPLR [a]rticle 78 seeking judicial enforcement of a legal right derived through enactment of positive law." Supreme Court agreed and directed that McGovern be reinstated with back pay pending a hearing to determine whether she was denied tenure and terminated from her probationary employment in bad faith.

On the District's appeal, the Appellate Division reversed and remitted the matter to Supreme Court for entry of a judgment denying the petition and dismissing the proceeding (114 AD3d 795 [2d Dept 2014]). The Court ruled that the positive-law exemption on which McGovern relied was not relevant to the situation of a probationary teacher seeking to compel a school district to grant tenure. The Appellate Division also expressed its view that section 3813 (1) does not apply when a litigant seeks only equitable relief, but observed that McGovern asked for damages in the form of back pay in addition to an equitable remedy, and brought her lawsuit to advance a private right rather than vindicate a public interest. We granted McGovern leave to appeal (23 NY3d 903 [2014]), and now affirm.

On appeal to us, McGovern contends that she is exempt from section 3813 (1)'s notice-of-claim requirement for two reasons: the monetary damages that she demands are merely incidental to her primary claim for equitable relief; and/or she seeks to enforce tenure rights by estoppel.* Even if the Appellate Division may have considered one or both of these arguments, McGovern did not raise them at Supreme Court; therefore, they are unpreserved for our review (*see generally Brown v City of New York*, 60 NY2d 893, 894 [1983]). Although the District only asserts a lack of preservation with respect to the second argument, we determine independently whether an issue is properly before us (*see Halloran v Virginia Chems.*, 41 NY2d 386, 393 [1977]).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, with costs, in a memorandum.

* McGovern does not contest the propriety of the Appellate Division's ruling on the positive-law exception.

[33 NE3d 1287, 12 NYS3d 17]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. BOURLAYE T.,
Appellant, v WILLIAM J. CONNOLLY, Superintendent of Fish-
kill Correctional Facility, Respondent.

Argued April 29, 2015; decided June 4, 2015

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 16, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Dutchess County (Peter M. Forman, J.), which had, without a hearing, denied petitioner's application for a writ of habeas corpus, and dismissed the petition.

People ex rel. Bourlaye T. v Connolly, 119 AD3d 825, affirmed.

HEADNOTE

Appeal — Academic and Moot Questions — Habeas Corpus — Confinement of Sex Offender Facing Deportation

In a habeas corpus proceeding brought by petitioner foreign national who, after serving 25 years in state prison for certain sex offenses and other crimes, was conditionally released and placed in federal custody for deportation, but was subsequently returned to state custody after federal officials were unable to procure the necessary documentation to deport him, the issue raised was academic because petitioner was being confined pursuant to a probable cause order in a civil management proceeding commenced after his return to state custody. On the same day that petitioner commenced the habeas corpus proceeding, the State filed a civil management petition pursuant to Mental Hygiene Law article 10, which resulted in a finding that petitioner was a "sex offender requiring civil management" (Mental Hygiene Law § 10.06 [k]) and the entry of a probable cause order. Petitioner's habeas petition challenged only his initial arrest and detention, and since he was being held pursuant to the probable cause order, the initial detention no longer served as the authority for his continuing confinement. Furthermore, no question was presented to warrant application of an exception to the mootness doctrine. The State articulated that it had since corrected its practices relating to the commencement of civil commitment proceedings against sex offenders facing deportation. Moreover, the article 10 proceeding itself was the proper forum to challenge the validity of the probable cause order and the underlying article 10 petition (*see* Mental Hygiene Law §§ 10.06-10.08, 10.13).

APPEARANCES OF COUNSEL

Michael D. Neville, Mental Hygiene Legal Service, Mineola (*Ana Vuk-Pavlovic* and *Dennis B. Feld* of counsel), for appellant.

Eric T. Schneiderman, Attorney General, New York City (*Jason Harrow*, *Barbara D. Underwood* and *Steven C. Wu* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

In 1988, petitioner, a foreign national, pleaded guilty to attempted murder in the second degree, rape in the first degree, sexual abuse in the first degree, burglary in the first degree, and attempted burglary in the second degree. He was sentenced to a prison term of 12 to 36 years.

After serving approximately 25 years in prison, petitioner was conditionally released from the custody of the New York State Department of Corrections and Community Supervision (DOCCS) and placed in the custody of the United States Department of Homeland Security, Immigration and Customs Enforcement (ICE) for deportation from the United States.¹ Contemporaneously, he began serving a term of parole under the supervision of the New York State Division of Parole. In December 2012, petitioner was released to federal immigration parole after federal officials were unable to procure the necessary documentation to deport him.² Following his release, petitioner was taken into custody by state parole officers and transported to a state correctional facility, despite the fact that there were no allegations that he had violated a condition of his parole.

In January 2013, petitioner commenced this proceeding pursuant to CPLR article 70 seeking a writ of habeas corpus, contending that he was being confined unlawfully. On the same day, the State filed a civil management petition pursuant to Mental Hygiene Law article 10 and received judicial authorization to temporarily retain petitioner in custody pending a probable cause hearing. Following the hearing, the court found probable cause to believe that petitioner was a “sex offender requiring civil management” (Mental Hygiene Law § 10.06 [k]) and directed that he be committed to a secure treatment facility pending trial.

The State moved to dismiss the habeas proceeding on the ground that it had been rendered moot by the entry of the probable cause order, which allowed the State to detain

1. ICE could not deport petitioner any earlier, as federal law prohibits the removal of incarcerated aliens (*see* 8 USC § 1231 [a] [4]).

2. In the event ICE is unable to deport an alien after six months of post-removal order detention, he must be released on a form of parole supervision (*see Zadvydas v Davis*, 533 US 678, 701 [2001]).

petitioner pending trial. Supreme Court granted the State's motion and dismissed the proceeding. The Appellate Division affirmed (*see* 119 AD3d 825 [2d Dept 2014]).

Petitioner argues that Supreme Court wrongfully denied and dismissed as moot his petition for a writ of habeas corpus because he remains in State custody pursuant to an illegal arrest. He also contends that the illegal arrest rendered the article 10 proceeding against him jurisdictionally void, and, therefore, the proceeding cannot justify his continued incarceration. While the State does not defend as lawful the procedure utilized for petitioner's initial return to custody, it maintains that the issue is insignificant because the probable cause order provides an independent and superseding basis for his confinement.

As noted by the State, petitioner's habeas petition challenges only his initial arrest and detention. Since petitioner is currently being held pursuant to the probable cause order, the initial detention no longer serves as the authority for his continuing confinement. Therefore, the issue raised in this habeas proceeding is academic (*see Matter of Hearst Corp. v Clyne*, 50 NY2d 707 [1980]).

Nor does this appeal present a question that would warrant our application of an exception to the mootness doctrine. The State articulated that it has since corrected its practices relating to the commencement of civil commitment proceedings against sex offenders facing deportation. Furthermore, the article 10 proceeding itself is the proper forum for petitioner to challenge the validity of the probable cause order and the underlying article 10 petition (*see* Mental Hygiene Law §§ 10.06-10.08, 10.13).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, without costs, in a memorandum.

In the Matter of DIANA SACHS AYLWARD et al., Respondents, v
ASSESSOR, CITY OF BUFFALO, et al., Appellants.

Decided June 4, 2015

Reported below, 125 AD3d 1344.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge FAHEY taking no part.

BECK CHEVROLET CO., INC., Appellant, v GENERAL MOTORS LLC,
Respondent.

Decided June 4, 2015

See 787 F3d 663.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

In the Matter of ANTHONY BOTTOM, Also Known as JALIL MUNITAQIM, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, et al., Respondents.

Decided June 4, 2015

Reported below, 125 AD3d 1070.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

TREMAIN CASON, Appellant, v KIRBY SY SMITH, III, et al., Respondents.

Submitted February 17, 2015; decided June 4, 2015

Reported below, 120 AD3d 1554.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered on an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of COUNTY OF ST. LAWRENCE, Respondent, v NIRA V R. SHAH, as Commissioner of Health, et al., Appellants. (And Two Other Related Proceedings.)

Submitted May 18, 2015; decided June 4, 2015

Reported below, 124 AD3d 88.

Motion for a stay denied as unnecessary. The automatic stay provisions of CPLR 5519 (a) (1) apply.

Judges STEIN and FAHEY taking no part.

CRP/EXTELL PARCEL I, L.P., Respondent, v ANDREW M. CUOMO et al., Respondents, and 3TO4, LLC, et al., Appellants.

Submitted May 18, 2015; decided June 4, 2015

Reported below, 124 AD3d 560.

Motion for a stay denied.

EDWIN DAVIS et al., Appellants, v SOUTH NASSAU COMMUNITIES HOSPITAL et al., Respondents.

Submitted June 1, 2015; decided June 4, 2015

Reported below, 119 AD3d 512.

Motion by Healthcare Association of New York State, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of ENTERGY NUCLEAR OPERATION, INC., et al., Respondents, v NEW YORK STATE DEPARTMENT OF STATE et al., Appellants.

Submitted May 11, 2015; decided June 4, 2015

Reported below, 125 AD3d 21.

Motion by Riverkeeper, Inc., et al. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of V. ANTHONY MAGGIPINTO, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Decided June 4, 2015

Reported below, 125 AD3d 31.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of LUIS PENA, Appellant, v NEW YORK STATE GAMING COMMISSION, Respondent. (And Another Proceeding.)

Decided June 4, 2015

Reported below, 127 AD3d 1287.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BADALAMENTI, Appellant.

Submitted May 11, 2015; decided June 4, 2015

Reported below, 124 AD3d 672.

Motion for assignment of counsel granted and Marianne Karas, Esq., 980 Broadway, Suite 324, Thornwood, New York 10594 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS BASILE, Appellant.

Submitted May 26, 2015; decided June 4, 2015

Reported below, 40 Misc 3d 44.

Motion by Animal Legal Defense Fund et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALMA CALDAVADO, Also Known as ALMA CALDERARO, Appellant.

Submitted May 11, 2015; decided June 4, 2015

Reported below, 116 AD3d 877.

Motion by Innocence Network for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GLENFORD C. HULL, Appellant.

Submitted May 11, 2015; decided June 4, 2015

Reported below, 125 AD3d 1099.

Motion for assignment of counsel granted and Jonathan I. Edelstein, Esq., care of Edelstein & Grossman, 501 Fifth Avenue, Suite 514, New York, NY 10017 assigned as counsel to the appellant on the appeal herein.

Judge STEIN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC A. JACKSON, Appellant.

Submitted May 18, 2015; decided June 4, 2015

Reported below, 121 AD3d 1185.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONEL JOSEPH, Appellant.

Submitted May 11, 2015; decided June 4, 2015

Reported below, 124 AD3d 437.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAT-
RICK MORGAN, Appellant.

Submitted June 1, 2015; decided June 4, 2015

Reported below, 124 AD3d 406.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY
MULDROW, Appellant.

Submitted May 11, 2015; decided June 4, 2015

Reported below, 122 AD3d 1345.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVE
WILLIAMSON, Appellant.

Submitted May 18, 2015; decided June 4, 2015

Reported below, 72 AD3d 1339.

Motion for disclosure denied (*see* Rules of Ct of Appeals [22 NYCRR] § 510.18 [a]).

In the Matter of PLATINUM PLEASURES OF NY, INC., Respondent,
v NEW YORK STATE LIQUOR AUTHORITY, Appellant.

Decided June 4, 2015

Reported below, 126 AD3d 587.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

RICHARD RIVERA et al., Appellants, v FERNANDEZ & ULLOA AUTO GROUP et al., Respondents.

Submitted June 1, 2015; decided June 4, 2015

Reported below, 123 AD3d 509.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of TATIANA SOUBBOTIN, Appellant. COMMISSIONER OF LABOR, Respondent.

Decided June 4, 2015

Reported below, 123 AD3d 1215.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge STEIN taking no part.

ROBERT CAREY, Respondent, v BURTON P. SCHWAB, Appellant.

Submitted April 6, 2015; decided June 9, 2015

Reported below, 122 AD3d 1142.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge STEIN taking no part.

FRANK A. CICCİ, Appellant, v CHEMUNG COUNTY et al., Respondents, and VILLAGE OF ELMIRA HEIGHTS et al., Appellants.

Submitted April 20, 2015; decided June 9, 2015

Reported below, 122 AD3d 1181.

Motion by plaintiff, insofar as it seeks leave to appeal as against defendants David J. Noonan and Steven Pickering, dismissed upon the ground that as to those defendants the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Cross motion for leave to appeal,

insofar as made by defendants Village of Elmira Heights and A. Rick Churches, Village of Elmira Heights Chief of Police, dismissed upon the ground that they are not parties aggrieved (*see* CPLR 5511); cross motion for leave to appeal, insofar as made by defendants David J. Noonan and Steven Pickering, dismissed upon the ground that as to these defendants, the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RURAL COMMUNITY COALITION, INC., et al., Appellants, v VILLAGE OF BLOOMINGBURG et al., Defendants, TOWN OF MAMAKATING et al., Appellants, and SHALOM LAMM et al., Respondents.

Submitted May 11, 2015; decided June 9, 2015

Reported below, 127 AD3d 1304.

Motion by the Town of Mamakating et al. for leave to appeal etc. denied. Motion by Rural Community Coalition, Inc., et al. for leave to appeal denied.

In the Matter of LUZ SOLLA, Respondent, v ELIZABETH BERLIN, as Executive Deputy Commissioner of the New York State Office of Temporary and Disability Assistance, et al., Appellant, et al., Respondents.

Submitted April 6, 2015; decided June 9, 2015

Reported below, 106 AD3d 80.

Motion for reargument denied [*see* 24 NY3d 1192 (2015)]. Motion for poor person relief dismissed as academic.

Judges STEIN and FAHEY taking no part.

In the Matter of RICARDO SUAREZ et al., Appellants, v MELISSA WILLIAMS et al., Respondents.

Submitted May 26, 2015; decided June 9, 2015

Reported below, 128 AD3d 20.

Motion for leave to appeal granted. Motion for a stay granted.

In the Matter of VIVIENNE BOBBI-HADIYA S., an Infant. MAKENA ASANTA MALIKA McK., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES et al., Respondents, et al., Respondent. (And Another Proceeding.)

Submitted April 27, 2015; decided June 9, 2015

Reported below, 126 AD3d 545.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

[33 NE3d 1289, 12 NYS3d 19]

In the Matter of DELROY S., a Person Alleged to be a Juvenile Delinquent, Appellant.

Argued April 29, 2015; decided June 4, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 14, 2014. The Appellate Division order, insofar as appealed from, affirmed an order of the Family Court of Bronx County (Allen G. Alpert, J.), to the extent it had adjudicated respondent a juvenile delinquent upon a fact-finding determination that he had committed acts which, if committed by an adult, would constitute the crimes of assault in the second degree and criminal possession of a weapon in the fourth degree, and placed respondent on probation for a period of 18 months.

Matter of Delroy S., 113 AD3d 448, reversed.

HEADNOTE

Crimes — Confession — Suppression — Harmless Error

Family Court's failure to suppress respondent's statement, made during a custodial interrogation without *Miranda* warnings, that he had gotten into a fight with complainant and stabbed him with a knife was not harmless, where there was evidence supporting respondent's justification defense. After engaging in a fight with respondent, complainant left respondent's building but then returned with a group of friends and started a second fight with respondent while the group cheered him on. Complainant, who was older, taller, heavier and stronger than respondent, had his hands above respondent's chest on his neck while the group yelled "get him." Respondent did

not use the knife until after this potentially deadly force was used on him. Even if respondent was able to get out of the choke hold and had stepped back before pulling out the knife, that would not prove that complainant was done beating on respondent, especially given the crowd that had gathered. Accordingly, there was not overwhelming evidence that respondent knew that, with complete personal safety, he could have retreated. Furthermore, the People did not demonstrate that there was no reasonable possibility that the wrongly admitted evidence might have contributed to the guilty finding. The police officer's summary of respondent's statement appeared to conflate the two separate fights and created the impression that respondent paused in the course of one fight to secure a knife with which to stab complainant. The improper admission of the statement therefore undermined, if not eviscerated, respondent's justification defense.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Raymond E. Rogers and Tamara A. Steckler of counsel), for appellant.

Zachary W. Carter, Corporation Counsel, New York City (Michael J. Pastor and Richard Dearing of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, without costs, and the matter remitted to Family Court for further proceedings in accordance with this memorandum.

In this juvenile delinquency proceeding, 11-year-old Delroy was charged in Family Court with the commission of acts that, if done by an adult, would constitute, among other things, assault in the first degree and third degree, and attempted assault in the first, second and third degrees. The charges arose out of an altercation that Delroy had with the 12-year-old complainant, during which the complainant was stabbed. Delroy moved to suppress a statement that he had made to the police officers who responded to the scene, as well as a knife recovered from Delroy's apartment. According to the testimony at the suppression hearing, when the officers responded to the location of the incident, they saw the complainant and a crowd of people, including Delroy's adult sister. Delroy's sister stated that her brother had been bullied by the complainant, that the two boys had fought and that Delroy had stabbed the complainant.

Delroy's sister took the officers to Delroy's apartment. Once inside, the officers saw Delroy. Without administering *Miranda*

warnings, one of the officers asked Delroy “what happened[?]” and Delroy responded, in sum and substance, that he got into a fight with the complainant, who was bothering him, that he went to go find his brother, that he could not find his brother, and that he came back with a knife and stabbed the complainant.

Family Court denied the suppression motion, noting that Delroy’s adult sister invited the police into the home, and took the lead with respect to recovery of the knife. After the fact-finding hearing, at which Delroy interposed a justification defense, Family Court concluded that Delroy had committed the delinquent acts of second-degree assault, fourth-degree criminal possession of a weapon, petit larceny and fifth-degree criminal possession of stolen property. The court adjudicated him a juvenile delinquent and placed him on probation for a period of 18 months.

The Appellate Division held that Delroy’s statement should have been suppressed on the ground that it was the product of a custodial interrogation without *Miranda* warnings because, under the circumstances, “a reasonable 11 year old would not have felt free to leave” (113 AD3d 448, 448 [2014]). However, it concluded that admission of the statement was “harmless beyond a reasonable doubt” in that “there was overwhelming evidence that both established [Delroy’s] guilt of the assault and weapon charges and disproved his justification defense” (*id.*). The Appellate Division modified the order of disposition only to the extent of vacating the findings as to petit larceny and criminal possession of stolen property as unsupported by the evidence and dismissing those counts.

There is no basis to disturb the Appellate Division’s holding that this was a custodial interrogation, and that the statement should have been suppressed.

We disagree with the Appellate Division’s conclusion that the error was harmless. A trial court’s error involving a constitutionally protected right is harmless beyond a reasonable doubt only if “there is no reasonable possibility that the error might have contributed to defendant’s conviction” (*People v Crimmins*, 36 NY2d 230, 237 [1975]). “The People must show that any error was harmless beyond a reasonable doubt [and] [i]n deciding whether the People have met this burden, we consider both the overall strength of the case against defendant and the importance to that case of the improperly admitted evidence” (*People v Goldstein*, 6 NY3d 119, 129 [2005], *cert denied* 547 US 1159 [2006] [citations omitted]).

The record shows that while there was no doubt that Delroy had stabbed the complainant, there was evidence supporting Delroy's justification defense. "The defense of justification . . . permits one to use deadly physical force on another when one reasonably believes that deadly physical force is being used or imminently will be used by such other person" (*People v Watts*, 57 NY2d 299, 301 [1982], citing Penal Law § 35.15 [2] [a]), and that "defense is qualified by a duty to retreat" (*id.*). The People bear the burden of disproving the defense of justification beyond a reasonable doubt (*see Matter of Y.K.*, 87 NY2d 430, 433 [1996]).

The complainant testified that on the day of the incident, he entered Delroy's building and seized a scooter from Delroy that he thought was his. The two boys engaged in a "tugger-war fight" over the scooter. The complainant was older, taller, heavier and stronger than Delroy. The complainant left Delroy's building, but then returned to Delroy's home with his twin brother and 9 or 10 friends and engaged in a fight with Delroy. The complainant admitted that he started the second fight by yelling at Delroy, and that his friends were cheering him on. The complainant's brother testified that while the complainant had his hands above Delroy's chest on his neck, the group was yelling "get him." Delroy did not use the knife until after this potentially deadly force was used on him. While the People argue that the complainant's brother testified that Delroy was able to get out of the choke hold and step back five or six feet before pulling out the knife, and the complainant testified that Delroy might have been 12 feet away when he took out the knife, we note that the complainant also testified that he didn't know if Delroy was underneath him when he felt the knife stabbing him. Moreover, even if Delroy had in fact stepped some feet away from the complainant, that would not prove that the complainant was done with beating on the much smaller Delroy, especially given the crowd that had gathered around to cheer on the combating boys. Contrary to the Appellate Division's conclusion, there was not overwhelming evidence that Delroy knew that, with complete personal safety, he could have retreated (*see* Penal Law § 35.15 [2] [a]).

Furthermore, the People have not demonstrated that there is no reasonable possibility that the wrongly admitted evidence might have contributed to the guilty finding. Given the uncontroverted testimony that there were two fights (the first when the complainant took the scooter from Delroy, and the

second when the complainant was stabbed), the police officer's summary of Delroy's statement appears to conflate the two separate fights, and creates the impression that Delroy paused in the course of one fight to secure a knife with which to stab the complainant. Regardless of whether the police officer accurately recounted the statement, or did indeed conflate the two fights, the improper admission of Delroy's statement undermined, if not eviscerated, Delroy's justification defense.

Accordingly, the failure to suppress the statement was not harmless.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order, insofar as appealed from, reversed, without costs, and matter remitted to Family Court, Bronx County, for further proceedings in accordance with the memorandum herein.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2015 through May 31, 2015)

Carrington v Moore	3d Dept: 125 AD3d 1069	5/18/15
JPMorgan Chase Bank, N.A. v Hunter Group, Inc.	2d Dept: 124 AD3d 727	5/18/15
Weber, Matter of	2d Dept: 2015 NY Slip Op 00775	5/18/15

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2015 through May 31, 2015)

People v Ackridge	App Term, 2d Dept, 9th & 10th Jud Dists: 46 Misc 3d 143(A) (Westchester)	denied 5/7/15 (Read, J.)
People v Adedoyin	App Term, 1st Dept: 46 Misc 3d 126(A) (Bronx)	denied 5/7/15 (Read, J.)
People v Adsit	4th Dept: 125 AD3d 1430 (Onondaga)	denied 5/7/15 (Read, J.)
People v Alexander	1st Dept: 125 AD3d 550 (NY)	denied 5/5/15 (Read, J.)
People v Alvarado	1st Dept: 122 AD3d 431 (NY)	denied 5/4/15 (Lippman, Ch. J.)

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People v Anonymous	1st Dept: 123 AD3d 469 (NY)	denied 5/5/15 (Read, J.)
People v Aponte	App Term, 1st Dept: 45 Misc 3d 29 (NY)	denied 5/8/15 (Abdus-Salaam, J.)
People v Armstrong	4th Dept: 125 AD3d 1493 (Onondaga)	denied 5/20/15 (Pigott, J.)
People v Arthur	1st Dept: 125 AD3d 446 (NY)	denied 5/5/15 (Read, J.)
People v Azor	2d Dept: 124 AD3d 671 (Kings)	denied 5/25/15 (Pigott, J.)
People v Baker	1st Dept: 126 AD3d 537 (NY)	denied 5/15/15 (Stein, J.)
People v Banchon	1st Dept: 126 AD3d 462 (NY)	denied 5/28/15 (Lippman, Ch. J.)
People v Barlow	App Term, 1st Dept: 46 Misc 3d 148(A) (NY)	denied 5/11/15 (Fahey, J.)
People v Barnett	2d Dept: 125 AD3d 878 (Westchester)	denied 5/11/15 (Fahey, J.)
People v Basono	1st Dept: 122 AD3d 553 (NY)	denied 5/4/15 (Lippman, Ch. J.)
People v Bausano	4th Dept: 122 AD3d 1341 (Cayuga)	denied 5/6/15 (Rivera, J.)
People v Beato	1st Dept: 124 AD3d 516 (NY)	denied 5/25/15 (Pigott, J.)
People v Bentt	2d Dept: 120 AD3d 1356 (Kings)	denied 5/28/15 (Abdus-Salaam, J.)
People v Black	App Term, 1st Dept: 46 Misc 3d 126(A) (Bronx)	dismissed 5/20/15 (Pigott, J.)
People v Blount	1st Dept: 126 AD3d 466 (NY)	denied 5/5/15 (Stein, J.)
People v Boekhout	4th Dept: 119 AD3d 1373 (Wayne)	denied 5/6/15 (Rivera, J.)
People v Boggs	4th Dept: 119 AD3d 1358 (Monroe)	denied 5/28/15 (Abdus-Salaam, J.)
People v Bonano	1st Dept: 124 AD3d 495 (NY)	denied 5/5/15 (Read, J.)
People v Boria	1st Dept: 124 AD3d 467 (Bronx)	denied 5/13/15 (Lippman, Ch. J.)
People v Bork	App Div, 3d Dept: 2014 NY Slip Op 91949(U) (St. Lawrence)	denied 5/7/15 (Read, J.)
People v Bowie	App Div, 2d Dept: 2015 NY Slip Op 64437(U) (Orange)	dismissed 5/25/15 (Pigott, J.)
People v Brims	App Div, 2d Dept: 2014 NY Slip Op 94155(U) (Rockland)	dismissed 5/7/15 (Rivera, J.)
People v Briskin	3d Dept: 125 AD3d 1113 (Saratoga)	denied 5/7/15 (Read, J.)
People v Brooks (Darryl)	1st Dept: 127 AD3d 431 (NY)	denied 5/22/15 (Stein, J.)

People v Brooks (Ronald)	1st Dept: 123 AD3d 448 (Bronx)	denied 5/7/15 (Read, J.)
People v Brown (Rodney)	1st Dept: 125 AD3d 571 (NY)	denied 5/5/15 (Read, J.)
People v Brown (Timothy)	2d Dept: 120 AD3d 710 (Queens)	denied 5/28/15 (Abdus-Salaam, J.)
People v Bryant	2d Dept: 125 AD3d 683 (Kings)	denied 5/1/15 (Stein, J.)
People v Bucciarelli	County Ct, 2/13/15 (Monroe)	denied 5/21/15 (Pigott, J.)
People v Bustamante	3d Dept: 124 AD3d 1132 (Columbia)	denied 5/4/15 (Lippman, Ch. J.)
People v Cahill	4th Dept: 120 AD3d 1610 (Onondaga)	denied 5/6/15 (Rivera, J.)
People v Caliste	2d Dept: 122 AD3d 765 (Nassau)	denied 5/6/15 (Rivera, J.)
People v Campo	3d Dept: 125 AD3d 1058 (Ulster)	denied 5/7/15 (Read, J.)
People v Canole	2d Dept: 123 AD3d 940 (Orange)	denied 5/20/15 (Pigott, J.)
People v Carlton	3d Dept: 120 AD3d 1443 (Ulster)	denied 5/4/15 (Lippman, Ch. J.)
People v Cass	App Div, 2d Dept: 2014 NY Slip Op 91358(U) (Kings)	dismissed 5/7/15 (Rivera, J.)
People v Cassidy	1st Dept: 125 AD3d 412 (NY)	denied 5/21/15 (Pigott, J.)
People v Castillo	App Div, 2d Dept: 2015 NY Slip Op 60529(U) (Kings)	dismissed 5/7/15 (Rivera, J.)
People v Cato	App Div, 4th Dept: 2014 NY Slip Op 76129(U) (Ontario)	denied reconsideration 5/7/15 (Rivera, J.)
People v Ceni	App Div, 1st Dept: 2014 NY Slip Op 73661(U) (Bronx)	denied 5/28/15 (Abdus-Salaam, J.)
People v Cespedes	1st Dept: 122 AD3d 417 (NY)	denied 5/4/15 (Lippman, Ch. J.)
People v Chappell	4th Dept: 124 AD3d 1409 (Erie)	denied 5/1/15 (Pigott, J.)
People v Check	App Div, 1st Dept: 2013 NY Slip Op 88978(U) (Bronx)	dismissed 5/18/15 (Fahey, J.)
People v Cheek	App Div, 1st Dept: 2013 NY Slip Op 88978(U) (Bronx)	dismissed 5/18/15 (Fahey, J.)
People v Cheeks	App Div, 1st Dept: 2013 NY Slip Op 88978(U) (Bronx)	dismissed 5/18/15 (Fahey, J.)
People v Chelley	4th Dept: 121 AD3d 1505 (Erie)	denied reconsideration 5/25/15 (Pigott, J.)
People v Chkhartishvil	App Term, 1st Dept: 46 Misc 3d 148(A) (NY)	denied 5/18/15 (Fahey, J.)

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People v Chujoi (Karl)	2d Dept: 125 AD3d 785 (Queens)	granted 5/19/15 (Lippman, Ch. J.)
People v Chu-Joi (Karl)	2d Dept: 125 AD3d 785 (Queens)	granted 5/19/15 (Lippman, Ch. J.)
People v Chu-Joy	2d Dept: 125 AD3d 785 (Queens)	granted 5/19/15 (Lippman, Ch. J.)
People v Cintron	4th Dept: 125 AD3d 1333 (Monroe)	denied 5/5/15 (Read, J.)
People v Clerger	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 46 Misc 3d 142(A) (Kings)	denied 5/4/15 (Stein, J.)
People v Coke	App Div, 4th Dept, 2/24/15 (Niagara)	dismissed 5/19/15 (Lippman, Ch. J.)
People v Colbert	1st Dept: 123 AD3d 513 (Bronx)	denied 5/6/15 (Lippman, Ch. J.)
People v Coleman	2d Dept: 125 AD3d 879 (Westchester)	denied 5/11/15 (Fahey, J.)
People v Coppeta	4th Dept: 125 AD3d 1304 (Monroe)	denied 5/7/15 (Read, J.)
People v Crockett	4th Dept: 124 AD3d 1340 (Erie)	denied 5/14/15 (Pigott, J.)
People v Daniels	4th Dept: 125 AD3d 1432 (Erie)	denied 5/20/15 (Pigott, J.)
People v Darling	4th Dept: 125 AD3d 1279 (Chautauqua)	denied 5/1/15 (Stein, J.)
People v Dasney	1st Dept: 126 AD3d 521 (NY)	denied 5/28/15 (Lippman, Ch. J.)
People v Davis (Jimmie)	1st Dept: 125 AD3d 428 (Bronx)	denied 5/25/15 (Pigott, J.)
People v Davis (Nigel)	1st Dept: 120 AD3d 1114 (NY)	denied 5/8/15 (Abdus-Salaam, J.)
People v Delaney	4th Dept: 121 AD3d 1496 (Onondaga)	denied 5/4/15 (Lippman, Ch. J.)
People v Dent	1st Dept: 124 AD3d 536 (NY)	denied 5/20/15 (Pigott, J.)
People v Diggins	1st Dept: 124 AD3d 452 (NY)	denied 5/20/15 (Pigott, J.)
People v Dobbins	2d Dept: 123 AD3d 1140 (Nassau)	denied 5/4/15 (Stein, J.)
People v Doe	App Term, 1st Dept: 46 Misc 3d 140(A) (Bronx)	denied 5/14/15 (Fahey, J.)
People v Elfeke	2d Dept: 119 AD3d 873 (Westchester)	denied 5/20/15 (Pigott, J.)
People v Faulk	1st Dept: 126 AD3d 564 (NY)	denied 5/13/15 (Fahey, J.)
People v Figueroa-Norse	4th Dept: 120 AD3d 913 (Jefferson)	denied 5/28/15 (Abdus-Salaam, J.)
People v Florio	1st Dept: 125 AD3d 451 (NY)	denied 5/6/15 (Lippman, Ch. J.)

People v Flowers	2d Dept: 121 AD3d 1014 (Kings)	granted 5/14/15 (Pigott, J.)
People v Fornal	2d Dept: 123 AD3d 1141 (Nassau)	denied 5/4/15 (Lippman, Ch. J.)
People v Fowler-Graham	4th Dept: 124 AD3d 1403 (Erie)	denied 5/4/15 (Lippman, Ch. J.)
People v Frankline	1st Dept: 123 AD3d 504 (Bronx)	granted 5/22/15 (Pigott, J.)
People v Frazier	1st Dept: 125 AD3d 551 (NY)	denied 5/6/15 (Lippman, Ch. J.)
People v Fulmore	App Div, 2d Dept: 2015 NY Slip Op 61211(U) (Kings)	dismissed 5/5/15 (Read, J.)
People v Fulton (Alvin)	App Div, 4th Dept, 9/19/14 (Monroe)	dismissed 5/13/15 (Lippman, Ch. J.)
People v Fulton (Jeremy)	1st Dept: 125 AD3d 511 (NY)	denied 5/12/15 (Stein, J.)
People v Gamblin (Samuel)	4th Dept: 125 AD3d 1452 (Erie)	denied 5/4/15 (Lippman, Ch. J.) (Appeal No. 1)
People v Gamblin (Samuel)	4th Dept: 125 AD3d 1455 (Erie)	denied 5/4/15 (Lippman, Ch. J.) (Appeal No. 2)
People v Gannaway	App Term, 1st Dept: 46 Misc 3d 148(A) (Bronx)	denied 5/13/15 (Fahey, J.)
People v Garcia (Ariel)	1st Dept: 127 AD3d 411 (Bronx)	denied 5/22/15 (Fahey, J.)
People v Garcia (Jose)	App Div, 2d Dept: 2015 NY Slip Op 61043(U) (Orange)	dismissed 5/7/15 (Rivera, J.)
People v Garcia (Luis)	2d Dept: 125 AD3d 882 (Queens)	withdrawn 5/14/15 (Pigott, J.)
People v Gilmore	1st Dept: 124 AD3d 463 (NY)	denied 5/20/15 (Pigott, J.)
People v Glass	County Ct, 4/24/15 (Madison)	denied 5/27/15 (Stein, J.)
People v Glenn	County Ct, 12/23/14 (Monroe)	denied 5/6/15 (Lippman, Ch. J.)
People v Glover	4th Dept: 124 AD3d 1419 (Monroe)	denied 5/1/15 (Pigott, J.)
People v Gomez	1st Dept: 125 AD3d 426 (Bronx)	denied 5/1/15 (Stein, J.)
People v Gonzalez (Alberto)	App Div, 2d Dept: 2015 NY Slip Op 60531(U) (Queens)	dismissed 5/13/15 (Lippman, Ch. J.)
People v Gonzalez (Santiago)	1st Dept: 124 AD3d 525 (NY)	denied 5/20/15 (Pigott, J.)
People v Grayson	4th Dept: 126 AD3d 1399 (Monroe)	denied 5/28/15 (Lippman, Ch. J.)

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People v Griffith	App Div, 4th Dept: 2014 NY Slip Op 88292(U) (Onondaga)	denied reconsideration 5/13/15 (Lippman, Ch. J.)
People v Guest	1st Dept: 126 AD3d 468 (NY)	denied 5/5/15 (Stein, J.)
People v Harley	1st Dept: 126 AD3d 416 (NY)	denied 5/1/15 (Stein, J.)
People v Harris (Jimmy)	4th Dept: 126 AD3d 1410 (Monroe)	denied 5/8/15 (Stein, J.)
People v Harris (Stevon)	1st Dept: 124 AD3d 498 (NY)	denied 5/14/15 (Pigott, J.)
People v Hart	App Div, 3d Dept: 2015 NY Slip Op 66069(U) (Albany)	dismissed 5/15/15 (Stein, J.)
People v Henriquez	App Term, 1st Dept: 46 Misc 3d 141(A) (NY)	denied 5/4/15 (Lippman, Ch. J.)
People v Hernandez (Carlos)	App Term, 2d Dept, 9th & 10th Jud Dists: 47 Misc 3d 51 (Suffolk)	denied 5/14/15 (Fahey, J.)
People v Hernandez (Wilfredo)	1st Dept: 126 AD3d 524 (NY)	denied 5/19/15 (Fahey, J.)
People v Herschman	2d Dept: 119 AD3d 813 (Nassau)	denied 5/28/15 (Abdus-Salaam, J.)
People v Hester	2d Dept: 122 AD3d 880 (Kings)	denied 5/1/15 (Pigott, J.)
People v Hickman	App Term, 1st Dept: 45 Misc 3d 131(A) (NY)	denied 5/6/15 (Rivera, J.)
People v Higgins	2d Dept: 123 AD3d 1143 (Kings)	denied 5/20/15 (Pigott, J.)
People v Hill	1st Dept: 124 AD3d 456 (NY)	denied 5/1/15 (Pigott, J.)
People v Holmes	2d Dept: 125 AD3d 1002 (Westchester)	denied 5/1/15 (Stein, J.)
People v Jackson (Errol)	1st Dept: 122 AD3d 547 (NY)	denied 5/6/15 (Rivera, J.)
People v Jackson (Jerry)	1st Dept: 126 AD3d 498 (NY)	denied 5/11/15 (Fahey, J.)
People v Jackson (Reginald)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 46 Misc 3d 142(A) (Kings)	denied 5/11/15 (Fahey, J.)
People v Jean	App Div, 2d Dept: 2014 NY Slip Op 61664(U) (Rockland)	denied reconsideration 5/19/15 (Lippman, Ch. J.)
People v Jenkins	App Div, 1st Dept: 2015 NY Slip Op 62946(U) (NY)	dismissed 5/12/15 (Fahey, J.)
People v Johnson	3d Dept: 125 AD3d 1052 (St. Lawrence)	denied 5/7/15 (Read, J.)
People v Khan	App Div, 2d Dept: 2015 NY Slip Op 66597(U) (Queens)	dismissed 5/12/15 (Stein, J.)
People v King	3d Dept: 124 AD3d 1064 (Schoharie)	denied 5/20/15 (Pigott, J.)

People v Kohn	App Div, 2d Dept: 2015 NY Slip Op 63643(U) (Orange)	dismissed 5/5/15 (Read, J.)
People v LaRoche	App Term, 2d Dept, 9th & 10th Jud Dists: 44 Misc 3d 20 (Nassau)	withdrawn 5/19/15 (Lippman, Ch. J.)
People v Lazaro	2d Dept: 125 AD3d 1008 (Kings)	withdrawn 5/12/15 (Read, J.)
People v Leach	1st Dept: 125 AD3d 568 (NY)	denied 5/4/15 (Stein, J.)
People v Lewis	4th Dept: 125 AD3d 1462 (Monroe)	denied 5/1/15 (Stein, J.)
People v Liles	2d Dept: 121 AD3d 714 (Nassau)	denied 5/7/15 (Lippman, Ch. J.)
People v Luke	1st Dept: 125 AD3d 446 (NY)	denied 5/5/15 (Read, J.)
People v Lyon	4th Dept: 125 AD3d 1460 (Steuben)	denied 5/6/15 (Lippman, Ch. J.)
People v Macioszek	4th Dept: 115 AD3d 1366 (Genesee)	denied 5/22/15 (Pigott, J.)
People v Madison	1st Dept: 125 AD3d 513 (NY)	denied 5/5/15 (Read, J.)
People v Manigault	4th Dept: 125 AD3d 1480 (Monroe)	denied 5/5/15 (Stein, J.)
People v Mason	2d Dept: 123 AD3d 848 (Richmond)	denied 5/11/15 (Fahey, J.)
People v Mazariago	2d Dept: 117 AD3d 1082 (Nassau)	denied 5/28/15 (Abdus-Salaam, J.)
People v McClymont	2d Dept: 126 AD3d 812 (Queens)	denied 5/18/15 (Fahey, J.)
People v McCollough-Boggs	4th Dept: 119 AD3d 1358 (Monroe)	denied 5/28/15 (Abdus-Salaam, J.)
People v McDowell	1st Dept: 125 AD3d 577 (Bronx)	denied 5/12/15 (Stein, J.)
People v McKinley	4th Dept: 126 AD3d 1418 (Onondaga)	denied 5/22/15 (Stein, J.)
People v Meizies	1st Dept: 122 AD3d 531 (NY)	denied 5/6/15 (Rivera, J.)
People v Mendez	App Term, 1st Dept, 46 Misc 3d 136(A) (NY)	denied* 5/13/15 (Read, J.)
People v Merchant	App Div, 3d Dept, 2/6/15 (Columbia)	denied 5/18/15 (Fahey, J.)
People v Michael	2d Dept: 120 AD3d 713 (Suffolk)	denied 5/28/15 (Abdus-Salaam, J.)
People v Miller	4th Dept: 122 AD3d 1326 (Niagara)	denied 5/6/15 (Rivera, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Afital* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [2014]), *lv granted* 24 NY3d 1218 [2015]).

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People v Mills (Richard)	App Div, 4th Dept, 11/2/11 (Genesee)	dismissed 5/14/15 (Pigott, J.)
People v Mills (Richard)	App Div, 4th Dept, 8/22/13 (Genesee)	dismissed 5/21/15 (Pigott, J.)
People v Mills (Richard)	App Div, 4th Dept, 8/24/11 (Genesee)	dismissed 5/1/15 (Pigott, J.)
People v Monk	2d Dept: 124 AD3d 681 (Rockland)	denied 5/4/15 (Lippman, Ch. J.)
People v Mulligan	4th Dept: 118 AD3d 1372 (Monroe)	denied 5/4/15 (Lippman, Ch. J.)
People v Nadal	2d Dept: 125 AD3d 792 (Westchester)	denied 5/13/15 (Lippman, Ch. J.)
People v Nadal (Juan)	2d Dept: 125 AD3d 792 (Westchester)	denied 5/13/15 (Lippman, Ch. J.)
People v Newborn	2d Dept: 124 AD3d 804 (Suffolk)	denied 5/4/15 (Stein, J.)
People v Novick	3d Dept: 126 AD3d 1134 (Ulster)	denied 5/11/15 (Fahey, J.)
People v Ortega	App Div, 1st Dept: 2014 NY Slip Op 90390(U) (NY)	denied reconsideration 5/5/15 (Read, J.)
People v Ortega	1st Dept: 125 AD3d 479 (NY)	denied 5/5/15 (Stein, J.)
People v Osman	1st Dept: 125 AD3d 495 (NY)	denied 5/7/15 (Read, J.)
People v Ouanes	1st Dept: 123 AD3d 480 (NY)	denied 5/6/15 (Rivera, J.)
People v Owens (Robbie)	4th Dept: 125 AD3d 1460 (Onondaga)	denied 5/7/15 (Read, J.) (Appeal No. 1)
People v Owens (Robbie)	4th Dept: 125 AD3d 1460 (Onondaga)	denied 5/7/15 (Read, J.) (Appeal No. 2)
People v Parlagreco	App Term, 1st Dept: 46 Misc 3d 149(A) (NY)	denied 5/11/15 (Stein, J.)
People v Paz	2d Dept: 126 AD3d 1011 (Queens)	denied 5/18/15 (Stein, J.)
People v Peacock	2d Dept: 126 AD3d 919 (Suffolk)	denied 5/14/15 (Stein, J.)
People v Peels	1st Dept: 123 AD3d 597 (NY)	denied 5/7/15 (Read, J.)
People v Peralta	1st Dept: 125 AD3d 523 (NY)	denied 5/8/15 (Stein, J.)
People v Perry	County Ct, 12/17/14 (Monroe)	denied 5/4/15 (Stein, J.)
People v Petke	3d Dept: 125 AD3d 1103 (St. Lawrence)	granted 5/11/15 (Read, J.)
People v Phoenix	3d Dept: 115 AD3d 1058 (Albany)	denied reconsideration 5/14/15 (Pigott, J.)

People v Pierre (Salvatore)	4th Dept: 124 AD3d 1332 (Erie)	denied 5/14/15 (Pigott, J.) (Appeal No. 1)
People v Pierre (Salvatore)	4th Dept: 124 AD3d 1332 (Erie)	denied 5/14/15 (Pigott, J.) (Appeal No. 2)
People v Powell	2d Dept: 125 AD3d 1010 (Westchester)	granted 5/19/15 (Lippman, Ch. J.)
People v Quarless	2d Dept: 123 AD3d 1060 (Westchester)	denied 5/7/15 (Read, J.)
People v Ragguete	2d Dept: 120 AD3d 717 (Kings)	denied 5/8/15 (Abdus-Salaam, J.)
People v Ramirez	1st Dept: 120 AD3d 1136 (NY)	denied 5/8/15 (Abdus-Salaam, J.)
People v Ramos	4th Dept: 124 AD3d 1286 (Erie)	denied 5/14/15 (Pigott, J.)
People v Reeves	3d Dept: 124 AD3d 1068 (Schuyler)	denied 5/21/15 (Pigott, J.)
People v Rembert	2d Dept: 124 AD3d 805 (Westchester)	denied 5/20/15 (Pigott, J.)
People v Reyes	2d Dept: 125 AD3d 892 (Queens)	withdrawn 5/14/15 (Pigott, J.)
People v Rice	App Div, 1st Dept, 4/3/14 (Bronx)	dismissed 5/1/15 (Stein, J.)
People v Richardson	App Div, 3d Dept: 2015 NY Slip Op 63273(U) (Rensselaer)	denied 5/21/15 (Pigott, J.)
People v Rivera (Ciceron)	2d Dept: 125 AD3d 694 (Nassau)	denied 5/13/15 (Lippman, Ch. J.)
People v Rivera (Enrique)	App Div, 2d Dept: 2015 NY Slip Op 64062(U) (Kings)	dismissed 5/12/15 (Abdus-Salaam, J.)
People v Rivera (Gilberto)	2d Dept: 126 AD3d 727 (Suffolk)	denied 5/11/15 (Fahey, J.)
People v Rivera (Marcus)	1st Dept: 124 AD3d 464 (NY)	denied 5/14/15 (Pigott, J.)
People v Rizvi	3d Dept: 126 AD3d 1172 (Albany)	denied 5/22/15 (Fahey, J.)
People v Rodriguez (Jose)	3d Dept: 121 AD3d 1435 (Otsego)	denied reconsideration 5/20/15 (Pigott, J.)
People v Rodriguez (Ramon)	App Div, 2d Dept: 2014 NY Slip Op 91280(U) (Queens)	dismissed 5/7/15 (Rivera, J.)
People v Roosevelt (Tito)	4th Dept: 125 AD3d 1452 (Erie)	denied 5/4/15 (Lippman, Ch. J.) (Appeal No. 1)

MEMORANDA

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People v Roosevelt (Tito)	4th Dept: 125 AD3d 1455 (Erie)	denied 5/4/15 (Lippman, Ch. J.) (Appeal No. 2)
People v Ross	County Ct, 2/13/15 (Monroe)	denied 5/4/15 (Lippman, Ch. J.)
People v Rounds	4th Dept: 124 AD3d 1351 (Monroe)	denied 5/14/15 (Pigott, J.)
People v Ruiz	2d Dept: 122 AD3d 949 (Kings)	denied 5/6/15 (Rivera, J.)
People v Ryan	2d Dept: 125 AD3d 695 (Nassau)	denied 5/7/15 (Read, J.)
People v Sanchez	1st Dept: 126 AD3d 482 (Bronx)	granted 5/13/15 (Stein, J.)
People v Sardina	1st Dept: 123 AD3d 634 (NY)	denied 5/14/15 (Pigott, J.)
People v Scholz	4th Dept: 125 AD3d 1492 (Cayuga)	denied 5/20/15 (Pigott, J.) (Appeal No. 2)
People v Scott	4th Dept: 125 AD3d 1322 (Erie)	denied 5/7/15 (Read, J.)
People v Sengupta	1st Dept: 121 AD3d 575 (NY)	denied 5/28/15 (Pigott, J.)
People v Smalls	App Div, 2d Dept: 2014 NY Slip Op 79647(U) (Westchester)	denied reconsideration 5/7/15 (Rivera, J.)
People v Smith (Jerry)	App Term, 1st Dept: 46 Misc 3d 140(A) (Bronx)	denied 5/14/15 (Fahey, J.)
People v Smith (Sakai)	2d Dept: 125 AD3d 897 (Westchester)	denied 5/1/15 (Stein, J.)
People v Sougou	App Term, 1st Dept: 46 Misc 3d 140(A) (NY)	granted 5/13/15 (Stein, J.)
People v Stoutenger	4th Dept: 121 AD3d 1496 (Onondaga)	denied 5/4/15 (Lippman, Ch. J.)
People v Tartaglia	4th Dept: 126 AD3d 1480 (Monroe)	denied 5/28/15 (Lippman, Ch. J.)
People v Taylor	2d Dept: 126 AD3d 1018 (Nassau)	denied 5/27/15 (Fahey, J.)
People v Thompson (Clifford)	2d Dept: 125 AD3d 899 (Kings)	denied 5/5/15 (Stein, J.)
People v Thompson (Kemar)	2d Dept: 125 AD3d 899 (Kings)	denied 5/6/15 (Stein, J.)
People v Thompson (Rita)	App Term, 1st Dept: 46 Misc 3d 136(A) (NY)	granted 5/13/15 (Pigott, J.)
People v Thorman	2d Dept: 124 AD3d 808 (Kings)	denied 5/7/15 (Read, J.)
People v Tillan	4th Dept: 125 AD3d 1389 (Monroe)	denied 5/25/15 (Pigott, J.)
People v Timmons	4th Dept: 125 AD3d 1460 (Monroe)	denied 5/4/15 (Stein, J.)

People v Torres	2d Dept: 120 AD3d 721 (Queens)	denied 5/28/15 (Abdus-Salaam, J.)
People v Townsend	2d Dept: 120 AD3d 595 (Kings)	denied 5/28/15 (Abdus-Salaam, J.)
People v Tucker (Gregory)	App Div, 2d Dept: 2014 NY Slip Op 83998(U) (Kings)	dismissed 5/5/15 (Read, J.)
People v Tucker (James)	4th Dept: 126 AD3d 1378 (Onondaga)	denied 5/28/15 (Lippman, Ch. J.)
People v Tuper	3d Dept: 125 AD3d 1062 (Franklin)	denied 5/20/15 (Pigott, J.)
People v Turcotte	3d Dept: 124 AD3d 1082 (Clinton)	denied 5/4/15 (Lippman, Ch. J.)
People v Turner	App Term, 2d Dept, 9th & 10th Jud Dists: 46 Misc 3d 143(A) (Orange)	denied 5/25/15 (Pigott, J.)
People v Vasquez	1st Dept: 124 AD3d 444 (NY)	denied 5/5/15 (Read, J.)
People v Vidal	App Div, 2d Dept: 2015 NY Slip Op 61058(U) (Queens)	dismissed 5/19/15 (Lippman, Ch. J.)
People v Viera	2d Dept: 121 AD3d 822 (Kings)	denied 5/13/15 (Lippman, Ch. J.)
People v Walton	2d Dept: 125 AD3d 900 (Queens)	denied 5/1/15 (Stein, J.)
People v Ward	1st Dept: 126 AD3d 435 (NY)	denied 5/18/15 (Fahey, J.)
People v Waring	1st Dept: 126 AD3d 621 (Bronx)	denied 5/19/15 (Fahey, J.)
People v Welsher	4th Dept: 125 AD3d 1323 (Ontario)	denied 5/5/15 (Read, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2014 NY Slip Op 84860(U) (Westchester)	denied reconsideration 5/25/15 (Pigott, J.)
People v Williams (Jerome)	4th Dept: 124 AD3d 1285 (Seneca)	denied 5/14/15 (Pigott, J.)
People v Williams (Sharon)	2d Dept: 120 AD3d 721 (Suffolk)	denied 5/28/15 (Abdus-Salaam, J.)
People v Williams (Spears)	2d Dept: 127 AD3d 792 (Kings)	denied 5/19/15 (Stein, J.)
People v Wilson	3d Dept: 126 AD3d 1143 (Broome)	denied 5/19/15 (Fahey, J.)
People v Woodward	App Div, 4th Dept, 1/22/15 (Wyoming)	dismissed 5/20/15 (Pigott, J.)
People v Woolson	4th Dept: 122 AD3d 1353 (Oswego)	denied 5/19/15 (Lippman, Ch. J.)
People v Woych	1st Dept: 126 AD3d 527 (NY)	denied 5/11/15 (Fahey, J.)
People v Young (Christopher)	4th Dept: 124 AD3d 1418 (Monroe)	denied 5/14/15 (Pigott, J.) (Appeal No. 1)

People v Young (Christopher)	4th Dept: 124 AD3d 1418 (Monroe)	denied 5/14/15 (Pigott, J.) (Appeal No. 2)
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices *

(May 1, 2015 through May 31, 2015)

People v McCullough	4th Dept: 126 AD3d 1452 (Monroe)	granted 5/21/15 (Scudder, J.)
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[34 NE3d 349, 12 NYS3d 598]

SHAREN BRANCH, as Administratrix of the Estate of ROBERT
BASTIAN, Deceased, Appellant, v COUNTY OF SULLIVAN, Re-
spondent.

Argued May 7, 2015; decided June 9, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 12, 2013. The Appellate Division affirmed an order of the Supreme Court, Sullivan County (Michael H. Melkonian, J.; op 45 Misc 3d 1210[A], 2012 NY Slip Op 52510[U] [2012]), which had granted defendant's motion for summary judgment dismissing the complaint and dismissed the complaint.

Branch v County of Sullivan, 112 AD3d 1119, affirmed.

HEADNOTE

Colleges and Universities — Community College — Liability for Death of Student

In a wrongful death action arising from the death of a community college student who experienced sudden cardiac arrest while on campus, alleging that defendant county failed to equip decedent's dormitory with an automated external defibrillator and/or to have an emergency medical response plan in place, defendant was entitled to summary judgment dismissing the complaint. While defendant exercised significant influence and control over the community college's finances as its local sponsor (8 NYCRR 604.1; Education Law art 126), only the college's board of trustees was authorized to manage its facilities (Education Law § 6306 [5]). Therefore, the college alone was charged with the duty of care. Furthermore, defendant established that it did not even own the dormitory where decedent's accident occurred.

* Includes only applications that were granted.

APPEARANCES OF COUNSEL

Sussman and Watkins, Goshen (*Michael H. Sussman* of counsel), for appellant.

The Law Offices of Bryan R. Kaplan, Monticello (*Bryan R. Kaplan* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

In the early morning hours of November 8, 2007, 17-year-old Robert Bastian (decedent) was socializing with fellow students in the dormitory where he resided on the campus of Sullivan County Community College (SCCC or the College) when he experienced sudden cardiac arrest and died. In January 2009, plaintiff Sharen Branch, decedent's mother and the administratrix of his estate, commenced this wrongful death action against defendant Sullivan County (the County); she alleged that the County negligently failed to equip decedent's dormitory with an automated external defibrillator and/or to have an emergency medical response plan in place. The County is SCCC's local sponsor. A community college's local sponsor assumes three responsibilities and duties: (1) to formulate a plan for establishing the college; (2) to partially finance the college's capital and annual operating costs; and (3) to hold title to the college's real property in trust for its exclusive use and purposes, as determined by its board of trustees (*see* 8 NYCRR 604.1; *see generally* Education Law art 126).

After joinder of issue and discovery, the County moved for summary judgment to dismiss the complaint, arguing that it owed no duty of care to decedent because it did not own or manage SCCC, or own, manage or maintain the dormitory where he was living when he fell ill. In support of its motion, the County submitted deeds showing that the Sullivan County Community College Dormitory Authority (the Dormitory Authority), a not-for-profit corporation, owned the dormitory where decedent resided. The County also submitted the deposition testimony and affidavit of the Sullivan County Treasurer, who averred that while the County "provide[d] economic support for [SCCC's] budget," it played "no role in the management, policy making decisions [or] day[-]to[-]day operations" of either SCCC or the dormitory. As particularly relevant to its motion, the County noted that Education Law § 6306 (5) as-

signs responsibility for management of a community college's buildings and facilities to its board of trustees.*

Plaintiff, in opposition to the County's motion, submitted an affirmation from counsel, accompanied by a memorandum of law. Plaintiff argued that because SCCC was a "department" of the County, the County was liable for the College's negligent failure to place a defibrillator on campus; plaintiff also argued that the County, as the owner of the real property on which the College's facilities sit, assumed a duty to provide for the safety of SCCC's students and breached that duty by not "insur[ing] that [the] property was equipped with defibrillators or that the capital or operating budgets which [the County] annually reviewed, and had to approve, contained appropriations for the purchase of the same and the training of staff in their use."

Noting that the affirmation by plaintiff's counsel was "conclusory" and merely repeated the complaint's allegations, Supreme Court concluded that plaintiff had not raised any triable issue of fact to rebut the County's prima facie showing of entitlement to summary judgment, and so granted the County's motion and dismissed the complaint (45 Misc 3d 1210[A], 2012 NY Slip Op 52510[U], *3 [2012]). Upon plaintiff's appeal, the Appellate Division affirmed (112 AD3d 1119 [3d Dept 2013]). The Court rejected plaintiff's argument that the County's role as local sponsor somehow made SCCC an "alter ego of [the County, which] should be treated as a department of [the County] for liability purposes" (*id.* at 1119). The Appellate Division emphasized that the College's board of trustees, not the County, was responsible for day-to-day operations and management at SCCC. Moreover, the Court observed, the County did not own the building where decedent was fatally stricken down, and "in the absence of ownership, occupancy, control or special use of the property by [the County], it did not owe decedent a duty" (*id.* at 1120 [internal quotation marks omitted]). We granted plaintiff leave to appeal (23 NY3d 905 [2014]), and now affirm.

* Each community college is governed by a board of trustees with 10 members; five members are appointed by the local sponsor, four members are appointed by the governor, and one member is a student elected by the students of the college (Education Law § 6306 [1]). The board of trustees of a community college is responsible for "the care, custody, control and management of the lands, grounds, buildings, facilities and equipment used for the purposes of [the] college and of all other property belonging to [the] college and used for carrying out its purposes, and . . . shall have power to protect, preserve and improve the same" (Education Law § 6306 [5]).

While the County exercises significant influence and control over SCCC's finances, only the College's board of trustees is authorized to manage SCCC's facilities; therefore, it alone is charged with the duty of care (*see Jackson v Board of Educ. of City of N.Y.*, 30 AD3d 57, 60-61 [1st Dept 2006]; *see also Matter of Weinstein v Caso*, 44 AD2d 690 [2d Dept 1974]). And here, the County additionally established that it did not even own the dormitory where decedent's accident occurred (*see Jackson*, 30 AD3d at 60 [(1) liability for a dangerous condition on property may only be predicated upon occupancy, ownership, control or special use of such premises" (internal quotation marks and citation omitted)]). Plaintiff also argues that the College's trustees are officers of the County, which is therefore liable for their negligent acts pursuant to County Law § 53; and that the County's transfer of the dormitory to the Dormitory Authority was invalid. These theories of liability, which were not advanced in Supreme Court, are unpreserved for our review.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Judge STEIN taking no part.

Order affirmed, with costs, in a memorandum.

[34 NE3d 51, 12 NYS3d 23]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL RUTLEDGE, Appellant.

Decided June 9, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 29, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ruth Pickholz, J., at hearing; Laura A. Ward, J., at plea and sentencing), which had convicted defendant, upon a plea of guilty, of manslaughter in the first degree.

The Appellate Division determined that Supreme Court had properly denied defendant's motion to suppress statements made to the police since the totality of the circumstances demonstrated that the People met their burden of establishing the voluntariness of the statements. The Appellate Division concluded that there was nothing in the record to indicate that

defendant's will was overborne or that the preliminary remarks of the detective who spoke to defendant at the precinct after his arrest tricked, cajoled or threatened defendant into waiving his *Miranda* rights.

People v Rutledge, 116 AD3d 645, reversed.

HEADNOTE

Crimes — Confession — Voluntariness

An order of the Appellate Division, which affirmed a judgment convicting defendant of manslaughter in the first degree, was reversed, defendant's motion to suppress statements made to the police granted and case remitted to Supreme Court, New York County, for further proceedings on the indictment.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City, for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Sylvia Wertheimer* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR), order reversed, defendant's motion to suppress granted, and case remitted to Supreme Court, New York County, for further proceedings on the indictment (*see People v Dunbar*, 24 NY3d 304 [2014]).

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

[34 NE3d 51, 12 NYS3d 23]

In the Matter of ANONYMOUS, for Admission as an Attorney and Counselor-at-Law, Appellant.

Decided June 9, 2015

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 18, 2014. The Appellate Division, with two Justices dissenting, denied petitioner's renewed application for admission to the bar of the State of New York.

Matter of Anonymous, 116 AD3d 62, appeal dismissed.

HEADNOTE**Appeal — Dismissal — Two-Justice Dissent Not on Question of Law**

An appeal from an order of the Appellate Division, which denied petitioner's renewed application for admission to the New York State bar, was dismissed since the two-Justice dissent at the Appellate Division was not on a question of law within the meaning of CPLR 5601 (a).

APPEARANCES OF COUNSEL

Tarik Davis, Brooklyn, for appellant.

Maria Matos, Committee on Character and Fitness, New York City, for respondent.

OPINION OF THE COURT

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the two-Justice dissent is not on a question of law (*see* CPLR 5601 [a]).

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, ABDUS-SALAAM, STEIN and FAHEY. Judge RIVERA dissents and votes to retain jurisdiction on the ground that the two-Justice dissent is on a question of law and supports an appeal as of right pursuant to CPLR 5601 (a).

LEON BEHAR et al., Appellants, v GLICKENHAUS WESTCHESTER DEVELOPMENT, INC., Respondent.

Submitted April 27, 2015; decided June 10, 2015

Reported below, 122 AD3d 784.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GERARD CORSINI, Appellant, v ELIZABETH MORGAN, Also Known as BETSY MORGAN, et al., Respondents, et al., Defendants.

Submitted April 20, 2015; decided June 10, 2015

Reported below, 123 AD3d 525.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT COWARD, Appellant, v NEW YORK STATE
BOARD OF PAROLE, Respondent.

Decided June 10, 2015

Reported below, 126 AD3d 1193.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for poor person relief dismissed as ac-
ademic.

In the Matter of STUART DIZAK, Appellant, v ALBERT PRACK, as
Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted April 27, 2015; decided June 10, 2015

Reported below, 120 AD3d 1472.

Motion for reargument of motion for leave to appeal denied
[see 24 NY3d 916 (2015)].

Judges STEIN and FAHEY taking no part.

GREGORY MAVENTE, Respondent, v ALBANY MEDICAL CENTER
HOSPITAL et al., Respondents. TIMOTHY J. CARTER et al., as
Trustees of the PLUMBERS & STEAMFITTERS LOCAL NO. 7
WELFARE FUND, Proposed Intervenors-Appellants. (Action
No. 1.)

Submitted April 27, 2015; decided June 10, 2015

Reported below, 126 AD3d 1090.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

GREGORY MAVENTE, Respondent, v ELLIS HOSPITAL et al.,
Respondents, et al., Defendants. TIMOTHY J. CARTER et al.,
as Trustees of the PLUMBERS & STEAMFITTERS LOCAL NO. 7
WELFARE FUND, Proposed Intervenors-Appellants. (Action
No. 2.)

Submitted April 27, 2015; decided June 10, 2015

Reported below, 126 AD3d 1090.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted April 13, 2015; decided June 10, 2015

Reported below, 2015 NY Slip Op 67856(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant.

Submitted May 11, 2015; decided June 10, 2015

Reported below, 2015 NY Slip Op 69927(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of BEVERLY WESTON, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 27, 2015; decided June 10, 2015

Reported below, 2014 NY Slip Op 81486(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[34 NE3d 368, 12 NYS3d 617]

CALVIN E. THOMAS, Respondent, v NEW YORK CITY HOUSING
AUTHORITY, Appellant.

Decided June 4, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 7, 2014. The Appellate Division modified, on the law, an order of the Supreme Court, Bronx County (Norma Ruiz, J.; op 2013 NY Slip Op 33904[U] [2013]), which had granted defendant's motion to strike from the bill of particulars allegations concerning the handrail of the staircase where plaintiff allegedly fell, and denied plaintiff's cross motion for leave to amend the notice of claim. The modification consisted of denying defendant's motion. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified by this Court, properly made?"

Plaintiff claimed that, as he stepped from the stairs and onto the second floor landing of a stairway in defendant's building, he slipped and fell on a puddle of urine, feces and debris on the landing, and testified at a General Municipal Law § 50-h hearing that he held onto a handrail as he descended the stairs but "quickly released" his hand upon encountering a lock at the base of the handrail. In an amended notice of claim, plaintiff alleged that the accident was attributable to the dangerous, defective and unsafe condition of the second-floor landing. In a subsequent bill of particulars, plaintiff further specified that defendant was negligent in failing to maintain, repair and clean the handrail near the landing, and in causing and allowing the handrail to remain obstructed so as to prevent its use by people traversing the stairway. The Appellate Division denied defendant's motion to strike from the bill of particulars allegations concerning the handrail, finding that plaintiff's claim that defendant failed to maintain the handrail along the stairway at or near the second floor could be fairly inferred from the notice of claim, which alleged that defendant was negligent in maintaining the second-floor landing area.

Thomas v New York City Hous. Auth., 120 AD3d 401, reversed.

HEADNOTE**Municipal Corporations — Notice of Claim — Sufficiency — Allegations in Bill of Particulars Not Set Forth in Notice of Claim**

In a negligence action arising from plaintiff's alleged slip and fall on the second-floor landing of a stairway in defendant's building, the allegations in an amended notice of claim, which alleged that defendant was negligent in maintaining the second-floor landing area, were not sufficient to put defendant on notice of the allegations in the bill of particulars concerning the handrail.

APPEARANCES OF COUNSEL

Wilson Elser Moskowitz Edelman & Dicker LLP, New York City (*Patrick J. Lawless* of counsel), for appellant.

Burns & Harris, New York City (*Blake G. Goldfarb* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, case remitted to the Appellate Division, First Department, for consideration of issues raised but not determined on the appeal to that Court, and certified question answered in the negative. The allegations in the notice of claim were not sufficient to put defendant on notice of the allegations in the bill of particulars concerning the handrail.

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

[34 NE3d 851, 13 NYS3d 341]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLEVELAND LOVETT, Appellant.

Argued June 3, 2015; decided June 25, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 3, 2014. The Appellate Division (1) modified, on the law, and otherwise affirmed a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the first and third degrees and reckless endangerment in the first

degree and imposed a sentence of an aggregate prison term of 27¹/₃ years to life; (2) affirmed an order of that court which had denied defendant's CPL 440.10 motion to vacate the judgment; and (3) affirmed an order of that court which had denied defendant's motion for resentencing pursuant to the 2004 Drug Law Reform Act (L 2004, ch 738). The modification consisted of vacating the sentence on the reckless endangerment count and remitting for resentencing pursuant to CPL 470.20.

People v Lovett, 116 AD3d 428, appeal dismissed in part, affirmed in part.

HEADNOTES

Appeal — Court of Appeals — Matters Appealable — Consolidating Nonappealable Order with Appealable Orders

1. The Appellate Division's consolidation of a nonappealable order denying defendant's resentencing application pursuant to the 2004 Drug Law Reform Act (L 2004, ch 738) with other, appealable orders did not transform the nonappealable order into one that the Court of Appeals may consider. The Appellate Division's authority to consolidate appeals stems from its inherent authority to administer and manage its proceedings. The Appellate Division's use of this inherent authority does not expand or modify the scope of the Court of Appeals' jurisdiction, which is established by statute.

Crimes — Right to Counsel — Effective Representation

2. Defense counsel was not ineffective for failing to object to portions of the final jury charge relating to the People's burden of proof. In light of the precedent existing at the time of trial, the error in the court's jury instructions, if any, was not so obvious that any reasonable lawyer would have objected.

APPEARANCES OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (*Margaret E. Knight* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Nicole Coviello* and *Eleanor J. Ostrow* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

On defendant's appeal from so much of the order of the Appellate Division as affirmed Supreme Court's order denying defendant's motion for resentencing, the appeal should be dismissed; and the order otherwise appealed from should be affirmed.

On May 29, 2003, defendant Cleveland Lovett was convicted of criminal possession of a controlled substance in the first and third degrees (Penal Law §§ 220.21, 220.16) and first-degree reckless endangerment (Penal Law § 120.25) in connection with a high-speed car chase on the West Side Highway in

Manhattan; on August 19, 2003, he was sentenced to an aggregate term of imprisonment of 27¹/₃ years to life. On June 10, 2005, defendant, represented by new counsel, moved pursuant to CPL 440.10 to vacate the judgment. He claimed that his attorney was ineffective because of a failure to object to portions of the final jury charge relating to the People's burden of proof. That same day, defendant also applied for resentencing under the 2004 Drug Law Reform Act (L 2004, ch 738 [2004 DLRA]). Supreme Court denied both motions.

Defendant appealed both the judgment of conviction and sentence and the orders denying his two postjudgment motions. The Appellate Division, with two Justices dissenting, modified the judgment in one respect, not relevant to this appeal, and otherwise affirmed the judgment and the two orders (116 AD3d 428 [1st Dept 2014]). A dissenting Justice granted defendant permission to appeal to us (2014 NY Slip Op 75464[U] [1st Dept 2014]).

[1] Defendant again argues that he should have been resentenced pursuant to the 2004 DLRA. "It is well established that [n]o appeal lies from a determination made in a criminal proceeding unless specifically provided for by statute," and courts "may not resort to interpretative contrivances to broaden the scope and application of statutes" governing the availability of an appeal (*People v Pagan*, 19 NY3d 368, 370 [2012] [internal quotation marks omitted]). In *People v Bautista* (7 NY3d 838 [2006]), we held that no statutory provision authorizes a defendant to appeal from an Appellate Division order affirming the denial of the defendant's resentencing application pursuant to the 2005 Drug Law Reform Act (L 2005, ch 643) (*id.* at 838-839). The 2004 DLRA includes similar language relating to appeals; accordingly, no appeal lies from an order of the Appellate Division affirming the denial of a resentencing application under the 2004 DLRA (*see People v Sevenscan*, 12 NY3d 388, 389 [2009] [dismissal of criminal leave application authorized for publication by the Court]). Faced with this barrier to our review, defendant contends that the Appellate Division's consolidation of the order denying resentencing with other, appealable orders, transformed the nonappealable order into one that we may consider. We disagree. The Appellate Division's authority to consolidate appeals stems from its inherent authority to administer and manage its proceedings. The Appellate Division's use of this inherent authority does not expand or modify the scope of our jurisdiction, which is established by statute.

[2] Defendant also again argues that Supreme Court's instructions about the People's burden of proof were confusing and misleading, and that his attorney was ineffective because he failed to object. In light of the precedent existing at the time of trial, however, the error in the court's jury instructions, if any, was not so obvious that any reasonable lawyer would have objected. Defendant's remaining claims, raised for the first time on appeal to us, are unpreserved for our review.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

On defendant's appeal from so much of the order of the Appellate Division, First Department, as affirmed the order of Supreme Court, New York County, denying defendant's motion for resentencing, appeal dismissed; order otherwise appealed from affirmed, in a memorandum.

[34 NE3d 853, 13 NYS3d 343]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAR-
EEM WASHINGTON, Appellant.

Argued June 3, 2015; decided June 25, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 6, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Martin Marcus, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

People v Washington, 115 AD3d 451, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Conflict of Interest

Defense counsel's responses to Supreme Court's questions regarding defendant's allegations of ineffective assistance of counsel did not establish an actual conflict of interest, where counsel's comments outlined his efforts on his client's behalf and defended his performance. A defendant may be entitled to new counsel upon showing good cause for a substitution, such as a conflict of interest or other irreconcilable conflict with counsel. An attorney takes a position adverse to his client when stating that the defendant's motion lacks merit. Defense counsel did not suggest that his client's claims lacked merit.

Rather, he informed the judge when he met with defendant and for how long, what they discussed, what the defense strategy was at trial and what discovery he gave or did not give to defendant. Thus, he never strayed beyond a factual explanation of his efforts on his client's behalf.

APPEARANCES OF COUNSEL

Weil Gotshal & Manges LLP, New York City (*Kami Lizarraga* and *Gregory Silbert* of counsel), and *Richard M. Greenberg*, *Office of the Appellate Defender*, New York City (*Rosemary Herbert* of counsel), for appellant.

Robert T. Johnson, *District Attorney*, Bronx (*Marc I. Eida*, *Joseph N. Ferdenzi* and *Nancy D. Killian* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Kareem Washington was arrested in 2008 in connection with a gunpoint robbery that occurred in the Bronx. Prior to trial, he filed a pro se motion seeking new defense counsel; defendant's application included a form "Affidavit in Support of Motion for Reassignment of Counsel," in which he circled every one of the 10 possible grounds of ineffectiveness listed. Defendant also included a "Statement of Facts," in which he alleged that his attorney "failed to produce . . . discovery materials" and "denied to formulate an Omnibus Motion to contest . . . lack of identification, or to preserve requested pre-trial hearings." Defendant further asserted that his attorney ignored his requests to counter "the lack of identification and the negative results of the DNA test," and "refused to take heed to defendant's factual version of events, and to further discuss or develop possible defense strategies beneficial to him." The motion papers were postmarked May 14, 2011, about six weeks before trial, but defendant mailed the materials to "Part 80," and the trial was moved to Part 13. Although it is not clear from the record whether defense counsel or the District Attorney actually received the papers prior to trial, defendant did not mention the motion to Supreme Court or counsel before or during trial.

On July 7, 2011, a jury convicted defendant of first-degree robbery (Penal Law § 160.15). At the sentencing hearing on July 28, 2011, the judge advised the People and defense counsel that he had received the pro se motion four days after the guilty verdict. Supreme Court asked defense counsel if he

wanted to comment on the motion, to which counsel responded that he “d[id]n’t want to put [him]self in opposition to [defendant].” Counsel added that certain items in the motion were “incorrect,” but he did not elaborate.

The judge then asked defendant why he did not call attention to the motion or any of his complaints. Defendant claimed that he had tried to talk with the judge about the motion before trial, but a court officer prevented him. The judge expressed disbelief about this explanation and noted that, in any event, the defendant “had many, many, many, many other moments after that” when he and the judge “spoke[] person to person . . . and [defendant] never raised this.” On the merits, Supreme Court viewed defendant’s allegations skeptically, “based on [his] observations during the course of the trial.” Specifically, the judge addressed defendant as follows:

“You say things in here that are not true. You say that you had no discovery. It was evident to me [that] you had discovery. It was evident to me you had all the discovery. You complained about negative DNA results. The testimony in the trial is that there [were] positive DNA results. You complained that [your attorney] didn’t discuss strategy with you. I know he discussed strategy with you. I don’t see any thing in here based on my observations during the course of the trial that any of this is true.”

Supreme Court then invited defendant to air his complaints of ineffective assistance. Defendant asserted that defense counsel “never did discuss any strategy” with him before trial, despite defendant’s numerous requests. Defendant also alleged that counsel failed to meet with him before trial, except for a “seven to eight minute[]” video conference a week or two beforehand, during which he and his attorney didn’t really “connect.” Apart from this video conference, defendant complained, he “never really had a chance to discuss anything with [counsel] prior to being in court.” Finally, defendant alleged that his attorney provided him only “some of the discovery” that he had sought. Defendant eventually admitted, however, that he did receive the discovery he requested.

Supreme Court next asked defense counsel to respond to defendant’s statements, and counsel explained what he had done prior to trial; specifically, he

“recall[ed] speaking to [defendant] on the phone. The video conference was, in fact, we had one, it

was longer than that. The only problem was they had delivered [defendant] late to the conference area and I think it went for about fifteen minutes or so. From the outset, I think it's pretty clear that strategy here was to indicate to the jury that the identification was incorrect. We challenged identification here during the hearing before the trial, cross-examination dealt with identification. . . . I think that was clearly what the strategy was according to what [defendant] was dealing with."

The judge also asked defense counsel if he discussed trial strategy with his client and if he provided defendant with discovery. Counsel stated that he was "sure" he discussed strategy with defendant before trial, and that he gave defendant "a good deal of discovery," "everything I had up until the beginning of the trial."

Supreme Court summarized that while defendant claimed that his attorney "refused to take heed to the defendant's factual version of events and to further discuss or develop possible defense strategies beneficial to [the defendant] [,] [defense counsel] says that happened and the defense of lack of identification was presented at the trial." The judge also noted that defense counsel stated that he had given defendant all the discovery materials he possessed, once he had them. The judge commented that the motion was untimely and, in any event, "from what [he] heard from [defendant] and [counsel], [he] would not have granted the motion" because defendant had not been truthful about what his attorney "did and did not do," and he "accept[ed]" defense counsel's version of events. Indeed, the judge added, he had observed that defendant "c[a]me into court everyday with discovery in [his] hands[,] . . . consult[ed] with [counsel] throughout jury selection [and] trial, . . . [and decided not] to testify [after conferring] with [counsel]."

Based on his personal observations and inquiry, Supreme Court denied defendant's motion and sentenced him as a persistent violent felony offender to an indeterminate prison term of 22 years to life. Defendant appealed, and the Appellate Division affirmed (115 AD3d 451 [1st Dept 2014]). The Court determined that the verdict was not against the weight of the evidence and, relying on *People v Nelson* (7 NY3d 883 [2006]), that defendant was not deprived of the effective assistance of conflict-free counsel when his attorney explained the actions he

took on his client's behalf. A Judge of this Court granted defendant leave to appeal (24 NY3d 965 [2014]), and we now affirm.

"The right of an indigent criminal defendant to the services of a court-appointed lawyer does not encompass a right to appointment of successive lawyers at defendant's option" (*People v Sides*, 75 NY2d 822, 824 [1990]). A defendant may be entitled to new counsel, however, "upon showing good cause for a substitution, such as a conflict of interest or other irreconcilable conflict with counsel" (*id.* [internal quotation marks omitted]). Here, defendant claims that he was entitled to new defense counsel because counsel's responses to the allegations of ineffectiveness created an actual conflict of interest.

Although an attorney is not obligated to comment on a client's pro se motions or arguments, he may address allegations of ineffectiveness "when asked to by the court" and "should be afforded the opportunity to explain his performance" (*People v Mitchell*, 21 NY3d 964, 967 [2013]; *Nelson*, 7 NY3d at 884). We have held that counsel takes a position adverse to his client when stating that the defendant's motion lacks merit (*Mitchell*, 21 NY3d at 966), or that the defendant, who is challenging the voluntariness of his guilty plea, "made a knowing plea . . . [that] was in his best interest" (*People v Deliser*, 21 NY3d 964, 966 [2013] [decided with *Mitchell*]). Conversely, we have held that counsel does *not* create an actual conflict merely by "outlining his efforts on his client's behalf" (*People v Nelson*, 27 AD3d 287, 287 [1st Dept 2006], *affd Nelson*, 7 NY3d at 884) and "defending his performance" (*Nelson*, 7 NY3d at 884).

Applying these settled principles to the facts in this case, we conclude that defense counsel's comments in response to the judge's questions did not establish an actual conflict of interest. Defense counsel did not suggest that his client's claims lacked merit. Rather, he informed the judge when he met with defendant and for how long, what they discussed, what the defense strategy was at trial and what discovery he gave or did not give to defendant. Thus, he never strayed beyond a factual explanation of his efforts on his client's behalf.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, in a memorandum.

AURORA LOAN SERVICES, LLC, Respondent, v RIA ENAW et al.,
Appellants, et al., Defendants.

Submitted May 4, 2015; decided June 11, 2015

Reported below, 126 AD3d 830.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

JAMES H. BRADY et al., Appellants, v MARK S. FRIEDLANDER,
Also Known as MARK S. FRIEDLANDER, ESQ., Respondent.

Submitted April 20, 2015; decided June 11, 2015

Reported below, 121 AD3d 431; 2015 NY Slip Op 67208(U).

Motion for leave to appeal dismissed upon the ground that
the orders sought to be appealed from do not finally determine
the action within the meaning of the Constitution.

In the Matter of ANDRE CLEMMONS, Appellant, v STEPHEN W.
HERRICK, as Judge of the County Court of Albany County,
Respondent.

Submitted May 11, 2015; decided June 11, 2015

Reported below, 2015 NY Slip Op 66890(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

NOEL DAVIDSON, Appellant, v STATE OF NEW YORK, Respondent.
(Claim No. 118778.)

Submitted May 4, 2015; decided June 11, 2015

Motion for reargument denied [*see* 25 NY3d 961 (2015)].

NOEL DAVIDSON, Appellant, v STATE OF NEW YORK, Respondent.
(Claim No. 121749.)

Submitted May 4, 2015; decided June 11, 2015

Reported below, 2015 NY Slip Op 66738(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

FOREST MALL, LLC, et al., Appellants, v FKF3, LLC, et al., Defendants, and JOHN F. MAGEE et al., Respondents.

Submitted April 27, 2015; decided June 11, 2015

Reported below, 2015 NY Slip Op 67112(U).

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed plaintiffs' appeal from the judgment against defendant Mitchell Klein, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of HIGHBRIDGE BROADWAY, LLC, Appellant, v ASSESSOR OF THE CITY OF SCHENECTADY, Respondent, and SCHENECTADY CITY SCHOOL DISTRICT, Respondent.

Submitted March 30, 2015; decided June 11, 2015

Reported below, 124 AD3d 1193.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellant's motion to hold the Schenectady City School District in contempt, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as vacated that part of Supreme Court's order that directed the Schenectady City School District to issue refunds based on the 2009 to 2011 assessment rolls, granted.

MEG HOLDINGS, LLC, Respondent, v SAPPHIRE POWER FINANCE LLC, Appellant, et al., Defendant.

Submitted May 11, 2015; decided June 11, 2015

Reported below, 126 AD3d 608.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of THE TOROK TRUST, Respondent, v TOWN BOARD OF TOWN OF ALEXANDRIA et al., Respondents. ALEXANDRIA CENTRAL SCHOOL DISTRICT, Appellant.

Submitted May 18, 2015; decided June 11, 2015

Reported below, 128 AD3d 97.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of WESTCHESTER JOINT WATER WORKS, Appellant, v ASSESSOR OF CITY OF RYE, Respondent, and RYE NECK UNION FREE SCHOOL DISTRICT, Intervenor-Respondent. (And Other Proceedings.)

Submitted April 27, 2015; decided June 11, 2015

Reported below, 120 AD3d 1352.

Motion, insofar as it seeks leave to appeal as against the Rye Neck Union Free School District, granted; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

[35 NE3d 480, 14 NYS3d 312]

AMALGAMATED BANK, Respondent, v HELMSLEY-SPEAR, INC., Defendant, and SCHNEIDER & SCHNEIDER, INC., et al., Intervenor-Appellants.

Argued June 1, 2015; decided June 25, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 13, 2013. The Appellate Division order, insofar as appealed from, (1) reversed, on the

law, an order of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 37 Misc 3d 1229[A], 2012 NY Slip Op 52225[U] [2012]), which had granted that branch of the motion of intervenors-defendants which was to vacate a default judgment entered against defendant; (2) denied that branch of the motion; and (3) reinstated the judgment.

Plaintiff commenced an action against a corporation and its employee alleging that the employee had negligently performed an appraisal. After a default judgment was entered against the corporation, plaintiff sought to enforce the judgment by collecting the proceeds that the corporation's former president had received from the sale of 99% of the total shares in the corporation on the ground that the sale was a fraudulent transfer of the corporation's assets. To accomplish the enforcement plaintiff commenced a supplemental proceeding against the former president and another corporation of which she was an officer and director. The former president and that other corporation then moved to intervene in the first action and to vacate the default judgment.

Amalgamated Bank v Helmsley-Spear, Inc., 109 AD3d 418, affirmed.

HEADNOTE

Judgments — Default Judgment — Vacatur — Standing — Intervenors

In an action that resulted in the entry of a default judgment against defendant corporation, defendant's former president and another corporation of which she was an officer and director, as intervenors, lacked standing to bring a motion to vacate the default judgment. To seek relief from a judgment or order, all that is necessary is that some legitimate interest of the moving party will be served and that judicial assistance will avoid injustice. The intervenors did not meet the second prong of that test because they failed to identify any facts that gave rise to a claim that injustice of any kind would be avoided by vacating the judgment.

APPEARANCES OF COUNSEL

Herrick, Feinstein LLP, New York City (*Christopher J. Sullivan, William R. Fried* and *Marisa A. Leto* of counsel), for intervenors-appellants.

Emmet, Marvin & Martin, LLP, New York City (*Tyler J. Kandell* and *Mordecai Geisler* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs.

The intervenors lacked standing to bring a motion to vacate the default judgment. “To seek relief from a judgment or order, all that is necessary is that some legitimate interest of the moving party will be served and that judicial assistance will avoid injustice” (*Oppenheimer v Westcott*, 47 NY2d 595, 602 [1979] [internal quotation marks and citation omitted]). Here, however, the intervenors did not meet the second prong of that test because they failed to identify any facts that give rise to a claim that injustice of any kind would be avoided by vacating the judgment (*cf. Bond v Giebel*, 101 AD3d 1340, 1342-1343 [3d Dept 2012], *appeal dismissed, lv dismissed* 21 NY3d 884 [2013]; *Lane v Lane*, 175 AD2d 103, 105-106 [2d Dept 1991]).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order, insofar as appealed from, affirmed, with costs, in a memorandum.

[35 NE3d 478, 14 NYS3d 310]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD GONZALEZ, Appellant.

Argued April 28, 2015; decided June 25, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 5, 2013. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Thomas A. Farber, J., at suppression hearing; Patricia M. Nuñez, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the third degree.

People v Gonzalez, 112 AD3d 440, reversed.

HEADNOTE

Crimes — Disorderly Conduct — Potential or Immediate Public Problem

Defendant, who shouted obscenities at police officers in a subway station, provoking looks of surprise and curiosity from some passengers and evasive movements from others, and was then detained and arrested for disorderly conduct (Penal Law § 240.20 [3]), was entitled to suppression of an illegal knife found on his person during the detention because the police lacked probable cause for the arrest. There was no evidence that defendant’s rant

constituted disorderly conduct, which requires a situation that extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City, for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Malancha Chanda and Patrick J. Hynes of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant's motion to suppress granted, and the indictment dismissed.

Defendant shouted obscenities at police officers in a subway station in Manhattan, provoking looks of surprise and curiosity from some passengers and evasive movements from others. The officers followed defendant to another level of the station, where a police sergeant prevented him from leaving. The sergeant observed an illegal knife on defendant's person and arrested him.

Defendant moved to suppress the knife on the ground that the police stop had been illegal. Supreme Court denied the motion. Following a jury trial, defendant was convicted of one count of criminal possession of a weapon in the third degree (Penal Law § 265.02 [1]).

On appeal, the parties do not dispute the facts underlying the suppression issue in this case, as described in police testimony credited by the motion court. The parties further agree that if the police had probable cause to arrest defendant for disorderly conduct (*see* Penal Law § 240.20 [3]), the detention would have been justified. Probable cause determinations typically involve mixed questions of law and fact (*see People v Oden*, 36 NY2d 382, 384 [1975]) and therefore are beyond this Court's review power if supported by evidence in the record. Here, however, there is no record support for the motion court's determination that defendant's rant against the police officers constituted the crime of disorderly conduct. "[A] person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem" (*People v Baker*, 20 NY3d 354, 359-360 [2013], quoting *People v Weaver*, 16 NY3d 123, 128 [2011]).

The People's remaining contention on the suppression issue is without merit. Defendant's motion to suppress should have been granted. We have no occasion to address defendant's argument with respect to the mens rea of criminal possession of a weapon (*see* Penal Law § 265.01 [1]).

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order reversed, defendant's motion to suppress granted and indictment dismissed, in a memorandum.

[35 NE3d 448, 14 NYS3d 280]

ALEX IRRIZARRY DELEON, Respondent, v NEW YORK CITY SANITATION DEPARTMENT et al., Appellants.

Argued April 29, 2015; decided June 10, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 1, 2014. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, Bronx County (Larry S. Schachner, J.; op 2012 NY Slip Op 33772[U] [2012]), which had denied plaintiff's motion for summary judgment on the issue of liability, and granted defendants' motion for summary judgment dismissing the complaint. The modification consisted of denying defendants' motion. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified and otherwise affirmed by this Court, properly made?"

Deleon v New York City Sanitation Dept., 116 AD3d 404, affirmed.

HEADNOTES

Motor Vehicles — Collision — Collision with Street Sweeper Engaged in Highway Work — Recklessness Standard of Care

1. In an action to recover for personal injuries incurred when a street sweeper collided with plaintiff's vehicle, the recklessness standard of care set forth in Vehicle and Traffic Law § 1103 (b) and adopted at the time of the collision by 34 RCNY 4-02 (d) (1) (iv) was applicable. Subparagraph (iv) of 34 RCNY 4-02 (d) (1) provided that Vehicle and Traffic Law § 1103 applies to all

operators “actually engaged in work on a highway,” which includes street sweepers. Such workers are subject to the recklessness standard of care, a minimum standard of care under which liability is established upon a showing that the covered vehicle’s operator has intentionally done an act of an unreasonable character in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow and has done so with conscious indifference to the outcome. Even assuming that former 34 RCNY 4-02 (d) (1) (iii), which was in effect at the time of the collision and referenced street sweepers, adopted a negligence standard of care, since the driver of the street sweeper was cleaning the street at the time of the collision and was not engaged in any of the activities referenced in subparagraph (iii), he was engaged in highway maintenance within the meaning of subparagraph (iv) and thus subject to the recklessness standard of care. The 2013 amendments which repealed subparagraph (iii) (A) do not support a different interpretation of the statute, since those amendments simply eliminated the language of former subparagraph (iii) (A) and imposed the recklessness standard on workers engaged in work on a roadway, under all circumstances.

**Motor Vehicles — Collision — Collision with Street Sweeper
Engaged in Highway Work — Recklessness Standard of Care**

2. In an action to recover for personal injuries incurred when a street sweeper collided with plaintiff’s vehicle, defendants were not entitled to summary judgment since material issues of fact remained as to whether the sweeper driver operated it in a reckless manner and the extent of plaintiff’s own negligence. While plaintiff alleged he was rear-ended as he sought to move left and away from the curb, the sweeper driver contended that he was sweeping on the right side of the street when he observed plaintiff’s vehicle make “[a] pretty sudden move” from the middle lane of the street towards the right curb. In addition, photographs showed damage to the passenger side of plaintiff’s vehicle and the sweeper’s right front fender, seemingly consistent with the sweeper driver’s testimony. However, the sweeper driver admitted that when he observed plaintiff’s vehicle, he did not slow down or apply his brakes in an attempt to avoid the collision, and “hit [plaintiff] fairly well,” causing plaintiff’s jeep to spin out 180 degrees. If a factfinder concluded that the driver could, but failed to, take evasive action to avoid a forceful collision, a reasonably jury could find that his conduct rose to the recklessness standard.

APPEARANCES OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (*Elizabeth I. Freedman, Richard Dearing and Francis F. Caputo* of counsel), for appellants.

Block O’Toole & Murphy, LLP, New York City (*David L. Scher and Christina R. Mark* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs, and the certified question answered in the affirmative.

Plaintiff Alex Irrizarry Deleon sued defendants New York City, the City Department of Sanitation and Sanitation Depart-

ment employee Robert P. Falcaro, for personal injuries incurred when a Department of Sanitation street sweeper operated by Falcaro collided with Deleon's vehicle. According to Deleon, he was in his vehicle on the side of the street when Falcaro came along at a high rate of speed and hit his vehicle from behind. For his part, Falcaro argued that he rear-ended Deleon's vehicle after Deleon abruptly entered the lane where Falcaro was driving the sweeper.

Deleon moved for summary judgment on the issue of liability and defendants cross-moved for summary judgment. Supreme Court denied Deleon's motion, granted defendants summary judgment, and dismissed the complaint. The Appellate Division, with one Justice dissenting in part, modified on the law, denying defendants' motion and otherwise affirmed (*Deleon v New York City Sanitation Dept.*, 116 AD3d 404, 404 [1st Dept 2014]).

The Appellate Division concluded that, under the Rules of the City of New York in effect at the time of the accident, defendants were subject to an ordinary negligence standard of liability. Applying that standard, the majority held that Deleon failed to make out his prima facie case that defendants were the proximate cause of the collision because there were issues of fact as to Deleon's own negligence. The dissent argued that under the reckless disregard standard of care set forth in Vehicle and Traffic Law § 1103 (b) and adopted at the time of the collision by 34 RCNY 4-02 (d) (1) (iv), Supreme Court properly denied Deleon's motion and granted defendants summary judgment because the record lacked evidence of Falcaro's recklessness within the meaning of the statute.

Defendants appeal the Appellate Division's order of modification and contend they are entitled to summary judgement regardless of what standard of liability is applicable. The Appellate Division certified the question whether the order of the Supreme Court, as modified and otherwise affirmed, was properly made (2014 NY Slip Op 77843[U] [1st Dept 2014]).

[1] As an initial matter, we agree with defendants that the Appellate Division should have applied the recklessness standard of care to the facts of this case. The Vehicle and Traffic Law sets forth a uniform set of traffic regulations known as the "rules of the road" (see *Riley v County of Broome*, 95 NY2d 455, 462 [2000]). However, under Vehicle and Traffic Law § 1642, the City of New York is authorized to establish additional rules, including rules that supercede those of the State

(see Vehicle and Traffic Law § 1642 [a] [“the legislative body of any city having a population in excess of one million, may by local law . . . restrict or regulate traffic on or pedestrian use of any highway”]). At the time of the accident, 34 RCNY 4-02 (d) (1) (iv) provided that Vehicle and Traffic Law § 1103 applies “to any person or team or any operator of a motor vehicle or other equipment while actually engaged in work on a highway” and that

“such persons are not relieved from the duty to proceed at all times during all phases of such work with due regard for the safety of all persons nor shall the foregoing provisions of this subparagraph protect such persons or teams or such operators of motor vehicles or other equipment from the consequences of their reckless disregard for the safety of others.”

In *Riley*, this Court held that the unambiguous language of Vehicle and Traffic Law § 1103 (b), as further supported by its legislative history, made clear that the statute exempts from the rules of the road all vehicles, including sanitation sweepers, which are “actually engaged in work on a highway” (95 NY2d at 460), and imposes on such vehicles a recklessness standard of care (see *id.* at 466). The Court further concluded that liability under that standard is established upon a showing that the covered vehicle’s operator “‘has intentionally done an act of an unreasonable character in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow’ and has done so with conscious indifference to the outcome” (*id.* at 466, citing *Saarinen v Kerr*, 84 NY2d 494, 501 [1994]).

Deleon contends the correct standard is found not in 34 RCNY 4-02 (d) (1) (iv), but in another provision in effect at the time of the accident, namely 34 RCNY 4-02 (d) (1) (iii) (A), titled “Snow plows, sand spreaders, sweepers and refuse trucks.” That subparagraph provided, in relevant part,

“[t]he operator of a New York City Department of Sanitation . . . sweeper . . . , while in the performance of his/her duty and acting under the orders of his/her superior may make such turns as are necessary and proceed in the direction required to complete his/her cleaning . . . operations subject to § 1102 of the Vehicle and Traffic Law [which requires compliance with police and other official

traffic instructions]. The provisions of this subparagraph shall not apply while traveling to or from such work locations” (former 34 RCNY 4-02 [d] [1] [iii] [A]).

Deleon essentially argues that by its silence this provision applies a negligence standard to sweeper operators, and that application of subparagraph (iv) here would render subparagraph (iii) meaningless. We disagree because that interpretation is unsupported by the language of the statute.

Subparagraph (iv) applies Vehicle and Traffic Law § 1103 to all operators “actually engaged in work on a highway,” which, as the Court held in *Riley* includes street sweepers (*see Riley*, 95 NY2d at 463). Those workers, then, are subject to the recklessness standard, which this Court has described as a “minimum standard of care” (*id.* at 466 [holding that the legislative history of Vehicle and Traffic Law § 1103 evinces an intent to impose “a minimum standard of care” on operators of vehicles engaged in roadwork]). Even assuming Deleon is correct that subparagraph (iii) adopts a negligence standard, that specific provision applies only in the limited circumstances set forth therein. However, because at the time of the collision Falcaro was operating the sweeper to clean the street and was not engaged in any of the activities referenced in subparagraph (iii), he was engaged in highway maintenance within the meaning of subparagraph (iv) and thus subject to the recklessness standard of care.

Notwithstanding Deleon’s arguments to the contrary, the 2013 amendments which repealed subparagraph (iii) (A) do not support a different interpretation of the statute. Those amendments simply eliminated the language of former subparagraph (iii) (A), and imposed the recklessness standard on workers engaged in work on a roadway, under all circumstances (*see* 34 RCNY 4-02, Note 5 [“Statement of Basis and Purpose in City Record Mar. 4, 2013”]).

[2] Having resolved the question of the applicable standard of care, we next consider whether defendants were entitled to summary judgment. As we have made clear, the summary judgment movant bears the heavy burden of establishing “a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]; *Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]; *see also* CPLR 3212 [b]).

Unlike the majority of our reckless disregard cases, Falcaro was not responding to an emergency, but instead was operating a street sweeper during the ordinary course of his duties. With this in mind, we conclude that defendants failed to meet their burden because material issues of fact remain as to whether Falcaro operated his street sweeper in a reckless manner and the extent of Deleon's own negligence. As is plain from their respective motions, the parties dispute critical factual details of the collision. Most notably, Deleon alleges he was rear-ended as he sought to move left and away from the curb, whereas Falcaro contends that he was sweeping on the right side of the street when he observed Deleon's vehicle make "[a] pretty sudden move" from the middle lane of the street towards the right curb. In addition, photographs in the record show damage to the passenger side of Deleon's vehicle and the sweeper's right front fender, seemingly consistent with Falcaro's testimony. However, Falcaro admitted that when he observed Deleon's vehicle, he did not slow down or apply his brakes in an attempt to avoid the collision, and "hit [Deleon] fairly well," causing Deleon's jeep to spin out 180 degrees. If a factfinder concludes that the driver could, but failed to, take evasive action to avoid a forceful collision, a reasonable jury could find that this conduct rises to the recklessness standard. Thus, the Appellate Division properly modified on the law and denied defendants' motion for summary judgment.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order, insofar as appealed from, affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[35 NE3d 476, 14 NYS3d 308]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAKIM B. SCOTT, Appellant.

Argued May 5, 2015; decided June 11, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 22, 2013. The Appellate Division modified, as a matter of

discretion in the interest of justice, a judgment of the Supreme Court, Kings County (Patricia M. DiMango, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree and attempted assault in the first degree, and sentenced him to a determinate term of imprisonment of 25 years plus a period of five years of postrelease supervision on the conviction of manslaughter in the first degree and a determinate term of imprisonment of 12 years plus a period of five years of postrelease supervision on the conviction of attempted assault in the first degree, to run consecutively. The modification consisted of reducing the term of imprisonment imposed on the conviction of attempted assault in the first degree from a determinate term of imprisonment of 12 years to a determinate term of imprisonment of four years. The Appellate Division affirmed the judgment as modified.

People v Scott, 106 AD3d 1030, affirmed.

HEADNOTES

Crimes — Accomplices — Community of Purpose — Sufficiency of Evidence

1. In a prosecution arising from an attack on two pedestrians who crossed in front of an SUV stopped at a red light in which defendant was a passenger, legally sufficient evidence existed to support the conclusion that defendant, who smashed a glass bottle over the head of the first victim and then chased the second victim down the block, and the SUV driver, who at some point also exited the SUV and struck the first victim with a bat, acted in concert in causing the death of the first victim. To be liable under an acting in concert theory (Penal Law § 20.00), the accomplice and principal must share a community of purpose. While the evidence presented at trial presented conflicting testimony about when exactly the driver exited the vehicle, under the second victim's version of events, defendant and the driver were out of the vehicle at the same time, both acting in a manner intending to cause harm to the first victim. Additionally, another eyewitness testified that he observed the driver swing the bat at one of the victims while defendant was present. Thus, a reasonable jury could infer that a community of purpose existed between defendant and the driver.

Crimes — Right to be Present at Trial — Supplemental Jury Instruction

2. In a prosecution for manslaughter and assault, the trial court did not commit a mode of proceedings error when it gave the jury a supplemental instruction regarding the dates alleged in the indictment in defendant's absence. The supplemental instruction—simply clarifying the dates of the crimes in the jury charge, which were the same dates set forth in the indictment—was a technical conformance with the indictment that did not require defendant's presence.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Steven R. Bernhard* and *Paul Skip Laisure* of counsel), for appellant.

Kenneth P. Thompson, District Attorney, Brooklyn (Seth M. Lieberman and Leonard Joblove of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

In the early morning hours of December 7, 2008, following a night of heavy drinking, José Sucuzhanay and his brother Romel Sucuzhanay were walking home in their Brooklyn neighborhood while supportively holding one another. The brothers crossed in front of an SUV which was stopped at a red light. In the SUV were Keith Phoenix in the driver's seat, Demetrius Nathaniel in the passenger seat, and defendant Hakim Scott in the backseat. As the brothers passed in front of the SUV, Phoenix yelled homophobic slurs from the car window. In response, one of the brothers either lifted his foot to kick the SUV or actually kicked it. Defendant exited the vehicle, raised a glass beer bottle and smashed it over José's head, causing José to fall to the ground. Defendant thereafter chased Romel down the block, carrying the remains of the broken bottle. Phoenix, at some point, exited the SUV, removed an aluminum baseball bat from the car and proceeded to beat José with the bat. Defendant, upon returning to the scene, fled in the SUV along with Phoenix and Nathaniel. José was left unconscious and died from his injuries the next day.

At trial, the People asserted two alternative theories of liability: (1) that defendant was acting in concert with Phoenix, and (2) that defendant alone caused José's death. Following trial, defendant was convicted of manslaughter in the first degree, for the death of José, and attempted assault in the first degree, for his actions toward Romel. Defendant was sentenced to consecutive prison terms of 25 years on the manslaughter conviction and 12 years for attempted assault. The Appellate Division reduced the term of imprisonment for the attempted assault conviction from 12 years to four years, and otherwise affirmed the convictions, holding that the evidence was legally sufficient to sustain the convictions (*see People v Scott*, 106 AD3d 1030 [2d Dept 2013]). Defendant argues that his conviction for first degree manslaughter should be overturned because the record lacks legally sufficient evidence to support the conclusion that he was acting in concert with Phoenix to cause the death of José.

Penal Law § 20.00 provides that when a principal commits a crime, the principal's accomplice may be held liable where the

accomplice “acting with the mental culpability required for the commission [of the crime] . . . solicits, requests, commands, importunes, or intentionally aids [the principal] to engage in [the commission of the crime].” In *People v La Belle* (18 NY2d 405 [1966]), we held that to be liable under an acting in concert theory, the accomplice and principal must share a “community of purpose” (*id.* at 412).

[1] This was a close case. The evidence presented at trial resulted in conflicting testimony about when exactly Phoenix exited the SUV. Nathaniel testified that defendant got out of the car first, then, once defendant ran away chasing Romel, Phoenix exited the vehicle. Romel, however, testified that Phoenix exited at the same time as defendant and, that after defendant hit José with the bottle, Romel could see Phoenix coming toward José with the bat. Thus, under Romel’s version of events, defendant and Phoenix were out of the car at the same time, both acting in a manner intending to cause harm to José. Additionally, another eyewitness testified that he observed Phoenix swing the bat at one of the brothers while defendant was present. Viewing the evidence, as we must, in the light most favorable to the People (*see People v Delamota*, 18 NY3d 107, 113 [2011]; *People v Conway*, 6 NY3d 869, 872 [2006]), a reasonable jury could infer that a community of purpose existed between defendant and Phoenix. Therefore, legally sufficient evidence exists to support the conclusion that defendant and Phoenix were acting in concert and caused the death of José.

[2] Finally, we reject defendant’s argument that the trial court committed a mode of proceedings error when it gave the jury a supplemental instruction in defendant’s absence, regarding the dates alleged in the indictment.

During jury instructions, as the court was giving the jury the relevant dates for the charges against defendant as stated in the indictment, December 7th and December 8th, the prosecutor interrupted the judge, attempting to correct her by stating that the relevant dates were December 6th and December 7th. The judge then charged the jury using the dates given by the prosecutor. The following day, the court—in the absence of the jury, defendant, and all counsel—stated, on the record to the court reporter, that she had charged the jury on the wrong dates of the alleged crimes, and that the correct dates were December 7th and 8th. The judge stated that she had spoken with the parties who agreed that the jury could be informed of this mistake outside of their presence. Thereafter, in the

absence of the attorneys and defendant, the judge informed the jury that she had given them the wrong dates and told them the correct dates of the alleged crimes, noting that both parties agreed that she could make the correction in their absence. Later in the day, when defendant and his counsel were present, the court referenced its earlier supplemental instruction and asked defense counsel if the supplemental instruction was satisfactory, to which defense counsel responded that he had no objection.

Although defendant has a fundamental right to be present during “all material stages of a trial” (*People v Mehmedi*, 69 NY2d 759, 760 [1987]), the court’s supplemental instruction to the jury—simply clarifying the dates of the crimes in the jury charge, which were the same dates set forth in the indictment—did not require defendant’s presence. Because the court’s instruction was a technical conformance with the indictment that did not require defendant’s presence, no mode of proceedings error occurred.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, in a memorandum.

[35 NE3d 849, 14 NYS3d 779]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS
BASILE, Appellant.

Argued June 2, 2015; decided July 1, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered April 22, 2013. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Queens County (Ira H. Margulis, J.), which had convicted defendant, upon a jury verdict, of failing to provide proper sustenance to an animal.

People v Basile, 40 Misc 3d 44, affirmed.

HEADNOTE

Crimes — Cruelty to Animals — Failure to Provide Sustenance — Mens Rea

In the prosecution of defendant for failing to provide sustenance to his dog, even assuming that the trial court erred in refusing to instruct the jury that

defendant's conviction under Agriculture and Markets Law § 353 required proof of a mens rea—specifically, that he knowingly deprived the dog of or neglected or refused to furnish the basic necessities required to maintain the animal's health—defendant was not entitled to relief based on the record. An American Society for the Prevention of Cruelty to Animals (ASPCA) agent testified that he discovered the dog confined to a garbage-strewn backyard, that the animal looked skinny with its bones prominent, with fly bites on its ears and flies around its head, and that there was no food, water or nearby shelter. Furthermore, the veterinarian who conducted a physical examination of the dog testified that it would have taken at least four to six weeks of starving to reduce the animal to the state that he observed. Moreover, defendant told the ASPCA agent that he could not afford to support the dog and he testified that he had not been regularly feeding the animal. In light of the testimony about the dog's wasted appearance and dirty living conditions, as well as defendant's admissions, there could be no issue as to whether defendant knowingly deprived the animal of or neglected or refused to furnish the basic necessities required to maintain the dog's health.

APPEARANCES OF COUNSEL

Cahill Gordon & Reindel LLP, New York City (*Ben A. Schatz*, *Kerry Burns* and *Danielle Chatten* of counsel), and *Seymour W. James, Jr.*, *The Legal Aid Society*, New York City (*Scott A. Rosenberg*, *Andrew C. Fine* and *David Crow* of counsel), for appellant.

Richard A. Brown, *District Attorney*, Kew Gardens (*Nicoletta J. Caferra* and *John M. Castellano* of counsel), for respondent.

Alston & Bird LLP, New York City (*Daniella P. Main* of counsel), for Civil Rights Research Center, amicus curiae.

Proskauer Rose LLP, New York City (*Mark D. Harris*, *Chantel L. Febus*, *Matthew V. Rotbart* and *Edward J. Canter* of counsel), *Green & Willstatter*, White Plains (*Richard D. Willstatter* of counsel), and *White & White*, New York City (*Brendan White* of counsel), for National Association of Criminal Defense Lawyers and another, amici curiae.

Virginia F. Coleman, Cambridge, Massachusetts, for Animal Legal Defense Fund and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be affirmed.

Acting on an anonymous tip of potential mistreatment of a dog, a special agent for the American Society for the Prevention of Cruelty to Animals (ASPCA) responded to a residential address in Queens County. As the ASPCA agent later testified at trial, he discovered a long-haired, mixed-breed German shepherd, confined to a garbage-strewn backyard by a four-foot

lead tied to a fence. The dog looked skinny; its bones were prominent. The animal had fly bites on its ears and there were flies around its head; there was no food, water or nearby shelter. Defendant Curtis Basile, the dog's owner, surrendered the animal's custody to the agent and was subsequently charged with violating Agriculture and Markets Law § 353. As relevant to this case, section 353 provides that "[a] person who . . . deprives any animal of necessary sustenance, food or drink, or neglects or refuses to furnish it such sustenance or drink, . . . is guilty of a class A misdemeanor . . ." After a jury trial, defendant was convicted as charged, and Criminal Court sentenced him to three years of probation and 45 days of community service. Upon defendant's appeal, the Appellate Term affirmed (40 Misc 3d 44 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2013]). We granted leave to appeal (22 NY3d 1137 [2014]), and now affirm as well.

Defendant contends that the trial court erred in refusing to instruct the jury that his conviction under section 353 required proof of a mens rea—specifically, that he *knowingly* deprived the dog of or neglected or refused to furnish the basic necessities required to maintain the animal's health. We need not reach this question because, even assuming that defendant is correct, he would not be entitled to relief on this record.*

At defendant's trial, the ASPCA agent recounted the dog's visibly compromised state of health and living conditions, as described above. Concomitantly, the veterinarian who conducted a physical examination of the dog testified that the animal "had a variety of problems," the most significant of which was "that he had an emaciated body condition where there's been extreme weight loss." In addition, the dog was "flea infested. He had open sores on his ears—something called fly strike[s] from biting flies. He was dirty and he was battling dehydration." The animal weighed 42.2 pounds, whereas the average weight of a healthy dog of the same type was approximately 60-62 pounds. The veterinarian explained that a dog with such an emaciated body condition has visually prominent skeletal structures due to the loss of fat and muscle tissue. On the animal condition scale, with five being the worst, the dog's condition was five—i.e., "one step away from death."

To reduce the animal to the state that he observed, the veterinarian testified that it would have taken the dog many

* "A person acts knowingly with respect to conduct or to a circumstance described by a statute defining an offense when he is aware that his conduct is of such nature or that such circumstance exists" (Penal Law § 15.05 [2]).

weeks of starving—at least four to six—as fat and muscle tissue were burned due to the lack of a proper diet. In sum, it was “clear” the dog was “underweight.” An X ray of the dog’s stomach showed that it contained scattered pieces of foreign matter—possibly dirt, metal or plastic—and chicken bones. There was no underlying disease as a cause of the animal’s emaciation. The dog also had overgrown nails, which indicated that it had not been exercised. In the veterinarian’s opinion, “[a] reasonable quality of life for a dog requires that [the animal] be provided with food, water and shelter, live in a reasonably clean environment and get at least a minimal amount of exercise. This dog was starved, lived in a filthy environment and got no exercise.” Moreover, it is undisputed that defendant told the ASPCA agent that he could not afford to support the dog and he testified at trial that he had not been regularly feeding the animal.

In light of the trial testimony about the dog’s wasted appearance and dirty living conditions as well as defendant’s admissions, there can be no issue on this record whether defendant knowingly deprived the animal of or neglected or refused to furnish the basic necessities required to maintain the dog’s health (*see generally People v Koogan*, 256 App Div 1078 [2d Dept 1939]). We have reviewed defendant’s remaining arguments and consider them to be without merit.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, in a memorandum.

[35 NE3d 796, 14 NYS3d 726]

WOLFGANG DOERR, Respondent, v DANIEL GOLDSMITH, Defendant, and JULIE SMITH, Appellant.

CHERYL DOBINSKI, Appellant, v GEORGE O. LOCKHART et al., Respondents.

Argued March 26, 2015; decided June 9, 2015

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 3, 2013. The Appellate Division affirmed an order of

the Supreme Court, New York County (Manuel J. Mendez, J.; op 2011 NY Slip Op 34185[U] [2011]), which had denied defendant Julie Smith's motion for summary judgment dismissing the complaint as against her. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by . . . this Court, properly made?"

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 3, 2014. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Erie County (Diane Y. Devlin, J.), entered upon a decision of that court (2013 NY Slip Op 33900[U] [2013]), which had denied defendants' motion for summary judgment dismissing the amended complaint; (2) granted the motion; and (3) dismissed the amended complaint.

Doerr v Goldsmith, 110 AD3d 453, reversed.

Dobinski v Lockhart, 121 AD3d 1601, affirmed.

HEADNOTES

Animals — Liability for Injuries — Negligence — Dogs Colliding with Bicyclists

1. In personal injury actions arising out of plaintiffs' collisions with dogs owned by defendants while riding their bicycles, plaintiffs could not recover based on defendants' purported negligence in the handling of their dogs, which were not domestic farm animals subject to an owner's duty to prevent such animals from wandering unsupervised off the farm.

Animals — Knowledge of Vicious Propensity — Strict Liability

2. In a personal injury action arising out of plaintiff's collision with a dog owned by defendants while riding her bicycle in front of defendants' home, defendants were entitled to summary judgment dismissing plaintiff's strict liability claim, where defendants established that they did not know of any vicious propensities on the part of their dogs, and plaintiff failed to demonstrate the existence of a triable issue of fact as to whether defendants had notice of the animals' harmful proclivities.

APPEARANCES OF COUNSEL

Mischel & Horn, P.C., New York City (*Scott T. Horn* and *Naomi M. Taub* of counsel), for appellant in the first above-entitled action.

Gregory W. Bagen, Brewster (*Dara Warren* of counsel), for respondent in the first above-entitled action.

Dennis J. Bischof, LLC, Williamsville (*Dennis J. Bischof* of counsel), for appellant in the second above-entitled action.

Walsh, Roberts & Grace, Buffalo (*Mark P. Della Posta* and *Joseph H. Emminger, Jr.*, of counsel), for respondents in the second above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

In *Doerr v Goldsmith*, the order of the Appellate Division should be reversed, with costs, defendant Smith's motion for summary judgment dismissing the complaint granted and the certified question answered in the negative. In *Dobinski v Lockhart*, the order of the Appellate Division should be affirmed, with costs.

[1] Under the circumstances of these cases and in light of the arguments advanced by the parties, *Bard v Jahnke* (6 NY3d 592 [2006]) constrains us to reject plaintiffs' negligence causes of action against defendants arising from injuries caused by defendants' dogs (see *Bard*, 6 NY3d at 596-599; see also *Bloomer v Shauger*, 21 NY3d 917, 918 [2013]; *Smith v Reilly*, 17 NY3d 895, 896 [2011], revg 83 AD3d 1492 [4th Dept 2011]; *Petrone v Fernandez*, 12 NY3d 546, 547-551 [2009]; *Collier v Zambito*, 1 NY3d 444, 446 [2004]). We decline to overrule our recently reaffirmed precedent (see *Bloomer*, 21 NY3d at 918; *Petrone*, 12 NY3d at 547-551). Furthermore, our holding in *Hastings v Sauve* (21 NY3d 122 [2013]) does not allow plaintiffs to recover based on defendants' purported negligence in the handling of their dogs, which were not domestic farm animals subject to an owner's duty to prevent such animals from wandering unsupervised off the farm (see *Hastings*, 21 NY3d at 124-126).

[2] Finally, in *Dobinski*, the Appellate Division properly granted summary judgment to defendants with respect to plaintiff's strict liability cause of action. Defendants carried their initial burden on summary judgment of establishing that they did not know of any vicious propensities on the part of their dogs. In response, plaintiff failed to demonstrate the existence of a triable issue of fact as to whether defendants had notice of the animals' harmful proclivities, and consequently, defendants were entitled to summary judgment on plaintiff's strict liability claim (see *Petrone*, 12 NY3d at 550; see generally *Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014]).

ABDUS-SALAAM, J. (concurring). In these two cases, we consider whether an individual injured by a domestic animal other than a farm animal may institute a negligence cause of action against the owner of the animal based on the owner's alleged misfeasance in supervising or directing the animal. Like the majority (see majority mem at 1116), I conclude that a negligence cause of action does not lie under our long-standing

precedent, and I reject the specific grounds advanced by plaintiffs here for declining to apply the controlling principles of law set forth in *Bard v Jahnke* (6 NY3d 592 [2006]). Therefore, I join the majority's memorandum opinion in full. I write separately to provide additional background on these cases, suggest further guidance for future cases, and respond to the particular contentions of the plaintiffs and my dissenting colleagues.

I

Doerr v Goldsmith

At about 7:00 a.m. on May 31, 2009, defendant Julie Smith and her boyfriend, defendant Daniel Goldsmith, were accompanied by Smith's dog in Manhattan's Central Park. The couple did not keep the dog on a leash, acting consistently with local regulations that permit a dog to remain off-leash in certain designated areas of the park from 9:00 p.m. to 9:00 a.m. (see Rules of City of NY Dept of Parks and Recreation [56 RCNY] § 1-04 [i] [2]). Smith, Goldsmith and the dog were near a section of the bicycle "loop" road that runs throughout Central Park. Specifically, Smith and Goldsmith were outside the roadway on opposite sides of the road, and Goldsmith was kneeling down and holding the dog in his arms, as if hugging it.

Meanwhile, plaintiff Wolfgang Doerr was riding his bicycle on the loop. As Doerr approached Smith and Goldsmith's location, Smith bent down and clapped her hands on her knees, and she allegedly called the dog over to her. Doerr called out for Smith and Goldsmith to control the dog, but it was too late; as the dog crossed the street, Doerr hit the dog and was thrown from his bike, resulting in significant injuries.

Doerr commenced this personal injury action in Supreme Court by filing a complaint asserting a negligence cause of action against Smith and Goldsmith based on their having negligently "controlled and directed their dog into the path of the plaintiff." Doerr did not set forth any strict liability cause of action or allege that the dog had a vicious propensity. As pertinent to this appeal, Smith answered and demanded discovery, including depositions. After discovery, Smith moved for summary judgment dismissing the complaint, arguing that Doerr could not bring a negligence cause of action based on injuries caused by a domestic pet because such claims are barred by the rule of *Bard* and *Petrone v Fernandez* (12 NY3d

546 [2009]). Doerr opposed the motion on the ground that the *Bard* rule does not apply where, as here, liability is premised on the conduct of the owner in turning the animal into an instrumentality of harm. Supreme Court denied Smith's motion for summary judgment dismissing the complaint, largely adopting Doerr's position.

A divided panel of the Appellate Division reversed Supreme Court's order, granted Smith's motion for summary judgment dismissing the complaint and directed the clerk to enter judgment accordingly (*see Doerr v Goldsmith*, 105 AD3d 534, 534-535 [1st Dept 2013]). The majority determined that, because "New York does not recognize a common-law negligence cause of action to recover damages for injuries caused by a domestic animal," Doerr could not sue Smith for her allegedly negligent handling of her dog (*id.* at 534 [internal quotation marks and citation omitted]). One Justice dissented on the theory that Smith could be held liable for her negligent instruction to the dog, as distinct from the dog's own willful actions (*see id.* at 535-537 [Mazzarelli, J.P., dissenting]).

After the Appellate Division's decision in *Doerr*, we handed down our decision in *Hastings v Sauve* (21 NY3d 122 [2013]), wherein we held "that the rule of *Bard v Jahnke* does not bar a suit for negligence when a farm animal has been allowed to stray from the property where it is kept" (*Hastings*, 21 NY3d at 124 [citation omitted]). Doerr moved for reargument of his appeal in the Appellate Division or, in the alternative, for leave to appeal to this Court.

The Appellate Division issued an order granting the reargument motion, vacated and recalled its prior decision, substituted a new decision, and denied plaintiff's motion for leave to appeal (2013 NY Slip Op 87042[U] [1st Dept 2013]). On the same day it granted the reargument motion, the Appellate Division issued its new decision and order, which, by a split vote, affirmed Supreme Court's order and denied Smith's motion for summary judgment dismissing the complaint (*see Doerr v Goldsmith*, 110 AD3d 453, 453-455 [1st Dept 2013]). The majority recounted the *Bard* rule, and it cited favorably the *Bard* dissent's position that the rule is archaic and leads to unfair results (*see id.* at 453-454). The majority decided that this Court had recently ameliorated the harshness of the *Bard* rule in *Hastings*, which "recognized that an accident caused by an animal's 'aggressive or threatening behavior' is 'fundamentally distinct' from one caused by an animal owner's negligence

in permitting the animal from [sic] wandering off the property where it was kept” (*id.* at 454, quoting *Hastings*, 21 NY3d at 125). The majority continued:

“We recognize that the *Hastings* Court did not decide whether to apply the holding to dogs at that time. However, that should not be an impediment to denying summary judgment in this case. That is because this case is of an entirely different ilk than *Hastings*, *Bard* and *Petrone*. It is not about the particular actions of an animal that led to a person’s injury. Rather, it is about the actions of a person that turned an animal into an instrumentality of harm. Here, the dog was in the control of defendants at all times in the split second before the accident occurred. Had Smith not called the dog, and Goldsmith not let it go, plaintiff would have ridden past them without incident.

“[Smith’s and Goldsmith’s] actions can be likened to those of two people who decide to toss a ball back and forth over a trafficked road without regard to a bicyclist who is about to ride into the ball’s path. If the cyclist collided with the ball and was injured, certainly the people tossing the ball would be liable in negligence” (*id.* at 455).

Two Justices dissented, voting to reverse Supreme Court’s order and grant Smith’s summary judgment motion (*see id.* at 455-456 [Andrias, J., dissenting]). The dissent maintained that, in its previous decision in this case, the Court had not overlooked any material fact or principle of law that would warrant vacatur of the prior decision and order (*see id.* at 455). The dissent distinguished *Hastings* on the ground this Court had expressly limited its holding in that case to farm animals and left open the question of its application to domestic pets (*see id.* at 455-456). The dissent maintained that it would be inappropriate to extend *Hastings*’s holding to this case absent further guidance from this Court (*see id.* at 456).

Smith moved the Appellate Division for leave to appeal to this Court from that Court’s order denying her summary judgment motion, and the Appellate Division granted the motion and certified to us the question of whether its order was properly made (2014 NY Slip Op 63107[U] [1st Dept 2014]).

Dobinski v Lockhart

On the morning of May 20, 2012, plaintiff Cheryl Dobinski and her husband were riding their bicycles on the shoulder of Route 98 in Franklinville. The Dobinskis reached an area of the road that was about 60 feet from the farm of defendants George and Milagros Lockhart. At approximately the same time, Milagros Lockhart released her husband's two German shepherds from her house and onto the outdoor portion of the property. The dogs barked at the Dobinskis and ran into the road. About 10 seconds after the dogs were released, Cheryl Dobinski struck one of them, which caused her to flip over the front of her bicycle and suffer severe injuries.

Cheryl Dobinski initiated this personal injury suit in Supreme Court by filing a complaint which, as amended, asserted causes of action for negligence and for strict liability against the Lockharts. Dobinski claimed that, because the Lockharts had allowed their dogs to leave the farm and collide with her on the road, the Lockharts had been negligent in their failure to adequately supervise and restrain the dogs. Dobinski also argued that the Lockharts were strictly liable for the injuries caused by the dogs, as they had actual or constructive knowledge of the dogs' harmful propensities, including the animals' purported tendency to run onto the road. Dobinski further asserted that, by failing to restrain the dogs on the property, the Lockharts had negligently created and maintained a dangerous condition on their premises and, eventually, on the roadway. The Lockharts joined issue, and discovery commenced.

During discovery, Dobinski and her husband acknowledged that they did not have any prior familiarity with the dogs or their propensities. For their part, the Lockharts maintained that they had never received any complaints about these specific dogs or observed any vicious behavior from them. In fact, a neighbor averred she had never heard of any complaints against those two dogs or seen them interfere with traffic. The Lockharts acknowledged that, on two occasions—one before and one after Dobinski's accident—two of their other dogs had run into the road and been struck by a car. George Lockhart further stated that he sometimes exercised the dogs involved in the accident by having them chase his four-wheeler at a relatively modest pace on his property, but never off the property. Additionally, while it was uncontested that German shepherds are a breed often used as guard dogs, there was no evidence that the Lockharts had used their dogs as guard dogs.

Following discovery, the Lockharts moved for summary judgment dismissing the amended complaint. They argued that *Petrone* precluded a negligence action in this case and that the evidence adduced in discovery yielded no triable issue of fact as to strict liability because they had no actual or constructive notice of any dangerous propensity of the dogs. Dobinski opposed the motion on the ground that triable issues of fact allegedly existed with respect to the Lockharts' negligence and strict liability. In Dobinski's estimation, George Lockhart's use of a four-wheeler to exercise the dogs was tantamount to training the dogs to chase vehicles at high speed. Dobinski viewed the incident in which other dogs owned by the Lockharts had run into the road as evidence of the harmful propensities of the dogs at issue here.

Supreme Court denied the Lockharts' motion for summary judgment dismissing the amended complaint, finding that Dobinski had a viable negligence cause of action under *Hastings*. The court did not directly address Dobinski's strict liability claim. The Lockharts appealed.

The Appellate Division unanimously reversed Supreme Court's order, granted the Lockharts' motion for summary judgment dismissing the amended complaint and dismissed the amended complaint (*see Dobinski v Lockhart*, 121 AD3d 1601, 1601-1602 [4th Dept 2014]). Recognizing strict liability as the only viable theory of recovery, the Appellate Division determined that the Lockharts had "met their initial burden [on summary judgment] by establishing that they [had] lacked actual or constructive knowledge that the dog had a propensity to interfere with traffic" (*id.* at 1602). And, the Court concluded that, "[i]n opposition to the motion, [Dobinski] failed to raise a triable issue of fact in that respect" (*id.*). We granted Dobinski leave to appeal (24 NY3d 910 [2014]).

II

A

"For at least 188 years, the law of this state has been that the owner of a domestic animal who either knows or should have known of that animal's vicious propensities will be held liable for the harm the animal causes as a result of those propensities" (*Collier v Zambito*, 1 NY3d 444, 446 [2004] [citation omitted]). Under this rule, a "vicious propensity" is the "propensity to do any act that might endanger the safety of

the persons and property of others in a given situation,’ ” including behavior that is dangerous but not necessarily aggressive (*id.*, quoting *Dickson v McCoy*, 39 NY 400, 403 [1868, op of Grover, J.]).

In *Bard v Jahnke* (6 NY3d 592 [2006]), we expounded upon the relationship between ordinary negligence principles and the strict liability cause of action permitted by *Collier* and other prior decisions, concluding that strict liability’s traditional status as the predominant theory of recovery for injuries caused by a domestic animal logically forecloses recovery under a theory of negligence. In *Bard*, a farm worker was left alone in the farm owner’s barn to watch the cows, but unbeknownst to the worker, a breeding steer was among the cows; the steer attacked and injured the worker (*see Bard*, 6 NY3d at 594-595). The worker sued in strict liability and negligence, and on appeal, we rejected both claims based on the worker’s failure to demonstrate that the bull had a known vicious propensity (*see id.* at 596-599). Specifically, we held that “when harm is caused by a domestic animal, its owner’s liability is determined solely by application of the rule articulated in *Collier*,” for were we to allow a plaintiff to recover upon the typically less demanding showing of a *prima facie* case of negligence, we would “dilute our traditional rule under the guise of a companion common-law cause of action for negligence” (*id.* at 599).

Three Judges dissented, saying:

“Under the Restatement (Second) of Torts, the owner of a domestic animal who does not know or have reason to know that the animal is more dangerous than others of its class may still be liable for negligently failing to prevent the animal from inflicting an injury. This Court today becomes the first state court of last resort to reject the Restatement rule. I think that is a mistake. It leaves New York with an archaic, rigid rule, contrary to fairness and common sense, that will probably be eroded by ad hoc exceptions” (*id.* [R.S. Smith, J., dissenting]).

The dissent surveyed the nineteenth century cases creating the strict liability rule and maintained that none of them foreclosed a negligence action, and the dissent opined that *Hyland v Cobb* (252 NY 325 [1929]) and *Dickson* left open the possibility of a negligence action by declaring that “‘negligence by an owner,

even without knowledge concerning a domestic animal's evil propensity, may create liability' " (*Bard*, 6 NY3d at 602, quoting *Hyland*, 252 NY at 326-327). The dissent conceded that the majority's rule found support in our previous affirmances of Appellate Division decisions establishing strict liability as the sole viable theory of liability arising from animal-related injuries (*see id.*, citing *Kennet v Sosnitz*, 260 App Div 759 [1st Dept 1940], *affd* 286 NY 623 [1941], *Brown v Willard*, 278 App Div 728 [3d Dept 1951], *affd* 303 NY 727 [1951]). The dissent nonetheless found that those cases should not control the matter in light of the Restatement's sounder rule (*see id.* at 602). The dissent predicted that we would eventually have to abandon the rule or recognize numerous unworkable exceptions to it in order to avoid harsh results, especially in cases involving exceptionally dangerous animal behavior directed at vulnerable or particularly sympathetic plaintiffs (*see id.* at 602-603).

We have consistently adhered to *Bard* in several subsequent cases, concluding that *Bard*'s prohibition against negligence actions arising from harms caused by domestic animals served to foreclose the plaintiffs' negligence claims (*see Bloomer v Shauger*, 21 NY3d 917, 918 [2013]; *Smith v Reilly*, 17 NY3d 895, 895-896 [2011]; *Petrone*, 12 NY3d at 547-550; *Bernstein v Penny Whistle Toys, Inc.*, 10 NY3d 787, 788 [2008]). Among those cases, *Petrone* and *Smith* have particular relevance to plaintiffs' claims here regarding a dog owner's negligence in failing to restrain his or her animal.

In *Petrone*, the plaintiff mail carrier saw that there was no fence around the yard in front of the defendant's house, and the defendant's Rottweiler was lying unrestrained in the yard (*see id.* at 547-548). Fearful of the dog, the plaintiff started walking away to her car, and when she turned around, she saw the dog running after her (*see id.*). The plaintiff ran away and jumped through the window of her car, injuring herself (*see id.*). The dog left the defendant's property and reached the plaintiff, but it did not harm her (*see id.*). The plaintiff sued the defendant for negligence and strict liability, asserting, among other things, that the defendant's failure to keep the dog contained on his property, as required by the local leash law, was proof of actionable negligence on his part (*see id.* at 549).

We rejected the plaintiff's claims as she failed to prove the defendant's prior knowledge of the dog's alleged vicious propensity, saying, "defendant's violation of the local leash law

is irrelevant because such a violation is only some evidence of negligence, and negligence is no longer a basis for imposing liability after *Collier* and *Bard*" (*id.* at 550 [internal quotation marks and citation omitted]). Two Judges joined in a concurring opinion, in which they stated that, while *Bard* was wrongly decided, the precedential force of that decision bound them to follow it (*see id.* at 551-552 [Pigott, J., concurring] ["(A)lthough I would not have joined the majority's opinion in *Bard*, I must, on constraint of that decision, concur in the majority's opinion in the present case"]).

In *Smith*, we similarly addressed an allegation of negligent supervision of a domestic animal other than a farm animal. There, the principal plaintiff was riding his bicycle when the defendant's dog ran into the road and collided with the plaintiff, propelling him over the handlebars of the bike and injuring him (*see Smith v Reilly*, 83 AD3d 1492, 1493 [4th Dept 2011]). The plaintiff commenced a personal injury suit against the defendant, pursuing strict liability and negligence theories of recovery (*see id.*). A divided panel of the Appellate Division denied the defendant's motion for summary judgment dismissing the complaint (*see id.* at 1493-1494). The majority found that the defendant's deposition testimony about her dog's tendency to "bolt" out the door of her home had created a triable issue of fact as to whether her dog had known vicious propensities (*id.*). The Appellate Division dissenters maintained that the plaintiff had not raised a triable issue of fact as to vicious propensity and that no other cause of action is available in this context under *Bard* (*see id.* at 1494-1495 [Scudder, P.J., and Smith, J., dissenting]). On further appeal, we reversed the Appellate Division's order, insisting that the plaintiff had to demonstrate that the defendant knew of the dog's vicious propensities before the plaintiff could recover for the injuries caused by the defendant's failure to restrain the dog (*see Smith*, 17 NY3d at 895-896). Thus, as in *Petrone*, we concluded that only a strict liability claim, and not a negligence cause of action, will lie based on a pet owner's failure to confine the animal to the owner's property or to restrain the animal from running into another person.

Subsequently, in *Hastings*, we considered an unusual variant of negligent animal control which implicated an individual's overlapping responsibilities as an owner of farmland and an owner of farm animals. There, the plaintiff was driving her van and hit the defendants' cow, which had wandered off their

farm and onto the public roadway without any apparent obstruction from the dilapidated fence around their property (see *Hastings*, 21 NY3d at 124). The plaintiff and her husband filed a complaint asserting negligence and strict liability causes of action against the defendants, and the defendants moved for summary judgment on the grounds that the cow's vicious propensity had not been shown and that negligence was not a viable theory of liability under *Bard* (see *id.* at 125).

We unanimously decided that the defendants were not entitled to summary judgment and “h[e]ld that the rule of *Bard v Jahnke* does not bar a suit for negligence when a farm animal has been allowed to stray from the property where it is kept” (*id.* at 124 [citation omitted]). We took care not to disturb the *Bard* rule, instead explaining that the *Bard* line of cases addressed claims of “aggressive or threatening behavior by an [] animal” (*id.* at 125)—in other words, claims that the owners of domestic animals engaged in negligent conduct by failing to adequately suppress the animals' harmful behavior. By contrast, we noted, the case before us involved a claim that was “fundamentally distinct from the claim made in *Bard* and similar cases: It is that a farm animal was permitted to wander off the property where it was kept through the negligence of the owner of the property and the owner of the animal” (*id.*). In our view, the *Bard* rule had no bearing on the issue of a farm owner's negligence in failing to keep his or her farm animals on the property, as applying the *Bard* rule in such circumstances would improperly “immunize defendants who take little or no care to keep their livestock out of the roadway or off of other people's property” (*id.*). We

“therefore h[e]ld that a landowner or the owner of an animal may be liable under ordinary tort-law principles when a farm animal—i.e., a domestic animal as that term is defined in Agriculture and Markets Law § 108 (7)—is negligently allowed to stray from the property on which the animal is kept,” and hence the plaintiff had a viable negligence claim against the defendants (*id.* at 125-126).

However, we cautioned that we were “not consider[ing] whether the same rule applies to dogs, cats or other household pets” because “that question [had to] await a different case” (*id.* at 126).

On the same day we handed down our decision in *Hastings*, we faithfully applied the *Bard* rule in another case, rebuffing

the plaintiff's request to overrule *Bard*. In *Bloomer v Shauger*, the plaintiff was helping the defendant to control the defendant's distraught horse by holding the horse's halter (see *Bloomer*, 21 NY3d at 918). When the defendant was in the process of placing a lead line on the skittish animal, the plaintiff tried to assist him, and the horse jerked its neck back in response to the defendant's attempt to restrain it, causing the halter ring to sever the plaintiff's finger (see *id.* at 918; see also *Bloomer v Shauger*, 94 AD3d 1273, 1273-1274 [3d Dept 2012]; brief for plaintiff-appellant in *Bloomer*, 21 NY3d 917 [2013], available at 2012 WL 8681056, *10-12). The plaintiff sued the defendant on a theory of strict liability and for negligence (see *Bloomer*, 94 AD3d at 1273-1274). The Appellate Division dismissed the plaintiff's negligence claim on constraint of *Bard*, and it dismissed the strict liability cause of action based on the plaintiff's failure to show that the horse had a known vicious propensity (see *id.* at 1274-1277). One Justice dissented, urging that because the *Bard* rule was "extremely restrictive" and harsh, it should be applied narrowly in a manner that would allow the plaintiff to recover (*id.* at 1277 [Garry, J., dissenting]).

On appeal to us, the plaintiff contended that the Appellate Division had erred in finding his showing of vicious propensity inadequate (see brief for plaintiff-appellant in *Bloomer*, 21 NY3d 917 [2013], available at 2012 WL 8681056, *2-3, *13-17). In the alternative, the plaintiff argued that, while the *Bard* rule would ordinarily limit his ability to recover for the defendant's alleged negligence, that rule should not bar his negligence claim under the facts of his case. He said, "This case is significantly different from the four cases which have come before this Court since *Collier*" because "in none of the cases that have been before this Court has the owner caused the animal to engage in the injury[-]causing conduct" (*id.* at *18). Thus, the plaintiff asserted that the defendant was liable insofar as "the [defendant]'s conduct" in placing the lead line on the horse "caused [the horse] to injure [the plaintiff]" (*id.* at *18-19). To the extent *Bard* was to the contrary, the plaintiff "respectfully request[ed] that this Court reverse *Collier* and *Bard* and adopt the Restatement rule to allow appellant and those injured by domestic animals to recover under theories of common law negligence," asserting that those cases were wrongly decided for the reasons stated by the *Bard* dissent (*id.* at *21). The plaintiff reiterated this point in his reply brief (see

reply brief for plaintiff-appellant in *Bloomer*, 21 NY3d 917 [2013], available at 2013 WL 3818045, *1-3).

We were unmoved by the plaintiff's requests that we overturn *Bard* or permit his negligence action to proceed on the premise that the defendant's conduct, rather than the horse's instinctive behavior, caused the horse to injure the plaintiff. In a memorandum decision issued on the same day as *Hastings*, we unanimously affirmed the Appellate Division's order (see *Bloomer*, 21 NY3d at 918). Specifically, we declared:

“Under the rule of *Bard v Jahnke* (6 NY3d 592 [2006]), plaintiff cannot recover in the absence of a showing that defendant had knowledge of the animal's ‘vicious propensity’ or ‘propensity to do any act that might endanger the safety of the persons and property of others’ (6 NY3d at 596-597, quoting *Collier* [1 NY3d at 446]). No such showing was made here. A tendency to shy away when a person reaches for a horse's throat or face is, as the record shows, a trait typical of horses. The Appellate Division correctly held that a vicious propensity cannot consist of ‘behavior that is normal or typical for the particular type of animal in question’ (*Bloomer v Shauger*, 94 AD3d 1273, 1275 [2012])” (*id.* at 918).

Significantly, despite that a farm animal was involved in *Bloomer*, our decision there was fully consistent with both *Bard* and *Hastings*, as *Bloomer* did not involve *Hastings*'s unique intersection of the defendant's obligations as a landowner and his obligations as the owner of a domestic animal.

B

Acknowledging that *Bard* and its progeny would otherwise preclude them from bringing negligence causes of action against defendants in these cases based on the injuries caused by defendants' animals, plaintiffs in the cases at bar propose two potential bases on which they might avoid *Bard*'s prohibition against negligence liability. Plaintiffs' theories are: (1) our holding in *Hastings* logically extends to cover domestic pets, such that the failure to properly restrain a dog or confine it on the owner's property may create negligence liability; and (2) defendants' affirmative negligent acts in using their dogs as instrumentalities of harm created negligence liability because, unlike in *Bard* and similar cases involving animals instinctively

harming others without the direct control of their owners, such affirmative acts constitute the negligence of the owners rather than of their pets. In their briefs, plaintiffs do not ask us to overrule *Bard*, though they complain about some of its purported shortcomings. For the reasons that follow, I reject plaintiffs' arguments with respect to these two proposed exceptions and conclude that the *Bard* rule controls.

Contrary to plaintiffs' suggestion, our decision to impose liability on the owner of a farm animal in *Hastings*, based on the owner's failure to keep the animal from wandering off his or her property, does not logically create a negligence cause of action for the failure to restrain a dog on one's premises or in other locations. As we noted in *Hastings* itself, there is a "fundamental[] distinct[ion]" (*Hastings*, 21 NY3d at 125) between a domestic animal owner's failure to prevent his or her animal from behaving dangerously, which is generally not an actionable form of negligence, and a farm owner's decision to allow his or her farm animals to wander freely onto a public road or someone else's property, which as a commonsense matter violates societal expectations in a manner that gives rise to negligence liability. And, *Hastings's* treatment of the failure to keep farm animals on the owner's property as distinct from the negligent supervision of other types of domestic animals makes sense. In that regard, domestic farm animals—horses, cows, goats, sheep, swine, ducks and the like (*see* Agriculture and Markets Law § 108 [7])—either are difficult to train to remain on one's premises of their own accord (e.g., cows, goats, sheep, fowl), have a proclivity to bolt without confinement (e.g., horses) or have a particularly hazardous combination of a large size and a habit of extremely aggressive behavior related to establishing dominance with respect to humans and other animals (e.g., bulls, pigs). In recognition of the unique peril that arises from allowing farm animals to wander off a farm unsupervised and unconfined, the legislature requires such animals, by statutory definition, to be "raised in confinement" and under state license (*id.*).

In other words, in New York, society has long recognized that the owners of farm animals have a duty to exercise reasonable care in keeping such exceptionally dangerous or errant creatures on the owners' premises, and in *Hastings*, we recognized that duty in holding the defendant farm owner liable for his negligent failure to confine his cow on his property. Indeed, it is a matter of common expectation among people in

general that a 1,500-pound cow, a 400-pound pig or an unruly goat will not be permitted to wander freely into traffic or onto a neighbor's yard, mangling people and property alike.

By contrast, the ownership of most domesticated non-farm animals does not naturally necessitate such a duty of care and restraint on the part of their owners because non-farm animals pose different risks than farm animals. Domestic pets are more apt to stay on their owners' premises of their own volition as a result of the domestication and training that have been reinforced over the centuries of humanity's near-familial relationship with its pets. And, few lawfully kept domestic pets reach the levels of size, aggressiveness and desire to wander that many farm animals do.

Furthermore, at least since our decision in *Bard*, New York society has had no reasonable expectation that all domestic pets will be perpetually confined in their homes or physically restrained at all times. Pet owners often take their pets to public places in close proximity to other people, both on leashes and off of them depending on the location, and the people in those areas have come to expect this phenomenon and to approach such situations with caution. The average New Yorker knows or ought to know that he or she will encounter insufficiently restrained pets, which are not confined to the owner's premises and may harm others depending on the disposition of the pet and the degree of training it has received. In public parks, one regularly encounters dog owners with their unrestrained canine companions, whereas one almost never sees, and certainly never expects to see, someone taking his or her cow for a walk in the neighborhood. As *Bard* effectively holds, New York society has learned to adequately mitigate the perils of unrestrained pets by a combination of strict liability, statutory regulation and the prudence of those who approach these animals, without adopting a negligence cause of action based on the failure to supervise or restrain a domestic pet. Given the clear differences in the risks posed by farm animals and pets, there is no reason to extend the rule of *Hastings* to authorize negligence liability resulting from faulty supervision of a pet.

More fundamentally, plaintiffs' proposed expansion of liability under *Hastings* would run directly counter to our precedents, including *Petrone* and *Smith*. After all, in *Petrone* we rejected a claim that negligence should lie where a dog owner allowed his dog to stray from his property and chase a

mail carrier (see *Petrone*, 12 NY3d at 547-550). And in *Smith*, we concluded that a dog owner's failure to restrain her dog from running into the street and hitting a bicyclist did not give rise to a negligence cause of action (see *Smith*, 17 NY3d at 895-896). An extension of *Hastings* would clearly contradict those decisions because, under *Hastings*, the owner of a farm animal may be held liable for his or her negligence in permitting an animal to wander unrestrained and injure people, whereas in *Petrone* and *Smith*, we concluded that the defendants were relieved of negligence liability for engaging in essentially the same behavior with respect to their dogs, which were permitted to roam about and harm others. Rather than extending *Hastings* to create an inherent contradiction in our case law, I choose to harmonize *Petrone*, *Smith* and *Hastings* by finding that the *Hastings* rule is limited to cases involving farm animals. Thus, as the majority observes (see majority mem at 1116), the *Hastings* rule does not render defendants liable in the instant cases, both of which involve claims of negligence in the handling of domestic pets rather than the failure to keep farm animals from wandering off the farm.

Following the reasoning of the Appellate Division majority in *Doerr*, plaintiffs in the instant cases now proclaim that *Bard* and its progeny do not preclude their negligence claims because defendants engaged in affirmative acts of control over their pets, whereas in the *Bard* line of cases, the animals injured people of their own volition after their owners failed to restrain them. But this argument does not withstand close scrutiny. To see the flaws in this direct-control-versus-failure-to-restrain theory, one need only look at the Appellate Division majority's attempt to apply that theory in *Doerr*.

In *Doerr*, the Appellate Division majority tried to distinguish *Bard* and *Petrone* on the ground that defendant Smith, unlike the defendants in those cases, affirmatively used the dog as an instrumentality of harm by calling it to cross over the road to her; such a case "is not about the particular actions of an animal that led to a person's injury," the Appellate Division majority said, but rather "is about the actions of a person that turned an animal into an instrumentality of harm" (*Doerr*, 110 AD3d at 455). But, contrary to the Appellate Division's supposition, there is no material difference between the act of negligently failing to restrain an instrument of danger and the act of negligently ordering such an instrument to possibly cause harm because both forms of conduct have the same tendency to

injure others. Regardless of whether a person releases a dog to instinctively roam near a high-traffic bicycle path or urges the dog to cross the same path, there is some likelihood that the dog will run into a bicyclist and injure him or her. In both scenarios, then, the dog owner is equally capable of preventing harm to the cyclist and equally responsible for that harm, and consequently, the dog owner should face equal liability, or lack thereof, for his or her negligence.

Stated differently, neither the calling of a dog across the road nor the release of a dog near the road can cause injury without the volitional conduct of the dog, thereby making the two actions comparable for purposes of negligence law. Where the owner calls the dog across the road, the dog still will not cross the road and into the path of a bicyclist without instinctively and willfully choosing to do so. If the dog ignores the owner's call, as dogs are sometimes wont to do, no injury occurs. Likewise, if a dog is released from restraint at the side of a road, the dog may instinctively choose to wander into the way of a cyclist, to do nothing, or to wander away from the road, but only its choice, rather than the owner's act of releasing it from its bonds, will result in any injury. In both scenarios, then, the dog's volitional behavior ultimately creates the harm, and the owner's act or omission does not cause the injury.

This is why, in *Doerr*, the Appellate Division majority's assertion that the actions of Smith and her boyfriend in releasing and calling the dog across the biker's path were akin to those of a couple tossing a ball across a roadway must fall flat (*see Doerr*, 110 AD3d at 455). When a person tosses a ball, the object has no will of its own, and hence the object's nonexistent volitional behavior cannot cause any injury. The ball can do nothing other than obey the laws of physics, and the ball must move if the human actors carry out their wish for it to do so. While the individuals hurling the ball may not know the exact path it will follow, they are liable for negligence so long as it is reasonably foreseeable that the ball's travel through the air might place it on a collision course with another person. By contrast, dogs may deem their masters' commands considerably less compelling than the forces of acceleration and gravity. A dog owner's call may prompt the dog not to move at all, much less collide with someone, and therefore negligence cannot lie based on the owner's order. This inability to predict or control how a dog will interpret, react, and respond to its surroundings is why negligence cannot lie based on the owner's order

alone. With respect to the ball-tossing scenario, the more apt analogy would be between a person throwing a ball in someone's way and a person tossing a small dog in someone's way, causing the dog to hit the person regardless of its desire to avoid such a fate. Plainly, such a case is not presented in either of these appeals.

Not only does plaintiffs' proposed distinction between an omission of restraint and an act of control defy the practical realities of pet behavior, but it is also inconsistent with basic negligence principles. In that regard, the existence of liability for negligence generally does not depend on whether the negligent conduct of the tortfeasor is deemed an act or an omission, but rather on whether the individual violates a common-law duty to exercise reasonable care to prevent certain harms (see 79 NY Jur 2d, Negligence § 10; see generally *Palsgraf v Long Is. R.R. Co.*, 248 NY 339, 342, 344 [1928]). Because *Bard* does not impose a duty on a pet owner to exercise reasonable care in the control of a pet that has no known vicious propensity, the owner's failure to exercise such care, whether by act or omission, does not furnish a basis for liability. It is presumably for this reason that we have never drawn the illusory act/omission distinction now urged by plaintiffs. In fact, as discussed above, in *Bloomer*, we declined the plaintiff's invitation to draw such a distinction.

One of my colleagues, who dissents in *Doerr* only, deems the Appellate Division's rationale in that case "not entirely satisfactory" (dissenting op in *Doerr* at 1142), yet offers a rephrased version of the same unsatisfactory rationale, declaring that "where a plaintiff sustains injury as the direct result of actions that a domestic animal took under the owner's direction and control, a cause of action in negligence should lie" (*id.*). However, this proposed rule proceeds from the same premise, and hence suffers from the same logical flaws, as the Appellate Division's decision. Again, where an owner calls to his or her animal, such that the animal is under the purported "direction and control" of the owner, the owner's call still merely sets off a "chain of events" (dissenting op in *Doerr* at 1142) rather than a certain and direct accident.¹ Even in the face of a direct command, the animal may still decide to ignore the instruction,

1. To the extent the *Doerr* dissent's comment about a "chain of events" (dissenting op in *Doerr* at 1142) is a reference to the issue of proximate cause, that is simply beside the point here. In this Court and the courts below, the parties in *Doerr* have never framed the issue here as one of proximate cause,

(n. cont'd)

follow the instruction perfectly, take the requested action for reasons unrelated to the instruction or carry out the requested action in an unanticipated way. Since there is no way to know why the animal did what it did, there is no principled basis on which to impose negligence liability.

To be sure, in *Doerr*, Smith seemingly attempted to control her dog by calling to it, and the dog did decide to cross the bike path after Smith made that call. But it does not follow that Smith had unquestioned command of the dog, or that the dog chose to cross the bike path at the moment of Doerr's approach as a direct result of Smith's command. For instance, Smith's dog might have crossed the bike path because it was attracted to the appearance of the grass on the other side. The dog could have completely failed to hear Smith's call over the din of a busy park, or misunderstood the order, and yet it still ran across the path because it was naturally inclined to run toward the area that it saw immediately in front of it. Perhaps the dog initially responded to Smith's call prior to Doerr's arrival on the scene, but then decided to move at a leisurely pace, lingering too long on the path to finish crossing before Doerr arrived.

In any of these scenarios, Smith might have hoped that the dog would choose to follow her command, but she did not know that it would, nor did she know that the dog would fail to dodge the oncoming bike or to otherwise proceed cautiously in response to her command. It is true that these various possibilities are speculative on this record, but so is the dissent's supposition that Doerr's injury was the "direct result" of Smith's "direction and control" of the dog (dissenting op in *Doerr* at 1142). The most that can be said is that Goldsmith's release of the dog enabled it to proceed unrestrained across the bike path, and that the dog crossed the path after Smith called to it. Ultimately, though, even if the dog decided to cross the path at its typical pace in order to please Smith, that was the dog's choice. As we have repeatedly made clear in the *Bard* line of

and as a result, this Court cannot decide this case on that basis. More to the point, any attempt to cast proximate cause as the sole decisive issue in cases involving injury caused by animals must fail because, even where there is adequate evidence that an animal owner's conduct proximately caused an accident via his or her interaction with the animal, the owner has nonetheless not breached any duty of care recognized under New York's law of negligence. Indeed, our prior decisions in this area have never turned on the lack of proof of proximate causation, and decisions such as *Bloomer* denied relief to the plaintiffs in the face of clear evidence of proximate causation because the duty element of a negligence action was lacking.

cases, the dog's choice does not result in negligence liability for the owner.

Were this analysis of *Doerr* not already enough to show that plaintiffs are taking a flawed approach by advancing this act/omission distinction, Dobinski's belated and perplexing attempt to apply this theory to her case confirms that plaintiffs' theory is unworkable. At oral argument before this Court, Dobinski's counsel contended for the first time that Milagros Lockhart's conduct in releasing the dogs onto the exterior portions of her property 10 seconds before the accident constituted an affirmative act on her part, which could support negligence liability. At first glance, this would be a plausible argument if one were to adopt the affirmative act theory advanced by the Appellate Division in *Doerr*. When a pet owner lets a dog outside to run near the highway, he or she plainly sets an instrumentality of harm in motion just as much as if he or she had called the dog to the highway. As in the case of an owner ordering a dog to come, it is ultimately the dog's decision to enter the roadway that causes harm to passersby, notwithstanding that the owner has enabled or encouraged the dog's movement. That being so, Dobinski's case stands on the same footing as *Doerr*'s under the act/omission distinction, and if plaintiffs were correct, negligence would lie in both cases. Yet the possibility that plaintiffs' theory might create negligence liability in *Dobinski* shows that their proposal to distinguish the *Bard* line of cases in this way would soon lead to the abrogation of our precedent, for in *Petrone* and *Smith*, we rejected negligence liability in situations virtually identical to the one in *Dobinski*. Thus, the adoption of plaintiffs' proposed affirmative act theory threatens to swallow *Petrone* and *Smith* whole.

Accordingly, plaintiffs' efforts to extend the *Hastings* principle to this case and to distinguish the *Bard* line of cases are unavailing, and they do not assert any other grounds for declining to apply the *Bard* rule to their cases. Therefore, in my view, the rule of *Bard* controls these cases and bars plaintiffs' negligence claims arising out of the injuries caused by defendants' domestic pets.

Having disposed of plaintiffs' contentions, there is no need to go further to resolve their negligence claims. Nonetheless, I note that, while refraining from any direct attack on the precedential force of *Bard*, plaintiffs make some passing criticisms of our decision in *Bard* at various points in their briefs. My colleagues, who dissent in both of the instant appeals rather than

limiting their disagreement to *Doerr*, urge that we cast aside *Bard* (see dissenting op in both cases at 1142), notwithstanding that even plaintiffs do not ask us to go so far.² A response is in order.

Plaintiffs and the dissent seem to lament various aspects of *Bard*. As did the *Bard* dissenters, the plaintiffs and the dissent imply that *Bard* is inconsistent with our older case law, such as *Dickson*, which recognized a cause of action for the negligent failure to restrain horses and cows (see dissenting op in both cases at 1142-1147). Citing the dissent in *Bard*, plaintiffs note the alleged harshness of the *Bard* rule in denying recovery to plaintiffs who suffer animal-related injuries, and like the *Bard* dissent, plaintiffs and the dissent point out that New York is an outlier in rejecting the sort of negligence action endorsed by the Restatement (Second) of Torts in this context (see dissenting op in both cases at 1147-1149).

However, even if the issue of *Bard*'s continued status as precedent were properly before us—and it is not—I would not be convinced to overturn *Bard* based on the very arguments that we considered and rejected in that case. In general, we do not cast aside precedent unless it has become unworkable, increasingly irrational and/or increasingly unjust over time (see *People v Peque*, 22 NY3d 168, 194 [2013]; *Policano v Herbert*, 7 NY3d 588, 604 [2006]). Here, none of those things has occurred. No party to this litigation has suggested that the courts are incapable of consistently applying the *Bard* rule. To the contrary, even plaintiffs acknowledge that *Bard* provides an easy-to-apply bright-line rule that consistently proves fatal to negligence claims arising from injuries caused by certain animals. And, while plaintiffs claim the rule is harsh, they point to no evidence or scholarly study indicating that the supposed harm occasioned by *Bard* has increased since the issuance of *Petrone*, *Smith* and our other decisions upholding *Bard*. Indeed, the only thing that has changed since we last turned away a challenge to the *Bard* rule just two years ago (see *Bloomer*, 21 NY3d

2. At oral argument in this Court, Doerr's counsel, while not asking that *Bard* be overruled, requested a "broader ruling" in Doerr's favor and made references to the Restatement rule, which may have been made in support of the contention in Doerr's brief that the holding of *Hastings* should be broadened to cover his case. Even if counsel's oral presentation could somehow be interpreted as a belated request to overrule *Bard*, it would be inappropriate for us to reevaluate the continuing validity of a recently reaffirmed precedent absent full briefing of the issue from both parties and any interested amici.

at 918) is the composition of this Court, which is plainly not an appropriate basis on which to set aside precedent (*see Peque*, 22 NY3d at 194).

To be sure, plaintiffs' and the dissent's complaints about *Bard* are not baseless, but the same could be said of those criticisms when they were raised by the *Bard* dissent almost 10 years ago. Then, as now, we had issued decisions potentially permitting negligence actions against the owners of horses loosed from their confines—cases which can be squared with *Bard* and *Hastings* to the extent they involved farm animals (*see Dickson*, 39 NY at 401 [op of Dwight, J.]; *cf. id.* at 402-403 [op of Grover, J.]; *see also Benoit v Troy & Lansingburgh R.R. Co.*, 154 NY 223, 225-227 [1897]) and which, as the *Bard* dissent conceded (*see Bard*, 6 NY3d at 601-602 [R.S. Smith, J., dissenting]), could be read as either implicitly supporting (*see Hyland*, 252 NY at 326-327) or rejecting (*see Vrooman v Lawyer*, 13 Johns 339, 339 [1816]; *Kennet*, 286 NY at 624; *Brown*, 303 NY at 728) the Restatement's rule. Thus, when *Bard* was decided, the Court was aware that there was some precedent to support a conclusion different from that which it reached.

Significantly, too, and contrary to the dissent's assertions (*see* dissenting op in both cases at 1147-1149), the *Bard* Court's evaluation of policy and precedent remains convincing. As noted, we decided *Bard* consistently with older decisions such as *Dickson*, which simply stand for the proposition, later reaffirmed in *Hastings*, that the owner of a farm animal—a horse in *Dickson*—is liable for negligently allowing such an animal to stray onto a public roadway (*see Dickson*, 39 NY at 401-403). The *Bard* Court remained faithful to the *Dickson* line of cases insofar as those cases do not dictate that owners of domestic animals may be sued for negligence based on other forms of misfeasance in the handling of their animals, and pre-*Bard* precedent suggests that no viable cause of action exists for general negligence in the control or supervision of a domestic animal (*see e.g. Vrooman*, 13 Johns at 339). Our post-*Bard* decisions applying the *Bard* rule, such as *Petrone* and *Smith*, flow logically from firmly rooted decisional law holding that “domestic favorites such as the family dog or cat, as emblematic of a suburban community as a cow or horse is to the standard farm, are, as a norm, frequently allowed to romp unguarded or unattended” because “[a]s a general proposition ‘[a] dog, unless vicious, has a right in the highway, and presumably, absent evidence of negligence, the dog’s owner cannot be charged with li-

ability for injury caused [merely] by its presence therein’ ” (*Young v Wyman*, 159 AD2d 792, 793-794 [3d Dept 1990], quoting 3 NY Jur 2d, Animals § 48 at 625-626, *affd* 76 NY2d 1009 [1990]; *Kennet*, 286 NY at 624 [affirming decision below that a dog owner could not be liable for failing to prevent his dog from running off his premises and knocking down the plaintiff on the sidewalk]). Even the Restatement rule, which we rejected in *Bard*, does not treat a domestic pet’s untrammelled wanderings as actionable negligence (see Restatement [Second] of Torts § 518, Comment *j*). Consequently, the *Bard* dissent’s suggestion that the Court was ignoring its past decisions rings as hollow now as it did then.

My colleague dissenting only in *Doerr* points out that, in some unusual cases, the facts of the animal-related injury-causing occurrence will not fit comfortably within the confines of the vicious propensity doctrine announced in the aforementioned precedent (see dissenting op in *Doerr* at 1140-1142).³ As we have recognized, however, “delineation of limits of liability in tort actions is usually determined on the basis of considerations of public policy” (*Bovsun v Sanperi*, 61 NY2d 219, 228 [1984]). When *Bard* was decided, we concluded that the benefits of a bright-line rule limiting recovery to a theory of strict liability outweighed the concerns of those few cases for which application of the rule may seem unsatisfactory. That determination remains reasonable today because there are legitimate policy reasons to retain the *Bard* rule, including its ability to keep liability within manageable limits, its bright-line guidance and its consistency with societal expectations. At its heart, the *Bard* principle is a commonsense rule of notice. Absent awareness of a domestic animal’s previously demonstrated tendency to harm others, the owner should not bear the costs of the animal’s instinctive decisions, notwithstanding that animals by their nature tend to pose some risk of harm, especially when poorly directed or left unrestrained. Notice rules such as this

3. Along these lines, I also reject the *Doerr* dissent’s suggestion that “[t]he rule of vicious propensities should have no application here, where we are not faced with any aggressive or menacing animal behavior” (dissenting op in *Doerr* at 1141). We have held that “vicious propensity” is a term of art which applies not only to aggressive or threatening behavior, but also to “propensity to do any act that might endanger the safety of the persons and property of others in a given situation” (*Collier*, 1 NY3d at 446 [internal quotation marks and citation omitted]). Accordingly, the owner of an animal does not lose the protection of *Bard*’s holding simply because the animal chooses to do something dangerous, but not necessarily aggressive or menacing.

are hardly oppressive or alien to our law, and they permit our citizens to manage their affairs based on the known risks of daily life.

Abandoning or eroding *Bard*'s bright-line rule would harm pet owners and alter societal expectations. Pet owners and their insurers are currently entitled to rely on the *Bard* rule to plan their future conduct and their insurance needs, and changing the rule now would risk unfairly disrupting their expectations. Additionally, if *Bard* were overruled and negligence suits were permitted to proceed against pet owners, a violation of a local leash law may be proof of a pet owner's negligent failure to control his or her pet, and thus negligence suits might create a de facto private cause of action under local leash laws, effectively ignoring the will of any local legislature that has decided not to provide for such actions. While I acknowledge that out-of-state courts that have addressed the issue have nearly uniformly recognized a negligence cause of action arising from the handling of all domestic animals, the same was true at the time *Bard* was decided (*see Bard*, 6 NY3d at 600 [R.S. Smith, J., dissenting]), and that is not a sufficient reason to overrule our long-standing and recently reaffirmed precedent.

At bottom, regardless of our individual positions on the *Bard* rule, we should not revisit our adoption and consistent retention of the rule today, as neither plaintiffs' jabs at *Bard* nor the dissent's concerns are sufficiently weighty to overcome critical considerations of stare decisis. A state's highest court is, first and foremost, charged with creating a coherent body of settled law by which members of society may order their affairs. This mission inevitably reflects the policy choices of predecessor judges that decide an issue and thereby create a precedent, and is inevitably undermined if successor judges succumb to the very human impulse to cast aside or chip away at those rulings with which they simply disagree. Indeed, plaintiffs' veiled criticisms of *Bard* call to mind a variation of an observation made by the author of the *Bard* dissent in a different context: "Essentially this argument [for rejecting the current rule] has been ably made by three dissenting Judges [and two concurring Judges] in two of our prior cases" in *Bard* and *Petrone*, "[b]ut I respectfully suggest that, at this late date, the question should be considered settled" (*People v Giles*, 24 NY3d 1066, 1073 [2014, Smith, J., concurring]). Under our precedent, plaintiffs' negligence claims must fail because the particular

exceptions to the *Bard* rule proposed by plaintiffs are incompatible with *Bard* and its progeny. Having been presented with no alternative theory of recovery, I neither reject nor endorse any other potential legal theory or exception to the *Bard* rule not advanced by the parties in these cases.⁴

In *Dobinski*, plaintiff Dobinski pleaded a strict liability cause of action in addition to her negligence claim. However, as the majority rightly concludes (*see* majority mem at 1116), Dobinski cannot proceed on her strict liability claim on this record because she did not sufficiently demonstrate that the Lockharts were aware that their dogs had a propensity to run into the road and pursue bicyclists. In their motion papers and depositions, the Lockharts stated, without contradiction, that they had never known their dogs to run into the road or approach bicyclists, and their neighbor confirmed that the dogs had no known tendency to interfere with traffic. Thus, the Lockharts carried their initial burden on summary judgment of showing that they did not know of any vicious propensities of their dogs.

In response, Dobinski failed to create a triable issue of fact by showing that the Lockharts had notice of the dogs' proclivity to harm others. Although Dobinski argues that the Lockharts trained the dogs to run after vehicles at high speed, the record shows that George Lockhart merely prompted the dogs to follow his four-wheeler from time to time at a slow pace for exercise purposes, and there is no evidence that the Lockharts trained their dogs to generally chase vehicles, including bicycles, outside their farmland or to chase vehicles at a high rate of speed. Nor does it matter that, in separate incidents before and after Dobinski's accident, the Lockharts' other dogs had run into the road, as those dogs' propensities cannot demonstrate that the entirely different dogs at issue here had a tendency to harm others. Likewise, even if one were to assume that the Lockharts violated the local leash law, such a violation would only be some proof of negligence and could not establish strict liability (*see Petrone*, 12 NY3d at 550). In the face of the Lockharts' deposition testimony and allegations, Dobinski raised no triable factual dispute about the Lockharts' knowl-

4. Likewise, because plaintiffs in these cases did not allege that defendants committed any intentional or reckless torts, I do not opine on whether the owner of a domestic animal may be held liable for supervision of an animal undertaken with the intent to cause harm to another or with conscious disregard of a known and unjustifiable risk of harm to another.

edge of their dogs' propensities, and the Appellate Division properly granted the Lockharts summary judgment on that issue (see *Smith*, 17 NY3d at 896; see generally *Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014]). I further reject Dobinski's claim that the Lockharts were liable for their alleged negligence in creating a dangerous condition on their premises and on the roadway by mishandling their dogs.

III

Based on the foregoing observations, in *Doerr*, I vote to reverse the order of the Appellate Division, grant defendant Smith's motion for summary judgment dismissing the complaint and answer the certified question in the negative. In *Dobinski*, I vote to affirm the order of the Appellate Division.

Chief Judge LIPPMAN (dissenting in *Doerr v Goldsmith* and concurring in *Dobinski v Lockhart*). In *Hastings v Sauve* (21 NY3d 122 [2013]), we held that the "vicious propensities" rule the Court had announced in *Bard v Jahnke* (6 NY3d 592 [2006]) was inapplicable to the situation created when a large farm animal was permitted to wander into a public roadway. I would conclude that the vicious propensities rule is similarly inapplicable to this case and that a cause of action can be maintained against defendant dog owner for her negligence.

As we observed in *Hastings*, *Bard* had adhered to the traditional vicious propensities rule, which requires a plaintiff to demonstrate that an owner had knowledge that the animal's behavior "reflect[ed] a proclivity to act in a way that puts others at risk of harm" (21 NY3d at 125 [internal quotation marks and citations omitted]). We further noted that our "vicious propensities" line of cases following *Bard* involved situations where the plaintiff had been bitten or somehow menaced by a dog (see *Petrone v Fernandez*, 12 NY3d 546 [2009] [plaintiff chased by dog]; *Bernstein v Penny Whistle Toys, Inc.*, 10 NY3d 787 [2008] [plaintiff bitten by dog]; see also *Smith v Reilly*, 17 NY3d 895 [2011] [dog ran into the road and collided with plaintiff's bicycle]).

To the contrary, the fact pattern in *Hastings* did "not involve aggressive or threatening behavior by any animal" and we viewed its claim—that both the owner of the cow and the owner of the property were negligent in allowing it to wander away—as "fundamentally distinct" from the claims made in the *Bard* line of cases (see *Hastings*, 21 NY3d at 125). We held that

to apply the *Bard* vicious propensities rule “in a case like this would be to immunize defendants who take little or no care to keep their livestock out of the roadway or off of other people’s property” (*Hastings*, 21 NY3d at 125).

Although the situation presented in *Doerr* is distinguishable from *Hastings*, in fundamental respects they are the same. The rule of vicious propensities should have no application here, where we are not faced with any aggressive or menacing animal behavior—quite the opposite, since defendant’s dog allegedly did exactly as she was told (see e.g. *Bloomer v Shauger*, 21 NY3d 917, 918 [2013] [“a vicious propensity cannot consist of ‘behavior that is normal or typical for the particular type of animal in question’ ”]). Moreover, application of the rule in this instance would serve only to immunize defendant from the consequences of her own negligent actions, for no reason other than that a dog happened to be involved in the accident.

I would continue to adhere to the vicious propensities rule where it appropriately applies, which would appear to be the great majority of cases involving injuries caused by domestic animals. Indeed, as noted above, we have reaffirmed that holding several times in the recent past. The rule reflects a policy decision that a pet owner is not required to anticipate and take steps to prevent aberrational, dangerous behavior from an apparently benign animal. For example, an owner will not be liable the first time a rambunctious dog welcoming a guest knocks him down the steps. Thus, in *Dobinski*, the absence of evidence that the defendants were aware their dogs had a penchant for running into the road dooms the plaintiff’s case.

The situation presented by *Doerr*, however, is distinct. Defendant did in fact control her dog, but allegedly was negligent in directing it into the path of the oncoming bicycle. The concurring opinion emphasizes a dog’s “volitional behavior” (concurring op at 1131) and I think we can all agree that a dog is not analogous to an inanimate object, as it has agency of its own. But people expend significant amounts of time and effort, and sometimes go to great expense, in an effort to train their dogs to be obedient. When those efforts are successful and the dog acts according to the owner’s command, that is not a vicious propensity, but should not necessarily result in the owner’s immunity from liability. As we recognized in *Hastings*, the vicious propensity rule does not cover every situation. By contrast to the above example of nonactionable canine greeting, were the owner to throw a ball towards the steps as the guest ascends

and the dog's inevitable chase propels the guest downward, it is clear to me that the owner's far greater culpability in the latter disaster should compel the availability of a recovery in negligence. I would place *Doerr* squarely in that category as well.

The rationale proffered by the Appellate Division below—that defendant should be held liable because her actions turned the dog into an instrumentality of harm—is not entirely satisfactory, as it could potentially encompass a much broader range of owner conduct. For instance, the owner in *Dobinski* could be seen as having launched an instrumentality of harm by letting her dogs run outside unleashed, thereby creating the opportunity for them to enter the road and injure the plaintiff. But there is a difference between setting in motion a chain of events, in the course of which an animal acts in a way that eventually injures someone, and directing the animal to engage in conduct that causes direct and immediate harm. In the first situation, the vicious propensities rule applies to the animal's dangerous behavior. In the second, the fault should be attributed to the owner.

I would hold that, where a plaintiff sustains injury as the direct result of actions that a domestic animal took under the owner's direction and control, a cause of action in negligence should lie. An exception to the vicious propensities rule is warranted under these circumstances. Indeed, a contrary rule automatically immunizing animal owners from the consequences of their own directions is too broad brush, as this situation is plainly distinguishable from our existing vicious propensities jurisprudence and contradicts any sensible logic.

FAHEY, J. (dissenting) In 2006, in *Bard v Jahnke* (6 NY3d 592 [2006]), this Court revised tort law in New York by holding that injuries caused by a domestic animal are not actionable on a negligence theory. I believe that *Bard* was wrongly decided and I would overrule it. In departing from a recent precedent it is important to answer the question: why change? *Bard* conflicts with prior, more coherent and sound doctrine. It invites many questions, and has provoked a demand for the creation of ad hoc exceptions, making a compelling justification for overruling it. I would take that step now and declare that the decision should no longer be followed. We should return to the basic principle that the owner of an animal may be liable for failure to exercise the standard of care that a reasonably prudent person would have exercised in a similar situation. I

cannot join the Court's memorandum opinion and I disagree with the analysis put forward in the concurring opinion (*see* concurring op of Abdus-Salaam, J.). Accordingly, I dissent.

I.

Before *Bard* was decided, our Court's decisions were consistent with the rule, set out in the Restatement (Second) of Torts § 518, that a plaintiff whose injuries were caused by a domestic animal may bring a negligence claim against the owner, as an alternative to an allegation that the owner is strictly liable.

Our precedents are illuminating. In *Hyland v Cobb* (252 NY 325 [1929]), we stated that "negligence by an owner, even without knowledge concerning a domestic animal's [dangerous] propensity, may create liability" (*Hyland*, 252 NY at 326-327, citing *Dickson v McCoy*, 39 NY 400 [1868]). The Restatement principle, similarly, is that "one who possesses or harbors a domestic animal that he does not know or have reason to know to be abnormally dangerous, is subject to liability for harm done by the animal if, but only if . . . he is negligent in failing to prevent the harm" (Restatement [Second] of Torts § 518 [b] [1977]).¹

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1. The Restatement (Third) of Torts preserves the doctrine:

"Many animals, while lacking the element of abnormal danger that justifies strict liability, still involve some level of risk, especially when the animal is brought into various societal settings. In light of that risk, the animal owner can potentially be held liable under the . . . negligence standard for physical or emotional harms . . . Thus, the owner of a horse who takes the horse into a city street can foresee all kinds of ways in which the horse, if not attended to, might respond to the instincts common to horses and in doing so bring about an injury. For example, if frightened the horse might bolt and injure a person standing nearby. Accordingly, the owner can be found negligent for not properly restraining the horse. Similarly, the friskiness of dogs can create a variety of risks that the possessor of the dog, under negligence law, should make reasonable efforts to control. The dog's possessor might be aware that children are playing with the dog in a way that might induce in the dog a harm-causing response. If so, the owner can be found negligent for not making a reasonable effort to intervene. The mere fact that a dog approaches people in a somewhat threatening way ordinarily does not suffice to show that the dog is abnormally dangerous. However, depending on the circumstances, it may be foreseeable that a frightened person will suffer injury while attempting rapidly to retreat. When this is foreseeable, the negligence standard may require certain precautions on the part of the owner." (Restatement [Third] of Torts: Liability for

(n. cont'd)

In *Dickson*, decided in 1868, the defendant's horse, which was allowed to roam on a public street, kicked a 10-year-old child in the face. The horse was young and playful, rather than vicious in nature, but this Court deemed an allegation of harmful propensities to be unnecessary (*see Dickson*, 39 NY at 401) and affirmed the trial court's judgment premised on a negligence-based jury verdict in the plaintiff's favor (*see id.* at 403). This Court continued to assume that injuries caused by a domestic animal are actionable on a negligence theory in subsequent decisions including *Unger v Forty-Second St. & Grand St. Ferry R.R. Co.* (51 NY 497, 500 [1873] [noting that "(a) person driving horses through a street . . . is bound to exercise that reasonable degree of diligence and care which a man of ordinary prudence and capacity might be expected to exercise under the same circumstances"]); *Hyland* (252 NY at 326-327); and more recently, *Young v Wyman* (76 NY2d 1009, 1010 [1990] [holding that "the mere presence of an unrestrained dog on the street does not give rise to a presumption of negligence on the part of its owner" but not questioning the propriety of a negligence cause of action when based on sound evidence]).

In *Collier v Zambito* (1 NY3d 444 [2004]), defendants' dog bit a 12-year-old guest in defendants' home. The plaintiff did not assert negligence liability, but rather that defendants knew or should have known of the dog's vicious propensities. This Court noted that a domestic animal that "reflects a proclivity to act in a way that puts others at risk of harm, can be found to have vicious propensities" even if its prior behavior "would not necessarily be considered dangerous or ferocious" (*id.* at 447), but held that plaintiff Collier did not raise an issue of fact concerning the defendants' knowledge of the animal's harmful propensities (*see id.* at 447-448). The Court had no occasion in *Collier* to consider whether an owner who does not know his or her animal's harmful propensities can be liable for negligence.

At the time *Bard* was decided, three of the Departments of the Appellate Division recognized that a negligence claim for animal-induced injuries could be brought as an alternative to a strict liability claim.

The First Department held that "in certain limited circumstances, claims of injury caused by animals may be based upon a theory of negligence rather than upon the strict liability

Physical and Emotional Harm § 23, Comment *i* ["Negligence liability"] [2010].)

resulting from the vicious propensity rule” (*Schwartz v Armand Erpf Estate*, 255 AD2d 35, 38 [1st Dept 1999], *lv dismissed* 94 NY2d 796 [1999]), noting that “[i]n a number of other jurisdictions, the strict liability rule of vicious propensity is viewed as co-existing with certain types of claims alleging negligence in the care and maintenance of an animal that causes damage” (*id.* at 37). The *Schwartz* Court held that

“when young children are known to be present, the landowner’s normal duty, i.e., to maintain its premises in a reasonably safe condition in view of all the circumstances, includes a duty to recognize the danger created by the presence of horses to which a small child could easily gain access, which danger, although obvious to adults, may not be appreciated by children. This duty may be satisfied in a number of ways: one might involve modifying the dangers presented by altering or adding to the fencing; another might involve appropriately warning the children of the risk” (*Schwartz*, 255 AD2d at 40 [citation omitted]).

The Second Department assumed the existence of negligence claims for animal-induced injuries in *St. Germain v Dutchess County Agric. Socy.* (274 AD2d 146 [2d Dept 2000]), holding that the plaintiffs demonstrated a triable issue of fact as to negligence, when the defendants walked a 1,000-pound heifer, not known to have vicious propensities, “along the same path used by fairgoers when they knew or should have known that heifers are generally at risk to be ‘spooked’ and bolt from their handler” (*St. Germain*, 274 AD2d at 149-150). Similarly, in *Colarusso v Dunne* (286 AD2d 37 [2d Dept 2001]), the Second Department cited our decision in *Hyland* for the proposition that “where the conduct at issue, although not vicious, results in reasonably-foreseeable injury, the courts have recognized a right to recover for common-law negligence” (*Colarusso*, 286 AD2d at 39). In *Colarusso*, a three-year-old child hugged a dog owned by the child’s day-care provider, and the dog bit the child just as the provider was calling out to him to leave the dog alone. The Second Department held that a jury might charge

“[t]he defendants, as providers of day care services . . . with the knowledge that a young child such as the plaintiff may interact with a dog in a fearless manner that befits a child’s lack of capacity to fully

understand the foreseeable consequences of such conduct; that is, that such conduct may be injurious or threatening to the dog and, if so, that the dog, even a docile and well-trained one, may instinctively engage in defensive action such as biting” (*id.* at 40).

The Third Department, similarly, “recognized that, in some circumstances, a plaintiff who sustains injury due to the conduct of an unrestrained dog may pursue a negligence claim predicated on a defendant’s failure to comply with a local animal control ordinance” (*McKee v J&J Otsego Props.*, 277 AD2d 787, 788 [3d Dept 2000], *lv denied* 96 NY2d 705 [2001], citing *Clo v McDermott*, 239 AD2d 4, 6 [3d Dept 1998]; see *Leczmar v Sanford*, 265 AD2d 728, 729 [3d Dept 1999]; *Sorel v Iacobucci*, 221 AD2d 852 [3d Dept 1995]). *Clo* is representative. There, the plaintiff was riding a bicycle along a public road when the defendants’ dog ran out in front of him, striking the bicycle and injuring the plaintiff. The Third Department ruled that a triable issue of fact existed “as to whether defendants violated the Town’s animal control ordinance” and whether any such violation “constitute[d] some evidence of defendants’ negligence” (*Clo*, 239 AD2d at 6). As the Third Department later summarized its position, there are exceptions “under certain limited circumstances” to the rule that “absent a showing of vicious propensities, a plaintiff may not recover for injuries sustained in an attack by a dog” (*Shaw v Burgess*, 303 AD2d 857, 859 [3d Dept 2003]).

At the time *Bard* was decided, only the Fourth Department adhered to a rigid rule that liability for animal-induced injuries “is not dependent upon proof of negligence in the manner of keeping or confining the animal, but is predicated upon the owner’s keeping of the animal, despite his [or her] knowledge of the animal’s vicious propensities” (*Plennert v Abel*, 269 AD2d 796, 796 [4th Dept 2000]; see *Smith v Farner*, 229 AD2d 1017, 1018 [4th Dept 1996]). Yet even the Fourth Department had not consistently rejected negligence claims in connection with domestic animals (see e.g. *Layton v Shaver*, 187 AD2d 983 [4th Dept 1992]).

Based on the cases summarized above, the law in New York, before *Bard* was decided, may be distilled as follows. If you were injured by a dog and you believed the owner had been negligent in the manner he or she trained, restrained, or otherwise kept the dog, you could bring a cause of action in

negligence, in addition to a strict liability claim. If you could prove that the owner had reason to believe the dog, as an individual animal, had harmful propensities, you could prevail on the strict liability theory, without having to show negligence. However, where there was no evidence that the owner knew or should have known of the dog's harmful propensities but the owner's failure to restrain the dog breached a duty of care to a foreseeable plaintiff, you could, instead, prevail on a negligence theory. Such a duty of care would exist, for example, when a reasonably prudent person would recognize a duty to a person (whether a child, a fairgoer, or a bicyclist) who is likely not to appreciate, or not to be able to avoid, a particular risk posed by an animal. The law in New York was consistent with the Restatement (Second) of Torts § 518.

II.

As the Supreme Court of Connecticut recently noted, “a large majority of the jurisdictions that have considered the issue have adopted the approach . . . taken by § 518 of the Restatement (Second) of Torts” (*Vendrella v Astriab Family Ltd. Partnership*, 311 Conn 301, 326-327, 87 A3d 546, 562 [2014]; see 311 Conn at 327 n 22, 87 A3d at 562 n 22). The Connecticut court cited *Humphries v Rice* (600 So 2d 975, 978 [Ala 1992]); *Vigue v Noyes* (113 Ariz 237, 240, 550 P2d 234, 237 [1976]); *Van Houten v Pritchard* (315 Ark 688, 692, 870 SW2d 377, 379-380 [1994]); *Drake v Dean* (15 Cal App 4th 915, 929, 19 Cal Rptr 2d 325, 334 [1993]); *Taft v Taft* (209 Ga App 499, 500, 433 SE2d 667, 668 [1993]); *Farrior v Payton* (57 Haw 620, 630, 562 P2d 779, 786 [1977]); *Ross v Lowe* (619 NE2d 911, 914 [Ind 1993]); *Gardner v Koenig* (188 Kan 135, 138, 360 P2d 1107, 1109 [1961]); *Baker v McIntosh* (132 SW3d 230, 232 [Ky Ct App 2004]); *Moura v Randall* (119 Md App 632, 646, 705 A2d 334, 341 [1998], cert denied 349 Md 495, 709 A2d 140 [1998]); *Trager v Thor* (445 Mich 95, 104-105, 516 NW2d 69, 75 [1994]); *Duren v Kunkel* (814 SW2d 935, 938-939 [Mo 1991]); *Huber v Timmons* (184 Neb 718, 722, 171 NW2d 794, 797 [1969]); *DeRobertis by DeRobertis v Randazzo* (94 NJ 144, 156, 462 A2d 1260, 1266 [1983]); *Smith v Village of Ruidoso* (128 NM 470, 477, 994 P2d 50, 57 [Ct App 1999]); *Griner v Smith* (43 NC App 400, 407, 259 SE2d 383, 388 [1979]); *Westberry v Blackwell* (282 Or 129, 133, 577 P2d 75, 76 [1978]); *Sybesma v Sybesma* (534 NW2d 355, 358 [SD 1995]); *Dunnings v Castro* (881 SW2d 559, 563 [Tex Ct App 1994]); *Arnold v Laird* (94 Wash 2d 867, 871, 621 P2d 138, 140-141 [1980]); *Jividen v Law* (194 W Va

705, 712, 461 SE2d 451, 458 [1995]); *Nelson v Hansen* (10 Wis 2d 107, 113-114, 102 NW2d 251, 255 [1960]); and *Borns ex rel. Gannon v Voss* (70 P3d 262, 270 [Wyo 2003]).²

The Connecticut Supreme Court adopted the Restatement position and held, as a matter of first impression, that

“‘one who possesses or harbors a domestic animal that he does not know or have reason to know to be abnormally dangerous, is subject to liability for harm done by the animal if, but only if . . . he is negligent in failing to prevent the harm’ . . . regardless of whether the animal was roaming at large” (*Vendrella*, 311 Conn at 328, 87 A3d at 563, quoting Restatement [Second] of Torts § 518 [b]).

The court reasoned that “[t]o conclude otherwise would undermine the policy considerations governing our tort system which include compensation of innocent parties, shifting the loss to responsible parties or distributing it among appropriate entities, and deterrence of wrongful conduct” (*Vendrella*, 311 Conn at 328, 87 A3d at 563 [internal quotation marks, brackets and ellipses omitted]).

To the Connecticut Supreme Court’s lengthy catalog of decisions recognizing negligence actions for animal-induced injuries, as listed above, I would add the following rulings: *Swerdfeger v Krueger* (145 Colo 180, 183-184, 358 P2d 479, 481 [1960]); *Richmond v Knowles* (265 A2d 53, 55 [Del Super Ct 1970]); *Jackman v Hamersley* (72 Idaho 301, 302-303, 240 P2d 829, 830-831 [1952]); *Whitcanock v Nelson* (81 Ill App 3d 186, 191-192, 400 NE2d 998, 1002 [1980], *overruled on other grounds, as stated in* *People v Lyles*, 217 Ill 2d 210, 217, 840 NE2d 1187, 1192 [2005]); *Klobnak v Wildwood Hills, Inc.* (688 NW2d 799, 801-803 [Iowa 2004]); *Henry v Brown* (495 A2d 324, 327 [Me 1985]); *Saldi v Brighton Stock Yard Co.* (344 Mass 89, 181 NE2d 687 [1962]); *Ryman v Alt* (266 NW2d 504, 508 [Minn 1978]); *Ladnier v Hester* (98 So 3d 1025, 1028-1029 [Miss 2012]); *Hansen v Brogan* (145 Mont 224, 228-230, 400 P2d 265, 267-268 [1965]); *Sendelbach v Grad* (246 NW2d 496, 501 [ND 1976]); and *Stout v Bartholomew* (261 Va 547, 556-558, 544 SE2d 653, 658-659 [2001]). In all, some 36 states expressly recognize negligence as a distinct, alternative theory for animal-induced injuries, of which 18 expressly adopt or approvingly

2. For the opposite proposition, the Connecticut Supreme Court cited only two cases: our decision in *Bard* and *Searcy v Brown* (607 SW2d 937, 941 [Tex Civ App 1980]).

cite the Restatement (Second) of Torts § 518. Other than New York, none of the remaining 14 states has expressly rejected the Restatement approach. When *Bard* was published, New York became “the only state in the nation that rejects the rule set forth in the Restatement [Second] of Torts’ regarding an owner’s negligence as a ground for liability arising from the dangerous acts of animals” (*Bloomer v Shauger*, 94 AD3d 1273, 1277 [3d Dept 2012, Garry, J., dissenting], *affd* 21 NY3d 917 [2013], quoting Marc Miner, Outside Counsel, *When Animals Attack In New York*, NYLJ, Feb. 28, 2012 at 4, col 1).

This review of the law of other jurisdictions identifies New York as a unique outlier in its rejection of the Restatement (Second) of Torts § 518.

III.

In *Bard*, the plaintiff was injured by a bull that was permitted to roam freely around a dairy barn in order to impregnate cows. The defendant farm owner, Jahnke, had not mentioned the bull’s presence to plaintiff Bard, a carpenter who was doing repairs in the barn. Bard submitted the affidavit of an animal science expert, who opined that “bulls, in particular breeding bulls, are generally dangerous and vicious animals,” and that the farm owner should have either restrained the bull or warned Bard of its presence (*Bard*, 6 NY3d at 596). However, the bull himself had concededly never before threatened or injured any farm animal or any human being. The Court first held that Bard could not recover under strict liability because the bull “had never acted in a way that put others at risk of harm” (*Bard*, 6 NY3d at 597, citing *Collier*, 1 NY3d at 447).

Then the Court considered plaintiff Bard’s alternative theory, premised on negligence, that, because the animal was a breeding bull housed with a herd over which he exercised dominance, Jahnke was negligent in failing to restrain the bull or warn strangers of his presence. Plaintiff Bard had relied on the Restatement (Second) of Torts § 518. More particularly, Bard had relied on two comments in this section of the Restatement. The first, “*Knowledge of normal characteristics*,” notes that “[i]n determining the care that the keeper of a not abnormally dangerous domestic animal is required to exercise to keep it under control, the characteristics that are normal to its class are decisive, and one who keeps the animal is required to know the characteristics” (Restatement [Second] of Torts § 518, Comment g). The second, “*Animals dangerous under particular cir-*

cumstances,” provides that one who keeps a domestic animal is “required to realize that even ordinarily gentle animals are likely to be dangerous under particular circumstances and to exercise reasonable care to prevent foreseeable harm” (Restatement [Second] of Torts § 518, Comment *h*).

The Court rejected Bard’s reliance on the comments to the Restatement, on the ground that his theory was “no different from arguing that Jahnke was negligent in that he *should have known* of Fred’s vicious propensities” (*Bard*, 6 NY3d at 598-599). The Court observed that it had never accepted such a theory of imputed or constructive knowledge of vicious propensity:

“We have never . . . held that particular breeds or kinds of domestic animals are dangerous, and therefore when an individual animal of the breed or kind causes harm, its owner is charged with knowledge of vicious propensities. Similarly, we have never held that male domestic animals kept for breeding or female domestic animals caring for their young are dangerous as a class” (*id.* at 599).

Finally, the Court concluded the *Bard* decision by writing: “In sum, when harm is caused by a domestic animal, its owner’s liability is determined solely by application of the rule articulated in *Collier*” (*id.*).

The *Collier* rule, quoted earlier in the *Bard* opinion, is “that the owner of a domestic animal who either knows or should have known of that animal’s vicious propensities will be held liable for the harm the animal causes as a result of those propensities” (*id.* at 596-597, quoting *Collier*, 1 NY3d at 446). Taken in context, a reader would naturally interpret the concluding sentence of *Bard* to mean that *if* a plaintiff alleges that a defendant either knew or should have known of his or her domestic animal’s harmful propensities, the plaintiff must show the defendant’s knowledge of the individual animal’s harmful propensities, not merely the dangerous propensities of its breed or class. On this view, the Court was simply rejecting Bard’s appeal to the Restatement (Second) of Torts § 518, Comments *g* and *h*, and their theory of imputed knowledge. However, it is clear that the *Bard* Court intended a much more restrictive meaning. As the dissenting Judges saw it, the majority adopted the rule “that the strict liability involved in *Collier* is the *only* kind of liability the owner of a domestic animal may face—that, in other words, there is no such thing as

negligence liability where harm done by domestic animals is concerned” (*Bard*, 6 NY3d at 601 [R.S. Smith, J., dissenting] [emphasis added]). That is the legacy of the *Bard* decision. The *Bard* Court reached this significant transformation of the law without any discussion of policy ramifications or history of prior, apposite jurisprudence. *Bard* cited only *Collier*, a decision that did not mention a common-law negligence cause of action because the plaintiff had not asserted one.

IV.

Less than two years later, the Court reiterated that “[i]n *Bard v Jahnke* . . . , we held that ‘when harm is caused by a domestic animal, its owner’s liability is determined solely by application of the rule articulated in *Collier*’ ” (*Bernstein v Penny Whistle Toys, Inc.*, 10 NY3d 787, 788 [2008], quoting *Bard*, 6 NY3d at 599). In *Bernstein*, the eight-year-old plaintiff visited a toy store and went over to pet the defendant owner’s dog. The defendant told the child’s adult caregiver that the dog was friendly, and the child scratched the dog behind his ear, patted his back, hugged him, and kissed him. Suddenly, the dog growled and bit the child’s right cheek, once, causing disfiguring injury. The *Bernstein* plaintiffs conceded that there was no evidence of vicious propensities on the dog’s part, but contended that the defendants owed an enhanced duty toward the eight-year-old plaintiff because the presence and actions of children on the toy store premises was reasonably foreseeable. This Court upheld the dismissal of the complaint in a terse memorandum opinion, casting the plaintiffs’ negligence cause of action aside entirely, on the basis that *Bard* proscribed such claims, and dismissing the complaint because there was no evidence that the dog’s “owner had any knowledge of its vicious propensities” (*Bernstein*, 10 NY3d at 788).

It is a measure of the degree to which this Court’s holding in *Bard* was questioned that, even after *Bernstein*, the Appellate Division could not bring itself to accept that *Bard* stood for the proposition “that a defendant’s prior notice of ‘vicious propensities’ is an absolute sine qua non to civil liability in all actions involving personal injuries caused by domestic animals” (*Petrone v Fernandez*, 53 AD3d 221, 228 [2d Dept 2008]). In *Petrone*, the plaintiff, a mail carrier, was on a public street, approaching a house to deliver the mail, when she noticed a rottweiler lying on the lawn of the unfenced property. The dog was not restrained in any way. As she was walking back to her car,

the plaintiff turned to look at the dog and saw that it was running toward her. She began to flee, and was injured as she threw herself into her vehicle through an open window. Plaintiff Petrone brought a common-law negligence claim, alleging that the defendant owner violated New York City Health Code (24 RCNY) § 161.05 (a) (requiring dog owners to restrain dogs in public places) and as a result was negligent in allowing the rottweiler to chase the plaintiff on a public street. The Appellate Division declined to apply *Bard*, noting that *Bard* and *Collier* were not concerned with, “and did not need to address, the question of whether negligence involving the violation of a leash law can result in liability when an unleashed dog engages in a chase that proximately causes injury” (*Petrone*, 53 AD3d at 228). The Appellate Division reinstated the plaintiff’s common-law negligence claim, holding that the owner of a dog may be liable in negligence based on violation of a local leash law, in a case where strict liability based on vicious propensities is not alleged.

This Court reversed in *Petrone*, invoking the *Bard* dissent’s description of the *Bard* rule as being “that the strict liability involved in *Collier* is the only kind of liability the owner of a domestic animal may face—that, in other words, there is no such thing as negligence liability where harm done by domestic animals is concerned” (*Petrone v Fernandez*, 12 NY3d 546, 550 [2009], quoting *Bard*, 6 NY3d at 601 [R.S. Smith, J., dissenting]). Like *Bard* and *Bernstein*, *Petrone* is devoid of analysis of any policy grounds or prior precedents supporting *Bard*’s revision of the law. Also striking is that two Judges of this Court believed strongly enough that *Bard* had been wrongly decided that the one wrote, and the other joined, a concurring opinion, emphasizing that they were constrained by *Bard*’s holding but vigorously disagreed with it (*see Petrone*, 12 NY3d at 551-552 [Pigott, J., concurring]).

More recently, this Court reviewed a case that tested the limits of its restrictive holding on actions alleging negligence by an animal owner. In *Hastings v Sauve* (21 NY3d 122 [2013]), plaintiff Hastings was driving on a rural road in Franklin County when she struck a cow, which had strayed from a pasture, owned by defendant Sauve, immediately adjacent to the road. The pasture was surrounded by a wire fence that was in disrepair. Hastings alleged that Sauve was negligent in failing to control the cow and allowing it to enter the roadway. The Appellate Division upheld Supreme Court’s dismissal of

the plaintiff's complaint against *Sauve* and another defendant, but expressed its discomfort with *Bard* at length.

“While we are obligated to affirm Supreme Court’s dismissal . . . , we must note our discomfort with this rule of law as it applies to these facts—and with this result. There can be no doubt that the owner of a large animal such as a cow or a horse assumes a very different set of responsibilities in terms of the animal’s care and maintenance than are normally undertaken by someone who owns a household pet. The need to maintain control over such a large animal is obvious, and the risk that exists if it is allowed to roam unattended onto a public street is self-evident and not created because the animal has a vicious or abnormal propensity. Here, plaintiff was injured not because the cow was vicious or abnormal, but because defendants allegedly failed to keep it confined on farm property and, instead, allowed it to wander unattended onto the adjacent highway in the middle of the night, causing this accident. The existence of any abnormal or vicious propensity played no role in this accident, yet, under the law as it now exists, defendants’ legal responsibility for what happened is totally dependent upon it. For this reason, we believe in this limited circumstance, traditional rules of negligence should apply to determine the legal responsibility of the animal’s owner for damages it may have caused. However, it is not for this Court to alter this rule and, while it is in place, we are obligated to enforce it.” (*Hastings v Sauve*, 94 AD3d 1171, 1173 [3d Dept 2012].)

This Court reversed, holding that *Bard* “does not bar a suit for negligence when a farm animal has been allowed to stray from the property where it is kept” (*Hastings*, 21 NY3d at 124). The difference, the Court now suggested, is that *Bard* and its progeny had “involve[d] aggressive or threatening behavior by an[] animal,” whereas *Hastings* involved a claim “that a farm animal was permitted to wander off the property where it was kept through . . . negligence” (*id.* at 125).

“To apply the rule of *Bard*—that ‘when harm is caused by a domestic animal, its owner’s liability is determined solely’ by the vicious propensity

rule—in a case like this would be to immunize defendants who take little or no care to keep their livestock out of the roadway or off of other people’s property” (*id.*, quoting *Bard*, 6 NY3d at 599 [citation omitted]).

In other words, the Court of Appeals now held that when the *Bard* Court used the word “solely,” it did not mean “solely,” and the Court created an ad hoc exception to *Bard*, for farm animals that stray. The prediction of the *Bard* dissenters that the decision had created “an archaic, rigid rule, contrary to fairness and common sense, that will probably be eroded by ad hoc exceptions” (*Bard*, 6 NY3d at 599 [R.S. Smith, J., dissenting]) had come true.

V.

“It is well settled that ‘[s]tare decisis is the preferred course because it promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process’ ” (*People v Taylor*, 9 NY3d 129, 148 [2007], quoting *Payne v Tennessee*, 501 US 808, 827 [1991]). I have no quarrel with the statement that the mission of a high court would be undermined if judges “cast aside or chip away at those rulings with which they simply disagree” (concurring op at 1138). But there is much more to my rationale for dissent here than mere disagreement. A decision may be overruled, no matter how recent or how long-lived, “when there is a compelling justification for doing so” (*People v Peque*, 22 NY3d 168, 194 [2013], quoting *People v Lopez*, 16 NY3d 375, 384 n 5 [2011]). A court may overrule a precedent “when persuaded by the ‘lessons of experience and the force of better reasoning’ ” (*People v Bing*, 76 NY2d 331, 338 [1990], quoting *Burnet v Coronado Oil & Gas Co.*, 285 US 393, 407-408 [1932, Brandeis, J., dissenting]) and there is no requirement that a patent judicial mistake be allowed to “age” before it may be corrected. The holding in *Bard* that liability for animal-induced injuries cannot be based on negligence not only “creates more questions than it resolves” (*Taylor*, 9 NY3d at 149, citing *Bing*, 76 NY2d at 347), but also “involves collision with a prior doctrine more embracing in its scope, intrinsically sounder, and verified by experience” (*People v Hobson*, 39 NY2d 479, 487 [1976], quoting *Helvering v Hallock*, 309 US 106, 119 [1940]). The sounder doctrine is the Restatement position.

The “troublesome” consequences of *Bard* “on our jurisprudence” (*Bing*, 76 NY2d at 348) were clear early on. In 2007, in

Bernstein, two Justices of the First Department pleaded for a less restrictive understanding of *Bard*, noting that they could “not view *Bard v Jahnke* as eradicating the continued viability of prior cases which impose an enhanced duty toward children upon property owners who keep animals, where the presence and actions of children on the premises are reasonably foreseeable” (*Bernstein v Penny Whistle Toys, Inc.*, 40 AD3d 224, 227 [1st Dept 2007, Saxe, J., dissenting in part]). The following year, in *Petrone*, the Second Department, noting that *Bard* was inconsistent with this Court’s language in *Hyland*, essentially treated the remarks in *Bard* about common-law negligence as dicta (see *Petrone*, 53 AD3d at 225-226, 228). In 2012, in *Hastings*, the Third Department, while applying *Bard*, expressed its strong misgivings concerning that ruling, as noted above (*Hastings*, 94 AD3d at 1173; see *Bloomer*, 94 AD3d at 1274 [noting that the Third Department was “constrained to view this matter solely in the context of strict liability”]).

In addition, our trial courts have expressed serious discomfort with *Bard* (see e.g. *Krieger v Cogar*, 26 Misc 3d 1225[A], 2010 NY Slip Op 50249[U] [Sup Ct, Niagara County 2010]), distinguished the case (see e.g. *Jetter v Hall*, 20 Misc 3d 306, 308-309 [Sup Ct, Monroe County 2008]), or attempted to use the *Hastings* exception as a means of alleviating the limits of *Bard* (see e.g. *Cappellino v Lake Huntington Summer Community Inc.*, 46 Misc 3d 486, 490-491 [Sup Ct, Kings County 2014] [interpreting *Hastings* “as broadly applicable and intending to cover incidents of obvious animal owner negligence that would otherwise go unguarded against under *Bard*’s vicious propensity—strict liability scheme of liability”]).

This strong inclination on the part of lower courts to carve out exceptions to *Bard* was of course exemplified again in *Doerr*. The First Department held, on reargument after our Court decided *Hastings*, that ordinary negligence principles apply if a case “is about the actions of a person that turn[] an animal into an instrumentality of harm” (*Doerr v Goldsmith*, 110 AD3d 453, 455 [1st Dept 2013]). The sentiment is echoed in the Chief Judge’s proposed exception to *Bard* that “where a plaintiff sustains injury as the direct result of actions that a domestic animal took under the owner’s direction and control, a cause of action in negligence should lie” (op of Lippman, Ch. J., dissenting in *Doerr v Goldsmith* and concurring in *Dobinski v Lock-*

hart at 1142).³ The *Bard* decision has created more questions than it resolved.

VI.

Nevertheless, the Court now reasserts *Bard*, and declines to extend *Hastings*, despite the striking similarities between *Hastings* and one of the cases before us, *Dobinski v Lockhart*. In my view, *Dobinski* raises the same question whether “a landowner or the owner of an animal may be liable under ordinary tort-law principles” when his animal, usually kept on his farm, “is negligently allowed to stray from the property on which the animal is kept” (*Hastings*, 21 NY3d at 125-126). In *Dobinski*, just as in *Hastings*, to invoke *Bard*’s restrictive rule is “to immunize defendants who take little or no care to keep their [animals] out of the roadway” (*id.* at 125). Applying *Bard* gives dog owners no incentive under the tort law to exercise reasonable and cost-effective care over their animals so as to prevent the risk of accidents such as what occurred to plaintiff Dobinski in Franklinville.

The concurring opinion now supplies, for the first time, some discussion of the policy considerations missing from *Bard* and its immediate progeny, opining that “[a]bsent awareness of a domestic animal’s previously demonstrated tendency to harm others, the owner should not bear the costs of the animal’s instinctive decisions” (concurring op at 1137). This reasoning loses sight of the fact that it is the owners of domestic animals, and only their owners, who have the “expertise and opportunity to foresee and control hazards, and to guard properly against their own negligence and that of their agents and employees” (*Vendrella*, 311 Conn at 322, 87 A3d at 559 [brackets and citation omitted]). This is as true of the owners of dogs as it is of those who own horses and other farm animals. Fundamentally, just as “a farm owner’s decision to allow his or her farm animals to wander freely onto a public road or someone else’s property . . . as a commonsense matter violates societal expectations in a manner that gives rise to negligence liability” (concurring op at 1128), so his or her decision to allow dogs to wander freely onto a public road should give rise to negligence

3. Notably, the concurring opinion does not rule out the possibility that an exception to *Bard* would apply when a defendant’s supervision of a dog or other domestic animal is “undertaken with the intent to cause harm to another or with conscious disregard of a known and unjustifiable risk of harm to another” (concurring op at 1139 n 4).

liability. There is no logical difference. Certainly dogs are less “difficult to train to remain on one’s premises of their own accord” (*id.* at 1128) than farm animals, which typically must be fenced in, but that only spotlights the nature of the negligence of one who fails to train his or her dogs not to stray.

The concurring opinion argues that “[t]he average New Yorker knows or ought to know that he or she will encounter insufficiently restrained pets, which are not confined to the owner’s premises and may harm others depending on the disposition of the pet and the degree of training it has received” (concurring op at 1129). Perhaps this is a reference to an encounter such as occurred to plaintiff Doerr in Central Park, where the pet that caused injury was in the company of its owner. It is certainly *not* true, either in Franklinville or in Manhattan, that the average citizen expects to encounter unrestrained and unaccompanied dogs, running loose among traffic, that may either keep to themselves or else “harm others depending on . . . disposition . . . and . . . training” (*id.*). The ubiquity of “ordinance[s] restricting dogs from running at large . . . suggest[s] that, whatever may have been the expectation in an earlier, more agricultural age, it is no longer expected that dogs will roam the highways of this State at will” (*Young*, 76 NY2d at 1012 [Kaye, J., dissenting]).

I would adopt the Restatement doctrine: that even if the owner of a domestic animal has no reason to believe the animal abnormally dangerous, the owner will still be subject to liability for harm done by the animal if he or she is negligent in failing to prevent that harm. This is a clear, reasonable and equitable rule that reflects the law in most states and corresponds to the majority position in New York before *Bard*.

Accordingly, in *Doerr*, I would affirm the order of the Appellate Division that affirmed Supreme Court’s order denying defendant’s motion for summary judgment. In *Dobinski*, I would reverse the order of the Appellate Division that reversed Supreme Court’s order denying defendants’ motion for summary judgment. There are triable issues of fact concerning defendants’ negligence, given their practice of allowing their dogs to run at large without a leash (*see* Local Law No. 1 (2005) of Town of Franklinville §§ 5 [a]; 4 [g] [relating to the control, confining and leashing of dogs]), the proximity of their farm to a busy road, and their habit of encouraging the dogs to run behind wheeled vehicles, in the form of their “four-wheeler” all-terrain vehicles. Consequently, defendants’ summary judgment motion should have been denied in *Dobinski*.

In *Doerr v Goldsmith*: Order reversed, with costs, defendant Smith's motion for summary judgment dismissing the complaint granted and certified question answered in the negative, in a memorandum.

Judges READ, RIVERA, ABDUS-SALAAM and STEIN concur, Judge ABDUS-SALAAM in a concurring opinion in which Judges READ and STEIN concur, Chief Judge LIPPMAN dissents in an opinion. Judge FAHEY dissents in a separate dissenting opinion, in which Judge PIGOTT concurs.

In *Dobinski v Lockhart*: Order affirmed, with costs, in a memorandum.

Chief Judge LIPPMAN and Judges READ, RIVERA, ABDUS-SALAAM and STEIN concur, Judge ABDUS-SALAAM in a concurring opinion in which Judges READ and STEIN concur, and Chief Judge LIPPMAN in a separate concurring opinion. Judge FAHEY dissents in an opinion in which Judge PIGOTT concurs.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2015 through June 30, 2015)

Gonzalez, Matter of, v Annucci 3d Dept: 122 AD3d 1203 6/16/15

APPEALS WITHDRAWN AND DISCONTINUED

(June 1, 2015 through June 30, 2015)

Rogers, Matter of, v Prack 3d Dept: 118 AD3d 1223 6/11/15

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2015 through June 30, 2015)

People v Aaron C.	2d Dept: 125 AD3d 784 (Queens)	denied 6/25/15 (Pigott, J.)
People v Abujudeh	4th Dept: 121 AD3d 1532 (Cayuga)	denied 6/11/15 (Lippman, Ch. J.)
People v Adams (Elijah)	4th Dept: 126 AD3d 1405 (Monroe)	denied 6/11/15 (Stein, J.) (Appeal No. 1)
People v Adams (Elijah)	4th Dept: 126 AD3d 1406 (Monroe)	denied 6/11/15 (Stein, J.) (Appeal No. 2)

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People v Adams (Elijah)	4th Dept: 126 AD3d 1407 (Monroe)	denied 6/11/15 (Stein, J.) (Appeal No. 3)
People v Ag	1st Dept: 127 AD3d 581 (NY)	denied 6/15/15 (Fahey, J.)
People v Anderson (Clifford)	4th Dept: 126 AD3d 1388 (Ontario)	denied 6/8/15 (Stein, J.)
People v Anderson (John)	1st Dept: 122 AD3d 545 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Andrews	3d Dept: 127 AD3d 1417 (Schenectady)	denied 6/19/15 (Lippman, Ch. J.)
People v Anonymous	1st Dept: 126 AD3d 445 (NY)	denied 6/25/15 (Pigott, J.)
People v Atta	2d Dept: 126 AD3d 713 (Kings)	denied 6/15/15 (Read, J.)
People v Augustin	1st Dept: 126 AD3d 481 (NY)	denied 6/8/15 (Fahey, J.)
People v Augustine	1st Dept: 126 AD3d 481 (NY)	denied 6/8/15 (Fahey, J.)
People v Bank	4th Dept: 124 AD3d 1376 (Monroe)	granted 6/22/15 (Lippman, Ch. J.)
People v Banks (Kevin)	4th Dept: 125 AD3d 1276 (Onondaga)	denied 6/8/15 (Read, J.) (Appeal No. 1)
People v Banks (Kevin)	4th Dept: 125 AD3d 1277 (Onondaga)	denied 6/8/15 (Read, J.) (Appeal No. 2)
People v Barbuto	4th Dept: 126 AD3d 1501 (Erie)	denied 6/22/15 (Stein, J.)
People v Barnes	2d Dept: 125 AD3d 990 (Kings)	denied 6/15/15 (Read, J.)
People v Barnhill	App Term, 1st Dept: 46 Misc 3d 148(A) (NY)	denied 6/11/15 (Stein, J.)
People v Bell	2d Dept: 122 AD3d 764 (Queens)	denied 6/29/15 (Abdus-Salaam, J.)
People v Bellamy	3d Dept: 118 AD3d 1113 (Albany)	denied 6/10/15 (Abdus-Salaam, J.)
People v Benitez	1st Dept: 127 AD3d 620 (NY)	denied 6/19/15 (Read, J.)
People v Benjamin	2d Dept: 124 AD3d 908 (Kings)	denied 6/10/15 (Lippman, Ch. J.)
People v Bennett (Clau)	2d Dept: 122 AD3d 871 (Suffolk)	denied 6/30/15 (Abdus-Salaam, J.)
People v Bennett (Clay)	2d Dept: 122 AD3d 871 (Suffolk)	denied 6/30/15 (Abdus-Salaam, J.)
People v Boley	4th Dept: 126 AD3d 1389 (Niagara)	denied 6/25/15 (Lippman, Ch. J.)

People v Bonilla	1st Dept: 121 AD3d 522 (Bronx)	denied 6/24/15 (Abdus-Salaam, J.)
People v Booger	App Div, 3d Dept: 2015 NY Slip Op 66100(U) (Albany)	dismissed 6/17/15 (Pigott, J.)
People v Boyd	County Ct, 2/10/15 (Madison)	denied 6/25/15 (Pigott, J.)
People v Brabham	3d Dept: 126 AD3d 1040 (Broome)	denied 6/15/15 (Fahey, J.)
People v Bradley	App Term, 2d Dept, 9th & 10th Jud Dists: 48 Misc 3d 46 (Suffolk)	denied 6/11/15 (Stein, J.)
People v Brady	3d Dept: 122 AD3d 1009 (Saratoga)	denied 6/29/15 (Abdus-Salaam, J.)
People v Braxton	2d Dept: 121 AD3d 1126 (Dutchess)	denied 6/29/15 (Abdus-Salaam, J.)
People v Brilliant	2d Dept: 121 AD3d 1010 (Kings)	denied 6/29/15 (Abdus-Salaam, J.)
People v Brock	App Div, 1st Dept: 2015 NY Slip Op 63185(U) (NY)	dismissed 6/10/15 (Read, J.)
People v Brown (Jamel)	1st Dept: 122 AD3d 461 (NY)	denied 6/30/15 (Abdus-Salaam, J.)
People v Brown (James)	1st Dept: 126 AD3d 516 (NY)	granted 6/17/15 (Stein, J.)
People v Brown (Kellan)	3d Dept: 127 AD3d 1243 (Schenectady)	denied 6/30/15 (Fahey, J.)
People v Brown (Kendall)	1st Dept: 127 AD3d 578 (NY)	denied 6/12/15 (Stein, J.)
People v Brown (Willie)	App Div, 3d Dept: 2015 NY Slip Op 66100(U) (Albany)	dismissed 6/17/15 (Pigott, J.)
People v Browne	2d Dept: 126 AD3d 996 (Queens)	denied 6/19/15 (Read, J.)
People v Burtch	County Ct, 11/24/14 (Onondaga)	denied 6/16/15 (Lippman, Ch. J.)
People v Buseck	3d Dept: 119 AD3d 1242 (Fulton)	denied 6/10/15 (Abdus-Salaam, J.)
People v Butler	App Term, 2d Dept, 11th & 13th Jud Dists: 45 Misc 3d 134(A) (Kings)	denied 6/16/15 (Lippman, Ch. J.)
People v Callender	2d Dept: 123 AD3d 840 (Queens)	denied 6/16/15 (Lippman, Ch. J.)
People v Cancel	1st Dept: 126 AD3d 496 (NY)	denied 6/10/15 (Read, J.)
People v Cannon	2d Dept: 123 AD3d 1138 (Nassau)	denied 6/2/15 (Lippman, Ch. J.)
People v Carle	2d Dept: 121 AD3d 1011 (Suffolk)	denied 6/16/15 (Abdus-Salaam, J.)

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People v Carson (Joseph)	2d Dept: 126 AD3d 996 (Queens)	denied 6/8/15 (Stein, J.)
People v Carson (Willie)	4th Dept: 122 AD3d 1391 (Erie)	denied 6/16/15 (Lippman, Ch. J.)
People v Castillo (David)	2d Dept: 125 AD3d 684 (Kings)	denied 6/25/15 (Pigott, J.)
People v Castillo (Raphael)	App Div, 4th Dept, 3/17/15 (Monroe)	dismissed 6/15/15 (Read, J.)
People v Ceni	1st Dept: 123 AD3d 506 (Bronx)	denied 6/30/15 (Abdus-Salaam, J.)
People v Chapman	App Div, 1st Dept: 2014 NY Slip Op 86014(U) (NY)	dismissed 6/8/15 (Fahey, J.)
People v Chappelle	3d Dept: 126 AD3d 1127 (Ulster)	denied 6/10/15 (Read, J.)
People v Chico	1st Dept: 123 AD3d 470 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Claiborne	1st Dept: 123 AD3d 599 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Clemente	2d Dept: 125 AD3d 786 (Queens)	denied 6/15/15 (Read, J.)
People v Colley	1st Dept: 121 AD3d 523 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Collins	3d Dept: 126 AD3d 1132 (Clinton)	denied 6/25/15 (Pigott, J.)
People v Colome-Rodriguez	4th Dept: 120 AD3d 1525 (Onondaga)	denied 6/10/15 (Abdus-Salaam, J.)
People v Colon	App Term, 1st Dept: 47 Misc 3d 132(A) (NY)	denied ¹ 6/8/15 (Stein, J.)
People v Concepcion	App Div, 1st Dept: 2014 NY Slip Op 90135(U) (Bronx)	dismissed 6/17/15 (Pigott, J.)
People v Connor	2d Dept: 120 AD3d 1361 (Kings)	denied 6/1/15 (Pigott, J.)
People v Couser (Phillip)	4th Dept: 126 AD3d 1419 (Monroe)	granted 6/24/15 (Stein, J.) (Appeal No. 1)
People v Couser (Phillip)	4th Dept: 126 AD3d 1423 (Monroe)	granted 6/24/15 (Stein, J.) (Appeal No. 2)
People v Credle	2d Dept: 124 AD3d 792 (Queens)	denied 6/16/15 (Lippman, Ch. J.)
People v Croskey	1st Dept: 123 AD3d 456 (NY)	denied 6/29/15 (Abdus-Salaam, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in both *People v Sougou* (46 Misc 3d 140[A], 2015 NY Slip Op 50146[U] [2015], *lv granted* 25 NY3d 1077 [2015]) and *People v Afilal* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [2014], *lv granted* 24 NY3d 1218 [2015]).

People v Crump	2d Dept: 125 AD3d 999 (Suffolk)	denied 6/25/15 (Pigott, J.)
People v Curry	4th Dept: 120 AD3d 1576 (Erie)	denied 6/16/15 (Abdus-Salaam, J.)
People v D'Antuono	4th Dept: 126 AD3d 1425 (Niagara)	denied 6/16/15 (Read, J.)
People v Dames	4th Dept: 122 AD3d 1336 (Oneida)	denied 6/3/15 (Rivera, J.)
People v Daniels	1st Dept: 127 AD3d 604 (Bronx)	denied 6/15/15 (Read, J.)
People v Davidson	County Ct, 3/10/15 (Tompkins)	granted 6/10/15 (Read, J.)
People v DeBenedetto	2d Dept: 120 AD3d 1428 (Nassau)	denied 6/24/15 (Abdus-Salaam, J.)
People v Derian	1st Dept: 121 AD3d 568 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Detres-Perez	1st Dept: 127 AD3d 535 (NY)	denied 6/15/15 (Read, J.)
People v Diallo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 46 Misc 3d 62 (Queens)	denied 6/30/15 (Abdus-Salaam, J.)
People v Disotell	3d Dept: 123 AD3d 1230 (St. Lawrence)	denied 6/3/15 (Rivera, J.)
People v DiTommaso	1st Dept: 127 AD3d 11 (Bronx)	denied 6/15/15 (Stein, J.)
People v Doe	1st Dept: 126 AD3d 591 (NY)	denied 6/25/15 (Stein, J.)
People v Donald R.	1st Dept: 127 AD3d 575 (NY)	denied 6/22/15 (Stein, J.)
People v Dorcinvil	2d Dept: 122 AD3d 874 (Kings)	denied reconsideration 6/15/15 (Read, J.)
People v Dorsey	2d Dept: 127 AD3d 989 (Kings)	denied 6/30/15 (Fahey, J.)
People v Duvall	2d Dept: 127 AD3d 881 (Suffolk)	denied 6/9/15 (Fahey, J.)
People v Duvivier	1st Dept: 126 AD3d 649 (NY)	denied 6/16/15 (Lippman, Ch. J.)
People v Eggsware	3d Dept: 125 AD3d 1057 (Albany)	denied 6/25/15 (Pigott, J.)
People v Ellis	App Div, 1st Dept: 2013 NY Slip Op 80984(U) (Bronx)	denied reconsideration 6/15/15 (Read, J.)
People v Emmanuel	App Term, 1st Dept: 46 Misc 3d 149(A) (Bronx)	denied 6/23/15 (Lippman, Ch. J.)

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People v Enderlin	4th Dept: 120 AD3d 1527 (Monroe)	denied 6/16/15 (Abdus-Salaam, J.)
People v Epps (Darnell)	App Div, 2d Dept: 2015 NY Slip Op 65415(U) (Kings)	dismissed 6/8/15 (Stein, J.)
People v Epps (Darnell)	App Div, 2d Dept: 2015 NY Slip Op 65416(U) (Kings)	dismissed 6/8/15 (Stein, J.)
People v Errington	4th Dept: 121 AD3d 1553 (Wyoming)	denied 6/29/15 (Abdus-Salaam, J.)
People v Espinal (Eddy)	1st Dept: 123 AD3d 475 (NY)	denied 6/29/15 (Lippman, Ch. J.)
People v Espinal (Israel)	1st Dept: 123 AD3d 499 (NY)	denied 6/16/15 (Lippman, Ch. J.)
People v Figueroa	App Term, 1st Dept: 46 Misc 3d 150(A) (NY)	denied 6/1/15 (Lippman, Ch. J.)
People v Fisher	4th Dept: 125 AD3d 1341 (Erie)	denied 6/25/15 (Pigott, J.) (Appeal No. 1)
People v Fonseca	2d Dept: 121 AD3d 915 (Suffolk)	denied 6/24/15 (Abdus-Salaam, J.)
People v Franqui	1st Dept: 123 AD3d 512 (NY)	denied 6/11/15 (Lippman, Ch. J.)
People v Fulton	1st Dept: 125 AD3d 511 (NY)	denied reconsideration 6/24/15 (Stein, J.)
People v Galarza	1st Dept: 127 AD3d 407 (Bronx)	denied ² 6/12/15 (Fahey, J.)
People v Ganoe	3d Dept: 122 AD3d 1003 (Ulster)	denied 6/29/15 (Abdus-Salaam, J.)
People v Garcia (David)	2d Dept: 127 AD3d 881 (Kings)	denied 6/16/15 (Read, J.)
People v Garcia (David)	2d Dept: 127 AD3d 882 (Kings)	denied 6/16/15 (Read, J.)
People v Gardner	1st Dept: 122 AD3d 485 (NY)	denied 6/30/15 (Abdus-Salaam, J.)
People v Garifo	App Term, 2d Dept, 9th & 10th Jud Dists: 47 Misc 3d 136(A) (Suffolk)	denied 6/9/15 (Fahey, J.)
People v Gatling	1st Dept: 126 AD3d 651 (NY)	denied 6/19/15 (Lippman, Ch. J.)
People v Gillard	4th Dept: 126 AD3d 1285 (Onondaga)	denied 6/15/15 (Read, J.)
People v Gilocompo	2d Dept: 125 AD3d 1000 (Queens)	denied 6/30/15 (Lippman, Ch. J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Bridgeforth* (119 AD3d 600 [2014], *lv granted* 25 NY3d 988 [2015]).

People v Giroux (Stephen)	3d Dept: 122 AD3d 1063 (Clinton)	denied 6/29/15 (Abdus-Salaam, J.)
People v Giroux (Stephen)	3d Dept: 122 AD3d 1065 (Clinton)	denied 6/29/15 (Abdus-Salaam, J.)
People v Gnesin	1st Dept: 127 AD3d 652 (NY)	denied ³ 6/23/15 (Read, J.)
People v Golston	App Div, 3d Dept, 3/5/15 (Schenectady)	denied 6/10/15 (Lippman, Ch. J.)
People v Gonzalez	1st Dept: 123 AD3d 493 (NY)	denied 6/3/15 (Rivera, J.)
People v Gousse	2d Dept: 123 AD3d 848 (Nassau)	denied 6/2/15 (Lippman, Ch. J.)
People v Grant (Madi)	2d Dept: 122 AD3d 767 (Suffolk)	denied 6/29/15 (Abdus-Salaam, J.)
People v Grant (Melquan)	2d Dept: 121 AD3d 1016 (Dutchess)	denied 6/24/15 (Abdus-Salaam, J.)
People v Green (Ronald)	2d Dept: 121 AD3d 810 (Queens)	denied 6/16/15 (Abdus-Salaam, J.)
People v Green (Ronald)	2d Dept: 121 AD3d 808 (Queens)	denied 6/29/15 (Abdus-Salaam, J.)
People v Green (Sahtise)	3d Dept: 121 AD3d 1294 (Albany)	denied 6/29/15 (Abdus-Salaam, J.)
People v Griffin	3d Dept: 122 AD3d 1068 (Albany)	denied 6/9/15 (Lippman, Ch. J.)
People v Gutt	App Div, 1st Dept: 2014 NY Slip Op 92944(U) (NY)	dismissed 6/19/15 (Abdus-Salaam, J.)
People v Hamilton	3d Dept: 127 AD3d 1243 (Schenectady)	denied 6/30/15 (Fahey, J.)
People v Hanzlik	1st Dept: 127 AD3d 447 (Bronx)	denied 6/19/15 (Read, J.)
People v Hartle	4th Dept: 122 AD3d 1290 (Monroe)	denied 6/30/15 (Abdus-Salaam, J.)
People v Havoc	3d Dept: 127 AD3d 1243 (Schenectady)	denied 6/30/15 (Fahey, J.)
People v Henry	App Div, 2d Dept: 2015 NY Slip Op 66805(U) (Kings)	dismissed 6/10/15 (Fahey, J.)
People v Henry O.	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 136(A) (Kings)	denied 6/10/15 (Fahey, J.)
People v Hernandez (Anthony)	App Div, 1st Dept: 2015 NY Slip Op 60442(U) (NY)	denied 6/18/15 (Fahey, J.)

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brown* (126 AD3d 516 [2015]), *lv granted* 25 NY3d 1160 [2015]).

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People v Hernandez (Sabino)	1st Dept: 123 AD3d 615 (NY)	denied 6/30/15 (Abdus-Salaam, J.)
People v Hernandez (Salvador)	2d Dept: 127 AD3d 785 (Kings)	denied 6/15/15 (Stein, J.)
People v Heyliger	3d Dept: 126 AD3d 1117 (Broome)	denied 6/19/15 (Fahey, J.)
People v Hierro	1st Dept: 122 AD3d 420 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Hill (Anthony)	1st Dept: 121 AD3d 469 (NY)	denied 6/24/15 (Abdus-Salaam, J.)
People v Hill (Garth)	4th Dept: 126 AD3d 1538 (Onondaga)	denied 6/30/15 (Lippman, Ch. J.)
People v Holland	4th Dept: 126 AD3d 1514 (Erie)	denied 6/8/15 (Stein, J.)
People v Howington	4th Dept: 122 AD3d 1289 (Onondaga)	denied 6/3/15 (Rivera, J.)
People v Hughes	4th Dept: 126 AD3d 1430 (Erie)	denied 6/15/15 (Read, J.)
People v Hutchings (Brian)	4th Dept: 120 AD3d 1599 (Cayuga)	denied 6/10/15 (Abdus-Salaam, J.) (Appeal No. 1)
People v Hutchings (Brian)	4th Dept: 120 AD3d 1600 (Cayuga)	denied 6/10/15 (Abdus-Salaam, J.) (Appeal No. 2)
People v Jackson (Elia)	3d Dept: 119 AD3d 1288 (Albany)	denied 6/29/15 (Abdus-Salaam, J.)
People v Jackson (Michael)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 43 Misc 3d 132(A) (Queens)	denied 6/25/15 (Lippman, Ch. J.)
People v Jackson (Octavia)	1st Dept: 127 AD3d 579 (NY)	denied 6/10/15 (Fahey, J.)
People v Jackson (Ricky)	App Div, 4th Dept, 10/24/14 (Onondaga)	denied reconsideration 6/17/15 (Pigott, J.)
People v Jean (Akime)	2d Dept: 118 AD3d 1024 (Queens)	denied 6/16/15 (Abdus-Salaam, J.)
People v Jean (Darius)	App Div, 2d Dept: 2014 NY Slip Op 76345(U) (Rockland)	dismissed 6/11/15 (Lippman, Ch. J.)
People v Jerry	2d Dept: 126 AD3d 1001 (Nassau)	denied 6/15/15 (Fahey, J.)
People v Johnson (Darrin)	App Div, 2d Dept: 2015 NY Slip Op 62804(U) (Kings)	dismissed 6/15/15 (Read, J.)
People v Johnson (Kerwin)	App Div, 1st Dept: 2014 NY Slip Op 92940(U) (NY)	dismissed 6/26/15 (Fahey, J.)
People v Johnson (Kevin)	4th Dept: 125 AD3d 1460 (Monroe)	denied 6/29/15 (Lippman, Ch. J.)

People v Johnson (Michael)	4th Dept: 126 AD3d 1326 (Erie)	denied 6/8/15 (Stein, J.)
People v Johnson (Nicholas)	4th Dept: 121 AD3d 1578 (Erie)	denied 6/10/15 (Abdus-Salaam, J.)
People v Johnson (Rayshawn)	4th Dept: 122 AD3d 1338 (Onondaga)	denied 6/30/15 (Abdus-Salaam, J.)
People v Jones (Charles)	1st Dept: 122 AD3d 549 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Jones (Clement)	4th Dept: 114 AD3d 1239 (Monroe)	denied 6/19/15 (Read, J.) (Appeal No. 1)
People v Jones (Clemon)	4th Dept: 114 AD3d 1239 (Monroe)	denied 6/19/15 (Read, J.) (Appeal No. 1)
People v Jones (Clemont)	4th Dept: 114 AD3d 1239 (Monroe)	denied 6/19/15 (Read, J.) (Appeal No. 1)
People v Jones (Daniel)	4th Dept: 120 AD3d 1609 (Erie)	denied 6/29/15 (Abdus-Salaam, J.)
People v Jones (Michael)	1st Dept: 127 AD3d 522 (NY)	denied 6/15/15 (Fahey, J.)
People v Jones (Victoria)	County Ct, 6/18/14 (St. Lawrence)	denied 6/10/15 (Read, J.)
People v Joubert	2d Dept: 125 AD3d 686 (Queens)	denied 6/9/15 (Fahey, J.)
People v Kangas	County Ct, 2/25/15 (Oneida)	granted 6/25/15 (Stein, J.)
People v Larose	1st Dept: 126 AD3d 507 (NY)	denied 6/8/15 (Read, J.)
People v Leach	2d Dept: 122 AD3d 771 (Kings)	denied 6/29/15 (Abdus-Salaam, J.)
People v Lebron	1st Dept: 123 AD3d 503 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Licausi	2d Dept: 122 AD3d 771 (Suffolk)	denied 6/8/15 (Read, J.)
People v Lindsey	2d Dept: 121 AD3d 715 (Rockland)	denied 6/29/15 (Abdus-Salaam, J.)
People v Lirano	1st Dept: 123 AD3d 530 (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Livingston	1st Dept: 127 AD3d 578 (NY)	denied 6/23/15 (Lippman, Ch. J.)
People v Livrieri	1st Dept: 125 AD3d 579 (Bronx)	denied 6/16/15 (Read, J.)
People v Lopez	App Div, 2d Dept: 2015 NY Slip Op 64324(U) (Westchester)	dismissed 6/8/15 (Fahey, J.)

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People v Loucks (Robert)	2d Dept: 125 AD3d 887 (Dutchess)	denied 6/25/15 (Pigott, J.)
People v Loucks (Robert)	2d Dept: 125 AD3d 890 (Dutchess)	denied 6/25/15 (Pigott, J.)
People v Lowell	3d Dept: 126 AD3d 1235 (Schenectady)	denied 6/8/15 (Fahey, J.)
People v Mack (Charles)	1st Dept: 126 AD3d 657 (Bronx)	denied 6/10/15 (Read, J.)
People v Mack (James)	2d Dept: 126 AD3d 724 (Nassau)	denied 6/16/15 (Read, J.)
People v Mackey	App Div, 1st Dept: 2014 NY Slip Op 91758(U) (NY)	dismissed 6/19/15 (Abdus-Salaam, J.)
People v Maldonado	2d Dept: 119 AD3d 610 (Kings)	granted 6/19/15 (Lippman, Ch. J.)
People v Marcelle	2d Dept: 120 AD3d 833 (Kings)	denied reconsideration 6/25/15 (Lippman, Ch. J.)
People v Martin	App Term, 2d Dept, 9th & 10th Jud Dists: 46 Misc 3d 143(A) (Dutchess)	denied 6/10/15 (Read, J.)
People v Martinez	1st Dept: 121 AD3d 624 (NY)	denied 6/24/15 (Abdus-Salaam, J.)
People v Masri	2d Dept: 124 AD3d 911 (Nassau)	denied 6/10/15 (Read, J.)
People v McCallum	4th Dept: 122 AD3d 1346 (Erie)	denied reconsideration 6/8/15 (Lippman, Ch. J.)
People v McCann	3d Dept: 126 AD3d 1031 (Franklin)	denied 6/8/15 (Fahey, J.)
People v McCloud	3d Dept: 121 AD3d 1286 (Franklin)	denied 6/11/15 (Lippman, Ch. J.)
People v McCullars	4th Dept: 126 AD3d 1469 (Onondaga)	denied 6/16/15 (Read, J.)
People v McFadden	App Div, 2d Dept: 2015 NY Slip Op 66811(U) (Rockland)	dismissed 6/17/15 (Pigott, J.)
People v McGriff	2d Dept: 125 AD3d 789 (Queens)	denied 6/2/15 (Lippman, Ch. J.)
People v McGuay	4th Dept: 120 AD3d 1566 (Chautauqua)	denied 6/10/15 (Abdus-Salaam, J.)
People v McKinney	3d Dept: 122 AD3d 1083 (Washington)	denied 6/3/15 (Rivera, J.)
People v McMillan	4th Dept: 126 AD3d 1489 (Onondaga)	denied 6/10/15 (Read, J.)
People v Michael A.C.	4th Dept: 128 AD3d 1359 (Monroe)	denied 6/22/15 (Stein, J.) (Appeal No. 1)

People v Michael A.C.	4th Dept: 128 AD3d 1359 (Monroe)	denied 6/22/15 (Stein, J.) (Appeal No. 2)
People v Miller	3d Dept: 126 AD3d 1233 (Schenectady)	denied 6/16/15 (Read, J.)
People v Millien	2d Dept: 127 AD3d 883 (Rockland)	denied 6/19/15 (Lippman, Ch. J.)
People v Minard	2d Dept: 125 AD3d 691 (Suffolk)	denied 6/9/15 (Lippman, Ch. J.)
People v Mirabella	4th Dept: 126 AD3d 1367 (Monroe)	denied 6/19/15 (Read, J.)
People v Mitchell (Edward)	2d Dept: 123 AD3d 1056 (Kings)	denied reconsideration 6/10/15 (Read, J.)
People v Mitchell (Leodia)	2d Dept: 126 AD3d 1010 (Queens)	denied 6/9/15 (Lippman, Ch. J.)
People v Mitchell (Rommel)	2d Dept: 125 AD3d 790 (Kings)	denied 6/8/15 (Stein, J.)
People v Montgomery	4th Dept: 125 AD3d 1455 (Monroe)	denied 6/25/15 (Pigott, J.)
People v Moore	1st Dept: 123 AD3d 491 (NY)	denied 6/30/15 (Abdus-Salaam, J.)
People v Moreno	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 138(A) (Richmond)	denied 6/10/15 (Read, J.)
People v Morris	2d Dept: 126 AD3d 813 (Queens)	denied 6/8/15 (Stein, J.)
People v Mussaw	County Ct, 11/20/14 (Madison)	denied 6/30/15 (Abdus-Salaam, J.)
People v Nestman	App Div, 3d Dept: 2015 NY Slip Op 62611(U) (Ulster)	denied reconsideration 6/23/15 (Lippman, Ch. J.)
People v Nin	1st Dept: 126 AD3d 615 (NY)	denied 6/15/15 (Read, J.)
People v Nowrang	1st Dept: 120 AD3d 1112 (Bronx)	denied 6/10/15 (Abdus-Salaam, J.)
People v Ocasio-Rosario	3d Dept: 120 AD3d 1463 (Ulster)	denied ⁴ 6/29/15 (Fahey, J.)
People v O'Dell (James)	4th Dept: 122 AD3d 1308 (Ontario)	denied 6/29/15 (Abdus-Salaam, J.) (Appeal No. 1)

4. Denied, with leave to renew within 30 days after the Court of Appeals renders decisions in *People v Afilal* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [2014], *lv granted* 24 NY3d 1218 [2015]), *People v Sougou* (46 Misc 3d 140[A], 2015 NY Slip Op 50146[U] [2015], *lv granted* 25 NY3d 1077 [2015]) and *People v Thompson* (46 Misc 3d 136[A], 2014 NY Slip Op 51892[U] [2014], *lv granted* 25 NY3d 1077 [2015]).

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People v O'Dell (James)	4th Dept: 122 AD3d 1308 (Ontario)	denied 6/29/15 (Abdus-Salaam, J.) (Appeal No. 2)
People v O'Dell (James)	4th Dept: 122 AD3d 1309 (Ontario)	denied 6/29/15 (Abdus-Salaam, J.) (Appeal No. 3)
People v Olson (Christopher)	3d Dept: 126 AD3d 1139 (Broome)	denied 6/19/15 (Fahey, J.)
People v Olson (George)	App Div, 1st Dept: 2015 NY Slip Op 69600(U) (NY)	denied 6/10/15 (Read, J.)
People v Orden (Justin)	County Ct, 12/24/14 (Tompkins)	denied 6/2/15 (Lippman, Ch. J.)
People v Orden (Justin)	County Ct, 3/6/15 (Tompkins)	denied 6/2/15 (Lippman, Ch. J.)
People v Ortega	1st Dept: 121 AD3d 622 (NY)	denied 6/16/15 (Abdus-Salaam, J.)
People v Owens	2d Dept: 127 AD3d 788 (Queens)	denied 6/26/15 (Fahey, J.)
People v Pabon (Ricardo)	App Term, 1st Dept: 46 Misc 3d 152(A) (Bronx)	denied 6/15/15 (Read, J.)
People v Padin	1st Dept: 121 AD3d 628 (NY)	denied 6/19/15 (Pigott, J.)
People v Paris	App Div, 1st Dept: 2014 NY Slip Op 86014(U) (NY)	dismissed 6/8/15 (Fahey, J.)
People v Partin	1st Dept: 127 AD3d 442 (NY)	denied 6/9/15 (Fahey, J.)
People v Pascale	County Ct, 10/28/14 (Ulster)	denied 6/29/15 (Abdus-Salaam, J.)
People v Penefort	App Term, 1st Dept: 46 Misc 3d 141(A) (Bronx)	denied 6/10/15 (Abdus-Salaam, J.)
People v Perez (Ceferino)	1st Dept: 127 AD3d 436 (NY)	denied 6/15/15 (Read, J.)
People v Perez (Julio)	1st Dept: 123 AD3d 592 (Bronx)	denied 6/15/15 (Read, J.)
People v Perez (Rayson)	1st Dept: 126 AD3d 411 (NY)	denied 6/15/15 (Read, J.)
People v Pitcher	4th Dept: 126 AD3d 1471 (Onondaga)	denied 6/10/15 (Lippman, Ch. J.)
People v Plateau Assoc., LLC	App Term, 2d Dept, 9th & 10th Jud Dists: 46 Misc 3d 1 (Westchester)	denied 6/10/15 (Read, J.)
People v Quinones	1st Dept: 126 AD3d 478 (NY)	denied 6/19/15 (Lippman, Ch. J.)
People v Rainey	4th Dept: 122 AD3d 1314 (Monroe)	denied 6/30/15 (Abdus-Salaam, J.)

People v Ramirez	1st Dept: 121 AD3d 531 (Bronx)	denied 6/16/15 (Abdus-Salaam, J.)
People v Ramos	1st Dept: 126 AD3d 526 (NY)	denied 6/8/15 (Read, J.)
People v Ramrattan	2d Dept: 126 AD3d 1013 (Queens)	denied 6/8/15 (Stein, J.)
People v Rashid	1st Dept: 127 AD3d 444 (NY)	denied 6/15/15 (Fahey, J.)
People v Raye	1st Dept: 122 AD3d 461 (NY)	denied 6/16/15 (Abdus-Salaam, J.)
People v Releford	4th Dept: 126 AD3d 1407 (Monroe)	denied 6/25/15 (Lippman, Ch. J.)
People v Reyes (Miguel)	2d Dept: 121 AD3d 820 (Kings)	denied 6/24/15 (Abdus-Salaam, J.)
People v Reyes (Sandra)	1st Dept: 122 AD3d 461 (Bronx)	denied 6/29/15 (Abdus-Salaam, J.)
People v Richberg	2d Dept: 123 AD3d 946 (Westchester)	denied 6/22/15 (Lippman, Ch. J.)
People v Rios	1st Dept: 123 AD3d 486 (NY)	denied 6/3/15 (Rivera, J.)
People v Rivera (Anthony)	1st Dept: 125 AD3d 463 (Bronx)	denied 6/25/15 (Pigott, J.)
People v Rivera (Santo)	2d Dept: 123 AD3d 742 (Kings)	denied 6/29/15 (Abdus-Salaam, J.)
People v Robles	App Div, 2d Dept: 2015 NY Slip Op 68210(U) (Queens)	dismissed 6/11/15 (Lippman, Ch. J.)
People v Rodriguez (Hector)	1st Dept: 126 AD3d 591 (NY)	denied 6/25/15 (Stein, J.)
People v Rodriguez (Jose)	App Div, 1st Dept: 2014 NY Slip Op 89529(U) (NY)	denied 6/29/15 (Abdus-Salaam, J.)
People v Rodwell	3d Dept: 122 AD3d 1065 (Albany)	denied 6/10/15 (Read, J.)
People v Roman (Orlando)	App Div, 4th Dept, 6/25/07 (Monroe)	dismissed 6/10/15 (Read, J.)
People v Roman (Orlando)	App Div, 4th Dept, 6/14/12 (Monroe)	dismissed 6/10/15 (Read, J.)
People v Rosario	1st Dept: 121 AD3d 424 (NY)	denied 6/10/15 (Abdus-Salaam, J.)
People v Ruben D.	App Term, 1st Dept: 47 Misc 3d 132(A) (NY)	denied ⁵ 6/29/15 (Fahey, J.)
People v Russo	App Term, 1st Dept: 46 Misc 3d 152(A) (NY)	denied 6/24/15 (Stein, J.)

5. Denied, with leave to renew within 30 days after the Court of Appeals renders decisions in *People v Afilal* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [2014], *lv granted* 24 NY3d 1218 [2015]), *People v Sougou* (46 Misc 3d 140[A], 2015 NY Slip Op 50146[U] [2015], *lv granted* 25 (n. cont'd)

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People v Sabines	3d Dept: 121 AD3d 1409 (Chenango)	denied 6/16/15 (Lippman, Ch. J.)
People v Salois	4th Dept: 126 AD3d 1379 (Erie)	denied 6/8/15 (Stein, J.)
People v Sanchez (Lenox)	1st Dept: 124 AD3d 429 (NY)	denied 6/10/15 (Lippman, Ch. J.)
People v Sanchez (Noel)	2d Dept: 122 AD3d 646 (Nassau)	denied 6/29/15 (Abdus-Salaam, J.)
People v Sandoval	2d Dept: 126 AD3d 1015 (Suffolk)	denied 6/8/15 (Read, J.)
People v Santos	2d Dept: 127 AD3d 789 (Suffolk)	denied 6/3/15 (Stein, J.)
People v Scott (Andre)	1st Dept: 126 AD3d 645 (NY)	denied 6/12/15 (Fahey, J.)
People v Scott (Lamarr)	4th Dept: 126 AD3d 1425 (Erie)	denied 6/1/15 (Lippman, Ch. J.)
People v Seck	1st Dept: 126 AD3d 574 (NY)	denied 6/8/15 (Stein, J.)
People v Shaw	2d Dept: 126 AD3d 1016 (Orange)	denied 6/9/15 (Fahey, J.)
People v Simmons	3d Dept: 122 AD3d 1169 (Washington)	denied 6/29/15 (Abdus-Salaam, J.)
People v Simon	2d Dept: 127 AD3d 887 (Kings)	denied 6/10/15 (Fahey, J.)
People v Simons	1st Dept: 126 AD3d 408 (NY)	denied 6/30/15 (Lippman, Ch. J.)
People v Singleton	4th Dept: 120 AD3d 1610 (Ontario)	denied reconsideration 6/3/15 (Rivera, J.)
People v Skeet	3d Dept: 126 AD3d 1040 (Broome)	denied 6/15/15 (Fahey, J.)
People v Skinner	App Div, 1st Dept: 2014 NY Slip Op 69952(U) (NY)	denied reconsideration 6/3/15 (Rivera, J.)
People v Slim	2d Dept: 121 AD3d 1016 (Dutchess)	denied 6/24/15 (Abdus-Salaam, J.)
People v Smalling	2d Dept: 126 AD3d 820 (Queens)	granted 6/9/15 (Fahey, J.)
People v Smalls	3d Dept: 126 AD3d 1240 (Saratoga)	denied 6/8/15 (Read, J.)
People v Smart	App Div, 4th Dept, 2/27/15 (Monroe)	dismissed 6/19/15 (Abdus-Salaam, J.)
People v Smilowska	2d Dept: 127 AD3d 789 (Suffolk)	denied 6/8/15 (Fahey, J.)

NY3d 1077 [2015]) and *People v Thompson* (46 Misc 3d 136[A], 2014 NY Slip Op 51892[U] [2014],
lv granted 25 NY3d 1077 [2015]).

People v Smith (Francis)	4th Dept: 122 AD3d 1420 (Genesee)	denied 6/29/15 (Abdus-Salaam, J.) (Appeal No. 1)
People v Smith (Francis)	4th Dept: 122 AD3d 1421 (Genesee)	denied 6/29/15 (Abdus-Salaam, J.) (Appeal No. 2)
People v Smith (Kalvin)	4th Dept: 120 AD3d 1544 (Monroe)	denied 6/16/15 (Abdus-Salaam, J.)
People v Smith (Michael)	3d Dept: 121 AD3d 1297 (Essex)	denied 6/24/15 (Abdus-Salaam, J.)
People v Smith (Michael)	1st Dept: 126 AD3d 534 (NY)	denied 6/15/15 (Read, J.)
People v Smith (Nicholas)	2d Dept: 123 AD3d 1148 (Kings)	denied 6/4/15 (Lippman, Ch. J.)
People v Smith (Rian)	4th Dept: 122 AD3d 1300 (Niagara)	denied 6/29/15 (Abdus-Salaam, J.)
People v Spears (Andrew)	4th Dept: 125 AD3d 1400 (Erie)	denied 6/25/15 (Pigott, J.)
People v Spears (Lonnie)	4th Dept: 125 AD3d 1401 (Erie)	denied 6/25/15 (Pigott, J.)
People v Stone (Earl)	4th Dept: 126 AD3d 1425 (Erie)	denied 6/8/15 (Lippman, Ch. J.)
People v Stone (John)	1st Dept: 121 AD3d 617 (Bronx)	granted 6/19/15 (Lippman, Ch. J.)
People v Taylor (Adrian)	1st Dept: 123 AD3d 450 (NY)	denied 6/3/15 (Rivera, J.)
People v Taylor (Michael)	3d Dept: 126 AD3d 1120 (Ulster)	denied 6/17/15 (Read, J.)
People v Torres	4th Dept: 125 AD3d 1481 (Genesee)	denied 6/17/15 (Read, J.)
People v Toure	1st Dept: 127 AD3d 674 (NY)	denied 6/19/15 (Stein, J.)
People v Valenko	2d Dept: 126 AD3d 1020 (Kings)	denied 6/16/15 (Read, J.)
People v Vallade	1st Dept: 122 AD3d 430 (Bronx)	denied 6/3/15 (Rivera, J.)
People v Valladi	1st Dept: 122 AD3d 430 (Bronx)	denied 6/3/15 (Rivera, J.)
People v Vandemortel	4th Dept: 122 AD3d 1333 (Seneca)	denied 6/29/15 (Abdus-Salaam, J.)
People v Velasquez	4th Dept: 126 AD3d 1459 (Erie)	denied 6/19/15 (Read, J.)
People v Velez (Andre)	App Div, 1st Dept: 2014 NY Slip Op 88412(U) (NY)	denied 6/29/15 (Abdus-Salaam, J.)

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People v Velez (Michael)	App Div, 1st Dept: 2015 NY Slip Op 62540(U) (NY)	denied reconsideration 6/24/15 (Stein, J.)
People v Vickers	4th Dept: 126 AD3d 1357 (Monroe)	denied 6/21/15 (Read, J.)
People v Vines	2d Dept: 117 AD3d 760 (Rockland)	denied 6/16/15 (Abdus-Salaam, J.)
People v Wade	1st Dept: 126 AD3d 572 (NY)	denied 6/8/15 (Read, J.)
People v Wagstaffe	2d Dept: 120 AD3d 1361 (Kings)	denied 6/1/15 (Pigott, J.)
People v Walter	4th Dept: 128 AD3d 1512 (Ontario)	denied 6/25/15 (Lippman, Ch. J.)
People v Washington (James)	4th Dept: 122 AD3d 1406 (Erie)	denied 6/22/15 (Lippman, Ch. J.)
People v Washington (Jarelle)	2d Dept: 117 AD3d 1091 (Kings)	denied 6/10/15 (Stein, J.)
People v Washington (Wayne)	2d Dept: 121 AD3d 1028 (Kings)	denied 6/24/15 (Abdus-Salaam, J.)
People v Watson (Anthony)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 136(A) (Kings)	denied 6/30/15 (Lippman, Ch. J.)
People v Watson (Robert)	2d Dept: 126 AD3d 731 (Suffolk)	denied 6/23/15 (Lippman, Ch. J.)
People v White	County Ct, 3/18/15 (Erie)	denied 6/8/15 (Stein, J.)
People v Whorley	4th Dept: 125 AD3d 1484 (Onondaga)	denied 6/29/15 (Lippman, Ch. J.)
People v Wilkes	1st Dept: 121 AD3d 468 (NY)	denied 6/10/15 (Abdus-Salaam, J.)
People v Williams (Austin)	2d Dept: 122 AD3d 647 (Queens)	denied 6/24/15 (Abdus-Salaam, J.)
People v Williams (Darryl)	1st Dept: 127 AD3d 651 (Bronx)	denied 6/19/15 (Fahey, J.)
People v Williams (Leonard)	2d Dept: 123 AD3d 1152 (Kings)	granted 6/19/15 (Pigott, J.)
People v Wilson	2d Dept: 123 AD3d 747 (Queens)	denied 6/11/15 (Lippman, Ch. J.)
People v Wolff	App Div, 4th Dept, 2/27/15 (Ontario)	dismissed 6/11/15 (Lippman, Ch. J.)
People v Wood	1st Dept: 126 AD3d 572 (NY)	denied 6/8/15 (Read, J.)
People v Woolard	2d Dept: 127 AD3d 793 (Kings)	denied 6/8/15 (Stein, J.)
People v Young (Damian)	2d Dept: 125 AD3d 795 (Kings)	denied 6/25/15 (Pigott, J.)
People v Young (Terrence)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 46 Misc 3d 142(A) (Kings)	granted 6/23/15 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(June 1, 2015 through June 30, 2015)

People v Brahney	4th Dept: 126 AD3d 1286 (Cayuga)	granted 6/1/15 (Lindley, J.) (Appeal Nos. 1 and 2)
People v Clark	2d Dept: 129 AD3d 1 (Kings)	granted 6/29/15 (Miller, J.)
People v Pabon (Luis)	4th Dept: 126 AD3d 1447 (Monroe)	granted 6/10/15 (DeJoseph, J.)

[36 NE3d 89, 15 NYS3d 286]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STANLEY
A. BROWN, Appellant.

Argued June 4, 2015; decided June 25, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 7, 2014. The Appellate Division affirmed an order of the Jefferson County Court (Kim H. Martusewicz, J.), which had determined that defendant was a level three risk pursuant to the Sex Offender Registration Act.

People v Brown, 114 AD3d 1146, affirmed.

HEADNOTE**Appeal — Preservation of Issue for Review — Risk Level Classification under Sex Offender Registration Act**

Defendant's contentions with respect to his risk level classification under the Sex Offender Registration Act were not preserved for review by the Court of Appeals.

APPEARANCES OF COUNSEL

Davison Law Office, PLLC, Canandaigua (*Mark C. Davison* of counsel), for appellant.

Hannah E.C. Moore and *Jacqueline L. Spratt*, *New York Prosecutors Training Institute, Inc.*, Albany, and *Cindy F. Intschert*, *District Attorney*, Watertown, for respondent.

* Includes only applications that were granted.

OPINION OF THE COURT

Order affirmed, without costs. Defendant's contentions have not been preserved for this Court's review.

Concur: Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

[36 NE3d 640, 15 NYS3d 733]

In the Matter of DEBORAH GLICK et al., Appellants, v ROSE HARVEY, as Acting Commissioner of the New York State Office of Parks, Recreation and Historic Preservation, et al., Respondents. NEW YORK UNIVERSITY, Third-Party Respondent.

Argued June 2, 2015; decided June 30, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 14, 2014. The Appellate Division modified, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Donna M. Mills, J.; op 2014 NY Slip Op 30008[U] [2014]), entered in a proceeding pursuant to CPLR article 78, which, to the extent appealed from as limited by the briefs, had (1) granted the amended petition's first cause of action to the extent of declaring that the City respondents (comprised of New York City and some of its agencies and officials) had alienated public parkland without approval by the New York State Legislature in violation of the public trust doctrine; (2) enjoined third-party respondent from beginning any construction, in connection with the expansion project at issue, that will result in any alienation of the three parcels found by that court to be public parkland, unless and until the state legislature authorizes the alienation of any parkland to be impacted by the project; (3) granted so much of the cross motions of the City respondents and third-party respondent as sought dismissal of the causes of action alleging violations of the State Environmental Quality Review Act and the New York City Uniform Land Use Review Procedure; and (4) denied so much of those cross motions as sought dismissal of the first cause of action. The modification consisted of (1) granting the cross motions to dismiss the first

cause of action, (2) vacating the declaratory and injunctive relief, (3) denying the petition, and (4) dismissing the proceeding. The Appellate Division affirmed the judgment as modified.

Matter of Glick v Harvey, 121 AD3d 498, affirmed.

HEADNOTE

Parks and Parkways — Alienation of Park Lands — Implied Dedication Not Demonstrated

Petitioners, who sought an injunction of the respondent City of New York's planned transfer of four parcels of municipal land in connection with third-party respondent's campus expansion project, failed to meet their burden of demonstrating that the parcels were impliedly dedicated as parkland and therefore fell under the protection of the public trust doctrine, which requires approval of the state legislature before the land can be alienated. A party seeking to establish an implied dedication of parkland must show that the acts and declarations by the land owner indicating the intent to dedicate his or her land to the public use are unmistakable in their purpose and decisive in their character to have the effect of a dedication, and that the public has accepted the land as dedicated to a public use. Here, respondent's acts were not an unequivocal manifestation of an intent to dedicate the parcels as permanent parkland. The permit, memorandum of understanding and lease/license relating to three of the parcels showed that any management of the parcels by respondent's department of parks and recreation was understood to be temporary and provisional. Those documents' restrictive terms showed that, although respondent permitted and encouraged some use of the parcels for recreational and park-like purposes, it had no intention of permanently giving up control of the property. Moreover, respondent's refusal of various requests to have the streets de-mapped and re-dedicated as parkland further indicated that respondent had not unequivocally manifested an intent to dedicate the parcels as parkland. The fourth parcel, a dog run operated by a nonprofit corporation and accessible only to paying members, was not used as parkland.

APPEARANCES OF COUNSEL

Gibson, Dunn & Crutcher LLP, New York City (*Caitlin J. Halligan*, *Randy M. Mastro*, *Indraneel Sur*, *Gabriel K. Gillett*, *Sarah Vacchiano* and *Laura F. Corbin* of counsel), for appellants.

Zachary W. Carter, Corporation Counsel, New York City (*Michael J. Pastor*, *Richard Dearing*, *Chris Reo* and *Elizabeth Harris* of counsel), for respondents.

Wilmer Cutler Pickering Hale and Dorr LLP, Washington, D.C. (*Seth P. Waxman*, of the District of Columbia bar, admitted pro hac vice, *Kelly P. Dunbar*, *Albinas J. Prizgintas*, of the District of Columbia bar, admitted pro hac vice, and *Adam I. Klein* of counsel), *Wilmer Cutler Pickering Hale and Dorr LLP*, New York City (*Alan E. Schoenfeld* of counsel), *Bryan Cave LLP*, New York City (*Philip E. Karmel* of counsel), and *Cooley*

LLP, New York City (*Alan Levine, Celia Goldwag Barenholtz* and *Michael Blasie* of counsel), for third-party respondent.

Lawrence B. Goldberg, P.C., New York City (*Lawrence B. Goldberg* of counsel), for Friends of LaGuardia Place, Inc. and others, amici curiae.

Albert K. Butzel Law Offices, New York City (*Albert K. Butzel* of counsel), for Michael C. Blumm and others, amici curiae.

Holwell Shuster & Goldberg LLP, New York City (*Richard J. Holwell, Daniel M. Sullivan* and *Andrew B. Breidenbach* of counsel), for New York Civic, amicus curiae.

Weil, Gotshal & Manges LLP, New York City (*Gregory Silbert* and *Adam B. Banks* of counsel), for New York State Legislators, amici curiae.

Proskauer Rose LLP, New York City (*Charles S. Sims* and *Celia V. Cohen* of counsel), for New Yorkers for Parks and others, amici curiae.

Wade Beltramo, General Counsel, New York State Conference of Mayors and Municipal Officials, Albany, and *The Association of Towns of the State of New York*, Albany (*Sarah Brancatella* of counsel), for New York State Conference of Mayors and Municipal Officials and others, amici curiae.

Derothannesian & Derothannesian, Albany (*Paul Derothannesian II* of counsel), for Sierra Club, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The issue before us is whether four parcels of municipal land in the Greenwich Village area of New York City near the campus of New York University (NYU) were impliedly dedicated as public parkland and therefore fall under the protection of the public trust doctrine, which requires approval of the state legislature before the land can be alienated (*see Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation*, 22 NY3d 648, 654 [2014]; *Friends of Van Cortlandt Park v City of New York*, 95 NY2d 623, 630 [2001]). We conclude that petitioners have failed to meet their burden of demonstrating the requisite implied dedication.

In July 2012, the New York City Council approved NYU's plan to expand its campus. The project involves demapping certain areas currently designated as streets on City maps and

using them, either permanently or for some part of 20 years, in connection with construction of new buildings. The four disputed parcels, which are Mercer Playground, LaGuardia Park, LaGuardia Corner Gardens, and the Mercer-Houston Dog Run, feature open space that has been available to the public for years. Two of the parcels (Mercer Playground and LaGuardia Park) will be inaccessible during construction and have been approved for later dedication as parkland, subject to perpetual easements granted to NYU for utilities and access. LaGuardia Corner Gardens will be affected during construction as well as by shadows that will result from a building being constructed as part of the project. The Dog Run will be moved to a nearby space.

Mercer Playground, which opened in 1999, is a paved children's skating and biking park. The New York City Department of Parks and Recreation (DPR) developed the playground under a New York City Department of Transportation (DOT) permit "for the temporary use and occupation of the . . . property . . . for playground or park purposes." The letter of approval for the permit stated that "[i]t is expressly understood that in the event that [the] DOT requires the occupied property in order to perform capital construction work, [the] DPR shall vacate it and return it to [the] DOT so that such work can take place." The DPR spent City funds to improve the playground and marked it with DPR signage.

LaGuardia Park sits next to LaGuardia Place and has paved walkways, greenery and a privately-funded statue of former Mayor LaGuardia. Pursuant to the City's Greenstreet program undertaken in partnership between the DPR and the DOT, the City developed a toddler's playground called Adrienne's Garden on this parcel. Like other Greenstreet sites, this development was subject to a memorandum of understanding declaring that it "will always remain as DOT jurisdictional propert[y], available for DOT purposes and uses as needed." And, in participating in the Greenstreet program, the DPR and the DOT acknowledged that Greenstreet sites such as LaGuardia Park "are not intended to be formal or implied dedicated parklands."

As for LaGuardia Corner Gardens, volunteers for the non-profit entity LaGuardia Corner Gardens, Inc. (LGCG), tend to that parcel. Since 1981, the Gardens have been part of the DPR-administered GreenThumb gardens program, and the DPR erected signs there bearing the DPR insignia. At first, the DOT leased the Gardens to LGCG "on a yearly basis, . . . re-

newable only upon consent from the [DOT]" but it later merely licensed the gardens for LGCG's occupancy "on an interim basis, pending the future development or other use of the [p]remises." Finally, the Mercer-Houston Dog Run is a fenced-in area that was constructed by NYU in 1979. Since 1981, a non-profit corporation has operated the Dog Run and granted access only to paying members. The DPR is not involved with the Dog Run.

After the City Council's approval of NYU's plan, various individual and institutional opponents of the plan (petitioners) commenced this CPLR article 78 proceeding/declaratory judgment action against the City as well as some of its agencies and officials (the City respondents). Petitioners sought an injunction of the City's planned transfer of the parcels and a declaration that the City respondents had unlawfully alienated impliedly dedicated public parkland in violation of the public trust doctrine. The City respondents answered and separately cross-moved to dismiss the amended article 78 petition. NYU also answered and cross-moved to dismiss.

Supreme Court, in pertinent part, denied the cross motions as to petitioners' first cause of action, declared that the City respondents had illegally alienated all parcels except for the Mercer-Houston Dog Run, and enjoined NYU from starting construction on any of the remaining three parcels without legislative authorization. Supreme Court concluded that, because petitioners had shown the public's acceptance of those three parcels as parkland and the City's intent to dedicate them as such, the petitioners had demonstrated the City's implied dedication of the parcels as public parkland and that its subsequent alienation of those parcels violated the public trust doctrine.

The Appellate Division modified the judgment on the law, to the extent of granting the cross motions to dismiss petitioners' first cause of action, vacating the declaratory and injunctive relief, denying the petition and dismissing the proceeding, and otherwise affirmed (*see* 121 AD3d 498, 499 [1st Dept 2014]). The Appellate Division concluded that "petitioners . . . failed to meet their burden of showing that the City's acts and declarations manifested a present, fixed, and unequivocal intent to dedicate any of the parcels at issue as public parkland" (121 AD3d at 499). We now affirm.

In support of their appeal, petitioners again advance their argument that the City's actions manifest its intent to

impliedly dedicate the parcels as parkland. Under the public trust doctrine, a land owner cannot alienate land that has been impliedly dedicated to a public use without obtaining the approval of the legislature (see *Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation*, 22 NY3d 648, 654 [2014]; *Friends of Van Cortlandt Park*, 95 NY2d at 630). A party seeking to establish such an implied dedication and thereby successfully challenge the alienation of the land must show that (1) “[t]he acts and declarations of the land owner indicating the intent to dedicate his land to the public use [are] unmistakable in their purpose and decisive in their character to have the effect of a dedication” and (2) that the public has accepted the land as dedicated to a public use (*Niagara Falls Suspension Bridge Co. v Bachman*, 66 NY 261, 269 [1876]; see also *Holdane v Trustees of Vil. of Cold Spring*, 21 NY 474, 477 [1860] [“The owner’s acts and declarations should be deliberate, unequivocal and decisive, manifesting a positive and unmistakable intention to permanently abandon his property to the specific public use”]; *Flack v Village of Green Is.*, 122 NY 107, 113 [1890]; *Powell v City of New York*, 85 AD3d 429, 431 [1st Dept 2011]).

It remains an open question whether the second prong of the implied dedication doctrine applies to a municipal land owner, but we need not and do not resolve that issue on this appeal because we conclude that the City’s acts are not an unequivocal manifestation of an intent to dedicate the parcels as permanent parkland. With respect to the element of the owner’s intent—the only matter contested in this appeal—if a landowner’s acts are “equivocal, or do not clearly and plainly indicate the intention to permanently abandon the property to the use of the public, they are insufficient to establish a case of dedication” (*Holdane*, 21 NY at 477-478).

Here, as the Appellate Division noted, several documents created prior to this litigation demonstrate that the City did not manifest an unequivocal intent to dedicate the contested parcels for use as public parks. The permit, memorandum of understanding and lease/license relating to Mercer Playground, LaGuardia Park and LaGuardia Corner Gardens, respectively, show that “any management of the parcels by the [DPR] was understood to be temporary and provisional” (121 AD3d at 499). Thus, those documents’ restrictive terms show that, although the City permitted and encouraged some use of these

three parcels for recreational and park-like purposes,* it had no intention of permanently giving up control of the property. And, as the Appellate Division observed, the City’s “refus[al] [of] various requests to have the streets de-mapped and re-dedicated as parkland” (*id.*) further indicates that the City has not unequivocally manifested an intent to dedicate the parcels as parkland.

That a portion of the public may have believed that these parcels are permanent parkland does not warrant a contrary result. Petitioners did not establish the City’s unequivocal intent to permanently dedicate this municipal property, as there was evidence that the City intended the uses to be temporary, with the parcels to remain under the City’s control for possible alternative future uses.

Chief Judge LIPPMAN and Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, with costs, in a memorandum.

In the Matter of CHRISTINA A. AGOLA, a Suspended Attorney,
Appellant. GRIEVANCE COMMITTEE OF THE SEVENTH JUDICIAL
DISTRICT, Respondent.

Decided June 25, 2015

Reported below, 128 AD3d 78.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judges RIVERA and FAHEY taking no part.

JAMES BRADY, Appellant, v JEFFREY KATZ et al., Respondents.

JAMES BRADY, Appellant, v 450 WEST 31ST STREET OWNER’S
CORP. et al., Respondents.

Submitted May 26, 2015; decided June 25, 2015

Reported below, 2015 NY Slip Op 61839(U).

* While petitioners assert that both the Supreme Court and the Appellate Division erred in holding that the Mercer-Houston Dog Run was not used as parkland, this argument lacks merit.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 979 (2015)]. Motion for a stay dismissed as academic.

In the Matter of CHRISTOPHER P. et al., Appellants, v JASON SIDNEY G. et al., Respondents. (Proceeding No. 1.)

In the Matter of KEVIN M. et al., Respondents, v JASON SIDNEY G. et al., Respondents. CHRISTOPHER P. et al., Nonparty Appellants. (Proceeding No. 2.)

Submitted May 11, 2015; decided June 25, 2015

Reported below, 126 AD3d 980.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

DOREEN HARRIS, Also Known as DOROTHY MILLER, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted March 30, 2015; decided June 25, 2015

Reported below, 2015 NY Slip Op 62831(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

MICHAEL WESLEY HARRIS, Appellant, v THE UNION THEOLOGICAL SEMINARY IN THE CITY OF NEW YORK, Respondent.

Decided June 25, 2015

Reported below, 127 AD3d 431.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of WILLIE IVY, Appellant, v ALBERT PRACK, Respondent.

Submitted June 1, 2015; decided June 25, 2015

Reported below, 2015 NY Slip Op 68475(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

KEYSPAN GAS EAST CORPORATION, Respondent, v MUNICH REINSURANCE AMERICA, INC., et al., Defendants, and CENTURY INDEMNITY COMPANY et al., Appellants.

Decided June 25, 2015

Reported below, 123 AD3d 402.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie. The terms of this Court's remittitur were not violated.

Chief Judge LIPPMAN and Judge RIVERA taking no part.

STACY S. KILLON, Respondent, v ROBERT A. PARROTTA, Appellant.

Decided June 25, 2015

Reported below, 125 AD3d 1220; 98 AD3d 828.

Appeal, insofar as it seeks review of the Appellate Division order entered February 26, 2015, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. Defendant's appeal from the February 26, 2015 Appellate Division order brings up for review only the prior nonfinal Appellate Division order entered August 30, 2012 (*see* CPLR 5601 [d], [a]; *Matter of Hertz Corp. [Commissioner of Labor]*, 100 NY2d 553, 554 [2003]; *Curiale v Ardra Ins. Co.*, 86 NY2d 774 [1995]; *Matter of Greatsinger*, 66 NY2d 680, 682-683 [1985]; *Gilroy v American Broadcasting Co.*, 46 NY2d 580, 584 [1979]).

Judge STEIN taking no part.

In the Matter of JAMES MELVIN LEE, Appellant, v THE PEOPLE
OF THE STATE OF NEW YORK et al., Respondents.

Decided June 25, 2015

Reported below, 128 AD3d 458.

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that no substantial constitutional
question is directly involved.

WILHELM NOEL, Appellant, v BRYAN TYLER, Respondent.

Decided June 25, 2015

Reported below, 2015 NY Slip Op 67986(U).

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that no substantial constitutional
question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
BALLARD, Appellant.

Submitted June 8, 2015; decided June 25, 2015

Reported below, 46 Misc 3d 145(A), 2015 NY Slip Op 50210(U).

Motion for an extension of the time within which to apply for
permission to appeal pursuant to CPL 460.20 granted and mo-
tion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
IMMANUEL FLOWERS, Appellant.

Submitted June 22, 2015; decided June 25, 2015

Reported below, 121 AD3d 1014.

Motion for assignment of counsel granted and Seymour W.
James, Jr., Esq., The Legal Aid Society, 199 Water Street, New
York, NY 10038 assigned as counsel to the appellant on the ap-
peal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUANAPARKER HOWARD, Appellant.

Submitted June 8, 2015; decided June 25, 2015

Reported below, 125 AD3d 1331.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAVIER SANCHEZ, Respondent.

Submitted June 15, 2015; decided June 25, 2015

Reported below, 126 AD3d 482.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARINO SERRANO, Appellant.

Submitted June 15, 2015; decided June 25, 2015

Reported below, 45 Misc 3d 69.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAC-TAR SOUGOU, Appellant.

Submitted June 8, 2015; decided June 25, 2015

Reported below, 46 Misc 3d 140(A), 2015 NY Slip Op 50146(U).

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RITA THOMPSON, Appellant.

Submitted June 8, 2015; decided June 25, 2015

Reported below, 46 Misc 3d 136(A), 2015 NY Slip Op 51892(U).

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CORY REID, Appellant, v C. AUGUSTUS, Respondent.

Decided June 25, 2015

Reported below, 2015 NY Slip Op 62900(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. NOUCHIE VELLON, Appellant, v DALE ARTUS, Respondent.

Submitted May 4, 2015; decided June 25, 2015

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

PS 157 LOFTS LLC et al., Respondents, v KIMBERLY AUSTIN et al., Appellants.

Submitted May 18, 2015; decided June 25, 2015

Reported below, 42 Misc 3d 132(A), 2013 NY Slip Op 52241(U).

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 cost of motion, upon the ground that the Court of Appeals does not have jurisdiction to entertain an appeal from an order of the Appellate Term of Supreme Court (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for sanctions and other relief denied.

STEVEN C. RIDGE, Appellant, v ALICE GOLD et al., Defendants,
and JAY BRAYMILLER, Respondent.

Submitted June 15, 2015; decided June 25, 2015

Reported below, 115 AD3d 1263.

Motion to dismiss appeal denied.

EVELYN RIVERA, as Administratrix of the Estate of WILBUR RODRIGUEZ, Deceased, Appellant, v MONTEFIORE MEDICAL CENTER, Respondent.

Submitted May 4, 2015; decided June 25, 2015

Reported below, 123 AD3d 424.

Motion to dismiss appeal denied.

In the Matter of SHEILA ROBINSON, Appellant, v THE PEOPLE OF THE STATE OF NEW YORK et al., Respondents.

Submitted May 18, 2015; decided June 25, 2015

Reported below, 126 AD3d 437.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of RODNEY W., Respondent, v JOSEPHINE F., Appellant.

Submitted May 11, 2015; decided June 25, 2015

Reported below, 126 AD3d 605.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of AKHTAR ALI SHEIKH, Appellant, v NEW YORK CITY TAXI AND LIMOUSINE COMMISSION, Respondent.

Decided June 25, 2015

Reported below, 111 AD3d 470.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of VIKING PUMP, INC. and WARREN PUMPS, LLC, Insurance Appeals. VIKING PUMP, INC. and WARREN PUMPS, LLC, Appellants, TIG INSURANCE COMPANY et al., Respondents.

Decided June 25, 2015

See — A3d —, 2015 WL 3618924, 2015 Del LEXIS 278.

Certification of questions by the Supreme Court of the State of Delaware, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Judges READ, PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY. Taking no part: Chief Judge LIPPMAN.

In the Matter of the Estate of STANLEY A. WAGNER, Deceased. JAAN AARISMAA, IV, Appellant; JOHN L. WAGNER, as Executor of STANLEY A. WAGNER, Deceased, Respondent.

Submitted April 13, 2015; decided June 25, 2015

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

Chief Judge LIPPMAN taking no part.

In the Matter of the Estate of STANLEY A. WAGNER, Deceased. JAAN AARISMAA, IV, Appellant; JOHN L. WAGNER, as Executor of STANLEY A. WAGNER, Deceased, Respondent.

Submitted June 8, 2015; decided June 25, 2015

Motion by petitioner-appellant for affirmative relief dismissed upon the ground that the Court of Appeals does not have juris-

diction to entertain it (*see* NY Const, art VI, § 3). Cross motion by respondent-respondent for the imposition of sanctions denied.

Chief Judge LIPPMAN taking no part.

In the Matter of JOHN ZANETTI et al., Appellants, v NEW YORK
STATE TAX APPEALS TRIBUNAL et al., Respondents.

Decided June 25, 2015

Reported below, 128 AD3d 1131.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

WALTER R. BEARDSLEE, Individually and as Co-Trustee of the
DRUSILLA W. BEARDSLEE FAMILY TRUST, et al., Respondents,
v INFLECTION ENERGY, LLC, et al., Appellants.

Submitted May 18, 2015; decided June 30, 2015

See 761 F3d 221.

Motion for reargument denied [*see* 25 NY3d 150 (2015)].

ATUL BHATARA, Respondent, v HANS FUTTERMAN, Appellant.

Submitted April 27, 2015; decided June 30, 2015

Reported below, 122 AD3d 509.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CARMEN BRITT, Individually and as Executor of LULA BAITY,
Deceased, Appellant, v BUFFALO MUNICIPAL HOUSING AU-
THORITY et al., Respondents. (Appeal No. 1.)

Submitted May 11, 2015; decided June 30, 2015

Reported below, 126 AD3d 1411.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

In the Matter of PAUL CHANDLER, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted May 18, 2015; decided June 30, 2015

Reported below, 121 AD3d 1142.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 901 (2015)].

In the Matter of APRIL K. DeJESUS, Appellant, v RODNEY N. HAYMES, Respondent.

Submitted May 4, 2015; decided June 30, 2015

Reported below, 126 AD3d 1352.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ECHO W. DIXON, Appellant, v ERIC T. SCHNEIDERMAN, Attorney General of the State of New York, Respondent.

In the Matter of ECHO W. DIXON, Appellant, v DONALD G. UHLER, Superintendent, Upstate Correctional Facility, et al., Respondents.

Submitted May 11, 2015; decided June 30, 2015

Reported below, 2013 NY Slip Op 74322(U); 2015 NY Slip Op 66082(U).

Motion, insofar as it seeks leave to appeal from the May 2013 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (21 NY3d 1055 [2013]) from the same Appellate Division order from which he currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the March

2015 Appellate Division order, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

JAMES W. GILLIAM II, Appellant, v VIRGIN MOBILE USA, L.P., et al., Respondents.

Submitted May 18, 2015; decided June 30, 2015

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602 [a]).

In the Matter of TRAVIS D. GRIFFIN, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted May 18, 2015; decided June 30, 2015

Reported below, 127 AD3d 412.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

CHARLES MCKIE, Appellant, v FLAGSTAR BANK, FSB, Respondent.

Submitted May 11, 2015; decided June 30, 2015

Reported below, 125 AD3d 727.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v REBECCA GUTHRIE, Respondent.

Submitted May 4, 2015; decided June 30, 2015

Motion for reargument denied [*see* 25 NY3d 130 (2015)].

JOHN PICKERING-GEORGE, Also Known as JOHN ROBERT DALEY,
Appellant, v MATHEW M. WAMBUA et al., Respondents.

Submitted May 11, 2015; decided June 30, 2015

Reported below, 117 AD3d 583.

Motion for reargument denied [*see* 25 NY3d 963 (2015)].

YOSIF TSIMBLER, Appellant, v MILLIE R. FELL, M.D., et al.,
Respondents, et al., Defendant.

YOSIF TSIMBLER, Appellant, v MILLIE R. FELL, M.D., et al.,
Respondents, et al., Defendant.

Submitted May 11, 2015; decided June 30, 2015

Reported below, 123 AD3d 1009, 1011.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the Supreme Court order denying renewal, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Claim of KURT J. WALLENHORST, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted May 4, 2015; decided June 30, 2015

Reported below, 2015 NY Slip Op 69035(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of DANIEL YOUNGMAN, Respondent.
RB HUMPHREYS INC., Appellant; COMMISSIONER OF LABOR,
Respondent.

Submitted May 11, 2015; decided June 30, 2015

Reported below, 126 AD3d 1225.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ALERIA KK. and Others, Children Alleged to be Abused and/or Neglected and/or Severely Abused. ALBANY COUNTY DEPARTMENT FOR CHILDREN, YOUTH AND FAMILIES, Respondent; RALPH MM., Appellant.

Submitted May 26, 2015; decided July 1, 2015

Reported below, 127 AD3d 1525.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from, affirming the fact-finding order, does not finally determine the proceeding within the meaning of the Constitution.

TALIV ALI, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 26, 2015; decided July 1, 2015

Reported below, 2015 NY Slip Op 62619(U).

Motion for reargument denied [*see* 25 NY3d 965 (2015)].

JULIE CONASON et al., Respondents, v MEGAN HOLDING, LLC, et al., Appellants.

Submitted May 18, 2015; decided July 1, 2015

Reported below, 109 AD3d 724.

Motion for reargument denied [*see* 25 NY3d 1 (2015)].

Judges STEIN and FAHEY taking no part.

ESTHER DAYAN, Respondent, v ABRAHAM DAYAN, Appellant.

Submitted May 26, 2015; decided July 1, 2015

Reported below, 126 AD3d 749.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SALVATORE GUERRERA, Respondent, v ROBERT J. ZYSK, Appellant.

Submitted May 18, 2015; decided July 1, 2015

Reported below, 119 AD3d 647; 2012 NY Slip Op 94759(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

RALPH GUERRUCCI, on Behalf of Himself and All Others
Similarly Situated, Respondents, v SCHOOL DISTRICT OF
CITY OF NIAGARA FALLS, Appellant. (Appeal No. 1.)

Submitted May 26, 2015; decided July 1, 2015

Reported below, 126 AD3d 1498.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

In the Matter of the Adoption of ISABELLA TT., an Infant.
DALTON C. et al., Appellants; BRANDON A. et al., Respon-
dents. FRIENDS IN ADOPTION, INC., Appellant. (Proceeding
No. 1.)

In the Matter of BRANDON A., Respondent, v MELISSA TT., Re-
spondent, and FRIENDS IN ADOPTION, INC., Appellant. DAL-
TON C. et al., Appellants. (Proceeding No. 2.)

Submitted June 22, 2015; decided July 1, 2015

Reported below, 127 AD3d 1330.

Motion by the American Academy of Adoption Attorneys et
al. for leave to appear amici curiae on the motion for leave to
appeal herein granted and the brief is accepted as filed.

In the Matter of the Claim of TERRI A. JABLONSKI, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted June 8, 2015; decided July 1, 2015

Reported below, 126 AD3d 1224.

Motion for reconsideration of this Court's May 5, 2015 dis-
missal order denied [*see* 25 NY3d 981 (2015)].

In the Matter of LIZ WW., Respondent, v SHAKERIA XX., Respondent, and ALVIN YY., Appellant. (And Other Related Proceedings.)

Submitted June 1, 2015; decided July 1, 2015

Reported below, 128 AD3d 1118.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of LUCINDA A. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; LUBA A., Appellant. (Proceeding No. 1.)

In the Matter of MANUEL A., Respondent, v LUBA A., Appellant. (Proceeding No. 2.)

Submitted June 1, 2015; decided July 1, 2015

Reported below, 120 AD3d 492.

Motion for reargument of motion for leave to appeal denied [see 25 NY3d 962 (2015)].

DIANE MONTAGNINO et al., Appellants, v INAMED CORPORATION et al., Defendants, and ALAN R. SHONS, M.D., Respondent.

Submitted May 11, 2015; decided July 1, 2015

Reported below, 120 AD3d 1317; 2015 NY Slip Op 66140(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MARC A. NICOMETI, Appellant-Respondent, v THE VINEYARDS OF FREDONIA, LLC, et al., Respondents-Appellants, et al., Defendants. SCOTT PFOHL et al., Third-Party Plaintiffs, v WESTERN NEW YORK PLUMBING-ELLCOTT PLUMBING AND REMODELING CO., INC., Third-Party Respondent-Appellant.

Submitted May 26, 2015; decided July 1, 2015

Reported below, 107 AD3d 1537.

Motion for reargument denied [*see* 25 NY3d 90 (2015)].

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JAMES BOUTTE,
Appellant, v KATHLEEN G. GERBING, Respondent.

Submitted June 1, 2015; decided July 1, 2015

Reported below, 2015 NY Slip Op 60697(U).

Motion for reargument of motion for leave to appeal denied
[*see* 25 NY3d 903 (2015)].

In the Matter of CHRISTINE STEVENSON, Respondent, v AUGUSTO
BLANCO, Appellant.

Submitted May 18, 2015; decided July 1, 2015

Reported below, 127 AD3d 979.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

THE SOUTH TOWER RESIDENTIAL BOARD OF MANAGERS OF TIME
WARNER CENTER CONDOMINIUM, Respondent, v THE ANN
HOLDINGS, LLC, Appellant.

Submitted June 8, 2015; decided July 1, 2015

Reported below, 127 AD3d 485.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

ROBERT THOMAS, Respondent, v RITA GRAY, Appellant.

Submitted May 26, 2015; decided July 1, 2015

Reported below, 121 AD3d 1091.

Motion for reargument of motion for leave to appeal denied
with \$100 costs and necessary reproduction disbursements [*see*
25 NY3d 961 (2015)].

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In the Matter of JOSE VARGAS, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Submitted May 26, 2015; decided July 1, 2015

Reported below, 121 AD3d 1138.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

Judge STEIN taking no part.

APPEALS WITHDRAWN AND DISCONTINUED

(July 1, 2015 through July 31, 2015)

Ezzard v One E. Riv. Place
Realty Co., LLC

1st Dept: 129 AD3d 159

7/28/15

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2015 through July 31, 2015)

People v Abare	3d Dept: 124 AD3d 1075 (Albany)	denied 7/29/15 (Pigott, J.)
People v Ablack (Lincoln)	4th Dept: 126 AD3d 1410 (Erie)	denied 7/13/15 (Pigott, J.) (Appeal No. 1)
People v Ablack (Lincoln)	4th Dept: 126 AD3d 1411 (Erie)	denied 7/13/15 (Pigott, J.) (Appeal No. 2)
People v Adamson	1st Dept: 127 AD3d 566 (NY)	denied 7/13/15 (Fahey, J.)
People v Alexander	3d Dept: 127 AD3d 1429 (Washington)	denied 7/15/15 (Pigott, J.)
People v Alfonso	4th Dept: 128 AD3d 1376 (Niagara)	denied 7/29/15 (Stein, J.)
People v Allan	App Div, 2d Dept: 2014 NY Slip Op 70394(U) (Suffolk)	denied reconsideration 7/29/15 (Rivera, J.)
People v Allen	4th Dept: 122 AD3d 1423 (Erie)	denied reconsideration 7/14/15 (Pigott, J.)
People v Alleyne	2d Dept: 127 AD3d 776 (Suffolk)	denied 7/13/15 (Pigott, J.)

People v Anderson	4th Dept: 120 AD3d 1549 (Erie)	denied 7/22/15 (Abdus-Salaam, J.)
People v Andrade	App Div, 1st Dept: 2014 NY Slip Op 90881(U) (NY)	denied 7/29/15 (Rivera, J.)
People v Arroyo	App Term, 2d Dept, 9th & 10th Jud Dists: 47 Misc 3d 154(A) (Orange)	denied 7/29/15 (Fahey, J.)
People v Arzuaga	1st Dept: 123 AD3d 500 (NY)	denied 7/23/15 (Abdus-Salaam, J.)
People v Aviles	App Term, 1st Dept: 47 Misc 3d 126(A) (Bronx)	granted 7/29/15 (Pigott, J.)
People v Axel M.	2d Dept: 122 AD3d 946 (Westchester)	denied 7/2/15 (Abdus-Salaam, J.)
People v Balcuns	2d Dept: 124 AD3d 790 (Suffolk)	denied 7/13/15 (Pigott, J.)
People v Barnes	4th Dept: 128 AD3d 1424 (Niagara)	denied 7/29/15 (Stein, J.)
People v Bell	2d Dept: 123 AD3d 1050 (Kings)	denied 7/2/15 (Abdus-Salaam, J.)
People v Blake	2d Dept: 123 AD3d 838 (Kings)	denied 7/29/15 (Rivera, J.)
People v Bolling	App Div, 2d Dept: 2015 NY Slip Op 65412(U) (Queens)	dismissed 7/29/15 (Rivera, J.)
People v Bonilla	2d Dept: 127 AD3d 985 (Nassau)	denied 7/29/15 (Fahey, J.)
People v Boyd	2d Dept: 125 AD3d 992 (Kings)	denied 7/1/15 (Pigott, J.)
People v Boyland	4th Dept: 128 AD3d 1538 (Erie)	denied 7/29/15 (Stein, J.)
People v Bracey	1st Dept: 123 AD3d 419 (NY)	denied 7/13/15 (Read, J.)
People v Braithwaite	2d Dept: 126 AD3d 993 (Richmond)	denied 7/13/15 (Pigott, J.)
People v Brazil	1st Dept: 123 AD3d 466 (NY)	denied 7/22/15 (Lippman, Ch. J.)
People v Bridgewater	App Div, 1st Dept: 2014 NY Slip Op 89531(U) (Bronx)	dismissed 7/22/15 (Lippman, Ch. J.)
People v Briggs	4th Dept: 124 AD3d 1320 (Onondaga)	denied 7/28/15 (Abdus-Salaam, J.)
People v Browder	2d Dept: 127 AD3d 777 (Kings)	denied 7/13/15 (Fahey, J.)
People v Brown (Larry)	1st Dept: 127 AD3d 498 (NY)	denied 7/22/15 (Lippman, Ch. J.)
People v Brown (Lynn)	3d Dept: 123 AD3d 1300 (Broome)	denied 7/23/15 (Abdus-Salaam, J.)
People v Brown (Robert)	1st Dept: 127 AD3d 608 (NY)	denied 7/27/15 (Pigott, J.)

MEMORANDA

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People v Brown (Thomas)	3d Dept: 123 AD3d 1298 (Broome)	denied 7/28/15 (Abdus-Salaam, J.)
People v Brown (Travis)	1st Dept: 124 AD3d 492 (NY)	denied 7/29/15 (Rivera, J.)
People v Bruckner	2d Dept: 123 AD3d 1052 (Nassau)	denied 7/2/15 (Abdus-Salaam, J.)
People v Bruno	2d Dept: 127 AD3d 1101 (Kings)	denied 7/22/15 (Lippman, Ch. J.)
People v Budriss	2d Dept: 127 AD3d 777 (Suffolk)	denied 7/15/15 (Pigott, J.)
People v Burton	4th Dept: 126 AD3d 1324 (Onondaga)	denied 7/1/15 (Pigott, J.)
People v Butler (Daniel)	2d Dept: 127 AD3d 1224 (Nassau)	denied 7/29/15 (Stein, J.)
People v Butler (Parrish)	3d Dept: 126 AD3d 1122 (Albany)	denied 7/29/15 (Fahey, J.)
People v Byron	2d Dept: 124 AD3d 676 (Queens)	denied 7/28/15 (Abdus-Salaam, J.)
People v Cabeza	App Div, 1st Dept: 2014 NY Slip Op 70774(U) (NY)	dismissed 7/29/15 (Rivera, J.)
People v Caimite	2d Dept: 123 AD3d 839 (Kings)	denied 7/28/15 (Abdus-Salaam, J.)
People v Cain	1st Dept: 128 AD3d 451 (Bronx)	denied 7/29/15 (Fahey, J.)
People v Campo	3d Dept: 125 AD3d 1058 (Ulster)	denied reconsideration 7/15/15 (Read, J.)
People v Caraway	2d Dept: 117 AD3d 840 (Kings)	denied 7/1/15 (Pigott, J.)
People v Carlisle	App Div, 4th Dept: 2015 NY Slip Op 65860(U) (Jefferson)	dismissed 7/29/15 (Rivera, J.)
People v Cartagena	2d Dept: 126 AD3d 913 (Kings)	denied ¹ 7/28/15 (Read, J.)
People v Chancey	3d Dept: 127 AD3d 1409 (Rensselaer)	denied 7/27/15 (Pigott, J.)
People v Cherry	2d Dept: 127 AD3d 879 (Queens)	denied 7/13/15 (Pigott, J.)
People v Chery	1st Dept: 127 AD3d 533 (NY)	granted 7/13/15 (Fahey, J.)
People v Chicherchia	4th Dept: 122 AD3d 1346 (Oneida)	denied 7/2/15 (Abdus-Salaam, J.)
People v Clarke	2d Dept: 124 AD3d 791 (Westchester)	denied 7/13/15 (Fahey, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v John* (120 AD3d 511 [2d Dept 2014], *lv granted* 24 NY3d 1005 [2014]).

People v Cogdell	3d Dept: 126 AD3d 1136 (Chemung)	denied 7/13/15 (Pigott, J.)
People v Cohen (Kevin)	2d Dept: 123 AD3d 733 (Nassau)	denied 7/2/15 (Abdus-Salaam, J.)
People v Cohen (Redron)	1st Dept: 127 AD3d 523 (NY)	denied 7/27/15 (Pigott, J.)
People v Coke	4th Dept: 128 AD3d 1424 (Niagara)	denied 7/15/15 (Read, J.)
People v Collier	App Div, 3d Dept: 2015 NY Slip Op 71911(U) (Albany)	dismissed 7/22/15 (Abdus-Salaam, J.)
People v Colon	4th Dept: 122 AD3d 1309 (Oneida)	denied 7/2/15 (Abdus-Salaam, J.)
People v Conde	App Term, 2d Dept, 9th & 10th Jud Dists: 46 Misc 3d 142(A) (Nassau)	denied 7/1/15 (Pigott, J.)
People v Cook	4th Dept: 128 AD3d 1355 (Monroe)	denied 7/17/15 (Stein, J.)
People v Cotton	2d Dept: 127 AD3d 778 (Kings)	denied 7/22/15 (Lippman, Ch. J.)
People v Cromwell	App Div, 1st Dept: 2014 NY Slip Op 91762(U) (NY)	dismissed 7/1/15 (Read, J.)
People v Cunningham	1st Dept: 123 AD3d 629 (NY)	denied 7/2/15 (Abdus-Salaam, J.)
People v Damm	1st Dept: 124 AD3d 557 (Bronx)	denied 7/28/15 (Abdus-Salaam, J.)
People v Davalloo	2d Dept: 128 AD3d 717 (Westchester)	denied 7/15/15 (Read, J.)
People v Davis (Daniel)	2d Dept: 127 AD3d 1104 (Suffolk)	denied 7/27/15 (Pigott, J.)
People v Davis (Sharrod)	4th Dept: 126 AD3d 1426 (Monroe)	denied 7/13/15 (Pigott, J.)
People v Davis (Sharrowl)	4th Dept: 126 AD3d 1426 (Monroe)	denied 7/13/15 (Pigott, J.)
People v Diaz (Jaquim)	1st Dept: 128 AD3d 459 (Bronx)	denied 7/9/15 (Read, J.)
People v Diaz (Tracy)	1st Dept: 127 AD3d 539 (NY)	denied 7/13/15 (Pigott, J.)
People v Douglas	App Div, 1st Dept: 2015 NY Slip Op 70985(U) (Bronx)	dismissed 7/13/15 (Abdus-Salaam, J.)
People v Earley	3d Dept: 121 AD3d 1192 (Washington)	denied 7/2/15 (Abdus-Salaam, J.)
People v Easley	4th Dept: 124 AD3d 1284 (Erie)	denied 7/23/15 (Abdus-Salaam, J.)

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People v Edmonds	4th Dept: 124 AD3d 1361 (Erie)	denied 7/28/15 (Abdus-Salaam, J.)
People v Edwards	3d Dept: 124 AD3d 988 (Rensselaer)	denied 7/1/15 (Lippman, Ch. J.)
People v Ellison	4th Dept: 124 AD3d 1230 (Monroe)	denied 7/23/15 (Abdus-Salaam, J.)
People v Espinoza	1st Dept: 124 AD3d 537 (NY)	denied 7/28/15 (Abdus-Salaam, J.)
People v Esquiled	2d Dept: 121 AD3d 807 (Kings)	denied 7/6/15 (Read, J.)
People v Etienne	App Term, 1st Dept: 47 Misc 3d 132(A) (NY)	denied ² 7/6/15 (Read, J.)
People v Evans	2d Dept: 127 AD3d 780 (Kings)	denied 7/13/15 (Pigott, J.)
People v Fernandez	2d Dept: 115 AD3d 977 (Queens)	denied 7/28/15 (Abdus-Salaam, J.)
People v Fleming	App Div, 1st Dept: 2015 NY Slip Op 74080(U) (Bronx)	dismissed 7/22/15 (Lippman, Ch. J.)
People v Flores	1st Dept: 124 AD3d 536 (Bronx)	denied 7/29/15 (Rivera, J.)
People v Fowler	4th Dept: 126 AD3d 1381 (Ontario)	denied 7/13/15 (Pigott, J.)
People v Fudge	1st Dept: 123 AD3d 514 (NY)	denied 7/2/15 (Abdus-Salaam, J.)
People v Funderbunk	1st Dept: 122 AD3d 515 (NY)	denied 7/6/15 (Read, J.)
People v Genyard (Donnell)	2d Dept: 125 AD3d 1000 (Queens)	denied 7/22/15 (Lippman, Ch. J.)
People v Genyard (Donnell)	2d Dept: 84 AD3d 1398 (Queens)	denied reconsideration 7/22/15 (Lippman, Ch.J.)
People v Glover	2d Dept: 123 AD3d 1142 (Queens)	denied 7/28/15 (Abdus-Salaam, J.)
People v Goldston	3d Dept: 126 AD3d 1175 (Albany)	denied 7/6/15 (Read, J.)
People v Gonzalez	App Term, 1st Dept: 47 Misc 3d 137(A) (NY)	denied 7/15/15 (Read, J.)
People v Gordon	2d Dept: 127 AD3d 1230 (Richmond)	denied 7/27/15 (Pigott, J.)
People v Grant	2d Dept: 123 AD3d 942 (Kings)	denied 7/22/15 (Lippman, Ch. J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Afial* (43 Misc 3d 142[A], 2014 NY Slip Op 50851[U] [App Term, 1st Dept 2014], *lv granted* 24 NY3d 1218 [2015]).

People v Griffin (Bahatti)	2d Dept: 128 AD3d 1099 (Kings)	denied 7/29/15 (Fahey, J.)
People v Griffin (Davon)	4th Dept: 124 AD3d 1378 (Onondaga)	denied 7/28/15 (Abdus-Salaam, J.)
People v Guerrero	1st Dept: 126 AD3d 613 (NY)	granted 7/24/15 (Lippman, Ch. J.)
People v Guest	2d Dept: 128 AD3d 720 (Westchester)	dismissed 7/29/15 (Stein, J.)
People v Hammett	2d Dept: 126 AD3d 999 (Queens)	denied 7/9/15 (Read, J.)
People v Hao Lin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 46 Misc 3d 20 (Kings)	granted 7/2/15 (Abdus-Salaam, J.)
People v Hardy	4th Dept: 128 AD3d 1453 (Monroe)	denied 7/29/15 (Pigott, J.)
People v Haug	4th Dept: 128 AD3d 1356 (Erie)	denied 7/6/15 (Read, J.)
People v Haywood	2d Dept: 124 AD3d 798 (Westchester)	denied 7/22/15 (Lippman, Ch. J.)
People v Highsmith	4th Dept: 124 AD3d 1363 (Monroe)	denied 7/28/15 (Abdus-Salaam, J.)
People v Hildinghohlson	App Term, 1st Dept: 48 Misc 3d 30 (NY)	denied 7/13/15 (Fahey, J.)
People v Hiraldo	1st Dept: 127 AD3d 489 (NY)	denied 7/13/15 (Pigott, J.)
People v Holden	App Div, 2d Dept: 2015 NY Slip Op 67777(U) (Kings)	dismissed 7/14/15 (Pigott, J.)
People v Hummel	3d Dept: 127 AD3d 1506 (Otsego)	denied 7/15/15 (Read, J.)
People v Ingram	4th Dept: 128 AD3d 1404 (Yates)	denied 7/29/15 (Stein, J.)
People v Innis	1st Dept: 126 AD3d 578 (NY)	denied 7/15/15 (Pigott, J.)
People v Islam	1st Dept: 124 AD3d 465 (Bronx)	denied 7/28/15 (Abdus-Salaam, J.)
People v Iverson	4th Dept: 128 AD3d 1402 (Monroe)	denied 7/6/15 (Read, J.)
People v Jackson (Anthony)	2d Dept: 125 AD3d 1002 (Nassau)	denied 7/22/15 (Lippman, Ch. J.)
People v Jackson (Eric)	3d Dept: 121 AD3d 1185 (Clinton)	denied 7/29/15 (Stein, J.)
People v Jackson (Robert)	1st Dept: 123 AD3d 634 (NY)	denied 7/28/15 (Abdus-Salaam, J.)
People v Jackson (Tavon)	4th Dept: 126 AD3d 1512 (Seneca)	denied 7/30/15 (Abdus-Salaam, J.)
People v Jeffrey	2d Dept: 129 AD3d 745 (Kings)	denied 7/29/15 (Stein, J.)

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People v Jin Zheng	2d Dept: 127 AD3d 890 (Kings)	denied 7/27/15 (Pigott, J.)
People v Johnson (Andrea)	App Div, 3d Dept: 2014 NY Slip Op 91211(U) (Schenectady)	denied 7/2/15 (Abdus-Salaam, J.)
People v Johnson (Damian)	4th Dept: 126 AD3d 1366 (Monroe)	denied 7/15/15 (Pigott, J.)
People v Johnson (Jeremy)	4th Dept: 128 AD3d 1539 (Monroe)	denied 7/29/15 (Stein, J.)
People v Johnson (Robert)	1st Dept: 123 AD3d 631 (Bronx)	denied 7/15/15 (Pigott, J.)
People v Johnson (Robert)	1st Dept: 124 AD3d 532 (NY)	denied 7/28/15 (Abdus-Salaam, J.)
People v Johnson (Yohannes)	App Div, 1st Dept: 2015 NY Slip Op 63508(U) (NY)	denied 7/15/15 (Pigott, J.)
People v Jones (Jermal)	App Div, 2d Dept: 2015 NY Slip Op 67597(U) (Kings)	dismissed 7/1/15 (Abdus-Salaam, J.)
People v Jones (Sterling)	1st Dept: 125 AD3d 469 (NY)	denied 7/29/15 (Rivera, J.)
People v Joseph	2d Dept: 128 AD3d 731 (Suffolk)	denied 7/30/15 (Fahey, J.)
People v Kaplan	1st Dept: 125 AD3d 465 (NY)	denied 7/1/15 (Pigott, J.)
People v Karas	Sup Ct, 3/6/15 (Oneida)	denied 7/1/15 (Lippman, Ch. J.)
People v Kitching	4th Dept: 128 AD3d 1356 (Onondaga)	denied 7/22/15 (Lippman, Ch. J.)
People v Kot	3d Dept: 126 AD3d 1022 (Tompkins)	denied 7/13/15 (Read, J.)
People v Kuklinski	App Div, 3d Dept: 2015 NY Slip Op 66068(U) (Ulster)	dismissed 7/29/15 (Rivera, J.)
People v Lancaster	2d Dept: 127 AD3d 1235 (Kings)	denied 7/29/15 (Stein, J.)
People v Lanfranco	3d Dept: 124 AD3d 1144 (Greene)	denied 7/22/15 (Lippman, Ch. J.)
People v Lawton	1st Dept: 128 AD3d 446 (NY)	denied 7/29/15 (Fahey, J.)
People v Lewis	4th Dept: 128 AD3d 1400 (Monroe)	denied 7/15/15 (Read, J.)
People v Little	2d Dept: 127 AD3d 1235 (Kings)	denied 7/29/15 (Pigott, J.)
People v Lizardi	App Term, 1st Dept: 45 Misc 3d 135(A) (Bronx)	denied 7/28/15 (Abdus-Salaam, J.)
People v LoMaglio	4th Dept: 124 AD3d 1414 (Monroe)	denied 7/28/15 (Abdus-Salaam, J.)

People v Loper (Jason)	4th Dept: 118 AD3d 1394 (Steuben)	denied 7/2/15 (Abdus-Salaam, J.) (Appeal No. 1)
People v Loper (Jason)	4th Dept: 118 AD3d 1396 (Steuben)	denied 7/2/15 (Abdus-Salaam, J.) (Appeal No. 2)
People v Lopez (Vincent)	1st Dept: 126 AD3d 602 (NY)	denied 7/1/15 (Pigott, J.)
People v Love	App Div, 4th Dept, 4/23/15 (Erie)	dismissed 7/30/15 (Fahey, J.)
People v "Mac"	4th Dept: 121 AD3d 1549 (Erie)	denied 7/23/15 (Abdus-Salaam, J.)
People v Malave	1st Dept: 106 AD3d 657 (NY)	denied 7/1/15 (Pigott, J.)
People v Manley	1st Dept: 128 AD3d 439 (NY)	denied 7/29/15 (Fahey, J.)
People v Martinez	1st Dept: 127 AD3d 551 (NY)	denied 7/27/15 (Pigott, J.)
People v Mata	1st Dept: 122 AD3d 450 (Bronx)	denied 7/22/15 (Abdus-Salaam, J.)
People v "Matt"	4th Dept: 121 AD3d 1549 (Erie)	denied 7/23/15 (Abdus-Salaam, J.)
People v May	4th Dept: 125 AD3d 1465 (Erie)	denied 7/22/15 (Lippman, Ch. J.)
People v McCray	4th Dept: 121 AD3d 1549 (Erie)	denied 7/23/15 (Abdus-Salaam, J.)
People v McInnis	1st Dept: 128 AD3d 448 (Bronx)	denied 7/29/15 (Pigott, J.)
People v McLean	3d Dept: 128 AD3d 1106 (Delaware)	denied 7/29/15 (Pigott, J.)
People v McMillon	3d Dept: 124 AD3d 922 (Columbia)	denied 7/28/15 (Abdus-Salaam, J.)
People v Mears (Steven)	App Div, 1st Dept: 2013 NY Slip Op 61527(U) (NY)	denied reconsideration 7/29/15 (Rivera, J.)
People v Mears (Steven)	App Div, 1st Dept: 2014 NY Slip Op 86355(U) (NY)	dismissed 7/29/15 (Rivera, J.)
People v Melendez	1st Dept: 124 AD3d 437 (NY)	denied 7/23/15 (Abdus-Salaam, J.)
People v Mendez	2d Dept: 128 AD3d 854 (Kings)	denied 7/22/15 (Lippman, Ch. J.)
People v Miller (Devon)	App Div, 1st Dept: 2014 NY Slip Op 92435(U) (Bronx)	denied 7/2/15 (Abdus-Salaam, J.)

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People v Miller (James)	1st Dept: 122 AD3d 492 (Bronx)	granted 7/1/15 (Abdus-Salaam, J.)
People v Minnerly	2d Dept: 127 AD3d 788 (Kings)	denied 7/15/15 (Pigott, J.)
People v Minor (Donald)	App Div, 3d Dept: 2014 NY Slip Op 93394(U) (Washington)	dismissed 7/24/15 (Abdus-Salaam, J.)
People v Minor (Donald)	App Div, 3d Dept: 2015 NY Slip Op 69027(U) (Washington)	dismissed 7/24/15 (Abdus-Salaam, J.)
People v "Murder"	4th Dept: 121 AD3d 1549 (Erie)	denied 7/23/15 (Abdus-Salaam, J.)
People v "Murder Matt"	4th Dept: 121 AD3d 1549 (Erie)	denied 7/23/15 (Abdus-Salaam, J.)
People v Music	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 2015 NY Slip Op 69447(U) (Queens)	dismissed 7/22/15 (Lippman, Ch. J.)
People v Nichol	3d Dept: 121 AD3d 1174 (Albany)	denied 7/23/15 (Abdus-Salaam, J.)
People v Noe	App Term, 1st Dept: 46 Misc 3d 151(A) (NY)	denied 7/29/15 (Rivera, J.)
People v Nunez (Anthony)	App Div, 1st Dept: 2014 NY Slip Op 89531(U) (Bronx)	dismissed 7/22/15 (Lippman, Ch. J.)
People v Nunez (Elvis)	1st Dept: 127 AD3d 513 (NY)	denied 7/29/15 (Pigott, J.)
People v O'Diah (Aror)	App Div, 2d Dept: 2014 NY Slip Op 84276(U) (Queens)	dismissed 7/29/15 (Rivera, J.)
People v O'Diah (Aror)	App Div, 2d Dept: 2015 NY Slip Op 65117(U) (Queens)	dismissed 7/29/15 (Rivera, J.)
People v Ortega	1st Dept: 125 AD3d 479 (NY)	denied reconsideration 7/17/15 (Stein, J.)
People v Padilla	4th Dept: 128 AD3d 1409 (Monroe)	denied 7/13/15 (Read, J.)
People v Patterson	1st Dept: 128 AD3d 424 (Bronx)	granted 7/13/15 (Fahey, J.)
People v Pembleton	County Ct, 4/9/15 (Niagara)	denied 7/13/15 (Pigott, J.)
People v Peoples	2d Dept: 126 AD3d 919 (Queens)	denied 7/22/15 (Lippman, Ch. J.)
People v Perez-Olivo	2d Dept: 127 AD3d 1110 (Westchester)	denied 7/13/15 (Fahey, J.)
People v Perkins (Anthony)	2d Dept: 124 AD3d 915 (Queens)	granted 7/2/15 (Read, J.)
People v Perkins (Shawn)	2d Dept: 128 AD3d 1099 (Kings)	denied 7/29/15 (Fahey, J.)

People v Peterson	3d Dept: 127 AD3d 1333 (Delaware)	denied 7/28/15 (Fahey, J.)
People v Pierre	2d Dept: 126 AD3d 817 (Kings)	denied 7/1/15 (Lippman, Ch. J.)
People v Platt	App Div, 2d Dept: 2015 NY Slip Op 71297(U) (Richmond)	dismissed 7/22/15 (Lippman, Ch. J.)
People v Porras	App Term, 1st Dept: 46 Misc 3d 149(A) (NY)	denied 7/1/15 (Pigott, J.)
People v Powell	1st Dept: 128 AD3d 542 (NY)	denied 7/22/15 (Lippman, Ch. J.)
People v Price	2d Dept: 127 AD3d 995 (Queens)	granted 7/28/15 (Fahey, J.)
People v Puryear	4th Dept: 124 AD3d 1343 (Monroe)	denied 7/28/15 (Abdus-Salaam, J.)
People v Ram	1st Dept: 127 AD3d 512 (Bronx)	denied 7/27/15 (Pigott, J.)
People v Ramlall	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 141(A) (Kings)	denied 7/1/15 (Lippman, Ch. J.)
People v Ramos	2d Dept: 127 AD3d 996 (Queens)	denied 7/13/15 (Read, J.)
People v Richardson (James)	4th Dept: 128 AD3d 1377 (Steuben)	denied 7/22/15 (Stein, J.)
People v Richardson (Joshua)	2d Dept: 128 AD3d 988 (Kings)	denied 7/28/15 (Read, J.)
People v Richardson (Roland)	2d Dept: 128 AD3d 735 (Queens)	denied 7/29/15 (Fahey, J.)
People v Riley	2d Dept: 123 AD3d 947 (Queens)	denied 7/2/15 (Abdus-Salaam, J.)
People v Rivera (Teddy)	2d Dept: 126 AD3d 728 (Orange)	denied 7/13/15 (Pigott, J.)
People v Rivera (William)	1st Dept: 121 AD3d 501 (NY)	denied 7/22/15 (Abdus-Salaam, J.)
People v Roberts (John)	2d Dept: 126 AD3d 1015 (Kings)	denied 7/1/15 (Pigott, J.)
People v Roberts (Rico)	App Div, 2d Dept: 2015 NY Slip Op 69551(U) (Kings)	dismissed 7/29/15 (Rivera, J.)
People v Robinson (Shaheed)	1st Dept: 127 AD3d 588 (Bronx)	denied 7/29/15 (Stein, J.)
People v Robinson (Shakiya)	App Term, 1st Dept: 47 Misc 3d 147(A) (NY)	denied 7/29/15 (Stein, J.)
People v Rodriguez (Angelo)	1st Dept: 123 AD3d 631 (NY)	denied 7/28/15 (Abdus-Salaam, J.)
People v Rodriguez (Melinda)	1st Dept: 127 AD3d 653 (NY)	denied 7/9/15 (Read, J.)
People v Romero	2d Dept: 123 AD3d 1147 (Queens)	granted 7/1/15 (Lippman, Ch. J.)
People v Rosa (Nelson)	1st Dept: 127 AD3d 404 (NY)	denied 7/13/15 (Pigott, J.)

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People v Rosa (Robert)	2d Dept: 123 AD3d 1147 (Queens)	granted 7/1/15 (Lippman, Ch. J.)
People v Ross	App Div, 1st Dept: 2014 NY Slip Op 92132(U) (Bronx)	denied 7/2/15 (Abdus-Salaam, J.)
People v Russell (Dashawn)	4th Dept: 128 AD3d 1383 (Cayuga)	denied 7/6/15 (Read, J.) (Appeal No. 1)
People v Russell (Dashawn)	4th Dept: 128 AD3d 1384 (Cayuga)	denied 7/6/15 (Read, J.) (Appeal No. 2)
People v Ryan	2d Dept: 125 AD3d 695 (Nassau)	denied reconsideration 7/28/15 (Read, J.)
People v Salce	3d Dept: 124 AD3d 923 (Saratoga)	denied 7/28/15 (Abdus-Salaam, J.)
People v Sanchez (Daniel)	2d Dept: 124 AD3d 685 (Westchester)	denied 7/28/15 (Abdus-Salaam, J.)
People v Sanchez (Joseph)	1st Dept: 123 AD3d 624 (Bronx)	denied 7/22/15 (Lippman, Ch. J.)
People v Santiago	1st Dept: 127 AD3d 668 (NY)	denied 7/27/15 (Pigott, J.)
People v Saunders	2d Dept: 127 AD3d 1111 (Kings)	denied 7/13/15 (Fahey, J.)
People v Sayeed	1st Dept: 124 AD3d 468 (Bronx)	denied 7/29/15 (Rivera, J.)
People v Scarborough	1st Dept: 122 AD3d 473 (NY)	denied 7/2/15 (Abdus-Salaam, J.)
People v Schillawski (Richard)	4th Dept: 124 AD3d 1372 (Cayuga)	denied 7/23/15 (Abdus-Salaam, J.) (Appeal No. 1)
People v Schillawski (Richard)	4th Dept: 124 AD3d 1373 (Cayuga)	denied 7/23/15 (Abdus-Salaam, J.) (Appeal No. 2)
People v Schouenborg	2d Dept: 128 AD3d 859 (Suffolk)	denied 7/22/15 (Lippman, Ch. J.)
People v Scott	2d Dept: 128 AD3d 735 (Queens)	denied 7/29/15 (Stein, J.)
People v Sebastopoli	2d Dept: 123 AD3d 1063 (Suffolk)	denied 7/23/15 (Abdus-Salaam, J.)
People v Shawn	4th Dept: 128 AD3d 1383 (Cayuga)	denied 7/6/15 (Read, J.) (Appeal No. 1)
People v Shawn	4th Dept: 128 AD3d 1384 (Cayuga)	denied 7/6/15 (Read, J.) (Appeal No. 2)

People v Sheppard	App Div, 2d Dept: 2015 NY Slip Op 62896(U) (Queens)	dismissed 7/14/15 (Pigott, J.)
People v Short	4th Dept: 128 AD3d 1414 (Cayuga)	denied 7/27/15 (Pigott, J.)
People v Sierra	4th Dept: 126 AD3d 1513 (Monroe)	denied 7/13/15 (Pigott, J.)
People v Smith	2d Dept: 128 AD3d 736 (Kings)	denied 7/29/15 (Fahey, J.)
People v Spalding	1st Dept: 121 AD3d 536 (NY)	denied 7/29/15 (Rivera, J.)
People v Stevens	1st Dept: 122 AD3d 545 (NY)	denied 7/2/15 (Abdus-Salaam, J.)
People v Stewart (Alfatah)	App Div, 1st Dept: 2014 NY Slip Op 83751(U) (NY)	dismissed 7/29/15 (Pigott, J.)
People v Stewart (Al-Fatah)	App Div, 1st Dept: 2014 NY Slip Op 83751(U) (NY)	dismissed 7/29/15 (Pigott, J.)
People v Stewart (Java)	2d Dept: 126 AD3d 999 (Queens)	denied 7/9/15 (Read, J.)
People v Sutherland	App Div, 4th Dept, 4/20/15 (Erie)	dismissed 7/15/15 (Read, J.)
People v Tardi	4th Dept: 122 AD3d 1337 (Erie)	granted 7/28/15 (Abdus-Salaam, J.)
People v Taylor	1st Dept: 128 AD3d 419 (NY)	denied 7/15/15 (Read, J.)
People v Terborg	App Div, 4th Dept, 3/4/15 (Monroe)	dismissed 7/29/15 (Rivera, J.)
People v Then	2d Dept: 128 AD3d 864 (Queens)	granted 7/29/15 (Fahey, J.)
People v Thomas	1st Dept: 128 AD3d 440 (NY)	denied 7/17/15 (Stein, J.)
People v Thompson	2d Dept: 125 AD3d 1013 (Queens)	denied 7/17/15 (Stein, J.)
People v Thorsen	App Div, 3d Dept: 2015 NY Slip Op 75166(U) (Rensselaer)	dismissed 7/29/15 (Rivera, J.)
People v Toole	1st Dept: 128 AD3d 591 (NY)	denied 7/29/15 (Fahey, J.)
People v Tor (Buddha)	App Div, 1st Dept: 2014 NY Slip Op 87333(U) (Bronx)	denied 7/27/15 (Pigott, J.)
People v Tor (Budha)	App Div, 1st Dept: 2014 NY Slip Op 87333(U) (Bronx)	denied 7/27/15 (Pigott, J.)
People v Torres	1st Dept: 128 AD3d 422 (NY)	denied 7/29/15 (Stein, J.)
People v Turner (Evan)	1st Dept: 124 AD3d 444 (NY)	denied 7/28/15 (Abdus-Salaam, J.)
People v Turner (George)	App Term, 1st Dept: 47 Misc 3d 100 (NY)	denied 7/29/15 (Fahey, J.)
People v Uceta	2d Dept: 127 AD3d 1002 (Queens)	denied 7/27/15 (Pigott, J.)

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People v Underwood	4th Dept: 128 AD3d 1385 (Onondaga)	denied 7/29/15 (Pigott, J.)
People v Valencia-Noralez	2d Dept: 127 AD3d 1113 (Suffolk)	denied 7/27/15 (Pigott, J.)
People v Vasquez	App Div, 2d Dept: 2015 NY Slip Op 60827(U) (Kings)	dismissed 7/29/15 (Rivera, J.)
People v Venable	App Div, 2d Dept: 2015 NY Slip Op 71653(U) (Kings)	dismissed 7/29/15 (Rivera, J.)
People v Verni	2d Dept: 127 AD3d 887 (Queens)	denied 7/29/15 (Fahey, J.)
People v Wagner	1st Dept: 126 AD3d 641 (NY)	denied 7/13/15 (Pigott, J.)
People v Walker (Frederick)	App Div, 1st Dept: 2014 NY Slip Op 78664(U) (NY)	dismissed 7/1/15 (Read, J.)
People v Walker (Fredrick)	App Div, 1st Dept: 2014 NY Slip Op 78664(U) (NY)	dismissed 7/1/15 (Read, J.)
People v Walker (Gordie)	4th Dept: 125 AD3d 1507 (Cayuga)	denied 7/13/15 (Pigott, J.)
People v Walters (Christopher)	2d Dept: 127 AD3d 889 (Westchester)	denied 7/22/15 (Lippman, Ch. J.)
People v Walters (Timothy)	4th Dept: 124 AD3d 1321 (Monroe)	denied 7/2/15 (Abdus-Salaam, J.)
People v Wayne	1st Dept: 123 AD3d 607 (NY)	denied 7/28/15 (Abdus-Salaam, J.)
People v White	App Div, 2d Dept: 2015 NY Slip Op 66204(U) (Nassau)	dismissed 7/29/15 (Stein, J.)
People v Whitney	2d Dept: 125 AD3d 795 (Queens)	denied 7/29/15 (Rivera, J.)
People v Wiggins (Matthew)	4th Dept: 128 AD3d 1390 (Monroe)	denied 7/22/15 (Lippman, Ch. J.)
People v Wiggins (Robert)	2d Dept: 126 AD3d 921 (Orange)	denied 7/13/15 (Fahey, J.)
People v Williams (Cameron)	4th Dept: 128 AD3d 1522 (Monroe)	denied 7/13/15 (Read, J.)
People v Williams (Corey)	1st Dept: 123 AD3d 527 (NY)	denied 7/22/15 (Lippman, Ch. J.)
People v Williams (Kenyatta)	App Div, 2d Dept: 2015 NY Slip Op 72538(U) (Suffolk)	dismissed 7/29/15 (Rivera, J.)
People v Williams (Kermit)	2d Dept: 127 AD3d 1114 (Suffolk)	denied 7/22/15 (Lippman, Ch. J.)
People v Williams (Oswin)	2d Dept: 127 AD3d 1118 (Kings)	denied 7/28/15 (Fahey, J.)
People v Williams (Robert)	4th Dept: 126 AD3d 1304 (Erie)	denied 7/13/15 (Pigott, J.)
People v Williams (Rory)	3d Dept: 126 AD3d 1181 (Franklin)	denied 7/30/15 (Fahey, J.)
People v Williford	3d Dept: 124 AD3d 1076 (Schenectady)	denied 7/22/15 (Abdus-Salaam, J.)

People v Wilson	1st Dept: 123 AD3d 626 (Bronx)	denied 7/23/15 (Abdus-Salaam, J.)
People v Wisdom	2d Dept: 120 AD3d 724 (Kings)	denied reconsideration 7/1/15 (Pigott, J.)
People v Woods (Anthony)	1st Dept: 128 AD3d 491 (NY)	denied 7/29/15 (Stein, J.)
People v Woods (Mario)	4th Dept: 122 AD3d 1400 (Onondaga)	denied 7/2/15 (Abdus-Salaam, J.)
People v Yusuf	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 138(A) (Queens)	denied 7/6/15 (Read, J.)
People v Zepherine	2d Dept: 121 AD3d 822 (Kings)	denied 7/2/15 (Abdus-Salaam, J.)
People v Zullo	1st Dept: 128 AD3d 457 (NY)	denied 7/29/15 (Fahey, J.)

[37 NE3d 1147, 16 NYS3d 505]

In the Matter of LARRY L. HELWIG, Respondent, v MICHAEL ASKLAR, Appellant, and LORA ALLEN et al., as Commissioners of Niagara County Board of Elections, Respondents, et al., Respondents.

Argued August 25, 2015; decided August 26, 2015

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered August 19, 2015. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Niagara County (Frank Caruso, J.), entered in a proceeding pursuant to Election Law article 16, which had (1) granted the petition in part and (2) ordered the Niagara County Board of Elections to strike respondent Michael Asklar's name from the ballot for the 2015 primary and general elections as a Democratic Party candidate for the office of Niagara County Legislator, Seventh District.

Matter of Helwig v Asklar, 131 AD3d 814, affirmed.

HEADNOTE

Elections — Judicial Proceedings — Timeliness — “Nail and Mail” Service

In a proceeding pursuant to Election Law article 16, an Appellate Division order striking respondent’s name from the ballot for the primary and general elections as a Democratic Party candidate for the office of Niagara County Legislator was affirmed for the reasons stated in *Matter of Angletti v Morreale* (25 NY3d 794 [2015]): petitioner’s proceeding was timely commenced where petitioner complied with the terms of the order to show cause by nailing the papers to the door of respondent’s residence the day before, and mailing the papers to that residence by express mail on, the last day to commence the proceeding under the 14-day period authorized by the Election Law.

APPEARANCES OF COUNSEL

Jerome D. Schad, Williamsville, and *Law Office of Joseph F. Townsend*, Lockport (*Joseph F. Townsend* of counsel), for appellant.

Shawn P. Nickerson, North Tonawanda, *The Law Office of Henry F. Wojtaszek*, Niagara Falls and *Sinnreich, Kosakoff & Messina, LLP*, Central Islip (*John Ciampoli* of counsel), for Larry L. Helwig, respondent.

Claude A. Joerg, Lockport, for Lora Allen and another, respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs, for reasons stated in *Matter of Angletti v Morreale* (25 NY3d 794 [2015] [decided herewith]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, without costs, in a memorandum.

RAUL BARRETO, Appellant, et al., Plaintiff, v METROPOLITAN
TRANSPORTATION AUTHORITY et al., Respondents. (And
Third-Party Actions.)

Submitted June 29, 2015; decided August 27, 2015

Reported below, 110 AD3d 630.

Motions for reargument denied [see 25 NY3d 426 (2015)].

In the Matter of WALTER E. CARVER, Respondent, v STATE OF
NEW YORK et al., Appellants.

Submitted August 10, 2015; decided August 27, 2015

Reported below, 87 AD3d 25.

Motion by National Center for Law and Economic Justice et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of EIGHTH JUDICIAL DISTRICT ASBESTOS LITIGATION.

JOANN H. SUTTNER, as Executrix of GERALD W. SUTTNER,
Deceased, Respondent, v A.W. CHESTERTON COMPANY et al.,
Defendants, and CRANE CO., Appellant.

Submitted June 29, 2015; decided August 27, 2015

Reported below, 115 AD3d 1218.

Motion by Business Council of New York State et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

HUGH KNIGHT, Appellant, v STATE OF NEW YORK, Respondent.

Submitted June 29, 2015; decided August 27, 2015

Reported below, 127 AD3d 1435.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for poor person relief dismissed as academic.

In the Matter of JORGE L. LINARES, Appellant, v ANDREA W. EVANS, as Chair of the Division of Parole, Respondent.

Submitted July 27, 2015; decided August 27, 2015

Reported below, 112 AD3d 1056.

Motion by Columbia Law School Prisoners and Families Clinic of Morningside Heights Legal Services for leave to file a brief amicus curiae on the appeal herein granted and the

proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge STEIN taking no part.

In the Matter of JORGE L. LINARES, Appellant, v ANDREA W. EVANS, as Chair of the Division of Parole, Respondent.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 112 AD3d 1056.

Motion by Tim Brennan et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge STEIN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE AVILES, Appellant.

Submitted August 17, 2015; decided August 27, 2015

Reported below, 47 Misc 3d 126(A), 2015 NY Slip Op 50374(U).

Motion for assignment of counsel granted and V. Marika Meis, Esq., The Bronx Defenders, 360 East 161st Street, Bronx, New York 10451 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BARKSDALE, Appellant.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 110 AD3d 498.

Motion by New York Civil Liberties Union et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RYAN
P. BRAHNEY, Appellant.

Submitted June 22, 2015; decided August 27, 2015

Reported below, 126 AD3d 1286 (Appeal Nos. 1 and 2).

Motion for assignment of counsel granted and Kathryn Friedman, Esq., care of The Sage Law Firm Group, PLLC, PO Box 200, 465 Grant Street, Buffalo, New York 14213 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
BROWN, Appellant.

Submitted August 17, 2015; decided August 27, 2015

Reported below, 126 AD3d 516.

Motion for assignment of counsel granted and Danielle Muscatello, Esq., care of Robert DiDio & Associates, 80-02 Kew Gardens Road, Suite 307, Kew Gardens, New York 11415 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LYXON
CHERY, Appellant.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 127 AD3d 533.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PRINCE
CLARK, Appellant.

Submitted August 17, 2015; decided August 27, 2015

Reported below, 129 AD3d 1.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP
COUSER, Appellant. (And Another Appeal.)

Submitted July 27, 2015; decided August 27, 2015

Reported below, 126 AD3d 1419, 1423.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeals herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LENNIE
FRANKLINE, Appellant.

Submitted July 27, 2015; decided August 27, 2015

Reported below, 123 AD3d 504.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARK
GARRETT, Respondent.

Submitted June 29, 2015; decided August 27, 2015

Reported below, 106 AD3d 929.

Motion for reargument denied [*see* 23 NY3d 878 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STANLEY
HARDEE, Appellant.

Submitted July 13, 2015; decided August 27, 2015

Reported below, 126 AD3d 626.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JENNIFER JORGENSEN, Appellant.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 113 AD3d 793.

Motion by National Advocates for Pregnant Women et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES MILLER, Appellant.

Submitted July 27, 2015; decided August 27, 2015

Reported below, 122 AD3d 492.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT PATTERSON, Appellant.

Submitted August 10, 2015; decided August 27, 2015

Reported below, 128 AD3d 424.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY PERKINS, Appellant.

Submitted August 10, 2015; decided August 27, 2015

Reported below, 124 AD3d 915.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New

York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY ROMERO, Also Known as ROBERT ROSA, Appellant.

Submitted July 20, 2015; decided August 27, 2015

Reported below, 123 AD3d 1147.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAGTAR SINGH, Appellant.

Submitted June 29, 2015; decided August 27, 2015

Reported below, 47 Misc 3d 136(A), 2015 NY Slip Op 50504(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR A. SMALLING, Appellant.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 126 AD3d 820.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al., Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Submitted July 27, 2015; decided August 27, 2015

Reported below, 114 AD3d 622.

Motion by Institute for Professionals in Taxation for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al., Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 114 AD3d 622.

Motion by Council on State Taxation for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al., Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 114 AD3d 622.

Motion by Broadband Tax Institute for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al., Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 114 AD3d 622.

Motion by Taxpayers Against Fraud Education Fund for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the

brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al., Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 114 AD3d 622.

Motion by Chamber of Commerce of the United States of America for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al., Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Submitted August 3, 2015; decided August 27, 2015

Reported below, 114 AD3d 622.

Motion by Business Council of New York State, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BOBBY WALLACE, Appellant.

Submitted June 29, 2015; decided August 27, 2015

Reported below, 113 AD3d 413.

Motion to vacate this Court's June 12, 2015 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEONARD WILLIAMS, Appellant.

Submitted July 13, 2015; decided August 27, 2015

Reported below, 123 AD3d 1152

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

RAYMOND PINK et al., Respondents, v MATTHEW RICCI, Defendant, and ROME YOUTH HOCKEY ASSOCIATION, INC., Appellant, et al., Defendants.

Submitted July 6, 2015; decided August 27, 2015

Reported below, 125 AD3d 1376.

Motion by Pacific Legal Foundation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

RAYMOND PINK et al., Respondents, v MATTHEW RICCI, Defendant, and ROME YOUTH HOCKEY ASSOCIATION, INC., Appellant, et al., Defendants.

Submitted July 13, 2015; decided August 27, 2015

Reported below, 125 AD3d 1376.

Motion by New York State Academy of Trial Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

In the Matter of SONARA HH., a Child Alleged to be Permanently Neglected. SCHOHARIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ROBERT HH., Respondent. ATTORNEY FOR THE CHILD, Appellant.

Submitted June 15, 2015; decided August 27, 2015

Reported below, 128 AD3d 1122.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SONARA HH., a Child Alleged to be Permanently Neglected. SCHOHARIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; ROBERT HH., Respondent.

Submitted June 29, 2015; decided August 27, 2015

Reported below, 128 AD3d 1122.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

WELLS FARGO BANK, N.A., as Trustee for ABFC 2006-OPT3 TRUST, ABFC ASSET-BACKED CERTIFICATES, SERIES 2006-OPT3, Respondent, v ROTIMI EROBOBO, Appellant, et al., Defendants.

Submitted June 15, 2015; decided August 27, 2015

Reported below, 127 AD3d 1176.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WSC RIVERSIDE DRIVE OWNERS LLC, Appellant, v OLIVER WILLIAMS, Respondent.

Submitted June 15, 2015; decided August 27, 2015

Reported below, 125 AD3d 458.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

YANIVETH R., an Infant, by Her Mother and Natural Guardian,
RAMONA S., et al., Appellants, v LTD REALTY CO. et al.,
Respondents, et al., Defendants. (And a Third-Party Ac-
tion.)

Submitted August 17, 2015; decided August 27, 2015

Reported below, 120 AD3d 1142.

Motion by Defense Association of New York, Inc. for leave to
appear amicus curiae on the appeal herein granted only to the
extent that the proposed brief is accepted as filed.

MATVEY ZELICHENKO, Appellant, v 301 ORIENTAL BOULEVARD,
LLC, Respondent.

Submitted July 27, 2015; decided August 27, 2015

Reported below, 117 AD3d 1038.

Motion by Defense Association of New York, Inc. for leave to
file a brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed.

[37 NE3d 1159, 16 NYS3d 515]

RICHARD RIVERA et al., Appellants, v FERNANDEZ & ULLOA AUTO
GROUP et al., Respondents.

Decided August 27, 2015

SUMMARY

APPEAL, from an order of the Appellate Division of the
Supreme Court in the First Judicial Department, entered
December 11, 2014. The Appellate Division, with two Justices
dissenting, affirmed an order of the Supreme Court, Bronx
County (Wilma Guzman, J.; op 2013 NY Slip Op 33818[U]
[2013]), which, to the extent appealed from as limited by the
briefs, had granted defendants' motion for summary judgment
dismissing plaintiff Richard Rivera's complaint on the thresh-
old issue of serious injury within the meaning of Insurance
Law § 5102 (d).

Plaintiff commenced an action seeking damages for injuries
he allegedly sustained as a result of a motor vehicle accident.
The majority at the Appellate Division concluded that defend-

ants made a prima facie showing that plaintiff did not suffer a permanent consequential or significant limitation of use of his left knee based on expert reports from a radiologist and orthopedist, and plaintiff's own medical records. The majority further concluded that, in opposition, plaintiff failed to raise a triable issue of fact based on his orthopedic surgeon's opinion, which failed to address or contest the opinion of defendants' medical experts that any condition was chronic and unrelated to the accident, and failed to address or contest the finding of degenerative changes in the MRI report in plaintiff's own medical records.

Rivera v Fernandez & Ulloa Auto Group, 123 AD3d 509, affirmed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury

In an action to recover damages for injuries plaintiff allegedly sustained to his knee as a result of a motor vehicle accident, the Appellate Division correctly concluded that plaintiff failed to raise a triable issue of fact as to whether he suffered a serious injury within the meaning of Insurance Law § 5102 (d).

APPEARANCES OF COUNSEL

The Law Office of Judah Z. Cohen, PLLC, Woodmere (*Judah Z. Cohen* of counsel), for appellants.

Baker, McEvoy, Morrissey & Moskovits, P.C., Brooklyn (*Colin F. Morrissey* of counsel), for respondents.

New York State Trial Lawyers Association, New York City (*Michael S. Levine* of counsel), for New York State Trial Lawyers Association, amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division correctly concluded that plaintiff failed to raise a triable issue of fact as to whether he suffered a serious injury within the meaning of Insurance Law § 5102 (d) as a result of the underlying motor vehicle accident.

Concur: Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

ANIMALS.

KNOWLEDGE OF VICIOUS PROPENSITY.

1. Strict Liability.—In a personal injury action arising out of plaintiff's collision with a dog owned by defendants while riding her bicycle in front of defendants' home, defendants were entitled to summary judgment dismissing plaintiff's strict liability claim, where defendants established that they did not know of any vicious propensities on the part of their dogs, and plaintiff failed to demonstrate the existence of a triable issue of fact as to whether defendants had notice of the animals' harmful proclivities. *Doerr v Goldsmith*, 25 NY3d 1114.

LIABILITY FOR INJURIES.

2. Negligence — Dogs Colliding with Bicyclists.—In personal injury actions arising out of plaintiffs' collisions with dogs owned by defendants while riding their bicycles, plaintiffs could not recover based on defendants' purported negligence in the handling of their dogs, which were not domestic farm animals subject to an owner's duty to prevent such animals from wandering unsupervised off the farm. *Doerr v Goldsmith*, 25 NY3d 1114.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Habeas Corpus — Confinement of Sex Offender Facing Deportation.—In a habeas corpus proceeding brought by petitioner foreign national who, after serving 25 years in state prison for certain sex offenses and other crimes, was conditionally released and placed in federal custody for deportation, but was subsequently returned to state custody after federal officials were unable to procure the necessary documentation to deport him, the issue raised was academic because

APPEAL—Cont'd

petitioner was being confined pursuant to a probable cause order in a civil management proceeding commenced after his return to state custody. On the same day that petitioner commenced the habeas corpus proceeding, the State filed a civil management petition pursuant to Mental Hygiene Law article 10, which resulted in a finding that petitioner was a “sex offender requiring civil management” (Mental Hygiene Law § 10.06 [k]) and the entry of a probable cause order. Petitioner’s habeas petition challenged only his initial arrest and detention, and since he was being held pursuant to the probable cause order, the initial detention no longer served as the authority for his continuing confinement. Furthermore, no question was presented to warrant application of an exception to the mootness doctrine. The State articulated that it had since corrected its practices relating to the commencement of civil commitment proceedings against sex offenders facing deportation. Moreover, the article 10 proceeding itself was the proper forum to challenge the validity of the probable cause order and the underlying article 10 petition (see Mental Hygiene Law §§ 10.06-10.08, 10.13). *People ex rel. Bourlaye T. v Connolly*, 25 NY3d 1054.

COURT OF APPEALS.

2. Matters Appealable — Consolidating Nonappealable Order with Appealable Orders.—The Appellate Division’s consolidation of a nonappealable order denying defendant’s resentencing application pursuant to the 2004 Drug Law Reform Act (L 2004, ch 738) with other, appealable orders did not transform the nonappealable order into one that the Court of Appeals may consider. The Appellate Division’s authority to consolidate appeals stems from its inherent authority to administer and manage its proceedings. The Appellate Division’s use of this inherent authority does not expand or modify the scope of the Court of Appeals’ jurisdiction, which is established by statute. *People v Lovett*, 25 NY3d 1088.

DISMISSAL.

3. Two-Justice Dissent Not on Question of Law.—An appeal from an order of the Appellate Division, which denied petitioner’s renewed application for admission to the New York State bar, was dismissed since the two-Justice dissent at the Appellate Division was not on a question of law within the meaning of CPLR 5601 (a). *Matter of Anonymous*, 25 NY3d 1083.

MATTERS REVIEWABLE.

4. Court of Appeals — Permission to Appeal.—In a mortgage foreclosure action, plaintiff loan servicer’s argument that the Appellate Division erred in reversing the judgment of foreclosure was not properly before the Court of Appeals, as plaintiff never obtained permission from the Appellate Division to appeal to the Court of Appeals from the Appellate Division order. *Aurora Loan Servs., LLC v Taylor*, 25 NY3d 355.

PRESERVATION OF ISSUE FOR REVIEW.

5. Termination of Employment as Probationary Teacher — Exemption from Notice of Claim Requirement.—In a proceeding pursuant to CPLR article 78 challenging respondent’s determination terminating petitioner’s employment as a probationary teacher, petitioner’s arguments that she was exempt from the notice of claim requirement in Education Law § 3813 (1) because the monetary damages sought were incidental to her primary claim for equitable relief and because she sought to enforce tenure rights by estoppel were unpreserved for review in the Court of Appeals. Even if the Appellate Division may have considered one or both of these arguments, they were not raised at Supreme Court. *Matter of McGovern v Mount Pleasant Cent. Sch. Dist.*, 25 NY3d 1051.

6. Risk Level Classification under Sex Offender Registration Act.—Defendant’s contentions with respect to his risk level classification under the Sex Offender Registration Act were not preserved for review by the Court of Appeals. *People v Brown*, 25 NY3d 1174.

ARBITRATION.

See, also, INSURANCE.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTORNEY AND CLIENT.

UNAUTHORIZED PRACTICE OF LAW.

1. New York Office Required for Practice of Law by Nonresidents.—Judiciary Law § 470, which provides that an attorney admitted to practice in New York “whose office for the transaction of law business is within the state” may practice law within the state “although he [or she] resides in an adjoining state,” requires nonresident attorneys to maintain a physical law office in New York. The statute appears to presuppose a residency requirement for the practice of law in New York State. It then makes an exception, by allowing nonresident attorneys to practice law if they keep an “office for the transaction of law business” in New York. By its plain terms, then, the statute requires nonresident attorneys practicing in New York to maintain a physical law office here. Even if one wanted to interpret the term “office” loosely to mean someplace that an attorney can receive service, the additional phrase “for the transaction of law business” makes that interpretation less plausible. *Schoenefeld v State of New York*, 25 NY3d 22.

BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS.

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL RIGHTS.

DISCRIMINATION BASED ON PREVIOUS CRIMINAL PROSECUTION.

1. Prior Drug-Related Felony Convictions — School Bus Driver Certification Denied.—Respondent New York City Department of Education’s denial of petitioner’s application for certification as a school bus driver was not arbitrary and capricious, where petitioner had been convicted of two drug-related felonies and three theft-related misdemeanors, even though petitioner had been issued a certificate of relief from disabilities with respect to his felony convictions. It is impermissible for an employer to deny a license or employment application “by reason of the individual’s having been previously convicted of one or more criminal offenses,” unless there is a “direct relationship” between the previous criminal offense and the license or employment sought, or where the licensing or employment would involve an “unreasonable risk to . . . the safety or welfare of specific individuals or the general public” (Correction Law § 752 [1], [2]). Correction Law § 753 (1) sets out eight factors that must be considered when deciding whether an exception applies, and failure to take into consideration each of these factors results in a failure to comply with the mandatory directive. Petitioner adduced no evidence demonstrating that respondent failed to consider the information he provided concerning his relevant employment history. Respondent was not obliged to point to any contemporaneously created record demonstrating that it considered each of the factors in reviewing petitioner’s application. Moreover, while Correction

CIVIL RIGHTS—Cont'd

Law § 753 (2) requires an employer to “give consideration to a certificate of relief from disabilities,” it does not establish a prima facie entitlement to the license or employment. At the time of his more recent offenses, petitioner was of mature age, rather than an age at which an individual’s moral values are typically still developing. In addition, respondent was required by its regulations to take into account the particular concern with offenses involving possessing, distributing or selling controlled substances. *Matter of Dempsey v New York City Dept. of Educ.*, 25 NY3d 291.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

CLUBS.

See ASSOCIATIONS.

COLLEGES AND UNIVERSITIES.**ADMISSION.**

1. Rescission of Admission — Misrepresentations on Application Regarding Criminal History.—Respondent law school’s determination to rescind petitioner’s admission was not arbitrary and capricious, where petitioner misrepresented in his admission application that he had been arrested for and pleaded guilty to drug possession, when he had in fact been arrested after selling drugs to an undercover police officer and pleaded guilty to drug possession with intent to distribute. Respondent had an unwritten policy of not admitting people who sold drugs and averred that if petitioner had disclosed on his application that his arrest was for the sale of drugs and possession with intent to distribute, his application would have been denied during the initial screening process. That was not an irrational policy and was within the exercise of respondent’s honest discretion. Nor was it necessary that the policy be in writing for respondent to apply it. Respondent did not fail to follow its own rules and procedures, as its grievance procedure did not apply to conduct of students unrelated to academic and related matters, or unrelated to conduct of students when they are enrolled. Moreover, the penalty was not so disproportionate to the misconduct as to be shocking to one’s sense of fairness. The application made it clear that dire consequences could result if there was a failure to provide truthful answers. Thus, petitioner was on notice of the potential repercussions should he fail to truthfully and fully disclose his record. *Matter of Powers v St. John’s Univ. Sch. of Law*, 25 NY3d 210.

COMMUNITY COLLEGE.

2. Liability for Death of Student.—In a wrongful death action arising from the death of a community college student who experienced sudden cardiac arrest while on campus, alleging that defendant county failed to equip decedent’s dormitory with an automated external defibrillator and/or to have an emergency medical response plan in place, defendant was entitled to summary judgment dismissing the complaint. While defendant exercised significant influence and control over the community college’s finances as its local sponsor (8 NYCRR 604.1; Education Law art 126), only the college’s board of trustees was authorized to manage its facilities (Education Law § 6306 [5]). Therefore, the college alone was charged with the duty of care. Furthermore, defendant established that it did not even own the dormitory where decedent’s accident occurred. *Branch v County of Sullivan*, 25 NY3d 1079.

CONDEMNATION.

See EMINENT DOMAIN.

CONFLICT OF LAWS.**LAW GOVERNING CONTRACT ACTIONS.**

1. Enforceability of Florida Choice-of-Law Provision in Employment Agreement.—Applying Florida law on restrictive covenants related to the non-solicitation

CONFLICT OF LAWS—Cont'd

of customers by a former employee violates the public policy of this state. Accordingly, in an action arising out of defendant's alleged violation of the non-solicitation provision of the parties' employment agreement, the choice-of-law provision in the agreement purporting to apply Florida law was unenforceable as to the non-solicitation provision. While parties are generally free to reach agreements on whatever terms they prefer, courts will not enforce agreements where the chosen law violates some fundamental principle of justice. Considering Florida's nearly-exclusive focus on the employer's interests, prohibition against narrowly construing restrictive covenants, and refusal to consider the harm to the employee, in contrast with New York's requirements that courts strictly construe restrictive covenants and balance the interests of the employer, employee and general public, defendants met their heavy burden of proving that application of Florida law would be offensive to a fundamental policy of this state. *Brown & Brown, Inc. v Johnson*, 25 NY3d 364.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

BREACH OR PERFORMANCE OF CONTRACT.

1. Total Return Swaps Transactions — Compliance with Provision for Dispute of Collateral Calls.—In a breach of contract action arising from a series of transactions known as total return swaps memorialized in agreements under which both plaintiff hedge fund and defendant bank had the right to demand collateral from the other party based on changes in the underlying debt instruments, neither party was entitled to summary judgment where material issues of fact existed as to whether defendant defaulted under the contracts when it made a transfer on a collateral call request a day later than required by the contract and in an amount less than an undisputed amount. The "Delivery of Collateral" provision of the parties' master confirmation agreement provided that, notwithstanding anything in the credit support annex (CSA) to the contrary, defendant "shall Transfer any Return Amounts in respect of Transactions not later than the Business Day following the Business Day on which [plaintiff] requests the Transfer of such Return Amount." An informal dispute resolution procedure found in the CSA required the disputing party to first notify the other party of the dispute, then transfer the "undisputed amount," if any, to the other party. Here, within hours of receiving the collateral call from plaintiff, defendant emailed plaintiff stating that it did not agree with the call, and queried whether plaintiff wanted to invoke the dispute mechanism. The parties spoke with one another about the dispute, including at least two telephone conversations on the day of the collateral call and the next day. Defendant then made a transfer to plaintiff two days after the collateral call that was \$80,000 less than the undisputed amount. A question of fact existed as to whether defendant complied with the undisputed amount provision, i.e., whether plaintiff received the full benefit of the amount it was owed when defendant made the transfer and reduced the amount of its collateral call to plaintiff by the additional \$80,000. *BDC Fin. L.L.C. v Barclays Bank PLC*, 25 NY3d 37.

CONDITION PRECEDENT.

2. Residential Mortgage-Backed Securities Transaction — Breach of Contractual Obligation to Cure or Repurchase Loans Not Conforming to Representations and Warranties.—An action alleging failure by defendant sponsor of a residential mortgage-backed securities transaction to comply with its contractual obligation to cure or repurchase mortgage loans that did not conform with the representations and warranties made by defendant regarding the loans' credit quality and characteristics upon defendant's sale of the loans to a securitization conduit for deposit into plaintiff trust and sale to investors was not validly commenced, because the original plaintiffs—two of the trust's certificateholders—failed to comply with the contractual condition precedent to suit that they afford defendant 60 days to cure and 90 days to repurchase from the date of notice of the alleged nonconform-

CONTRACTS—Cont'd

ing loans. Even assuming the certificateholders had standing to sue such that the trust's substitution of itself as plaintiff related back to the certificateholders' date of filing, defendant's failure to cure or repurchase was not a substantive condition precedent that deferred accrual of the trust's claim but was instead a procedural prerequisite to suit. Unlike the situation where no cause of action exists until a demand that is a condition to a party's performance is made, the trust suffered a legal wrong at the moment defendant allegedly breached the representations and warranties, and that breach occurred, if at all, the moment the contract of sale was executed. Thus, a cause of action existed for breach of a representation and warranty; the trust was just limited in its remedies for that breach and simply failed to pursue its contractual remedy within the limitations period. *ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581.

EMPLOYMENT CONTRACTS.

3. Non-Solicitation Covenant — Partial Enforcement.—In an action arising out of defendant's alleged violation of the non-solicitation covenant of the parties' employment agreement, which was overbroad to the extent it prohibited defendant from working with any of plaintiffs' New York customers, plaintiffs were not entitled to summary judgment granting partial enforcement of the provision to prohibit defendant only from soliciting plaintiff's customers with whom defendant had interacted or whose files she had encountered while in plaintiffs' employ. The judicial power to sever and grant partial enforcement for an overbroad employee restrictive covenant has been recognized and applied where the employer demonstrates an absence of overreaching, coercive use of dominant bargaining power, or other anti-competitive misconduct, and has in good faith sought to protect a legitimate business interest, consistent with reasonable standards of fair dealing. Although the non-solicitation covenant was imposed as a requirement of defendant's initial employment and was not presented to her until her first day of work, the parties disputed whether she understood the agreement, whether plaintiffs' employee discussed or explained it to her, what such a discussion entailed, whether she was required to sign it that day, or if she could have sought advice from counsel and negotiated the terms of the agreement. Moreover, the parties' submissions, together with the fact that defendant had already left her prior employment, raised questions about whether plaintiffs engaged in overreaching or used coercive dominant bargaining power to obtain the restrictive covenant. *Brown & Brown, Inc. v Johnson*, 25 NY3d 364.

CORPORATIONS.**DISREGARDING CORPORATE ENTITY.**

1. Piercing Corporate Veil.—In a rent overcharge action in which plaintiff rent-stabilized tenants established that defendant limited liability company landlord had set an illegal rent in connection with a stratagem devised to remove plaintiffs' apartment from the protections of rent stabilization, Supreme Court improperly found that plaintiffs had met their burden to pierce the corporate veil to make defendant 99% company owner personally liable for their damages. Questions of fact existed as to whether defendant 99% owner, through his undoubted domination of the company, abused the corporate form to commit a wrong or fraud causing injury to plaintiffs. *Conason v Megan Holding, LLC*, 25 NY3d 1.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

CRIMES—Cont'd**ACCOMPLICES.**

1. Community of Purpose — Sufficiency of Evidence.—In a prosecution arising from an attack on two pedestrians who crossed in front of an SUV stopped at a red light in which defendant was a passenger, legally sufficient evidence existed to support the conclusion that defendant, who smashed a glass bottle over the head of the first victim and then chased the second victim down the block, and the SUV driver, who at some point also exited the SUV and struck the first victim with a bat, acted in concert in causing the death of the first victim. To be liable under an acting in concert theory (Penal Law § 20.00), the accomplice and principal must share a community of purpose. While the evidence presented at trial presented conflicting testimony about when exactly the driver exited the vehicle, under the second victim's version of events, defendant and the driver were out of the vehicle at the same time, both acting in a manner intending to cause harm to the first victim. Additionally, another eyewitness testified that he observed the driver swing the bat at one of the victims while defendant was present. Thus, a reasonable jury could infer that a community of purpose existed between defendant and the driver. *People v Scott*, 25 NY3d 1107.

APPEAL.

2. Preservation of Issue for Review — Right to Counsel Violation.—In a criminal prosecution, defendant failed to preserve his claim that his right to counsel was violated when the trial court, while defendant's counsel was not present, made a determination on the record that he was going to replace a sick juror with an alternate juror, but actually replaced the juror when counsel was present and made no objection. As required by CPL 470.05 (2), if defense counsel is present to bring an error to the trial court's attention, counsel must register a protest where the error, if called to the court's attention, would afford the trial court opportunity to promptly rescind any directive violative of the defendant's right of access to counsel or otherwise to cure the error. Here, although defense counsel was not present in court while the judge was stating on the record that he intended to replace the sick juror and counsel for codefendant was objecting to that replacement, the record showed that prior to arriving in the courtroom, counsel was aware from his discussion with the court that there was a sick juror and that the court had previously excused another alternate juror, and defense counsel was in the courtroom when the judge told the alternate to take the seat of the sick juror. If counsel had any objection to the replacement of the juror, including a desire to be heard further on the issue, he had the time and opportunity to make his position known before the trial proceeded. *People v Garay*, 25 NY3d 62.

3. Preservation of Issue for Review — Challenge to Jury Instructions.—In the prosecution of defendant for fatally shooting a bystander during a gunfight between defendant and his codefendant, defendant's challenge to the jury instructions directing the jury to consider depraved indifference murder and, irrespective of its verdict on that count, to then consider intentional murder was preserved for appellate review. The record established that the trial court considered depraved indifference and intentional murder as separate crimes that the jury must independently consider. During the charge conference the trial court stated that there was a "distinct difference in the crimes." Later, in response to defendant's concerns as to whether the verdict sheet should direct the jury to consider depraved indifference murder if it found defendant guilty of intentional murder, the court responded, "I think they have to. It's a totally different separate element." Those statements, and the court's eventual submission of the counts in the conjunctive established the court's rejection of alternative charges. *People v Dubarry*, 25 NY3d 161.

4. Waiver of Right to Appeal.—Defendant voluntarily, knowingly and intelligently waived his right to appeal, where the right to appeal was adequately described without lumping it into the panoply of rights normally forfeited upon a guilty plea and asked defendant whether he understood that as a condition of his plea he was "waiving the right to appeal [his] conviction and sentence to the Appellate Division." The prosecutor also obtained defendant's confirmation that he

CRIMES—Cont'd

had discussed the waiver of the right to appeal with his attorney and that he was waiving such right in consideration of his negotiated plea, as well as counsel's confirmation that all motions pending or decided were being withdrawn. No further elaboration was necessary on the phrase "right to appeal your conviction and sentence to the Appellate Division" in view of the whole colloquy, particularly given defendant's background, including his extensive experience with the criminal justice system and multiple prior guilty pleas that resulted in terms of imprisonment. *People v Sanders*, 25 NY3d 337.

5. Preservation of Issue for Review — Challenge to Accomplice Liability Instructions.—In the prosecution of defendants for enterprise corruption on the theory of accomplice liability, defendants' challenges to the trial court's instructions on accomplice liability were not preserved. Neither defendant objected to the trial court's initial instruction, wherein, between two correct statements of the proof required to find a defendant guilty of accomplice liability, it erroneously misused "and" in place of "or" when describing when a defendant is not guilty of accomplice liability, and neglected to include an intent element in a different portion of the instruction. After the jury asked for further explanation on accomplice liability and before delivery of the supplemental charge, defendants objected to the charge on the ground that it took the burden away from the prosecutor in proving accomplice liability beyond a reasonable doubt, and proposed a charge that would specify that the defendants must have the mental culpability of larceny in order to have accessorial liability. The court repeated its original instruction, almost word for word, but also mistakenly used an "or" for an "and" in another instance. While counsel again objected to the charge for failure to specify the intent to commit larceny and began to express a second objection before being interrupted by the court, neither defense counsel stated an objection to issues raised on appeal, i.e., the misuse of conjunctive and disjunctive terms and the concern that the charge might convey to the jury that no mental state other than knowledge of the crime had to be proved. While counsel was not required to state the precise grammatical means by which the identified error was committed, the protest had to be specifically directed at the alleged error. *People v Keschner*, 25 NY3d 704.

6. Matters Reviewable — Mixed Question of Law and Fact — Search of Vehicle and Trunk.—In a drug prosecution in which the Appellate Division affirmed Supreme Court's denial of defendant's motion to suppress evidence discovered after a search of the trunk of a motor vehicle driven by defendant, the determinations regarding founded suspicion of criminality justifying a request to search the car, and then the trunk, and defendant's consent to a search of the vehicle, all involved mixed questions of law and fact. As the determinations were supported by the record, they were beyond further review by the Court of Appeals. *People v Mercado*, 25 NY3d 936.

7. Matters Appealable — Mixed Question of Law and Fact — Reasonable Suspicion to Stop and Detain Defendants.—In a criminal prosecution in which the Appellate Division determined that Supreme Court should have suppressed the showup identifications of both defendants and the property seized from one of the defendants because the police lacked reasonable suspicion to stop and detain defendants, the appeals from the Appellate Division orders reversing the judgments of conviction were dismissed for failing to fulfill the requirements of CPL 450.90 (2) (a). Whether the circumstances of a particular case rise to the level of reasonable suspicion presents a mixed question of law and fact. Because the reversals were thus not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]), the appeals were not authorized to be taken. *People v Brown*, 25 NY3d 973.

8. Preservation of Issue for Review.—Defendant failed to preserve for review the issue of whether the police were required to again read him his *Miranda* rights when they interviewed him a second time, at his request and in the presence of counsel, since he did not make that argument in his motion papers to the trial court or at the hearing to suppress statements made during the second interview. Moreover, while a general objection—such as that contained in defendant's omnibus motion—is sufficient to preserve an issue for review by the Court of Ap-

CRIMES—Cont'd

peals when the trial court “expressly decided the question raised on appeal” (CPL 470.05 [2]), here, the trial court did not expressly decide the issue of whether the police were required to advise defendant of his right to remain silent under the circumstances presented by the second interview. Rather, the court’s decision was focused on the right to counsel and whether counsel was required to be present for the entirety of that interview. *People v Graham*, 25 NY3d 994.

9. Waiver of Right to Appeal — Effect on Review of Discretionary Denial of Youthful Offender Status.—A valid waiver of the right to appeal, while not enforceable in the face of a failure to consider youthful offender treatment, forecloses appellate review of a sentencing court’s discretionary decision to deny youthful offender status once a court has considered such treatment. Accordingly, in a criminal prosecution in which defendant pleaded guilty and waived his right to appeal, review of County Court’s discretionary denial of defendant’s request to be adjudicated a youthful offender was precluded by his appeal waiver, the validity of which he did not contest. *People v Pacherille*, 25 NY3d 1021.

CONFESSION.

10. Suppression — Harmless Error.—Family Court’s failure to suppress respondent’s statement, made during a custodial interrogation without *Miranda* warnings, that he had gotten into a fight with complainant and stabbed him with a knife was not harmless, where there was evidence supporting respondent’s justification defense. After engaging in a fight with respondent, complainant left respondent’s building but then returned with a group of friends and started a second fight with respondent while the group cheered him on. Complainant, who was older, taller, heavier and stronger than respondent, had his hands above respondent’s chest on his neck while the group yelled “get him.” Respondent did not use the knife until after this potentially deadly force was used on him. Even if respondent was able to get out of the choke hold and had stepped back before pulling out the knife, that would not prove that complainant was done beating on respondent, especially given the crowd that had gathered. Accordingly, there was not overwhelming evidence that respondent knew that, with complete personal safety, he could have retreated. Furthermore, the People did not demonstrate that there was no reasonable possibility that the wrongly admitted evidence might have contributed to the guilty finding. The police officer’s summary of respondent’s statement appeared to conflate the two separate fights and created the impression that respondent paused in the course of one fight to secure a knife with which to stab complainant. The improper admission of the statement therefore undermined, if not eviscerated, respondent’s justification defense. *Matter of Delroy S.*, 25 NY3d 1064.

11. Voluntariness.—An order of the Appellate Division, which affirmed a judgment convicting defendant of manslaughter in the first degree, was reversed, defendant’s motion to suppress statements made to the police granted and case remitted to Supreme Court, New York County, for further proceedings on the indictment. *People v Rutledge*, 25 NY3d 1082.

CRUELTY TO ANIMALS.

12. Failure to Provide Sustenance — Mens Rea.—In the prosecution of defendant for failing to provide sustenance to his dog, even assuming that the trial court erred in refusing to instruct the jury that defendant’s conviction under Agriculture and Markets Law § 353 required proof of a mens rea—specifically, that he knowingly deprived the dog of or neglected or refused to furnish the basic necessities required to maintain the animal’s health—defendant was not entitled to relief based on the record. An American Society for the Prevention of Cruelty to Animals (ASPCA) agent testified that he discovered the dog confined to a garbage-strewn backyard, that the animal looked skinny with its bones prominent, with fly bites on its ears and flies around its head, and that there was no food, water or nearby shelter. Furthermore, the veterinarian who conducted a physical examination of the dog testified that it would have taken at least four to six weeks of starving to reduce the animal to the state that he observed. Moreover, defendant told the ASPCA agent that he could not afford to support the dog and he testified that he

CRIMES—Cont'd

had not been regularly feeding the animal. In light of the testimony about the dog's wasted appearance and dirty living conditions, as well as defendant's admissions, there could be no issue as to whether defendant knowingly deprived the animal of or neglected or refused to furnish the basic necessities required to maintain the dog's health. *People v Basile*, 25 NY3d 1111.

DISCLOSURE.

13. Notice of Intention to Offer Evidence — Pretrial Identification of Defendant.—In a prosecution for criminal sale of a controlled substance in the third degree arising after defendant sold crack cocaine to an undercover police officer, the People were required by CPL 710.30 to give defendant pretrial notice of their intention to offer at trial the testimony of a detective who surveyed the drug transaction and, after defendant was apprehended and arrested, identified defendant as the person he had observed with the undercover officer. The detective's surveillance of defendant did not constitute an observation of him that was so clear that the identification could not be mistaken, thereby obviating the risk of undue suggestiveness. When the People intend to offer at trial "testimony regarding an observation of the defendant either at the time or place of the commission of the offense or upon some other occasion relevant to the case, to be given by a witness who has previously identified him as such," the statute requires them to notify the defense of such intention within 15 days after arraignment and before trial (CPL 710.30 [1] [b]). The statute was a legislative response to the problem of suggestive and misleading pretrial identification procedures, and it contemplates pretrial resolution of the admissibility of identification testimony where it is alleged that an improper procedure occurred. As the People here failed to abide by the statutory notice requirement, the trial court erred in allowing the detective to testify at trial relative to his identification of defendant. *People v Pacquette*, 25 NY3d 575.

DISORDERLY CONDUCT.

14. Potential or Immediate Public Problem.—Defendant, who shouted obscenities at police officers in a subway station, provoking looks of surprise and curiosity from some passengers and evasive movements from others, and was then detained and arrested for disorderly conduct (Penal Law § 240.20 [3]), was entitled to suppression of an illegal knife found on his person during the detention because the police lacked probable cause for the arrest. There was no evidence that defendant's rant constituted disorderly conduct, which requires a situation that extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem. *People v Gonzalez*, 25 NY3d 1100.

DOUBLE JEOPARDY.

15. Different Criminal Transactions.—Defendant's prosecution for using false information when filling out and submitting an application for a non-driver identification card, which followed his prosecution in another county for possessing the forged non-driver ID he had obtained as a result, did not violate the statutory bar against double jeopardy. Under CPL 40.20 (2), a subsequent prosecution for offenses involving the "same . . . criminal transaction" violates the statutory bar against double jeopardy unless an exception applies. CPL 40.10 (2) defines "criminal transaction" as conduct "comprised of two or more or a group of acts either (a) so closely related and connected in point of time and circumstance of commission as to constitute a single criminal incident, or (b) so closely related in criminal purpose or objective as to constitute elements or integral parts of a single criminal venture." The offense of submitting the forged application and the offense of presenting the forged non-driver ID to the police were many months apart and involved different forged instruments, making them different criminal transactions. The prosecution here was based on defendant's completion and filing of the application form and was complete once defendant submitted the forged application. The prior prosecution was based on defendant's presentation of the forged non-driver ID to a police officer almost five months later. Moreover, this case did not involve integrated, interdependent acts, and as such did not constitute a single criminal venture. *People v Lynch*, 25 NY3d 331.

CRIMES—Cont'd**ENTERPRISE CORRUPTION.**

16. Continuity of Criminal Enterprise — Required Proof.—The prosecution in an enterprise corruption case may prove that a defendant was a member of a criminal enterprise, with a continuity beyond the scope of the individual criminal incidents, without showing that the enterprise would have survived the removal of a key participant. Pursuant to Penal Law § 460.20 (1) (a), a defendant is guilty of enterprise corruption if he or she has knowledge of the existence of a criminal enterprise and the nature of its activities, and being employed by or associated with that enterprise, intentionally conducts or participates in the affairs of an enterprise by participating in a pattern of criminal activity. A criminal enterprise is defined as “a group of persons sharing a common purpose of engaging in criminal conduct, associated in an ascertainable structure distinct from a pattern of criminal activity, and with a continuity of existence, structure and criminal purpose beyond the scope of individual criminal incidents” (Penal Law § 460.10 [3]). Were the People required to prove, beyond a reasonable doubt, that a criminal enterprise would survive the removal of a key participant, it would be impossible in most cases to demonstrate the existence of a criminal enterprise. Unless the leading participant was in fact removed some time before the enterprise disbanded, the People would be expected to prove an unknowable proposition concerning a counterfactual scenario in which events occurred differently from the actual world. *People v Keschner*, 25 NY3d 704.

17. Continuity of Criminal Enterprise — Required Proof.—*People v Yarmy* (171 Misc 2d 13, 20 [Sup Ct, NY County 1996]), which, in an enterprise corruption prosecution, stated, without citation or other support, that “one important factor in determining continuity is whether the organization could exist after the removal—by arrest or otherwise—of any of the participating member(s),” is not a correct statement of the law. *People v Keschner*, 25 NY3d 704.

18. Existence of Criminal Enterprise.—In the prosecution of defendants, a chiropractor and an internist, for enterprise corruption (Penal Law § 460.20 [1] [a]) on the theory of accomplice liability based on their association for approximately five years with several medical clinics founded by another individual who oversaw schemes involving a succession of patients whose medical history was used to procure income by an organization structured to facilitate the fraudulent billing of insurers, the People proved the existence of a criminal enterprise, notwithstanding that they did not prove that the alleged enterprise could continue to exist absent the founding member’s participation. The prosecution in an enterprise corruption case may prove that a defendant was a member of a criminal enterprise, with a continuity beyond the scope of the individual criminal incidents, without showing that the enterprise would have survived the removal of a key participant. If a group persists in the form of a structured, purposeful criminal organization beyond the time required to commit individual crimes, the continuity element of criminal enterprise is met (*see* Penal Law § 460.10 [3]). Here, the prosecution presented testimony establishing that defendants knowingly participated in the schemes involving numerous accident victims in which the clinics and its employees regularly solicited patients, provided and received kickbacks for referrals, staged accidents, and, through the use of preprinted and automatically filled forms, exaggerated injuries, ordered unnecessary tests and treatment visits, and prescribed unnecessary medical equipment in order to maximize the amount billed to no-fault insurance companies. *People v Keschner*, 25 NY3d 704.

EVIDENCE.

19. Hearsay — Prompt Outcry — Unfair and Prejudicial Surprise.—In a prosecution for statutory and non-consensual rape and other sex crimes, the trial court abused its discretion when it denied defense counsel’s motion for a mistrial or to strike complainant’s prompt outcry testimony—elicited by the People in disregard of their pretrial representation to the court and defense counsel that no such testimony would be offered because complainant had not disclosed the alleged assaults to anyone until months after they occurred—that she called and partially disclosed “what happened” to a friend on the night of the assaults. Defendant was

CRIMES—Cont'd

denied a remedy for the unfair and prejudicial surprise of such testimony under the circumstances, where the People failed to correct their prior representation, where defense counsel was deprived of the opportunity to timely and meaningfully revise his trial strategy premised upon complainant's delayed disclosure and emphasized the absence of any prompt outcry evidence during his opening statement, and where the error occurred early in the proceedings. Complainant's testimony that she disclosed her accusations against defendant—even partially—the same night as the assaults took defendant by surprise because it was inconsistent with the People's earlier position and with complainant's grand jury testimony. Moreover, the resulting prejudice was substantial. Complainant's cell phone records and expert testimony corroborated and explained the nature and timing of complainant's disclosure, and, although complainant failed to tell her friend that the assaults were non-consensual, the jury convicted defendant of the age-based charges but acquitted him of the charges based on lack of consent for reasons other than age. *People v Shaulov*, 25 NY3d 30.

20. Background and Narrative Evidence as to Police Pursuit of Defendant — Testimonial Nature of Out-of-Court Statement.—The trial court violated defendant's right to confrontation in his murder prosecution by admitting, as purported "background and narrative" evidence, a detective's hearsay testimony that the victim's sister had told him that the victim "was having a problem with" defendant prior to the murder. The Federal Confrontation Clause does not bar the use of testimonial statements for purposes other than establishing the truth of the matter asserted. Further, subject to the exercise of a court's discretion, otherwise inadmissible evidence that provides background information as to how and why the police pursued and confronted a defendant may be admitted to help a jury understand a case in context. Here, the detective's remark was a testimonial statement inasmuch as it was procured for the primary purpose of creating an out-of-court substitute for the testimony of the victim's sister. It arguably gave a motive for the shooting and exceeded that which was necessary to explain the police pursuit of defendant. Further, inasmuch as the prosecution turned on the identification of defendant by a single eyewitness, who was not well-acquainted with defendant and who did not identify him until two years after the crime, the error in admitting that testimony was not harmless. *People v Garcia*, 25 NY3d 77.

HARMLESS AND PREJUDICIAL ERROR.

21. Evidence of Defendant's Selective Silence during Custodial Interrogation — Impermissible Use by Prosecutor during Case-in-Chief.—In a prosecution for rape, burglary and related crimes arising after defendant allegedly gained entry to his ex-girlfriend's apartment by means of a ruse and then raped her, the erroneous use by the prosecutor during her opening statement and case-in-chief of evidence of defendant's selective silence during custodial interrogation was not harmless as a matter of law. The erroneously used evidence was that defendant, during custodial interrogation, not only did not answer when asked whether he had sex with the victim, but also did not deny it, and failed to tell the detective that the sex was consensual, as defendant subsequently testified before the grand jury. Even assuming that the evidence of defendant's guilt was overwhelming, there was a significant probability that the jurors would have acquitted defendant if the errors did not occur. The evidence of defendant's selective silence was highly prejudicial, and there was a significant risk that the jurors deemed defendant's failure to answer the interrogating detective's question as to whether he had sex with the victim to be an admission of guilt. Moreover, the trial court refused to provide a curative instruction to the jury after the prosecutor referred to defendant's selective silence during her opening statement. *People v Williams*, 25 NY3d 185.

22. Psychiatrist's Testimony About Defendant's Admissions of Sexual Abuse.—In a prosecution in which defendant was convicted of predatory sexual assault against a child, the trial court's error in allowing testimony by defendant's psychiatrist that defendant admitted to the abuse was not harmless. Apart from the victim's testimony, there was no eyewitness evidence to the abuse, and there was little, if any, physical evidence establishing it. Moreover, the prosecutor relied on the psy-

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chiatrist's testimony in arguing for defendant's guilt and, during deliberations, the jury's only request was for the psychiatrist's response when she was asked if defendant admitted to her that he sexually molested the child. *People v Rivera*, 25 NY3d 256.

23. Failure to Give Notice of Intention to Offer Evidence — Pretrial Identification of Defendant.—In a prosecution for criminal sale of a controlled substance in the third degree arising after defendant sold crack cocaine to an undercover police officer, the trial court committed harmless error in allowing the People, who had provided CPL 710.30 notice with respect to the pretrial identification of defendant by the undercover officer but not the detective who surveyed the drug transaction and confirmed with the arresting officer that defendant was the person he had observed with the undercover officer, to offer the detective's identification testimony at trial. Even in the absence of the detective's identification testimony, the evidence at trial overwhelmingly established that defendant was the seller. The undercover officer, an experienced narcotics detective who engaged in a face-to-face transaction with defendant, unequivocally identified defendant as the seller. Moreover, defendant was arrested just minutes after the transaction, and the pre-recorded buy money that had been used by the undercover officer to purchase the drugs was found on defendant's person. Finally, defendant's flight from police officers evinced a consciousness of guilt. Under the circumstances, the detective's testimony was merely cumulative, and its admission could not have contributed to defendant's conviction. *People v Pacquette*, 25 NY3d 575.

INDICTMENT.

24. Duplicitous Counts — Counts Alleging Use of Two Weapons to Commit Crimes Not Rendered Duplicitous.—In a prosecution arising from an incident in which defendant shot the victim twice, with two different guns, two counts of the indictment charging defendant with assault in the first degree and reckless endangerment in the first degree, alleging that he committed those acts by use of a .380 caliber semi-automatic pistol and a .22 caliber rifle, were not rendered duplicitous by the trial court's instructions or the evidence. A count is duplicitous if it charges more than one offense (CPL 200.30 [1]). Whether multiple acts may be charged as a continuing crime is resolved by reference to the language in the penal statute to determine whether the statutory definition of the crime necessarily contemplates a single act. Here, the trial court's initial instruction to the jury on those two counts tracked the conjunctive language of the indictment, and a subsequent instruction in response to a jury note advised that the jury could find that either or both of the weapons were involved. The People were not required to prove that defendant used both weapons in order to prove that he was guilty of assault and reckless endangerment in the first degree, because the offenses could be committed by doing any one of several things (Penal Law §§ 120.10 [1]; 120.25). Moreover, there was evidence at trial that defendant attacked the victim out of one impulse—to seek revenge for an alleged assault on his sister. Although defendant used two guns, this was a single incident. *People v Flanders*, 25 NY3d 997.

MURDER.

25. Depraved Indifference Murder Charged in Conjunction with Intentional Murder on Transferred Intent Theory.—A defendant cannot be convicted of both depraved indifference murder and intentional murder on a transferred intent theory when the defendant kills one person in the course of attempting to kill another. Accordingly, the trial court in defendant's murder prosecution erroneously submitted to the jury both charges in the conjunctive with respect to the same victim rather than in the alternative, where defendant fatally shot a bystander during a gunfight between defendant and his codefendant. The transferred intent theory permits a jury to find a defendant guilty of intentional murder, even though technically lacking an intentional state of mind with respect to the actual victim. Whether based on the defendant's conscious objective towards the intended victim, or on a transferred intent theory directed at a different, and actual, victim, defendant's conviction depends on a jury finding that defendant harbored the requisite intentional mental state. Defendant cannot then also be guilty of the same murder

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premised on a depraved state of mind. Moreover, defendant's state of mind is a matter for the jury, and depraved indifference is a culpable mens rea, distinct from the mens rea required for intentional murder. Permitting conjunctive charges of depraved indifference and intentional murder based on transferred intent absolves the jury of rendering a verdict based on a proper determination of the defendant's state of mind. *People v Dubarry*, 25 NY3d 161.

26. Felony Murder — Sufficiency of Evidence.—Defendant's conviction for felony murder based upon the underlying predicate felony of burglary was supported by legally sufficient evidence, where defendant unlawfully entered the victim's apartment with the singular intent to assault him, but caused his death. Under the felony murder statute, a person is guilty of murder in the second degree if he or she commits or attempts to commit one of 10 enumerated felonies, including the crime of burglary, "and, in the course of and in furtherance of such crime . . . causes the death of [another]" (Penal Law § 125.25 [3]). A felony murder conviction may be predicated upon the commission of a burglary where the defendant's underlying intent is to assault the victim. The felony murder statute is intended to punish a perpetrator for a death he or she caused during the commission of a felony, but not a death that is coincidental to the felony. The "in furtherance of" element requires a logical nexus between a murder and a felony. Here, there was a clear logical nexus between defendant's felony of unlawfully entering the victim's apartment to assault him and the homicide, which was not coincidental. Limiting the "in furtherance of" element to murders that promote or advance the felony would exclude from felony murder a large class of murders. Given that the purpose of the felony murder statute was to broaden liability for deaths that occur during the commission of certain enumerated felonies, the legislature could not have possibly intended such a result. *People v Henderson*, 25 NY3d 534.

RIGHT OF CONFRONTATION.

27. Background and Narrative Evidence as to Police Pursuit of Defendant — Nontestimonial Nature of Out-of-Court Statement.—In a murder prosecution in which police identified defendant as a suspect through an anonymous tip prior to interviewing the single eyewitness, defendant's right to confrontation was not violated where the trial court admitted into evidence a detective's testimony that the police "began specifically looking for defendant" without having "spoken to the eyewitness." The Federal Confrontation Clause bars admission of testimonial statements of a witness who did not appear at trial, unless that witness was unavailable to testify and the defendant had a prior opportunity to cross-examine him or her. A statement will be treated as testimonial only if it was procured with a primary purpose of creating an out-of-court substitute for trial testimony. Here, there was no basis to characterize the detective's statement as testimonial; it was not an out-of-court substitute for trial testimony. Further, the way the prosecutor solicited the testimony did not amount to an inferential breach of defendant's confrontation rights by making clear the source and content of the conversation. *People v Garcia*, 25 NY3d 77.

RIGHT TO BE PRESENT AT TRIAL.

28. Supplemental Jury Instruction.—In a prosecution for manslaughter and assault, the trial court did not commit a mode of proceedings error when it gave the jury a supplemental instruction regarding the dates alleged in the indictment in defendant's absence. The supplemental instruction—simply clarifying the dates of the crimes in the jury charge, which were the same dates set forth in the indictment—was a technical conformance with the indictment that did not require defendant's presence. *People v Scott*, 25 NY3d 1107.

RIGHT TO COUNSEL.

29. In Camera Conversation with People's Main Witness Outside Presence of Defense Counsel.—Defendants' right to counsel was violated where the trial court denied defense counsel access to an in camera, off-the-record proceeding to discuss with the People's main witness, a regular user of crack cocaine and methadone who initially appeared at trial two hours late looking "tired," "disheveled," and

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“hyper,” his mental and physical ability to testify after he failed to appear for the second time. Absent a substantial justification, courts must not examine witnesses about nonministerial matters in camera without counsel present or ex parte. An in camera examination of a witness, that is ex parte or without the parties represented, would arguably trifle with the constitutional right to confrontation and the right to counsel. Here, the in camera proceeding clearly involved substantive issues as opposed to ministerial matters and there was no justification for excluding defense counsel. Because the discussion involved important issues for trial that might have affected a substantial right of a party, defense counsels’ presence was required (see Rules Governing Judicial Conduct [22 NYCRR] § 100.3 [B] [6] [a]). Counsel had good reason to suspect that the witness’s absences were caused by his drug use, which could potentially constitute impeachment material critical to defendants’ ability to defend. As the in camera discussion concerned the witness’s mental and physical health and credibility, issues the court knew defense counsel would address during cross-examination of the witness at trial, it was much more than a scheduling matter. *People v Carr*, 25 NY3d 105.

30. Effective Representation — Failure to Object to Flaws in Jury Charge.—In the prosecution of defendants for enterprise corruption on the theory of accomplice liability, defense counsel’s failure to object to flaws in the trial court’s initial and supplemental jury instructions on accomplice liability did not amount to ineffective assistance. For a single omission to rise to the level of ineffective assistance of counsel, it must typically involve an issue that is so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it, and it must be evident that the decision to forgo the contention could not have been grounded in a legitimate trial strategy. Here, the instructions contained flaws in that the court substituted “or” for “and” or vice versa in certain instances describing the conditions for finding accomplice liability, thereby suggesting that to be guilty as an accomplice, it is sufficient that a defendant know of a crime, or intend it to be committed, or intentionally engage in some act or conduct to assist in it. Moreover, the charges may have conveyed to the jury that a defendant who unknowingly assists in a crime, but does not intend that it be committed, is criminally liable, contrary to the definition of accomplice liability in Penal Law § 20.00. However, the issue of whether the jury charges amounted to reversible error was not clear-cut. As a whole, the court’s initial charge correctly stated the three criteria for accomplice liability immediately before and shortly after the misstatements. In the supplemental charge, a correct statement immediately preceded the errors. Further, while the fact that the Appellate Division ruled against defendants on the jury charge issues was not dispositive, it was further evidence that defense counsel’s error was not so clear-cut, egregious and decisive as to overshadow and taint the whole of the representation. *People v Keschner*, 25 NY3d 704.

31. Effective Representation — Failure to Object to Prosecutorial Misconduct during Summation.—Defense counsel’s serial failure to object to the prosecution’s inaccurate and misleading descriptions of the DNA evidence during the People’s summation constituted a pattern of inexcusable mistakes not attributable to a failed trial strategy, rendering him ineffective. Prosecutorial misconduct is not immune to attack by defense counsel merely because it occurs during the course of summation. Summation must remain within the four corners of the evidence; thus, the prosecutor may not refer to matters not in evidence or call upon the jury to draw conclusions which are not fairly inferable from the evidence. While the prosecutor was entitled to fair comment on the DNA evidence available, she was not entitled to present the results in a manner that was contrary to the evidence and the science. By interspersing references to DNA on a ligature found around the victim’s hands, the analysis of which revealed only that defendant could not be excluded from the pool of possible contributors, with comments about defendant’s DNA profile, the prosecutor mischaracterized the probativeness of the DNA evidence. As only the DNA evidence connected defendant to the murder, defense counsel could not allow such misrepresentations to stand unchallenged. *People v Wright*, 25 NY3d 769.

32. Effective Representation — Cumulative Effect of Counsel’s Lapses.—In a murder prosecution, where the evidence against defendant was particularly weak

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since credibility issues affected each of the prosecutor's major witnesses, the cumulative effect of counsel's lapses deprived defendant of meaningful representation. Counsel's failure to invoke the trial court's prior preclusion order, coupled with his presentation of an alibi defense for the wrong day of the week, could have led to defendant's conviction. *People v Jarvis*, 25 NY3d 968.

33. Effective Representation.—Defense counsel was not ineffective for failing to object to portions of the final jury charge relating to the People's burden of proof. In light of the precedent existing at the time of trial, the error in the court's jury instructions, if any, was not so obvious that any reasonable lawyer would have objected. *People v Lovett*, 25 NY3d 1088.

34. Effective Representation — Conflict of Interest.—Defense counsel's responses to Supreme Court's questions regarding defendant's allegations of ineffective assistance of counsel did not establish an actual conflict of interest, where counsel's comments outlined his efforts on his client's behalf and defended his performance. A defendant may be entitled to new counsel upon showing good cause for a substitution, such as a conflict of interest or other irreconcilable conflict with counsel. An attorney takes a position adverse to his client when stating that the defendant's motion lacks merit. Defense counsel did not suggest that his client's claims lacked merit. Rather, he informed the judge when he met with defendant and for how long, what they discussed, what the defense strategy was at trial and what discovery he gave or did not give to defendant. Thus, he never strayed beyond a factual explanation of his efforts on his client's behalf. *People v Washington*, 25 NY3d 1091.

RIGHT TO PUBLIC TRIAL.

35. Closure of Courtroom — Consideration of Reasonable Alternatives.—In the prosecution of defendant for offenses arising from his alleged role in a cocaine drug ring, wherein the trial court determined, after a hearing, that the People had met their burden for closure of the courtroom to the public during the testimony of two active undercover officers, but had not met their burden with respect to exclusion of defendant's family members, defendant's right to a public trial was not violated based on the court's failure to articulate any specific findings reflecting its consideration of reasonable alternatives to closure. As one of four prongs comprising the standard for closing the courtroom, a court must consider reasonable alternatives to closure and must make findings specific enough that a reviewing court can determine whether the closure order was properly entered. However, where the record establishes the need to close a portion of the proceedings, it can be implied that the trial court, in ordering closure, determined that no lesser alternative would protect the articulated interest. Here, the need to close the proceedings was established where the court made findings that both officers were clearly active undercover officers, that they both had open undercover cases and had been threatened during the course of their undercover work, and that they both took precautions to protect their identities when they came to court. *People v Garay*, 25 NY3d 62.

RIGHT TO REMAIN SILENT.

36. Evidence of Defendant's Selective Silence during Custodial Interrogation — Impermissible Use by Prosecutor during Case-in-Chief.—As a matter of state evidentiary law, evidence of a defendant's selective silence generally may not be used by the People as part of their case-in-chief, either to allow the jury to infer the defendant's admission of guilt or to impeach the credibility of the defendant's version of events when the defendant has not testified. Thus, in a prosecution for rape, burglary and related crimes arising after defendant allegedly gained entry to his ex-girlfriend's apartment by means of a ruse and then raped her, the prosecutor improperly referenced evidence in her opening statement and elicited testimony during her direct examination of the interrogating detective that defendant, during custodial interrogation, not only did not answer when asked whether he had sex with the victim, but also did not deny it, and failed to tell the detective that the sex was consensual. To the extent the People used evidence of defendant's selective silence to impeach his grand jury testimony, during which he had insisted

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that the sex was consensual, the People were not permitted to introduce evidence they deemed favorable to defendant on their direct case and impeach that evidence, also on their direct case, with evidence of his silence, particularly where they introduced evidence of defendant's silence before they introduced his grand jury testimony. Moreover, the People erroneously invited the jury to infer an admission of guilt from defendant's failure to deny the accusations against him, and there was a substantial risk that the jury made such an impermissible inference as defendant selectively answered some of the detective's questions but not others and the trial court refused to provide any curative instruction. *People v Williams*, 25 NY3d 185.

ROBBERY.

37. Attempt — Intent — Sufficiency of Evidence.—In a prosecution for attempted second-degree robbery (Penal Law §§ 110.00, 160.10 [1], [2] [b]) arising after defendant and an accomplice appeared armed and masked at the rear door of a fast-food establishment before the morning business hours but fled when police arrived, there was sufficient circumstantial evidence based on his appearance and conduct, and the surrounding events, to support an inference that defendant had the requisite intent to forcibly steal property from a restaurant employee by threat or use of physical force (Penal Law § 160.00 [2]). With respect to appearance, defendant and his accomplice wore masks and gloves to enhance their criminal persona and avoid identification by facial recognition or fingerprint verification; they carried what appeared to be handguns; and defendant was apprehended with a backpack, which provided a convenient means to carry stolen property and contained additional gloves. As for their conduct, defendant and his accomplice, who were unknown to any of the restaurant employees present that morning, knocked loudly on the rear door, an entry point not generally used by the public; they appeared early in the morning with no apparent lawful purpose and while two employees were alone; and defendant planned his escape in advance by parking his car in a nearby lot. On this record, the trier of fact had ample evidence to conclude that defendant's dress and conduct and the surrounding circumstances were commonly associated with the crime of robbery, and that it was not a reasonable possibility under the circumstances to find that he intended some other criminal act. *People v Lamont*, 25 NY3d 315.

SENTENCE.

38. Persistent Felony Offender — Underlying Out-of-State Conviction.—Defendant's 1991 convictions for two federal felonies that did not have New York counterparts were properly relied on in adjudicating him a persistent felony offender for purposes of sentencing on his 2007 felony conviction. A persistent felony offender is a person who stands convicted of a felony after having previously been convicted of two or more felonies (Penal Law § 70.10 [1] [a]). Under Penal Law § 70.10 (1) (b), a previous felony conviction includes "a conviction of a felony in this state, or of a crime in any other jurisdiction." Unlike New York's second felony offender statute (Penal Law § 70.06), the persistent felony offender statute, by its plain terms, does not require that, in order to classify someone as a persistent felony offender, an out-of-state predicate felony must have a New York counterpart. Section 70.10's silence with regard to New York equivalency is dispositive. Further, section 70.10's legislative history shows that the New York equivalency test was explicitly considered and rejected at the time of the statute's enactment. *People v Jones*, 25 NY3d 57.

39. Concurrent and Consecutive Terms — Imposition of Consecutive Sentences on Assault and Robbery Convictions.—Upon defendant's conviction of attempted murder, assault and various robbery counts arising out of a theft and related shooting, the sentencing court lawfully imposed consecutive sentences for defendant's convictions of first-degree assault under Penal Law § 120.10 (1), based on causing serious physical injury with a deadly weapon, and first-degree robbery under Penal Law § 160.15 (4), involving the display of a firearm. Even if the statutory elements of defendant's assault and robbery convictions overlapped, the People demonstrated that the assault count and the robbery count were committed by

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separate and distinct acts. Penal Law § 70.25 (2) mandates that concurrent sentences be imposed for “two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other.” Here, according to the victim’s trial testimony, defendant gestured with a firearm and demanded that the victim relinquish his gold chain. The victim was acquiescing when, in an action completely unrelated to any use of force necessary to overcome resistance or compel compliance in order to effectuate the robbery, defendant repeatedly shot the victim. On this record, the mere fact that the shooting interrupted, rather than succeeded, the theft did not render indivisible these separable acts. Moreover, since the jury need not have concluded under the instructions given that the assault occurred in furtherance of the robbery, as compared to merely during the course thereof, the robbery and assault were not necessarily a single act because defendant was also charged with and convicted of first-degree robbery under Penal Law § 160.15 (1). *People v Rodriguez*, 25 NY3d 238.

40. Concurrent and Consecutive Terms — Realignment of Legally Imposed Sentences on Remittal.—Where the Appellate Division, on a prior appeal from defendant’s conviction of attempted murder, assault and various robbery counts arising out of a theft and related shooting, was authorized by CPL 470.20 to remit the matter to the sentencing court for consideration of whether one of defendant’s robbery sentences should be modified to run consecutively in light of the appellate court’s correction of the unlawful imposition of consecutive sentences with respect to his assault and attempted murder convictions, the sentencing court’s realignment of defendant’s sentences in accordance with the Appellate Division’s directive did not violate CPL 430.10’s prohibition against modifying a lawful sentence once it has commenced. The clear import of a holding that CPL 470.20 provided the Appellate Division with the discretion to direct realignment of defendant’s legally imposed sentences was that, by extension, the sentencing court was authorized to take such corrective action—imposing consecutive sentences with respect to defendant’s assault conviction and one of his robbery convictions—because it was specifically empowered to do so by the Appellate Division. *People v Rodriguez*, 25 NY3d 238.

41. Resentencing under Drug Law Reform Act — Eligibility — Parolees.—The 2011 amendments to CPL 440.46 (L 2011, ch 62, § 1, part C, § 1, subpart B, § 79), which reflected the merged New York State Department of Correctional Services and New York State Division of Parole under the New York State Department of Corrections and Community Supervision (DOCCS), expanded the class of defendants eligible for resentencing under the Drug Law Reform Act (DLRA) to include those who are on parole at the time resentencing is sought. Because the language of CPL 440.46 (1) encompasses “[a]ny person in the custody of [DOCCS],” and a non-incarcerated parolee is within the “legal custody” of DOCCS (Executive Law § 259-i [2] [b]), the plain meaning of CPL 440.46 (1) leads to the conclusion that a non-incarcerated parolee is eligible to apply for resentencing under the statute. The language of multiple Executive Law provisions also contradicts an interpretation that the term “custody” refers only to incarcerated persons. The purpose of the DLRA, a remedial statute that should be interpreted broadly, was to grant relief from the perceived inordinately harsh punishment for low level non-violent drug offenders. Any ambiguity in the eligibility provision should be read in favor of the applicant because a finding of eligibility is simply the first step in the process. Nor were the amendments purely budgetary or technical changes as the 2011 law emphasized the evolution of the sentencing structure toward a focus on reentry into the community. Moreover, the interpretation that includes parolees as eligible for resentencing corrects the anomaly under the pre-merger law of permitting resentencing for parole violators who had been returned to prison, but not for those who had complied with the terms of their parole. Thus, defendant here, who was on parole after serving more than the minimum term of an indeterminate sentence for his conviction of third-degree criminal sale of a controlled substance, was properly resentenced under CPL 440.46 (1). *People v Brown*, 25 NY3d 247.

42. Youthful Offender — Appellate Review.—An order of the Appellate Division, which had affirmed a Supreme Court order denying defendant youthful offender

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treatment and sentencing him as a juvenile offender upon his plea of guilty of robbery in the first degree, was affirmed. The Appellate Division opinion did not suggest a misapprehension or misapplication of its authority to review youthful offender adjudications for abuse of discretion (CPL 720.20 [1] [a]), or under its broad interest-of-justice jurisdiction (*see* CPL 470.15 [6] [b]). *People v Anthony C.*, 25 NY3d 937.

SEX OFFENDERS.

43. Civil Commitment or Supervision — Live Two-Way Televised Testimony.—In a Mental Hygiene Law article 10 proceeding, Supreme Court erred by permitting petitioner's expert witness to testify, over respondent's objection, via electronic appearance on rebuttal without requiring a proper showing by petitioner of exceptional circumstances. The existence of a provision allowing a psychiatric examiner "upon good cause shown, to testify by electronic appearance in the court" in probable cause hearings held pursuant to Mental Hygiene Law § 10.06 (Mental Hygiene Law § 10.08 [i] [1]) does not automatically permit, nor does it necessarily preclude, the use of the same in other contexts. Such express authorization leaves unaffected courts' preexisting authority to exercise discretion in permitting such testimony. As there is no compelling reason why a trial court should have this discretion in criminal trials, but not in Mental Hygiene Law proceedings, permitting the two-way live video testimony was within the discretion of the court. Nonetheless, televised testimony requires a case-specific finding of necessity; it is an exceptional procedure to be used only in exceptional circumstances. Here, petitioner merely indicated that the expert could not appear in court on short notice, and was somehow limited by her employment. *Matter of State of New York v Robert F.*, 25 NY3d 448.

44. Civil Commitment or Supervision — Live Two-Way Televised Testimony — Harmless and Prejudicial Error.—In a Mental Hygiene Law article 10 proceeding, Supreme Court's error in permitting petitioner's expert witness to testify via electronic appearance on rebuttal concerning how respondent's testimony effected the expert's assessment of respondent's recidivism risk without requiring a proper showing by petitioner of exceptional circumstances was harmless in light of the overwhelming evidence that respondent was a dangerous sex offender requiring confinement. During petitioner's case-in-chief, the expert testified that respondent was at a high risk of recidivism based upon his scores on actuarial risk-assessment instruments as well as his failure to progress in sex offender treatment and prepare an adequate relapse prevention plan, and his exhibition of certain behaviors indicating that he would not be able to comply with the rules of the strict and intensive supervision and treatment program. Moreover, Supreme Court's written decision credited the expert's testimony brought forth during petitioner's case-in-chief, rather than that presented during her electronic rebuttal testimony. *Matter of State of New York v Robert F.*, 25 NY3d 448.

45. Sex Offender Registration Act — Reclassification Proceeding — Due Process — Denial of Adjournment Request.—In a proceeding pursuant to Correction Law § 168-o for a downward modification of defendant's level three sex offender risk classification, County Court did not abuse its discretion in denying defendant's adjournment request to obtain certain documents reviewed by the New York State Board of Examiners of Sex Offenders (the Board) in not recommending a reduction in defendant's risk level classification, where there was overwhelming record evidence supporting the denial of any modification. In an initial risk level determination, the due process rights of a petitioner include prehearing discovery, and defense counsel is therefore entitled to prehearing access to the documents reviewed by the Board. However, Correction Law § 168-o (4), applicable when a petitioner seeks modification of the risk level, does not contain any language entitling a petitioner to prehearing discovery, but provides that a petitioner has a right to submit "any information relevant to the review." While there are statutory differences between an initial risk level determination and a modification proceeding, the procedural due process rights, in regard to the requested documents, were the same, and defendant was thus entitled to access the documents. Nonetheless,

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defendant was a repeat sex offender who had been found to have a mental abnormality and had continued to incur multiple infractions while incarcerated. Given the strong case against modification, defendant was not prejudiced by the court's denial of an adjournment to obtain the documents. *People v Lashway*, 25 NY3d 478.

46. Sex Offender Registration Act — Failure to Accept Responsibility — What Constitutes Refusal to Participate in Treatment.—Defendant sex offender's inability to participate in sex offender treatment due to his prison disciplinary violations was not tantamount to a refusal to participate in treatment under the Sex Offender Registration Act (SORA) Guidelines, and, therefore, did not warrant the Supreme Court's assessment of 15 points under risk factor 12 for failure to accept responsibility. Refusal contemplates an intentional explicit rejection of what is being offered, and there was no indication here that defendant explicitly refused treatment. Conduct that places a defendant in a position where he or she could not receive treatment is not equal to refusal to participate in treatment. Inferring refusal from a defendant's disciplinary record is not supported by the SORA Guidelines, which state that points should be assessed where a defendant refuses treatment or is expelled from treatment. To account for a defendant's repeated disciplinary violations, beyond assessing a defendant points under risk factor 13 for his or her conduct while confined, the People may seek an upward departure based on the risk assessment instrument not taking into account the considerable number of disciplinary violations incurred by a defendant, or based on the defendant not receiving sex offender treatment. *People v Ford*, 25 NY3d 939.

47. Sex Offender Registration Act — Out-of-State Nolo Contendere Plea.—Petitioner's out-of-state nolo contendere plea to a felony requiring him to register under that state's sex offender registration laws qualified as a conviction for a sex offense within the meaning of Correction Law § 168-a (1) and (2), notwithstanding that adjudication was withheld. Nolo contendere pleas are no different from other guilty pleas, and because New York defines a conviction to include the entry of a guilty plea, regardless of the subsequent sentence or judgment, the ultimate disposition of petitioner's out-of-state conviction was irrelevant. Moreover, New York distinguishes between a conviction and a "judgment of conviction," the latter of which includes "a conviction and the sentence imposed thereon" (CPL 1.20 [15]). The legislature intended the Criminal Procedure Law to provide the definitive meaning of the term "conviction" for other criminal statutes, and it meant what it said when it defined "conviction" separately from a judgment or sentence. *Matter of Kascharow v Board of Examiners of Sex Offenders of State of N.Y.*, 25 NY3d 1039.

SUPPRESSION HEARING.

48. Sufficiency of Factual Allegations in Support of Suppression Motion.—In the prosecution of defendant for offenses arising from his alleged role in a cocaine drug ring, the trial court properly denied defendant's request for a hearing based on his motion to suppress cocaine found on his person when he was arrested. A motion to suppress made before trial must state the ground or grounds of the motion and contain sworn allegations of fact supporting such grounds. The court may summarily deny the motion if the papers do not allege a ground constituting a legal basis for the motion or if the sworn allegations of fact do not as a matter of law support the ground alleged. (CPL 710.60 [1], [3] [a], [b].) Here, the criminal complaint alleged that on the night he was arrested, defendant drove the drug ring leader, that when his car was stopped after he had returned with the leader to her apartment, he displayed a police identification card, and that the police had recovered a quantity of cocaine from his pants pocket. The prosecutor at arraignment further alleged that defendant had a number of cars registered to his name which had been associated with the ring leader and that when arrested he had cocaine that appeared to have been cut from a kilogram found in the leader's apartment. Defendant's motion was supported by an affirmation stating that he did not consent to a search of his vehicle or person, that he was not committing a crime at the time he was detained, that he was not engaged in any criminal conduct, that no contraband was in plain view, and that he was stopped pursuant to dropping off a

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family member. Defendant's simple denial that he was not engaged in any criminal conduct at the time he was stopped did not raise any issue of fact requiring a hearing. It was his role in the conspiracy as the leader's driver and his conduct in transporting her at the time of the purchase of the kilogram of cocaine that provided probable cause to arrest him. It was incumbent upon defendant to refute those allegations in order to obtain a hearing. *People v Garay*, 25 NY3d 62.

UNLAWFUL SEARCH AND SEIZURE.

49. Probable Cause for Traffic Stop — Failure to Stop at Unregistered Stop Sign.—The traffic stop of defendant after a police officer observed her vehicle drive past a stop sign without stopping was constitutionally justified based on the police officer's reasonable belief that defendant failed to stop at a valid stop sign, notwithstanding that the stop sign was located at the edge of a supermarket parking lot and was not properly registered as required by Vehicle and Traffic Law § 1100 (b). A traffic stop based upon a police officer's mistaken view of the law is constitutional under the Fourth Amendment of the United States Constitution and article I, § 12 of the New York State Constitution where the mistake is objectively reasonable. Under Vehicle and Traffic Law § 1110 (c), there is a presumption that official traffic-control devices that are placed in position approximately conforming to the requirements of the Vehicle and Traffic Law are valid, absent proof to the contrary. Here, the stop sign was of regulation color, height and dimension and was located at the edge of the parking lot at the point where vehicles would exit the parking lot onto a public street. The police officer was not chargeable with knowledge that the particular stop sign was not registered under the municipal code, nor was he required to verify that the sign was valid before making the stop. The stop was based on probable cause because the officer reasonably believed that he had observed defendant violate the Vehicle and Traffic Law. Thus, while defendant could not be prosecuted for the stop sign violation, the evidence of defendant's intoxication while driving did not need to be suppressed. *People v Guthrie*, 25 NY3d 130.

50. Probable Cause for Traffic Stop — Mistake of Law.—A traffic stop based upon a police officer's mistaken view of the law is constitutional under the Fourth Amendment of the United States Constitution and article I, § 12 of the New York State Constitution where the mistake is objectively reasonable. A traffic stop is a seizure and is permissible when a police officer has probable cause to believe that the driver of the automobile has committed a traffic violation. Probable cause requires information sufficient to support a reasonable belief that an offense has been or is being committed or that evidence of a crime may be found in a certain place. The Fourth Amendment tolerates objectively reasonable mistakes supporting a belief that a traffic violation had occurred, whether they are mistakes of fact or mistakes of law. The requirement that the mistake be objectively reasonable prevents officers from gaining any Fourth Amendment advantage through a sloppy study of the laws they are duty-bound to enforce. A court should look to the reasonableness of the officer's belief that a defendant violated the Vehicle and Traffic Law, without drawing any distinction between mistakes of fact and mistakes of law. *People v Guthrie*, 25 NY3d 130.

WITNESSES.

51. Unavailability of Witness — Defendant's Misconduct.—In a murder prosecution arising out of a gunfight in which defendant asserted a justification defense, the trial court erred in admitting into evidence the grand jury testimony of an unavailable witness that he saw defendant fire the first shot, where the witness refused to testify at trial because of threats against his family and the court improperly found that defendant's own conduct procured the witness's unavailability. Generally, the grand jury testimony of an unavailable witness is inadmissible as evidence-in-chief. However, where the People establish that a witness is unwilling to testify due to the defendant's own conduct, or by the actions of others with the defendant's knowing acquiescence, defendant forfeits the right to confrontation, and such out-of-court statements are admissible. Here, the witness identified members of defendant's religious congregation as the source of the

CRIMES—Cont'd

threats to his family, but provided no evidence linking defendant to the threats. The People also failed to submit evidence that defendant communicated with anyone about the witness and his possible testimony, or that defendant had the opportunity to arrange and orchestrate any threats against the witness's family. As the witness's testimony directly contradicted defendant's testimony, it had an irrefutable damaging effect on defendant's justification defense. *People v Dubarry*, 25 NY3d 161.

52. Physician-Patient Privilege — Psychiatrist's Testimony About Defendant's Admissions of Sexual Abuse.—The trial court in defendant's prosecution for sexually abusing an 11-year-old relative violated the physician-patient privilege by allowing defendant's psychiatrist to testify concerning defendant's admission, made for the purpose of treatment, that he abused the child. Regardless of whether a physician is required or permitted by law to report instances of abuse or threatened future harm to authorities, which may involve the disclosure of confidential information, it does not follow that such disclosure necessarily constitutes an abrogation of the evidentiary privilege a criminal defendant enjoys under CPLR 4504 (a). Whereas confidentiality is an ethical requirement of physicians, the physician-patient privilege is a rule of evidence that protects communications and medical records. Whenever the legislature has decided to limit the privilege's scope, it has done so through the enactment of specific legislation to address the particular subject matter. If the legislature had, in fact, decided to create an exception permitting a criminal defendant's mental health professional to testify against the defendant in a criminal proceeding, it would have done so. Even if a patient is cognizant of his or her psychiatrist's reporting obligations under child protective statutes, that does not mean he or she should have any expectation that statements made during treatment will be used against him or her in a criminal matter. *People v Rivera*, 25 NY3d 256.

53. Expert Witness — Interpreting Uncoded Language in Recorded Conversations — Harmless Error.—In defendant's murder prosecution, the trial court's error in permitting a detective, who had participated in the underlying investigation by translating and analyzing recorded phone conversations containing both coded and uncoded language, to testify as an expert with respect to the uncoded portions of the conversations was harmless, where the proof of defendant's commission of the charged crimes was overwhelming and there was no significant probability that, but for the court's error, the verdict would have been less adverse. The jury may be aided, but not displaced, in the discharge of its fact-finding function by expert testimony where there is reason to suppose that such testimony will elucidate some material aspect of the case that would otherwise resist comprehension by jurors of ordinary training and intelligence. The detective's testimony consisted, in large part, of explaining what the conversers referred to based upon the investigative reconstruction in which he had taken part. Such interpretive effort, however, is what juries commonly do, and the jury here was as competent as any other to perform that task without having its work modeled and previewed for it by a purported expert in the case. Nonetheless, the eyewitness accounts of defendant's conduct immediately before and after the shootings were compelling, as together the witnesses's separately generated accounts meshed into a seamless narrative evidently conclusive of the identity of the individual responsible for the shootings. *People v Inoa*, 25 NY3d 466.

DEAD BODIES.**AUTOPSIES.**

1. Retention of Organs and Tissues for Examination and Testing — Medical Examiner Not Obligated to Notify Decedent's Next of Kin.—A medical examiner does not have a mandated obligation—pursuant to the Public Health Law and a next of kin's common-law right to immediate possession of a decedent's body for preservation and burial (commonly known as the "right of sepulcher")—to notify a decedent's next of kin that, although a decedent's body is available for burial, one or more organs and/or tissues have been retained for further examination and test-

DEAD BODIES—Cont'd

ing as part of an authorized autopsy. The medical examiner's obligations under both the common-law right of sepulcher and Public Health Law § 4215 (1) are fulfilled upon returning the deceased's body to the next of kin after a lawful autopsy has been conducted. Accordingly, defendant municipality was not liable to plaintiffs for the medical examiner's failure to notify plaintiffs that he had removed and retained their son's brain and other organs in the course of conducting an authorized autopsy. Decedent's body was returned to plaintiffs once the autopsy had been conducted and was thus made available to them for preservation and burial. Because the right of sepulcher is premised on the next of kin's right to possess the body for preservation and burial (or other proper disposition), and is geared toward affording the next of kin solace and comfort in the ritual of burying or otherwise properly disposing of the body, it is the act of depriving the next of kin of the body, and not the deprivation of organ or tissue samples within the body, that constitutes a violation of the right of sepulcher. Moreover, although Public Health Law § 4215 (1) contains a "governing rule" or "statutory command" to the extent that the medical examiner, once he or she is finished with the authorized dissection, must turn the "remains of the body after dissection" over for "burial or other lawful disposition," there is ambiguity concerning the statutory language "remains of the body," which is not a defined term. Had the legislature intended to issue a rule or command directing the medical examiner to turn over the organs and tissue samples recovered as a result of a dissection or autopsy, it could have utilized the specific words "tissue, organ or part thereof" as it has done in other sections of Public Health Law article 42. *Shipley v City of New York*, 25 NY3d 645.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

ELECTIONS.

JUDICIAL PROCEEDINGS.

1. Timeliness — "Nail and Mail" Service — Mailing on Last Day of Statutory Limitations Period.—Petitioner's proceeding seeking to invalidate a designating

ELECTIONS—Cont'd

petition naming respondent as a Democratic Party candidate for the office of Niagara County Legislator and to enjoin the Niagara County Board of Elections from placing respondent's name on the ballot was commenced in a timely manner using the "nail and mail" service method set forth in the order to show cause, notwithstanding that the mailing was made on the last day to commence the proceeding. Under Election Law § 16-116, a petitioner is required to provide notice as the court shall direct. The requirement calls for delivery of the instrument of notice not later than on the last day on which the proceeding may be commenced. Here, Supreme Court signed an order to show cause which authorized petitioner to affix the papers to the door of respondent's residence and send them via express mail on or before a date that was the last day to commence the proceeding under Election Law § 16-102 (2). Petitioner complied with the terms of the order to show cause by nailing the papers to the door of respondent's residence on the day before the last day of the commencement period and mailing the papers by express mail on the last day. While the mailing would inevitably be delivered outside of the statutory period, the proceeding was timely commenced where the instrument of notice was delivered by another prescribed method within the statutory period. *Matter of Angletti v Morreale*, 25 NY3d 794.

2. Timeliness — "Nail and Mail" Service.—In a proceeding pursuant to Election Law article 16, an Appellate Division order striking respondent's name from the ballot for the primary and general elections as a Democratic Party candidate for the office of Niagara County Legislator was affirmed for the reasons stated in *Matter of Angletti v Morreale* (25 NY3d 794 [2015]): petitioner's proceeding was timely commenced where petitioner complied with the terms of the order to show cause by nailing the papers to the door of respondent's residence the day before, and mailing the papers to that residence by express mail on, the last day to commence the proceeding under the 14-day period authorized by the Election Law. *Matter of Helwig v Asklar*, 25 NY3d 1210.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ENVIRONMENTAL CONSERVATION.**STATE POLLUTANT DISCHARGE ELIMINATION SYSTEM PERMIT.**

1. General Permit for Small Municipalities' Stormwater Discharges from Municipal Separate Storm Sewer Systems — Compliance with Federal Law.—In a hybrid proceeding/action commenced by petitioner/plaintiff environmental advocacy groups challenging certain aspects of a state pollutant discharge elimination system (SPDES) general permit issued by respondent/defendant New York State Department of Environmental Conservation (DEC) authorizing stormwater discharges from the municipal separate storm sewer systems of small municipalities, petitioners/plaintiffs' federal law challenges were rejected. It was for the federal courts to resolve the issue—on which the federal circuit courts were split—whether the United States Environmental Protection Agency (EPA) permissibly interpreted the Federal Clean Water Act in adopting regulations that allow permitting authorities to authorize a small municipality to discharge stormwater under a national pollutant discharge elimination system (NPDES) general permit upon receipt of the municipality's notice of intent to obtain coverage under the general permit and without any regulatory review, public notice and comment or opportunity for a public hearing. Unless and until EPA revised its regulations implementing the NPDES general permitting program for stormwater discharges by small municipalities, DEC's corresponding but not identical SPDES general permitting program was required to comply with EPA's regulations, which it concededly did, and DEC was not required to go beyond the specifications of EPA's regulations unless New York law required it to do so. *Matter of Natural Resources Defense Council, Inc. v New York State Dept. of Envtl. Conservation*, 25 NY3d 373.

ENVIRONMENTAL CONSERVATION—Cont'd

2. General Permit for Small Municipalities' Stormwater Discharges from Municipal Separate Storm Sewer Systems — Compliance with State Law.—In a hybrid proceeding/action commenced by petitioner/plaintiff environmental advocacy groups challenging certain aspects of a state pollutant discharge elimination system (SPDES) general permit issued by respondent/defendant New York State Department of Environmental Conservation (DEC) authorizing stormwater discharges from the municipal separate storm sewer systems of small municipalities, petitioners/plaintiffs' state law challenges were rejected. In implementing the SPDES general permitting authorized by the ECL, DEC determined that examining for completeness a municipality's notice of intent (NOI) to obtain coverage under the general permit constituted a sufficient level of technical regulatory review to qualify the municipality for initial coverage and that the general permit's public participation requirements for NOIs were adequate. Those were reasonable judgments that DEC possessed the discretion and expertise to make in furtherance of its responsibilities under the ECL to regulate small municipalities' stormwater discharges. SPDES general permitting allows DEC to avoid detailed review where it is not warranted and thereby frees up finite regulatory resources for the individual SPDES permitting of entities with greater impact on the environment. Unlike an application for issuance of a SPDES individual permit, an NOI is a request for coverage under a SPDES general permit that has already been issued pursuant to the full panoply of procedures set forth under ECL article 70. If DEC was forced to apply the same or similar procedures for SPDES general and individual permits—alternative ways for small municipalities to obtain authorization for their stormwater discharges—the resource-conserving benefits sought by the legislature in authorizing DEC's issuance of SPDES general permits would be compromised, if not altogether lost. *Matter of Natural Resources Defense Council, Inc. v New York State Dept. of Envtl. Conservation*, 25 NY3d 373.

ESTOPPEL.**COLLATERAL ESTOPPEL.**

1. Rent Overcharge Action in Supreme Court — Findings of Fraud in Civil Court Summary Proceeding.—In a rent overcharge action commenced in Supreme Court after plaintiff tenants' overcharge counterclaim in a summary proceeding in Civil Court was dismissed without prejudice based on plaintiffs' failure to establish the lawful rent on the base date, Civil Court's findings of fraud on the part of defendant landlords to support the conclusion that plaintiffs had shown an actionable overcharge were not entitled to preclusive effect under the doctrine of collateral estoppel. The issue determined in Civil Court was whether there was a breach of the warranty of habitability, while the issue in Supreme Court was whether there was evidence of fraud sufficient to render the rent on the base date unreliable. Thus, the issues were not identical. Nor were findings of fraud necessary to support Civil Court's subsequent judgment awarding plaintiffs rent abatement on account of defendants' breach of the warranty of habitability and directing defendants to remedy building code violations. However, the trial record in Civil Court was replete with unrefuted evidence of the illegality of the rent charged by defendants for plaintiffs' apartment on the base date. Defendants enjoyed ample opportunity to contest plaintiffs' proof at trial. Thus, the minimum scope of inquiry that must be made by the courts or the Division of Housing and Community Renewal to resolve an overcharge claim where fraud has been alleged and there exist substantial indicia of fraud on the record, and the minimum quantum of evidence required for a tenant to establish fraud sufficient to taint the reliability of the rent on the base date had been met. *Conason v Megan Holding, LLC*, 25 NY3d 1.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

FRAUD.**RELIANCE.**

1. Justifiable Reliance on Representations Made during Securities Transaction.—In an action alleging that defendant fraudulently induced plaintiff to provide financial guaranty for an investment by concealing the fact that defendant's hedge fund client planned to take a "short" position in the investment, thereby intentionally exposing plaintiff to substantial liability, plaintiff sufficiently alleged the justifiable reliance element of its fraud in the inducement and fraudulent concealment claims. When the party to whom a misrepresentation is made has hints of its falsity, a heightened degree of diligence is required, and it cannot reasonably rely on such representations without making additional inquiry to determine their accuracy. Plaintiff alleged that it asked defendant how the hedge fund intended to participate in the transaction, and that defendant affirmatively misrepresented to plaintiff that the fund would be the equity investor. Plaintiff was under no duty to insist on a "prophylactic provision" in an agreement and, in any event, there was no written agreement between the parties in which such a provision could have been inserted. *ACA Fin. Guar. Corp. v Goldman, Sachs & Co.*, 25 NY3d 1043.

FRAUDS, STATUTE OF.**CONVEYANCES AND CONTRACTS CONCERNING REAL PROPERTY.**

1. Financial Advisory Services for Real Estate Investors.—On a motion to dismiss, the statute of frauds did not bar plaintiff hospitality industry consultant's quantum meruit and unjust enrichment causes of action based on financial advisory services it had allegedly provided to defendants with respect to five of nine groups of investment opportunities for hotel/water park properties (project groups). General Obligations Law § 5-701 (a) (10) applies to a contract implied in fact or in law to pay reasonable compensation, and provides that an agreement which is "a contract to pay compensation for services rendered in . . . negotiating the purchase . . . of any real estate or interest therein, or of a business opportunity, business, its good will, inventory, fixtures or an interest therein" is void unless in writing and signed by the party to be charged. Negotiating includes "procuring an introduction to a party to the transaction or assisting in the negotiation or consummation of the transaction" (General Obligations Law § 5-701 [a] [10]). The fundamental question was whether the services for which plaintiff sought compensation were tasks performed so as to inform defendants whether to negotiate for the properties at issue, or whether those services were performed as part of or in furtherance of negotiation for the properties. Plaintiff generally alleged that its work with respect to each of the project groups consisted of the review, analysis, and modeling of the finances and operation of the assets in which defendants had the opportunity to invest. However, with respect to three of the nine project groups, the allegations included either a claim for compensation for work performed in furtherance of defendants' negotiation of a business opportunity or compensation for services rendered in anticipation of a possible bid by defendants, and a fourth project group was not at issue on appeal. The allegations with respect to the remaining five project groups could be construed as seeking recovery for work performed so as to inform defendants whether to partake in certain business opportunities, that is,

FRAUDS, STATUTE OF—Cont'd

whether to negotiate. *JF Capital Advisors, LLC v Lightstone Group, LLC*, 25 NY3d 759.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GAS AND OIL LEASE.

1. Primary Term of Lease — Effect of Force Majeure Clause.—An express force majeure clause found in oil and gas leases between plaintiffs, various landowners, and defendant energy companies did not modify the primary term of the habendum clause of the leases for purposes of extending the leases during that term based on a State-imposed moratorium on the combined use of high-volume hydraulic fracturing and horizontal drilling. An agreement for the production of oil and gas is guided by basic principles of contract law and must be construed with reference to both the intention of the parties and the known practices within the industry. Here, each lease contained an identical term, or habendum, clause under which the interests conveyed by the leases existed for a five-year primary term, followed by an open secondary term so long as the land was operated by the lessee in the production of oil and gas. The force majeure clause stated that if and when drilling or other operations were delayed or interrupted as a result of some order, rule or necessity of the government, “the time of such delay or interruption shall not be counted against Lessee, anything in this lease to the contrary notwithstanding.” Inasmuch as the habendum clause did not incorporate the force majeure clause by reference or contain any language expressly subjecting it to other lease terms, and the language in the force majeure clause regarding the effect of the delay did not refer to the habendum clause with specificity, the habendum clause was not expressly modified or enlarged by the force majeure clause. Moreover, because the force majeure clause was not in conflict with the provisions of the primary term of the habendum clause, the words “anything in this lease to the contrary notwithstanding” alone were insufficient to compel the conclusion that the force majeure clause modified the primary term. The force majeure clause expressly referred to a delay or interruption in drilling or production and therefore only conflicted with and modified the secondary term of the habendum clause. Accordingly, the leases terminated at the conclusion of their primary terms. *Beardslee v Inflection Energy, LLC*, 25 NY3d 150.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

IMMIGRATION.

See ALIENS.

INCAPACITATED AND MENTALLY DISABLED PERSONS.**GUARDIAN FOR PERSONAL NEEDS OR PROPERTY MANAGEMENT.**

1. Death of Incapacitated Person — Retention of Funds in Guardianship Account to Pay Debts.—Mental Hygiene Law § 81.44 does not permit a guardian to retain property of an incapacitated person after the incapacitated person has died for the purpose of paying a claim against the incapacitated person that arose before his or her death. Accordingly, in a proceeding to settle competing claims of respondent skilled nursing facility and respondent Department of Social Services to the funds in an incapacitated decedent's guardianship account, petitioner guard-

INCAPACITATED AND MENTALLY DISABLED PERSONS—Cont'd

ian could not withhold from decedent's estate funds to pay decedent's debt to respondent skilled nursing facility, as its claim for medical services rendered to decedent was unrelated to the administration of her guardianship. Although subdivision (d) of Mental Hygiene Law § 81.44, in reciting the purposes for which a guardian may retain the property of an incapacitated person following such person's death, lists the security of "claim[s]" and "lien[s]" before reaching "administrative costs," it must be read in conjunction with subdivision (e) of that section, which allows a guardian to retain from the estate "property equal in value to the claim for administrative costs, liens and debts." The discord between the subdivisions requires an analysis of the legislative history of section 81.44, which indicates that the statute was designed to facilitate the transition between a guardianship for an incapacitated person and an estate after the death of such incapacitated person, and codified the right of the guardian to retain a reserve to cover reasonably anticipated administrative expenses of the guardianship. Thus, the legislature did not intend for section 81.44 to permit a guardian to retain funds following the death of an incapacitated person for purpose of paying a claim, other than a claim related to the administration of the guardianship, against the incapacitated person that arose before that person's death. *Matter of Shannon*, 25 NY3d 345.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles.

YOUTHFUL OFFENDERS.

1. Sentencing Court Must Determine Status — Defendant Convicted of Armed Felony or Enumerated Sex Offense.—When a defendant has been convicted of an armed felony or an enumerated sex offense pursuant to CPL 720.10 (2) (a) (ii) or (iii), and the only barrier to his or her youthful offender eligibility is that conviction, the court is required to determine on the record whether the defendant is an eligible youth by considering the presence or absence of the factors set forth in CPL 720.10 (3). The court must make such a determination on the record even where the defendant has failed to ask to be treated as a youthful offender, or has purported to waive his or her right to make such a request pursuant to a plea bargain. If the court determines, in its discretion, that neither of the CPL 720.10 (3) factors exist and states the reasons for that determination on the record, no further determination by the court is required. If, however, the court determines that one or more of the CPL 720.10 (3) factors are present, and the defendant is therefore an eligible youth, the court then must determine whether or not the eligible youth is a youthful offender. Accordingly, in the unrelated prosecutions of defendants, who were "youths" within the meaning of CPL 720.10 (1) and had never before been convicted of a crime, and would be eligible to be granted youthful offender status but for the fact that their convictions to be replaced by youthful offender adjudications were armed felonies (*see* CPL 720.10 [2] [a] [ii]; 1.20 [41]), the respective sentencing courts erred by failing to determine on the record if defendants were eligible youths due to the existence of one or more of the factors set forth in CPL 720.10 (3). *People v Middlebrooks*, 25 NY3d 516.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

AUTOMOBILE INSURANCE.

1. Uninsured/Underinsured Motorist Endorsement — Whether Police Vehicle is "Motor Vehicle."—A police vehicle is not a "motor vehicle" covered by a supplementary uninsured/underinsured motorist (SUM) endorsement under Insurance Law § 3420 (f) (2) (A). Accordingly, petitioner insurer rightly declined to cover respondent police officer's claim for underinsured motorist benefits for injuries sustained when the police vehicle in which he was a passenger collided with an underinsured

INSURANCE—Cont'd

vehicle. Insurance Law § 3420 (e) requires automobile insurance policies to insure against civil liability for the negligence of those who drive the insured's car, while subsection (f) (1) mandates that such policies feature uninsured motorist coverage. Subsection (f) (2) declares that the policy may also include SUM insurance for bodily injury, a species of uninsured motorist insurance. Because Insurance Law § 3420 (f) (2) applies to "[a]ny such policy," referring to a policy of the kind described in Insurance Law § 3420 (f) (1), Insurance Law § 3420 (f) (2) necessarily restricts SUM coverage to "motor vehicle[s]" in the same manner as subsection (f) (1). Although Insurance Law § 3420 (e) and (f) (1) do not directly define "motor vehicle," Insurance Law § 3420 (e) refers to "any motor vehicle or of any vehicle as defined in [Vehicle and Traffic Law § 388]," which explicitly exempts police vehicles from the definition of "motor vehicle." Therefore, Insurance Law § 3420 (f) has no application to police vehicles. In light of the similarities between Insurance Law § 3420 (f) (1) and (2), the term "motor vehicle" must have the same definition under those paragraphs and limit the benefits they provide in the same manner. *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799.

CONSTRUCTION OF POLICY.

2. Losses Caused by Fraudulent Entry of Electronic Data.—The insuring agreement for computer systems fraud between plaintiff health insurance company and defendant insurer did not provide coverage for plaintiff's losses resulting from fraudulent health care claims paid through plaintiff's computer system, because the agreement's application to "fraudulent . . . entry of Electronic Data or Computer Program" did not encompass losses caused by an authorized user's submission of fraudulent information into plaintiff's computer system. The test to determine whether an insurance contract is ambiguous focuses on the reasonable expectations of the average insured upon reading the policy and employing common speech. The agreement unambiguously applied to losses incurred from unauthorized access to plaintiff's computer system, and not to losses resulting from fraudulent content submitted to the computer system by authorized users. The term "fraudulent" refers to deceit and dishonesty and, in the agreement, qualified the act of entering or changing data or a computer program. The reference to "fraudulent" did not also qualify what was actually acted upon, namely the "electronic data" or "computer program" itself. The intentional word placement of "fraudulent" before "entry" and "change" manifested the parties' intent to provide coverage for a violation of the integrity of the computer system through deceitful and dishonest access. *Universal Am. Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 25 NY3d 675.

NO-FAULT AUTOMOBILE INSURANCE.

3. Recovery of Assigned First-Party No-Fault Benefits — Prima Facie Burden of Proof on Summary Judgment Motion.—A plaintiff medical provider demonstrates prima facie entitlement to summary judgment in an action to recover no-fault benefits by submitting evidence that payment of no-fault benefits are overdue, and proof of its claim, using the statutory billing form, was mailed to and received by the defendant insurer. Proof evincing the mailing must be presented in admissible form, including, where it is applicable, meeting the business records exception to the hearsay rule. Accordingly, plaintiff medical provider demonstrated prima facie entitlement to summary judgment in its action to recover assigned no-fault benefits by submitting the verification of treatment forms demonstrating the services rendered or equipment provided, and the corresponding cost, that had been mailed to but not paid or denied by defendant insurer and an affidavit from the president of the third-party billing company hired by plaintiff explaining the company's billing procedures and affirming that he mailed the forms to defendant. In the affidavit the president stated that based on his business agreement with plaintiff, the billing company created the verification of treatment forms in the regular course of its business and that the forms were created soon after the services were provided by plaintiff to the assignor. He explained that the billing company relied on those forms in the performance of its business. Further, he stated how and when the forms at issue here were created and that they were mailed to defendant within

INSURANCE—Cont'd

the statutory time frame. Thus, as plaintiff was able to demonstrate the billing company's office mailing practices and procedures, a presumption arose that those notices had been received by defendant. Defendant failed to raise a triable issue of fact in opposition, and, in fact conceded that it was precluded from raising any defense due to its failure to timely deny the claims. *Viviane Etienne Med. Care, P.C. v Country-Wide Ins. Co.*, 25 NY3d 498.

4. Serious Injury.—In an action to recover damages for injuries plaintiff allegedly sustained to his knee as a result of a motor vehicle accident, the Appellate Division correctly concluded that plaintiff failed to raise a triable issue of fact as to whether he suffered a serious injury within the meaning of Insurance Law § 5102 (d). *Rivera v Fernandez & Ulloa Auto Group*, 25 NY3d 1222.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

JUDGES.

SUSPENSION FROM OFFICE.

1. The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8) (b), suspended a Town Court Justice from office, with pay, effective immediately. *Matter of Dorrance*, 25 NY3d 925.

2. The Court of Appeals continued the suspension, with pay, of a Town Court Justice from office. *Matter of Dorrance*, 25 NY3d 986.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

DEFAULT JUDGMENT.

1. Vacatur — Standing — Intervenor.—In an action that resulted in the entry of a default judgment against defendant corporation, defendant's former president and another corporation of which she was an officer and director, as intervenors, lacked standing to bring a motion to vacate the default judgment. To seek relief from a judgment or order, all that is necessary is that some legitimate interest of the moving party will be served and that judicial assistance will avoid injustice. The intervenors did not meet the second prong of that test because they failed to identify any facts that gave rise to a claim that injustice of any kind would be avoided by vacating the judgment. *Amalgamated Bank v Helmsley-Spear, Inc.*, 25 NY3d 1098.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

SAFE PLACE TO WORK.

1. Elevation-Related Risk — Worker Slipping on Ice while Using Stilts.—The injuries plaintiff sustained when he slipped on a patch of ice and fell to the floor while using stilts to install insulation in a ceiling were not the direct consequence of an elevation-related risk within the scope of Labor Law § 240 (1). Liability may be imposed under section 240 (1) only where the plaintiff's injuries were the direct consequence of a failure to provide adequate protection against a risk arising from a physically significant elevation differential. Therefore, the relevant and proper inquiry was whether the hazard plaintiff encountered on the stilts was a separate

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hazard wholly unrelated to the hazard which brought about the need for a safety device in the first instance. This is because, regardless of the type of safety device involved, liability arises under section 240 (1) only where the plaintiff's injuries are the direct consequence of an elevation-related risk, not a separate and ordinary tripping or slipping hazard. Plaintiff's accident was plainly caused by a separate hazard—ice—unrelated to any elevation risk. Plaintiff testified that stilts were the appropriate device for the type of work he was undertaking, and that the ice, not a deficiency or inadequacy of the stilts, caused his fall. *Nicometi v Vineyards of Fredonia, LLC*, 25 NY3d 90.

2. Elevation-Related Safety Equipment — Absence of Safety Rail on Billboard Catwalk.—In an action for damages arising from work-related injuries plaintiff suffered when he fell from a catwalk while removing and installing advertisements on a billboard, plaintiff alleged a viable claim under Labor Law § 240 (2), which provides that scaffolding or staging more than 20 feet above the ground must be equipped with a safety rail. It was undisputed that the billboard was 59 feet above the ground and that there was no safety rail surrounding the catwalk from which plaintiff fell. *Saint v Syracuse Supply Co.*, 25 NY3d 117.

3. What Constitutes Alteration of Building or Structure — Attachment of Extensions on Billboard.—In an action for damages arising from work-related injuries plaintiff suffered when he fell from a catwalk while removing and installing advertisements on a billboard, plaintiff was engaged in alteration of the structure within the meaning of Labor Law § 240 (1) because his work required the attachment, at an elevated height, of custom-made wooden extensions that changed the dimensions of the billboard's frame to accommodate the unique shape of a new advertisement. Although plaintiff was injured during removal of an old vinyl advertisement from the billboard's frame, the analysis was not limited to plaintiff's activity at the moment of his injury, and the vinyl removal was a prerequisite to the attachment of the extensions and therefore an integral part of the extensions' installation. Moreover, plaintiff's work entailed a significant change to the billboard structure because, once the vinyl was removed, the billboard would be enlarged by the attachment of the extensions, work accomplished by the use of an angle iron on the back of each extension and the application of nuts, bolts and nails. The job was not a simple task, involving minimal work, so as to constitute routine maintenance, nor was it a decorative modification as it entailed far more than a mere change to the outward appearance of the billboard. Finally, notwithstanding that the extensions would stay up only as long as the new advertisement did, the statute does not impose a requirement that an alteration be of a permanent nature. *Saint v Syracuse Supply Co.*, 25 NY3d 117.

4. What Constitutes Construction Work — Attachment of Extensions on Billboard.—In an action for damages arising from work-related injuries plaintiff suffered when he fell from a catwalk while removing and installing advertisements on a billboard, plaintiff was engaged in "construction work" at the time of his injury such that his claim came within Labor Law § 241 (6). The Industrial Code defines "construction work" to include the alteration of a structure (12 NYCRR 23-1.4 [b] [13]), and plaintiff, at the time of his injury, was altering the billboard by installing custom-made wooden extensions that changed the dimensions of the billboard's frame to accommodate the unique shape of a new advertisement. *Saint v Syracuse Supply Co.*, 25 NY3d 117.

5. Fall into Uncovered Manhole — Sole Proximate Cause.—Plaintiff, an asbestos handler who, after finishing a shift during overnight hours removing asbestos from electrical cables below street level, fell into an uncovered manhole while attempting to disassemble the containment enclosure around the manhole, was entitled to partial summary judgment on his Labor Law § 240 (1) claims against defendants City of New York, as owner of the property, and New York City Transit Authority and Metropolitan Transportation Authority, as lessees of the property. Section 240 (1) imposes upon owners, contractors and their agents a nondelegable duty to provide safety devices for construction work involving elevation-related hazards. Where an accident is caused by a violation of the statute, the plaintiff's own negligence does not furnish a defense. However, there can be no liability where a

LABOR—Cont'd

plaintiff's own negligence is the sole proximate cause of the accident. Here, plaintiff established the absence of an adequate safety device based on the testimony of the safety consultant's president that there should have been a guardrail system around the open manhole while the enclosure was being dismantled. While plaintiff's supervisor had directed that the manhole cover be replaced before the workers began disassembling the enclosure, plaintiff's conduct was not the sole proximate cause of his injuries. It took at least two workers to move the manhole cover due to its weight. In addition, plaintiff testified that the lights inside the enclosure had been turned off prior to disassembly. *Barreto v Metropolitan Tr. Auth.*, 25 NY3d 426.

6. Liability of Property Lessee — No Supervision or Control.—In an action arising from plaintiff asbestos handler's fall into an uncovered manhole while attempting to dismantle a containment enclosure after finishing a shift during overnight hours removing asbestos from electrical cables below street level, the Appellate Division properly dismissed plaintiff's common-law negligence and Labor Law § 200 claims against defendants New York City Transit Authority and Metropolitan Transportation Authority, as lessees of the location where plaintiff was injured. Defendants established that they did not supervise or control plaintiff's work, or that neither of them had notice of the alleged dangerous condition or defect. Plaintiff failed to raise a triable issue of fact in that regard. *Barreto v Metropolitan Tr. Auth.*, 25 NY3d 426.

7. Statutory Agent.—In an action arising from plaintiff asbestos handler's fall into an uncovered manhole while attempting to dismantle a containment enclosure after finishing a shift during overnight hours removing asbestos from electrical cables below street level, the Appellate Division erred in holding, as a matter of law, that defendant site safety consultant company was not a statutory agent subject to liability for plaintiff's injuries under Labor Law § 240 (1). The president of defendant company testified that there should have been a guardrail system around three sides of the open manhole while the containment enclosure was being dismantled. Testimony also established that it was part of the company's responsibility to ensure that a guardrail system was in place, that the manhole cover was replaced once the system was removed, that the manhole was covered before workers disassembled the enclosure, and that the company had the authority to stop plaintiff from working in the area of the missing manhole cover. Thus, there was a question of fact as to whether the company had the ability to control the activity which brought about the injury. *Barreto v Metropolitan Tr. Auth.*, 25 NY3d 426.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LIMITATION OF ACTIONS.

COMMENCEMENT OF ACTION AFTER TERMINATION OF PRIOR ACTION.

1. When Prior Action Terminated.—For purposes of CPLR 205 (a), which provides that where "an action is timely commenced and is terminated" the plaintiff "may commence a new action upon the same transaction or occurrence or series of transactions or occurrences within six months after the termination," a prior action terminates, where an appeal is taken as of right, when the nondiscretionary appeal is truly "exhausted," either by a determination on the merits or by dismissal of the appeal, even if the appeal is dismissed as abandoned. Accordingly, de-

LIMITATION OF ACTIONS—Cont'd

defendants were not entitled to dismissal of plaintiff's state action filed nine months after dismissal of her federal action based upon the same incident, but before her federal appeal as of right was dismissed for failure to perfect. The commencement of the six-month tolling period is not forestalled by a plaintiff's efforts to seek discretionary appellate review, as it is not the purpose of CPLR 205 (a) to permit a party to continually extend the statutory period by seeking additional discretionary appellate review. By contrast, where an appeal is taken as a matter of right, the six-month period does not commence since termination of the prior action has not yet occurred. This interpretation of CPLR 205 is in keeping with the statute's remedial purpose of allowing plaintiffs to avoid the harsh consequences of the statute of limitations and have their claims determined on the merits where, as here, a prior action was commenced within the limitations period, thus putting defendants on notice of the claims. *Malay v City of Syracuse*, 25 NY3d 323.

FOUR-MONTH STATUTE OF LIMITATIONS.

2. Challenge to Termination of Section 8 Subsidy — Receipt of Letter Commencing Limitations Period.—The proceedings by petitioners challenging the termination of their Section 8 rent subsidy benefits by the New York City Housing Authority (NYCHA) were time-barred where they were commenced more than four months after receipt of the T-3 notice of default letter (*see* CPLR 217 [1]). The timeliness of a proceeding against NYCHA challenging a termination of Section 8 benefits is measured from the tenant's receipt of the T-3 notice of default letter, regardless of whether NYCHA proved that it mailed the warning letter and T-1 notice of termination letter required by the consent judgment that sets forth the procedure that NYCHA must follow when terminating benefits. The consent judgment contains a rebuttable presumption that the T-3 letter is received "on the fifth day following the date of mailing." In each of petitioners' cases, NYCHA provided employee affidavits, copies of the T-3 letters and mail logs and the Appellate Division found, either explicitly or implicitly, that NYCHA established proper mailing of the T-3 letters. Each petitioner's bare denial of receipt was insufficient to rebut the presumption. *Matter of Banos v Rhea*, 25 NY3d 266.

3. Challenge to Termination of Section 8 Subsidy — When Limitations Period Begins to Run.—The timeliness of a proceeding against the New York City Housing Authority (NYCHA) challenging a termination of Section 8 rent subsidy benefits is measured from the tenant's receipt of the T-3 notice of default letter, regardless of whether NYCHA proved that it mailed the warning letter and T-1 notice of termination letter required by the consent judgment that sets forth the procedure that NYCHA must follow when terminating benefits. The applicable four-month statute of limitations begins to run when the agency determination "becomes final and binding upon the petitioner" (CPLR 217 [1]). The consent judgment, which must be construed according to rules of contract interpretation, provides, in paragraph 22 (f), that the determination to terminate benefits becomes final and binding upon receipt of the notice of determination or the notice of default, i.e., the T-3 letter, "pursuant to paragraph '3(e)' of the consent judgment. While paragraph 3 contains a three-step notice procedure, the purpose of the reference to paragraph 3 (e) in paragraph 22 (f) was to clearly identify the T-3 letter as the relevant notice as distinguished from another type of default mentioned in the consent judgment. Paragraph 3 does not lose its meaning if it is interpreted alone without being fully incorporated into paragraph 22. Nor is there any indication that the reference to paragraph 3 (e) was intended to incorporate all of the procedural requirements contained in paragraph 3 as conditions precedent to commencement of the limitations period. While the consent judgment provides the added protection of two additional notices—without which a termination of benefits will not be upheld on the merits if timely challenged—the T-3 letter contains sufficient information to put tenants on notice of the termination of their rights with respect thereto, and to advise them as to how to proceed, such that it is not a deprivation of due process to designate that document as the trigger for commencement of the statute of limitations. *Matter of Banos v Rhea*, 25 NY3d 266.

FOUR-YEAR STATUTE OF LIMITATIONS.

4. Rent Overcharge Claim — Significant Evidence of Fraud.—Supreme Court properly considered plaintiff tenants' rent overcharge claim in an action com-

LIMITATION OF ACTIONS—Cont'd

menced after their overcharge counterclaim in a summary proceeding, initially asserted more than 5½ years after they occupied a rent-stabilized apartment under a vacancy lease, was dismissed without prejudice, notwithstanding the expiration of the four-year statute of limitations to which such claims are generally subject, inasmuch as there was unrefuted proof of fraud in the record. The four-year statute of limitations set forth in CPLR 213-a will not be read in a way that would allow a landlord whose fraud remains undetected for four years to, simply by virtue of having filed a registration statement, transform an illegal rent into a lawful assessment that would form the basis for all future rent increases. Where the overcharge complaint alleges fraud, the Division of Housing and Community Renewal (DHCR) has an obligation to ascertain whether the rent on the base date is a lawful rent. Here, plaintiffs advanced a colorable claim of fraud by presenting significant evidence that defendants had created and registered with DHCR a fictitious tenant and created a fictitious apartment renovation to boost the regulated rent. Consequently, the rent on the base date was affected by defendants' fraud. As a result, section 213-a merely limited plaintiffs' recovery to those overcharges occurring during the four-year period immediately preceding the rent challenge, and the lawful rent on the base date must be determined by using the default formula devised by DHCR. *Conason v Megan Holding, LLC*, 25 NY3d 1.

FRAUD.

5. Claim against Forged Deed Not Subject to Statute of Limitations.—A claim against a forged deed is not subject to a statute of limitations defense. Accordingly, the six-year statute of limitations for fraud claims set forth in CPLR 213 (8) did not foreclose plaintiff from seeking to set aside and cancel, as null and void, defendant bank's mortgage interest in real property conveyed on the authority of an allegedly forged deed. A forged deed is void ab initio, and a statute of limitations cannot validate what is void at its inception by the mere passage of time. Unlike a deed where the signature and authority for conveyance are acquired by fraudulent means, which is voidable but has the effect of transferring title until set aside, a forged deed containing a fraudulent signature is void initially and cannot convey good title, and it is legally impossible for anyone to become a bona fide purchaser—or a purchaser at all—of real property conveyed thereby. Likewise, no property can be encumbered in reliance on a forged deed, and the recording of a forged deed does not transform it into a document with legal authority to establish a valid property interest. Here, if the deed upon which defendant's mortgage interest was based was a forgery, as alleged by plaintiff, then it was never valid and thus not subject to a statute of limitations, thereby necessitating denial of defendant's motion to dismiss plaintiff's challenge thereto as time-barred. *Faison v Lewis*, 25 NY3d 220.

MEDICAL MALPRACTICE.

6. "Foreign Object" Exception — Catheter Placed in Heart during Surgery.—A fragment from a catheter placed in plaintiff's heart during surgery for recording atrial pressure more than 22 years before it was discovered was a "foreign object" for purposes of the discovery rule under CPLR 214-a, which provides that where a medical malpractice action "is based upon the discovery of a foreign object in the body of the patient, [it] may be commenced within one year of the date of such discovery or of the date of discovery of facts which would reasonably lead to such discovery." Under CPLR 214-a, the term "foreign object" does not include "a chemical compound, fixation device or prosthetic aid or device." When deciding whether an item of medical paraphernalia is a foreign object, courts should consider the nature of the materials implanted in a patient, as well as their intended function. Items which are placed in the patient with the intention that they will remain to serve some continuing treatment purpose constitute fixation devices. Tangible items introduced into a patient's body solely to carry out or facilitate a surgical procedure are foreign objects if left behind. The catheters inserted in plaintiff's heart performed no securing or supporting role during or after surgery. Because the catheters were therefore not fixation devices, they were not categorically excluded from the foreign object exception in CPLR 214-a. Moreover, medical

LIMITATION OF ACTIONS—Cont'd

personnel did not intend in the first instance to leave any tubing in plaintiff's heart; rather, the catheter was introduced into plaintiff's body during an operation for an instrumental purpose. *Walton v Strong Mem. Hosp.*, 25 NY3d 554.

WHEN CAUSE OF ACTION ACCRUES.

7. Residential Mortgage-Backed Securities Transaction— Breach of Contractual Obligation to Cure or Repurchase Loans Not Conforming to Representations and Warranties.—A breach of contract cause of action alleging failure by defendant sponsor of a residential mortgage-backed securities transaction to comply with its contractual obligation to cure or repurchase mortgage loans that did not conform with the representations and warranties made by defendant regarding the loans' credit quality and characteristics upon defendant's sale of the loans to a securitization conduit for deposit into plaintiff trust and sale to investors accrued at the point of contract execution, not at a subsequent time when defendant failed to cure or repurchase as provided by the contract. Where, as in this case, representations and warranties concern the characteristics of their subject as of the date they are made, they are breached, if at all, on that date, and defendant's refusal to cure or repurchase the allegedly defective loans did not give rise to a separate cause of action as its cure or repurchase obligation could not reasonably be viewed as a distinct promise of future performance. Defendant represented and warranted certain facts about the loans' characteristics as of execution of the contract of sale and expressly stated that those representations and warranties did not survive the closing date. Defendant's cure or repurchase obligation was the trust's sole remedy for a breach of those representations and warranties, and nothing in the contract specified that such obligation would continue for the life of the loans. Thus, defendant's cure or repurchase obligation was dependent on, and derivative of, its representations and warranties, which did not survive the closing and were breached, if at all, on that date. *ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

LOCAL LAWS.**PREEMPTION BY STATE.**

1. Regulation of Attorney Conduct.—Local Law No. 15 (2009) of City of New York, to the extent it purports to regulate attorneys acting in a debt collecting capacity in governing the conduct of debt collection agencies, is not preempted by Judiciary Law §§ 53 and 90, which confer broad authority upon the courts to regulate the practice of law. A local law will be preempted either where there is a direct conflict with a state statute (conflict preemption) or where the legislature has indicated its intent to occupy the particular field (field preemption). Local laws are inconsistent where they prohibit what would be permissible under state law, or impose prerequisite additional restrictions on rights under state law, so as to inhibit the operation of the state's general laws. Although attorneys that are acting in a debt collecting capacity may fall within the penumbra of Local Law 15, it does not purport to regulate attorneys as such. There is no express conflict between the broad authority accorded to the courts to regulate attorneys under the Judiciary Law and the licensing of individuals as attorneys who are engaged in debt collection activity falling outside the practice of law and, thus, the local law does not impose an additional requirement for attorneys to practice law. Rather, the regulatory schemes are complementary to, and compatible with, one another. Moreover, the courts' authority to regulate attorney conduct does not evince an intent to preempt the field of regulating nonlegal services rendered by attorneys. To the extent that the courts have exercised some authority over such services, the regulation in that area is not so detailed and comprehensive as to imply that the field has been preempted. *Eric M. Berman, P.C. v City of New York*, 25 NY3d 684.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MORTGAGES.**DEFICIENCY JUDGMENTS.**

1. Sufficient Proof of Fair Market Value — Lender's Burden.—In an action to foreclose a mortgage on commercial property, Supreme Court properly denied plaintiff lender's motion for a deficiency judgment pursuant to RPAPL 1371 (2) as plaintiff failed to meet its initial burden of establishing, prima facie, the fair market value of the property. In support of the motion, plaintiff proffered a four-paragraph affidavit from its licensed appraiser, which consisted of little more than conclusory assertions of fair market value. While the affidavit contained conclusory references to "comparable sales" and an examination of "the neighborhood, market and general economic trends, comparable rentals [and] expense data," the appraiser's opinion as to the property's fair market value was unsupported by any detailed analysis of the data and valuation criteria he utilized in reaching his valuation. Nor did the appraiser affix to his affidavit any evidence substantiating his opinion. Moreover, the appraiser claimed to have examined the interior and exterior of the building, but he made no attempt to describe the building's condition or what his inspection of the property revealed. Finally, absent sufficient proof submitted by plaintiff to permit the court to render a fair market value determination, the court had no basis to award plaintiff a deficiency judgment, notwithstanding that plaintiff's submission was un rebutted. *Flushing Sav. Bank, FSB v Bitar*, 25 NY3d 307.

2. Sufficient Proof of Fair Market Value — Opportunity to Submit Additional Proof.—When, in a mortgage foreclosure action, a court deems the lender's proof in support of a motion for a deficiency judgment pursuant to RPAPL 1371 (2) insufficient in the first instance, the court must give the lender an additional opportunity to submit sufficient proof, so as to enable the court to make a proper fair market value determination. Thus, in an action to foreclose a mortgage on commercial property, where plaintiff lender failed to meet its burden of establishing, prima facie, the fair market value of the property in the initial application for a deficiency judgment, Supreme Court should have permitted plaintiff to submit additional proof establishing fair market value, rather than denying the deficiency judgment motion outright. RPAPL 1371 (2) directs that, when a lender makes a motion for a deficiency judgment, "the court, whether or not the respondent appears, shall determine, upon affidavit or otherwise as it shall direct, the fair and reasonable market value of the mortgaged premises as of the date such premises were bid in at auction or such nearest earlier date as there shall have been any market value thereof and shall make an order directing the entry of a deficiency judgment." The provision is a directive that the court must determine the mortgaged property's "fair and reasonable market value" when a motion for a deficiency judgment is made, and the court has the discretion to elucidate the type of proof it requires or to order a hearing as it is in the best position to determine the type of proof that will allow it to comply with the provision. *Flushing Sav. Bank, FSB v Bitar*, 25 NY3d 307.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**COLLISION.**

1. Collision with Street Sweeper Engaged in Highway Work — Recklessness Standard of Care.—In an action to recover for personal injuries incurred when a street sweeper collided with plaintiff's vehicle, the recklessness standard of care

MOTOR VEHICLES—Cont'd

set forth in Vehicle and Traffic Law § 1103 (b) and adopted at the time of the collision by 34 RCNY 4-02 (d) (1) (iv) was applicable. Subparagraph (iv) of 34 RCNY 4-02 (d) (1) provided that Vehicle and Traffic Law § 1103 applies to all operators “actually engaged in work on a highway,” which includes street sweepers. Such workers are subject to the recklessness standard of care, a minimum standard of care under which liability is established upon a showing that the covered vehicle’s operator has intentionally done an act of an unreasonable character in disregard of a known or obvious risk that was so great as to make it highly probable that harm would follow and has done so with conscious indifference to the outcome. Even assuming that former 34 RCNY 4-02 (d) (1) (iii), which was in effect at the time of the collision and referenced street sweepers, adopted a negligence standard of care, since the driver of the street sweeper was cleaning the street at the time of the collision and was not engaged in any of the activities referenced in subparagraph (iii), he was engaged in highway maintenance within the meaning of subparagraph (iv) and thus subject to the recklessness standard of care. The 2013 amendments which repealed subparagraph (iii) (A) do not support a different interpretation of the statute, since those amendments simply eliminated the language of former subparagraph (iii) (A) and imposed the recklessness standard on workers engaged in work on a roadway, under all circumstances. *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102.

2. Collision with Street Sweeper Engaged in Highway Work — Recklessness Standard of Care.—In an action to recover for personal injuries incurred when a street sweeper collided with plaintiff’s vehicle, defendants were not entitled to summary judgment since material issues of fact remained as to whether the sweeper driver operated it in a reckless manner and the extent of plaintiff’s own negligence. While plaintiff alleged he was rear-ended as he sought to move left and away from the curb, the sweeper driver contended that he was sweeping on the right side of the street when he observed plaintiff’s vehicle make “[a] pretty sudden move” from the middle lane of the street towards the right curb. In addition, photographs showed damage to the passenger side of plaintiff’s vehicle and the sweeper’s right front fender, seemingly consistent with the sweeper driver’s testimony. However, the sweeper driver admitted that when he observed plaintiff’s vehicle, he did not slow down or apply his brakes in an attempt to avoid the collision, and “hit [plaintiff] fairly well,” causing plaintiff’s jeep to spin out 180 degrees. If a factfinder concluded that the driver could, but failed to, take evasive action to avoid a forceful collision, a reasonably jury could find that his conduct rose to the recklessness standard. *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS’ COMPENSATION, and other specific titles.

NOTICE OF CLAIM.

1. Sufficiency — Allegations in Bill of Particulars Not Set Forth in Notice of Claim.—In a negligence action arising from plaintiff’s alleged slip and fall on the second-floor landing of a stairway in defendant’s building, the allegations in an amended notice of claim, which alleged that defendant was negligent in maintaining the second-floor landing area, were not sufficient to put defendant on notice of the allegations in the bill of particulars concerning the handrail. *Thomas v New York City Hous. Auth.*, 25 NY3d 1087.

REGULATION OF TAXICAB BUSINESS.

2. Authority of New York City Taxi and Limousine Commission to Issue Rule Requiring New Taxicabs to be Specific Model Made by Single Manufacturer.—Respondent New York City Taxi and Limousine Commission (TLC) had the authority to require the use of a particular vehicle make and model as a gas-powered taxi, as opposed to requiring taxi vehicles to meet certain specifications. Respondent selected the Nissan NV200 as the Taxi of Tomorrow (ToT), i.e., the single

MUNICIPAL CORPORATIONS—Cont'd

make and model that each New York City taxi owner was required to purchase when it retired an existing vehicle, with limited exceptions (35 RCNY 51-03, 67-05.1B). The City Council granted the TLC extremely broad authority to enact rules, including the ToT rules. The TLC's powers extend to standards and conditions of service, requirements of standards of safety and design of vehicles, development and effectuation of a broad public policy of transportation as it relates to forms of public transportation in the city, and promulgation of rules to carry out its purposes (NY City Charter § 2303 [b]). In granting the TLC this broad authority, the City Charter includes guidelines for the TLC to consider, such as "safety, and design, comfort, convenience, noise and air pollution control and efficiency in the operation of vehicles" (NY City Charter § 2303 [b] [6]). Although the TLC has generally applied the "specs method" when promulgating rules about the design of taxis, there is a major shortcoming of that method—the situation where no available model meets the specs in the rules. The TLC determined that the most obvious alternative to vehicle specifications was the competitive selection of taxicab vehicle models, as embodied in the ToT project. That new method was intended to be a more efficient way to reach the same result and falls within the broad authority granted to the TLC. *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600.

3. Authority of New York City Taxi and Limousine Commission to Issue Rule Requiring New Taxicabs to be Specific Model Made by Single Manufacturer — Separation of Powers.—Upon consideration of the *Boreali* factors (*Boreali v Axelrod*, 71 NY2d 1 [1987]), respondent New York City Taxi and Limousine Commission (TLC) did not exceed its authority or intrude on the New York City Council's domain in violation of the separation of powers doctrine by enacting the Taxi of Tomorrow (ToT) rules under which it established a particular make and model of vehicle as the City's official gas-powered taxicab, as opposed to requiring taxi vehicles to meet certain specifications (35 RCNY 51-03, 67-05.1B). The TLC determined that the most obvious alternative to the vehicle specifications method was competitive selection of taxicab vehicle models, and developed the ToT rules by balancing the costs and benefits to all interested parties and using many of the same guidelines used to develop rules with specifications. Thus, enactment of the rules did not entail a difficult and complex choice among policy goals reserved for the City Council or an intrusion into economic and social concerns outside the TLC's authority. Moreover, the Council had largely left taxi regulation to the TLC, with the only instance of intervention being its requirement that the TLC approve one or more hybrid electric vehicle model or models for use as a taxicab. The use of the words "one or more" and "model or models" rather than specifications constituted some legislative guidance from which to infer that the Council generally recognized the single model method as within the TLC's authority. In addition, because the TLC had historically based its specs on particular models, effectively limiting the citywide fleet to one model, without interference, it could be inferred to some degree that the legislature approved of its action. Finally, technical expertise was essential to select the single best model as the ToT, but not necessarily to decide whether to limit the selection to one model. Overall, the ToT rules did not involve difficult social problems of any nature. *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

RES IPSA LOQUITUR.

1. Summary Judgment.—In a negligence action to recover damages for an injury allegedly sustained by plaintiff, a passenger on defendant railroad's train, when a ceiling panel in the train car swung open and struck her in the head, the Appellate Division erred when it granted plaintiff's motion for partial summary judgment on

NEGLIGENCE—Cont'd

the issue of liability based on the doctrine of *res ipsa loquitur*. The circumstantial proof presented by plaintiff was not so convincing and the defendant's response so weak that the inference of defendant's negligence was inescapable. *Barney-Yeboah v Metro-North Commuter R.R.*, 25 NY3d 945.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

OPTOMETRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

PARENT, CHILD AND FAMILY.

See, also, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles.

ABUSED OR NEGLECTED CHILD.

1. Person Legally Responsible.—In related abuse and neglect proceedings pursuant to Family Court Act article 10 arising out of respondent's sexual abuse of his 11-year-old niece during an overnight visit at respondent's home, there was record support for the lower courts' findings that respondent was a "person legally responsible" (Family Ct Act § 1012 [g]) for his niece's care at the relevant time and that he derivatively neglected his own children, who were in the home at the time of the incident. Whether a particular person has acted as the functional equivalent of a parent, and was thus a person legally responsible for a child's care, is a discretionary, fact-intensive inquiry based on factors including the frequency and nature of the contact, the nature and extent of the control exercised by the respondent over the child's environment, the duration of the respondent's contact with the child, and the respondent's relationship to the child's parents. The child had been staying at respondent's home for a week prior to the incident, and, during the year before the incident, she had visited respondent's home eight or nine times and four of those occasions were overnight visits. Respondent and the child also interacted at family functions such as family reunions, holidays and birthday parties. Thus, the total contacts between respondent and the child were significant. The incident occurred in respondent's home during an overnight visit, and he was the only adult present at the time. Moreover, the child's mother testified that if her sister, respondent's wife, was not home, respondent was expected to care for the child. Although not dispositive, the existence of a familial relationship was appropriately considered. *Matter of Trenasia J. (Frank J.)*, 25 NY3d 1001.

PARKS AND PARKWAYS.**ALIENATION OF PARK LANDS.**

1. Implied Dedication Not Demonstrated.—Petitioners, who sought an injunction of the respondent City of New York's planned transfer of four parcels of municipal land in connection with third-party respondent's campus expansion project, failed to meet their burden of demonstrating that the parcels were impliedly dedicated as parkland and therefore fell under the protection of the public trust doctrine, which requires approval of the state legislature before the land can be alienated. A party seeking to establish an implied dedication of parkland must show that the acts and declarations by the land owner indicating the intent to dedicate his or her land to the public use are unmistakable in their purpose and decisive in their character to have the effect of a dedication, and that the public

PARKS AND PARKWAYS—Cont'd

has accepted the land as dedicated to a public use. Here, respondent's acts were not an unequivocal manifestation of an intent to dedicate the parcels as permanent parkland. The permit, memorandum of understanding and lease/license relating to three of the parcels showed that any management of the parcels by respondent's department of parks and recreation was understood to be temporary and provisional. Those documents' restrictive terms showed that, although respondent permitted and encouraged some use of the parcels for recreational and park-like purposes, it had no intention of permanently giving up control of the property. Moreover, respondent's refusal of various requests to have the streets de-mapped and re-dedicated as parkland further indicated that respondent had not unequivocally manifested an intent to dedicate the parcels as parkland. The fourth parcel, a dog run operated by a nonprofit corporation and accessible only to paying members, was not used as parkland. *Matter of Glick v Harvey*, 25 NY3d 1175.

PAROLE.**REVOCATION.**

1. Incompetency of Parolee.—Holding a parole revocation hearing after a court has deemed the parolee to be mentally incompetent violates the due process provision in the State Constitution. Therefore, *People ex rel. Newcomb v Metz* (64 AD2d 219 [3d Dept 1978]) and *Matter of Newcomb v New York State Bd. of Parole* (88 AD2d 1098 [3d Dept 1982], *lv denied* 57 NY2d 605 [1982], *cert denied* 459 US 1176 [1983]), which held that a determination as to a parolee's mental competency is not a condition precedent to the parole revocation proceeding, should no longer be followed. *Matter of Lopez v Evans*, 25 NY3d 199.

2. Incompetency of Parolee.—Where a parolee lacks mental competency to stand trial, it is a violation of his or her due process rights to conduct a parole revocation hearing. Accordingly, respondent's determination finding that petitioner, who had twice been found incompetent to stand trial, violated a condition of his parole and assessing additional imprisonment was annulled and petitioner's parole reinstated. The constitutional question implicates the balance between the government's interest in efficient administration of parole and the parolee's right to defend himself or herself. Several of the reasons underlying the bar against prosecuting a mentally incompetent defendant apply also to parole revocation hearings, including the constitutional concerns about the fundamental fairness of a proceeding in which a parolee who is unable to make decisions about his or her defense may be returned to prison. Most importantly, an incompetent parolee is not in a position to exercise rights, such as the right to testify and the opportunity to confront adverse witnesses, that are directly related to ensuring the accuracy of fact-finding. That a parolee is guaranteed a right to representation by counsel at the revocation hearing is not enough. A parolee must be able to provide the factual underpinnings of the presentation. *Matter of Lopez v Evans*, 25 NY3d 199.

PARTIES.**STANDING.**

1. Action to Foreclose Mortgage — Possession of Note Prior to Commencement.—Plaintiff loan servicer had standing to commence the mortgage foreclosure action against defendants, where it came into possession of the note prior to commencement of the action. The physical delivery of the note to the plaintiff from its owner prior to commencement of a foreclosure action may, in certain circumstances, be sufficient to transfer the mortgage obligation and create standing to foreclose. To have standing, it is not necessary to have possession of the mortgage at the time the action is commenced, as the note, and not the mortgage, is the dispositive instrument that conveys standing to foreclose. Therefore, any disparity between the holder of the note and the mortgagee of record does not stand as a bar to a foreclosure action; the holder of the note is deemed the owner of the underlying mortgage loan with standing to foreclose. Accordingly, the validity of the assignment of the mortgage was irrelevant to plaintiff's standing. *Aurora Loan Servs., LLC v Taylor*, 25 NY3d 355.

PARTIES—Cont'd

2. Assignment of Tort Claims.—Plaintiff failed to raise a question of fact regarding its standing to sue defendants for fraudulently issuing high credit ratings on notes purchased by an asset fund, subsequently sold to a bank and ultimately acquired by plaintiff, where plaintiff failed to present evidence of a communicated intent by the fund and bank to assign to the bank the right to sue for fraud in connection with the transaction through which the fund purchased the notes. The right to assert a fraud claim related to a contract or note does not automatically transfer with the respective contract or note. Thus, where an assignment of fraud or other tort claims is intended in conjunction with the conveyance of a contract or note, there must be some language that evinces that intent and effectuates the transfer of such rights. Without a valid assignment, only the assignor may rescind or sue for damages for fraud and deceit. There was no explicit assignment of the fund's common-law fraud claims to the bank in connection with the fund's sale of the notes. Moreover, there was no evidence that the assignment of tort claims was actually discussed or negotiated by the parties prior to or at the time of the transfer, or that the sale of the notes in any way referenced the simultaneous assignment of such claims. *Commonwealth of Pennsylvania Pub. Sch. Employees' Retirement Sys. v Morgan Stanley & Co., Inc.*, 25 NY3d 543.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROCEEDING AGAINST BODY OR OFFICER.**DISMISSAL OF PETITION.**

1. Answer.—In a CPLR article 78 proceeding challenging respondent university's expulsion of petitioner student based on a determination of academic misconduct, the Appellate Division, which reversed and vacated Supreme Court's judgment dismissing the petition pursuant to CPLR 3211, and reinstated and granted the petition, erred by failing to remand to Supreme Court to permit respondent to file an answer pursuant to CPLR 7804 (f). Where a respondent moves to dismiss a CPLR article 78 petition and the motion is denied, "the court shall permit the respondent to answer, upon such terms as may be just" (CPLR 7804 (f)), unless the facts are so fully presented in the parties' respective papers that it is clear that no dispute as to the facts exists and no prejudice will result from the failure to require an answer. Here, since the motion papers did not establish the absence of triable issues of fact as to whether respondent substantially complied with its established disciplinary procedures, the procedure dictated by CPLR 7804 (f) should have been followed and respondent permitted to answer. *Matter of Kickertz v New York Univ.*, 25 NY3d 942.

PROHIBITION.

2. Enjoining Trial Judge from Compelling Prosecution.—Petitioner District Attorney was entitled to a writ of prohibition to the extent of enjoining respondent City Court Judge from enforcing his orders compelling the People to call witnesses or put on proof at a suppression hearing in an underlying prosecution. A trial court cannot order the People to call witnesses at a suppression hearing or enforce such

PROCEEDING AGAINST BODY OR OFFICER—Cont'd

a directive through its contempt powers. Any attempt by respondent to compel prosecution through the use of his contempt power exceeded his jurisdictional authority, since it is within the sole discretion of each district attorney's executive power to orchestrate the prosecution of those who violate the criminal laws of the state (*see* County Law § 700 [1]; *see also* NY Const, art XIII, § 13). Where the court assumes the role of the district attorney by compelling prosecution, it has acted beyond its jurisdiction. The writ did not prohibit respondent from exercising his general contempt powers to enforce lawful orders or ensure petitioner's compliance with the Criminal Procedure Law. Rather, the writ was limited to prohibiting respondent from requiring the People to pursue prosecution, namely by calling witnesses or putting on proof at the suppression hearing. *Matter of Soares v Carter*, 25 NY3d 1011.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

TEACHERS.

1. Termination of Employment — Judicial Review.—In a proceeding pursuant to Education Law § 3020-a (5) and CPLR 7511 to vacate an arbitration award finding petitioner teacher guilty of incompetence and imposing a penalty of termination, an order of the Appellate Division, which remanded the matter to respondent New York City Department of Education for imposition of a lesser penalty, was reversed and respondent's cross motion to dismiss the petition granted in its entirety. It could not be said that the penalty of termination shocked the judicial conscience. *Matter of Russo v New York City Dept. of Educ.*, 25 NY3d 946.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

SLANDER.

See LIBEL AND SLANDER.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**RETROACTIVE APPLICATION OF STATUTE.**

1. Change to Tax Law — Due Process Violation.—The retroactive application of amendments to Tax Law § 632 (a) (2)—which sought to correct an administrative error and to prevent both an unexpected loss of revenue and confusion in return preparation by S corporation purchasers—to tax income received from the deemed asset sale of nonresident plaintiffs' shares in an S corporation 3½ years earlier did not violate plaintiffs' due process rights under the United States and New York State Constitutions. A retroactive tax violates due process only if it is so harsh and oppressive as to transgress the constitutional limitation. In analyzing whether a statute is harsh and oppressive, and, thus, arbitrary and irrational, the Court uses a balancing-of-equities test, considering the taxpayer's forewarning of a change in the legislation and the reasonableness of reliance on the old law, the length of the retroactive period and the public purpose for retroactive application. Plaintiffs failed to show reasonable reliance on their interpretation of the pre-amendment version of Tax Law § 632 (a) (2), given legislative findings that similar interpretations altered a long-standing, contrary policy in effect at the time of the taxable transaction, as well as the curative purpose of the retroactive amendments, which expressly were meant to cure an unintended administrative error. Moreover, the purposes of the amendments were curative and the period of retroactivity was rationally related thereto, and attempting to correct an error and preventing significant and unanticipated revenue loss are rational public purposes underlying retroactivity. *Caprio v New York State Dept. of Taxation & Fin.*, 25 NY3d 744.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SURETYSHIP AND GUARANTEE.**DEFENSES OR COUNTERCLAIMS.**

1. Collusion Defense.—In an action commenced by plaintiff bank to impose personal liability on defendant guarantor under a guaranty, which defendant gave

SURETYSHIP AND GUARANTEE—Cont'd

in favor of plaintiff relating to a purchase agreement between plaintiff and a Canadian corporation of which defendant was a chief executive officer and director, for a default judgment obtained by plaintiff in federal court against an American corporation of which the Canadian corporation was the sole shareholder and defendant was an officer and director, defendant's claim that the default judgment was obtained by collusion facilitated by plaintiff's control over the American corporation was contradicted by the record. Defendant conceded that, when plaintiff filed its federal action, he was the sole officer and director of the American corporation. Nevertheless, defendant failed to obtain counsel for the American corporation to respond to the federal suit, notwithstanding that he obtained counsel to respond on his behalf as a named defendant in his individual capacity. *Coöperatieve Centrale Raiffeisen-Boerenleenbank, B.A., "Rabobank Intl.," N.Y. Branch v Navarro*, 25 NY3d 485.

SCOPE OF GUARANTEE.

2. Absolute and Unconditional Guarantee — Waiver of Defenses — Collusion Defense.—Defendant guarantor could not avoid personal liability to plaintiff bank under an "absolute and unconditional" guaranty, which defendant gave in favor of plaintiff relating to a purchase agreement between plaintiff and a Canadian corporation of which defendant was a chief executive officer and director, for a default judgment obtained by plaintiff in federal court against an American corporation of which the Canadian corporation was the sole shareholder and defendant was an officer and director. Defendant's challenge that the default judgment could not serve as a valid underlying debt for which he was liable under the guaranty because it was obtained by plaintiff's collusion constituted a defense barred by the express language of the guaranty. Defendant personally guaranteed the obligations owed by the Canadian corporation under the purchase agreement, as well as obligations owed by the American corporation, and he specifically agreed that his liability would be "absolute and unconditional" irrespective of "any lack of validity or enforceability" of the agreement or "any other circumstance which might otherwise constitute a defense." By its plain terms, in broad, sweeping and unequivocal language, the guaranty foreclosed any challenge to the enforceability and validity of the documents that established defendant's liability for payments arising under the purchase agreement, as well as any other possible defense to his liability for the obligations of the corporate businesses. No matter how defendant characterized his challenge, it was ultimately based on a quintessential defense of fraud, which was waived under the broad, inclusive, in no way limited language of the guaranty. *Coöperatieve Centrale Raiffeisen-Boerenleenbank, B.A., "Rabobank Intl.," N.Y. Branch v Navarro*, 25 NY3d 485.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**ASSESSMENT.**

1. Small Claims Assessment Review — Property Occupied by Owner's Relative Not "Owner-Occupied."—When property that is the subject of a small claims assessment review (SCAR) application is occupied during the relevant tax period by an owner's relative but not by the owner, the property is not "owner-occupied" within the meaning of RPTL 730 (1) (b) (i). Thus, where petitioner homeowner's mother—but not petitioner homeowners themselves—lived in petitioners' residence rent-free during the relevant tax period, petitioners could not challenge the property's tax assessment in a SCAR proceeding because they were non-occupant owners. The "owner-occupied" language of RPTL 730 (1) (b) (i) is unambiguous, and the import of its ordinary meaning is that the person with ownership rights must be in occupancy of the property in order to petition for SCAR. Examination of the legislative history revealed that there was no question that the legislature passed the statute fully intending to distinguish between owner-occupied and non-owner-occupied properties. Likewise, administrative constructions of the "owner-

TAXATION—Cont'd

occupied” requirement made clear that lack of occupancy by the owner renders the property ineligible for SCAR. Finally, assuming, without deciding, that an owner may proceed with a SCAR petition where his or her relative’s occupancy is temporary, there was no record evidence to suggest that petitioners’ relative occupied the premises temporarily. *Matter of Manouel v Board of Assessors*, 25 NY3d 46.

EXEMPTIONS.

2. Real Property Tax — Parking Facilities Owned and Operated by Charity — No Presumption of Entitlement to Exemption Based on Federal Tax-Exempt Status.—Evidence of an organization’s status as exempt from federal income tax under Internal Revenue Code (26 USC) § 501 (c) (3), by itself, does not create a presumption that the entity is entitled to a real property tax exemption under RPTL 420-a. Local governments derive significant revenue from the imposition of real property taxes, and federal income tax standards cannot be utilized to create a presumption in favor of a property owner seeking an exemption from a state real property tax. Moreover, Internal Revenue Code § 501 (c) (3) and RPTL 420-a utilize different tests in determining whether an organization is entitled to a tax exemption under the relevant statute. Section 501 (c) (3) requires an analysis of the organization and its operation as a whole. In contrast, section 420-a (1) (a) considers whether the real property is owned by a corporation or organization that is “organized or conducted exclusively” for one of the exempt purposes and “used exclusively for carrying out thereupon one or more of such purposes.” The critical analysis for real property tax exemption purposes is the ownership and use of the property by the organization seeking the exemption. Finally, the Internal Revenue Code contains a broad definition of what constitutes a “charitable” purpose (26 CFR 1.501(c)(3)-1 [d] [2]), while section 420-a does not contain a definition of that term. Had the legislature intended for the expansive federal definition to apply in section 420-a, it could have adopted it or referenced it in the statute. While courts are not prohibited from considering an entity’s section 501 (c) (3) status as part of their overall analysis under RPTL 420-a, evidence of an organization’s status as exempt from federal income tax under Internal Revenue Code (26 USC) § 501 (c) (3), by itself, does not create a presumption that the entity is entitled to a real property tax exemption under RPTL 420-a. *Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614.

3. Real Property Tax — Parking Facilities Owned and Operated by Charity — No Presumption of Entitlement to Exemption Based on Federal Tax-Exempt Status.—Evidence of an organization’s status as exempt from federal income tax under Internal Revenue Code (26 USC) § 501 (c) (3), by itself, does not create a presumption that the entity is entitled to a real property tax exemption under RPTL 420-a. To the extent that lower court cases have held that such a presumption exists, they should no longer be followed for that proposition (*see e.g. Oorah, Inc. v Town of Jefferson*, 119 AD3d 1179, 1181 [3d Dept 2014]; *Matter of Plattsburgh Airbase Redevelopment Corp. v Rosenbaum*, 101 AD3d 21, 23 [3d Dept 2012]). *Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614.

4. Real Property Tax — Tax-Exempt Purpose — Parking Facilities Owned and Operated by Charity.—Parking facilities owned and operated by petitioner limited liability company, which was formed for the purpose of acquiring, owning, developing and operating public parking facilities on a nonprofit basis to further the charitable goal of its sole member, petitioner not-for-profit corporation, were not entitled to real property tax exemptions because the ownership and use of the facilities was not incidental to a tax-exempt purpose. Real property owned by a corporation or association that is organized or conducted exclusively for charitable purposes, if used exclusively for such purposes, will be exempt from taxation (RPTL 420-a [1] [a]). Whether the property is used “exclusively” depends on whether its “primary use” is in furtherance of the permitted purposes. Here, respondent taxing authority established that it properly revoked the exemption by demonstrating that while the parking facilities, which provided below-market, reasonably-priced parking for local businesses and religious organizations, may

TAXATION—Cont'd

have served an important public purpose and supported development of a community, those factors did not qualify it for a charitable exemption. Petitioners collected monies that exceeded the carrying costs of the facilities and were used to fund other operations. Although petitioners were exempt from federal income tax as charitable organizations and presented other evidence establishing that they were organized or conducted exclusively for charitable purposes, they failed to demonstrate that the use of the parking facilities was consistent with their exempt purposes. The corporation's overall goal was to create and maintain a viable downtown area. The economic benefit conveyed by the parking facilities inured to the benefit of private enterprise and the customers, and thus could not be said to further any charitable purpose. Whether the facilities lessened the burden on local government was irrelevant because public benefit is not the test of qualification for exemption. Notwithstanding any tenuous connection between the monies raised and other charitable purposes engaged in by petitioner corporation, the parking lots' primary use was to generate profits for distribution to the corporation. *Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614.

PERSONAL INCOME TAX.

5. Constitutionality of Income Tax Assessed on Gains from Deemed Asset Sale of Stock under Tax Law § 632 (a) (2).—In a declaratory judgment action arising out of a challenge by plaintiff nonresident shareholders in an out-of-state S corporation to an income tax assessed on their pro rata share of gains from a sale of the corporation's stock that the parties to the sale elected to treat as a "deemed asset sale" for tax purposes under Internal Revenue Code (26 USC) § 338 (h) (10), the tax—properly assessed pursuant to Tax Law § 632 (a) (2), as amended, on the portion of plaintiffs' gains derived from or connected with New York sources—did not fall within the prohibition contained in New York Constitution, article XVI, § 3. While the plain language of section 3 precludes taxation of nonresidents' intangible personal property based on physical ownership, possession or presence in New York State, the tax was not by definition or application an ad valorem tax assessed based on ownership and imposed according to value, nor was it an excise tax levied solely because of ownership or possession. Instead, the tax was based on income generated by those intangibles that were derived from New York sources. The text of section 3 makes no mention and provides no language supporting extending the prohibition on ad valorem and ownership/property-based excise taxes to income taxes, and there is simply no language in section 3 that expressly or implicitly constrains the State from imposing any other non-location-based taxes. Historical examination of section 3's drafting and review likewise revealed that its intent was to prohibit taxation of intangible assets based merely on their physical presence within the state, and to ensure a proscription on the ad valorem taxation system as applied to intangible personal property, but that the prohibition did not eliminate all taxation. *Burton v New York State Dept. of Taxation & Fin.*, 25 NY3d 732.

TOWNS.

See MUNICIPAL CORPORATIONS.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WILLS.**PROBATE.**

1. Will Duplicates.—In a probate proceeding involving a will executed by decedent in Texas before she was divorced and moved to New York, which her former husband said was generated in quadruplicate, but also described as composed of one original and three “copies,” the will that was provided by petitioner executor after no will was found during a diligent postmortem search of decedent’s home and possessions should not have been admitted to probate while a question persisted as to whether decedent had revoked the will by destruction. A will may be revoked by the testator’s act of destroying the will with revocatory intent, which act achieves the revocatory purpose even if there remain will duplicates outstanding. That a testator has in fact revoked a will by destruction will be strongly presumed where the will, although once possessed by the testator, cannot be found posthumously despite a thorough search. The presumption, once raised, stands in the place of positive proof and must be rebutted by the will’s proponent as a condition of probate. Here, the crucial issues raised by the duplicate will testimony were not framed for resolution as they should have been and this may have operated to deprive petitioner of a fair opportunity to avoid or rebut the presumption of revocation which otherwise would control the outcome of the proceeding. Accordingly, the matter was remanded to the Surrogate so that those issues could be fully litigated and determined. *Matter of Lewis*, 25 NY3d 456.

REVOCATION.

2. Revocatory Effect of Subsequent Lost Will — Proof of Formalities of Execution.—In a proceeding in which petitioner, the father of decedent’s ex-husband, sought to probate a will executed by decedent in Texas before she was divorced and moved to New York, which will named petitioner as decedent’s alternate executor and beneficiary, the lower courts properly refused to give revocatory effect to a lost will purportedly executed by decedent where the individual who testified as to the will’s existence and to its provision revoking all other wills and codicils did not witness the signing of the will and therefore could not prove that it had been duly executed. Pursuant to EPTL 3-4.1 (a) (1) (B), revocation of a will by a subsequent will or other writing may be accomplished only by executing the revoking instrument with the formalities prescribed for the execution and attestation of a will. *Matter of Lewis*, 25 NY3d 456.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS’ COMPENSATION.**EXISTENCE OF EMPLOYER-EMPLOYEE RELATIONSHIP.**

1. Special Employer — Presumption of Continuing General Employment.—The Appellate Division correctly determined that issues of fact remained as to the alleged special employment relationship between plaintiff and defendant, the alleged special employer, to which plaintiff was assigned to work for two days by his general employer. It could not be said, as a matter of law, that defendant overcame the presumption of continuing general employment by clearly demonstrating surrender of control by the general employer and assumption of control by the special employer. *Holmes v Business Relocation Servs., Inc.*, 25 NY3d 955.

ZONING.

See MUNICIPAL CORPORATIONS.

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205 (a) (Limitations of time; termination of action; new action by plaintiff). *Malay v City of Syracuse*, 25 NY3d 323.

213 (8) (Actions based upon fraud to be commenced within six years; discovery rule). *Faison v Lewis*, 25 NY3d 220.

213-a (Actions to be commenced within four years; residential rent overcharge). *Conason v Megan Holding, LLC*, 25 NY3d 1.

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4504 (a) (Evidence; physician, dentist, podiatrist, chiropractor and nurse; confidential information privileged). *People v Rivera*, 25 NY3d 256.

5511 (Permissible appellant and respondent). *Cicci v Chemung County*, 25 NY3d 1062.

5513 (a) (Time to take appeal, cross-appeal or move for permission to appeal; time to take appeal as of right). *Matter of Mitchell v Fischer*, 25 NY3d 962; *Pickering-George v Wambua*, 25 NY3d 963.

5513 (b) (Time to move for permission to appeal). *People v Simmons*, 24 NY3d 985; *Matter of Lee v Department of Corr. Servs.*, 25 NY3d 929; *Matter of Mitchell v Fischer*, 25 NY3d 962; *Pickering-George v Wambua*, 25 NY3d 963; *Matter of Anonymous*, 25 NY3d 1034; *Matter of Ramos v Prack*, 25 NY3d 1039; *Matter of Vargas v Fischer*, 25 NY3d 1197.

5519 (a) (1) (Appeals; stay of enforcement; stay without court order). *Matter of County of St. Lawrence v Shah*, 25 NY3d 1058.

5601 (Appeals to Court of Appeals as of right). *RCM Elmwood LLC v Niznik*, 25 NY3d 959; *Pickering-George v Wambua*, 25 NY3d 963; *PS 157 Lofts LLC v Austin*, 25 NY3d 966; *PS 157 Lofts LLC v Austin*, 25 NY3d 1186; *Knight v State of New York*, 25 NY3d 1212.

5601 (a) (Appeals to Court of Appeals as of right; dissent). *Killon v Parrotta*, 25 NY3d 1183.

5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds; validity of statutory provision). *Davidson v State of New York*, 25 NY3d 961; *Matter of Wagner*, 25 NY3d 1188.

5601 (d) (Appeals to Court of Appeals as of right; based upon nonfinal determination of Appellate Division). *Killon v Parrotta*, 25 NY3d 1183.

5602 (Appeals to Court of Appeals by permission). *RCM Elmwood LLC v Niznik*, 25 NY3d 959; *Pickering-George v Wambua*, 25 NY3d 963; *PS 157 Lofts LLC v Austin*, 25 NY3d 966; *People ex rel. Vellon v Artus*, 25 NY3d 1186.

5602 (a) (Appeals to Court of Appeals by permission; permission of Appellate Division or Court of Appeals). *Davidson v State of New York*, 25 NY3d 961; *Matter of Lazy Acres Park, LLC v Ferretti*, 25 NY3d 965; *People v Bradley*, 25 NY3d 1033; *Cason v Smith*, 25 NY3d 1057; *Matter of Wagner*, 25 NY3d 1188; *Gilliam v Virgin Mobile USA, L.P.*, 25 NY3d 1191; *WSC Riverside Dr. Owners LLC v Williams*, 25 NY3d 1221.

CIVIL PRACTICE LAW AND RULES—Continued

5602 (a) (2) (Appeals to Court of Appeals by permission; proceeding by or against public officers). *Union-Endicott Cent. Sch. Dist. v Peters*, 25 NY3d 964; *Matter of Griffin v DiNapoli*, 25 NY3d 1037.

CORRECTION LAW.

§ 168-a (1) (Sex Offender Registration Act; “sex offender” defined). *Matter of Kasckarow v Board of Examiners of Sex Offenders of State of N.Y.*, 25 NY3d 1039.

§ 168-a (2) (Sex Offender Registration Act; “sex offense” defined). *Matter of Kasckarow v Board of Examiners of Sex Offenders of State of N.Y.*, 25 NY3d 1039.

§ 168-o (Sex Offender Registration Act; petition for relief or modification). *People v Lashway*, 25 NY3d 478.

§ 168-o (4) (Sex Offender Registration Act; petition for relief or modification). *People v Lashway*, 25 NY3d 478.

§ 752 (1) (Unfair discrimination against persons previously convicted of one or more criminal offenses prohibited; direct relationship exception). *Matter of Dempsey v New York City Dept. of Educ.*, 25 NY3d 291.

§ 752 (2) (Unfair discrimination against persons previously convicted of one or more criminal offenses prohibited; public safety or welfare exception). *Matter of Dempsey v New York City Dept. of Educ.*, 25 NY3d 291.

§ 753 (1) (Factors to be considered concerning previous criminal conviction; presumption). *Matter of Dempsey v New York City Dept. of Educ.*, 25 NY3d 291.

§ 753 (2) (Factors to be considered concerning previous criminal conviction; presumption; certificate of relief from disabilities or certificate of good conduct). *Matter of Dempsey v New York City Dept. of Educ.*, 25 NY3d 291.

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1.20 (15) (“Judgment” defined). *Matter of Kasckarow v Board of Examiners of Sex Offenders of State of N.Y.*, 25 NY3d 1039.

40.10 (2) (Previous prosecution; definitions of terms; “criminal transaction” defined). *People v Lynch*, 25 NY3d 331.

40.20 (2) (Previous prosecution; when bar to second prosecution). *People v Lynch*, 25 NY3d 331.

200.30 (1) (Indictment; duplicitous counts prohibited; one offense per count). *People v Flanders*, 25 NY3d 997.

430.10 (Sentence of imprisonment not to be changed after commencement). *People v Rodriguez*, 25 NY3d 238.

440.46 (1) (Motion for resentencing; certain controlled substance offenders; eligibility). *People v Brown*, 25 NY3d 247.

450.90 (2) (a) (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Brown*, 25 NY3d 973.

460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Caraway*, 25 NY3d 932; *People v Stover*, 25 NY3d 934; *People v Latimer*, 25 NY3d 983; *People v Jackson*, 25 NY3d 1060; *People v Muldrow*, 25 NY3d 1061; *People v Ballard*, 25 NY3d 1184; *People v Singh*, 25 NY3d 1217.

460.20 (4) (Certificate granting leave to appeal to Court of Appeals). *People v Llibre*, 25 NY3d 958.

470.05 (2) (Determination of appeals; preservation of issue for review). *People v Garay*, 25 NY3d 62.

470.20 (Determination of appeals by intermediate appellate courts; corrective action upon reversal or modification). *People v Rodriguez*, 25 NY3d 238.

710.30 (Motion to suppress evidence; notice to defendant of intention to offer evidence). *People v Pacquette*, 25 NY3d 575.

710.30 (1) (b) (Motion to suppress evidence; notice to defendant of intention to offer evidence). *People v Pacquette*, 25 NY3d 575.

710.60 (Motion to suppress evidence; procedure). *People v Garay*, 25 NY3d 62.

720.10 (2) (a) (Youthful offender procedure; “eligible youth” defined). *People v Middlebrooks*, 25 NY3d 516.

CRIMINAL PROCEDURE LAW—Continued

720.10 (3) (Youthful offenders; mitigating circumstances). *People v Middlebrooks*, 25 NY3d 516.

EDUCATION LAW.

§ 3813 (1) (Presentation of claims against governing body of any school district or certain state supported schools; notice of claim). *Matter of McGovern v Mount Pleasant Cent. Sch. Dist.*, 25 NY3d 1051.

§ 6306 (5) (Administration of community colleges—boards of trustees; care, custody, control and management of lands, grounds, buildings, facilities and equipment). *Branch v County of Sullivan*, 25 NY3d 1079.

ELECTION LAW.

§ 16-102 (2) (Proceedings as to designating petitions; 14-day period in which to challenge petition). *Matter of Angletti v Morreale*, 25 NY3d 794.

§ 16-116 (Judicial proceedings; provisions in relation thereto). *Matter of Angletti v Morreale*, 25 NY3d 794.

ESTATES, POWERS AND TRUSTS LAW.

3-4.1 (a) (1) (B) (Revocation of wills; effect on codicils). *Matter of Lewis*, 25 NY3d 456.

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§ 259-i (2) (b) (Parole; parolees in legal custody of Department of Corrections and Community Supervision). *People v Brown*, 25 NY3d 247.

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§ 5-701 (a) (10) (Agreements required to be in writing; real estate “finder”). *JF Capital Advisors, LLC v Lightstone Group, LLC*, 25 NY3d 759.

INSURANCE LAW.

§ 3420 (e) (Liability insurance; standard provisions; minimum uninsured motorist coverage; right of injured person; insurance against civil liability for negligence). *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799.

§ 3420 (f) (1) (Liability insurance; standard provisions; right of injured person; minimum uninsured motorist coverage). *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799.

§ 3420 (f) (2) (A) (Liability insurance; standard provisions; right of injured person; minimum uninsured motorist coverage; supplementary uninsured/underinsured motorists insurance). *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799.

JUDICIARY LAW.

§ 53 (Rule-making power of Court of Appeals as to admission of attorneys and counselors). *Eric M. Berman, P.C. v City of New York*, 25 NY3d 684.

§ 90 (Admission to and removal from practice by Appellate Division; character committees). *Eric M. Berman, P.C. v City of New York*, 25 NY3d 684.

§ 470 (Attorneys having offices in this state may reside in adjoining state). *Schoenefeld v State of New York*, 25 NY3d 22.

LABOR LAW.

§ 240 (1) (Scaffolding and other devices for use of employees; duties of contractors and owners to supply safety devices). *Nicometi v Vineyards of Fredonia, LLC*, 25 NY3d 90; *Saint v Syracuse Supply Co.*, 25 NY3d 117; *Barreto v Metropolitan Tr. Auth.*, 25 NY3d 426.

§ 240 (2) (Scaffolding and other devices for use of employees; safety rail required for scaffolding or staging more than 20 feet from ground or floor). *Saint v Syracuse Supply Co.*, 25 NY3d 117.

§ 241 (6) (Construction, excavation and demolition work; provision of reasonable and adequate protection and safety). *Saint v Syracuse Supply Co.*, 25 NY3d 117.

MENTAL HYGIENE LAW.

Art 10 (Sex offenders requiring civil commitment or supervision). *Matter of State of New York v Robert F.*, 25 NY3d 448.

MENTAL HYGIENE LAW—Continued

- § 10.06 (Sex offenders requiring civil commitment or supervision; petition and hearing). *Matter of State of New York v Robert F.*, 25 NY3d 448.
- § 10.08 (i) (1) (Sex offenders requiring civil commitment or supervision; procedures under article 10; testimony by electronic appearance). *Matter of State of New York v Robert F.*, 25 NY3d 448.
- § 81.44 (Proceedings upon death of incapacitated person). *Matter of Shannon*, 25 NY3d 345.
- § 81.44 (d) (Proceedings upon death of incapacitated person; delivery of guardianship property). *Matter of Shannon*, 25 NY3d 345.
- § 81.44 (e) (Proceedings upon death of incapacitated person; retention of guardianship property). *Matter of Shannon*, 25 NY3d 345.

NEW YORK CITY CHARTER.

- § 2303 (b) (Jurisdiction, powers and duties of Taxi and Limousine Commission; regulation and supervision). *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600.

NEW YORK CONSTITUTION.

- Art I, § 12 (Security against unreasonable searches, seizures and interceptions). *People v Guthrie*, 25 NY3d 130.
- Art VI, § 3 (Jurisdiction of Court of Appeals). *PS 157 Lofts LLC v Austin*, 25 NY3d 966; *Matter of Wagner*, 25 NY3d 1188.
- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *RCM Elmwood LLC v Niznik*, 25 NY3d 959; *People ex rel. Vellon v Artus*, 25 NY3d 1186; *PS 157 Lofts LLC v Austin*, 25 NY3d 1186; *Gilliam v Virgin Mobile USA, L.P.*, 25 NY3d 1191.
- Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals; as of right; validity of statutory provision). *Davidson v State of New York*, 25 NY3d 961; *Matter of Wagner*, 25 NY3d 1188.
- Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Matter of Lazy Acres Park, LLC v Ferretti*, 25 NY3d 965; *Cason v Smith*, 25 NY3d 1057; *WSC Riverside Dr. Owners LLC v Williams*, 25 NY3d 1221.
- Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Davidson v State of New York*, 25 NY3d 961; *Matter of Wagner*, 25 NY3d 1188.
- Art XVI, § 3 (Situs of intangible personal property; taxation of). *Burton v New York State Dept. of Taxation & Fin.*, 25 NY3d 732.

PENAL LAW.

- § 20.00 (Criminal liability for conduct of another). *People v Keschner*, 25 NY3d 704.
- § 70.10 (1) (Sentence of imprisonment for persistent felony offender; definition of persistent felony offender). *People v Jones*, 25 NY3d 57.
- § 70.25 (2) (Concurrent and consecutive terms of imprisonment). *People v Rodriguez*, 25 NY3d 238.
- § 110.00 (Attempt to commit crime). *People v Lamont*, 25 NY3d 315.
- § 125.25 (3) (Murder, second degree; felony murder). *People v Henderson*, 25 NY3d 534.
- § 160.00 (2) (“Robbery” defined; compelling delivery of property by owner or another). *People v Lamont*, 25 NY3d 315.
- § 160.10 (1) (Robbery, second degree; forcibly steals property aided by another person actually present). *People v Lamont*, 25 NY3d 315.
- § 160.10 (2) (b) (Robbery, second degree; display of firearm). *People v Lamont*, 25 NY3d 315.
- § 460.10 (3) (“Criminal enterprise” defined). *People v Keschner*, 25 NY3d 704.
- § 460.20 (1) (a) (Enterprise corruption). *People v Keschner*, 25 NY3d 704.

PUBLIC HEALTH LAW.

- § 4215 (1) (Cadavers; burial after autopsy and dissection). *Shipley v City of New York*, 25 NY3d 645.

REAL PROPERTY ACTIONS AND PROCEEDINGS LAW.

1371 (2) (Action to foreclose mortgage; deficiency judgment). *Flushing Sav. Bank, FSB v Bitar*, 25 NY3d 307.

REAL PROPERTY TAX LAW.

§ 420-a (1) (a) (Exemptions; nonprofit organizations; mandatory class). *Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614.

§ 730 (1) (b) (i) (Special proceeding for small claims assessment review; procedure to review small claims; when review permitted). *Matter of Manouel v Board of Assessors*, 25 NY3d 46.

REGULATIONS OF DEPARTMENT OF LABOR.

12 NYCRR 23-1.4 (b) (13) (Industrial Code; protection in construction, demolition and excavation operations; “construction work” defined). *Saint v Syracuse Supply Co.*, 25 NY3d 117.

RULES OF CHIEF ADMINISTRATOR OF COURTS.

22 NYCRR 100.3 (B) (6) (a) (Judge to perform duties of judicial office impartially and diligently; adjudicative responsibilities; ex parte communications). *People v Carr*, 25 NY3d 105.

RULES OF CITY OF NEW YORK.

34 RCNY 4-02 (former [d] [1] [iv]) (Traffic rules and regulations; compliance with and effect of traffic rules; exceptions; highway workers). *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102.

35 RCNY 51-03 (Taxi and Limousine Commission; definitions). *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600.

35 RCNY 67-05.1B (Taxi and Limousine Commission; official taxicab vehicle for use with unrestricted medallions effective on official taxicab vehicle activation date). *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600.

RULES OF COURT OF APPEALS.

22 NYCRR 500.20 (Criminal leave applications). *People v Llibre*, 25 NY3d 958.

22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *Ministers & Missionaries Benefit Bd. v Snow*, 25 NY3d 935; *Beck Chevrolet Co., Inc. v General Motors LLC*, 25 NY3d 1057; *Matter of Viking Pump, Inc.*, 25 NY3d 1188.

22 NYCRR 510.18 (a) (Capital case data reports; confidentiality). *People v Williamson*, 25 NY3d 1061.

TAX LAW.

§ 632 (a) (2) (Personal income tax; nonresident partners and electing shareholders of S corporations; New York source income). *Burton v New York State Dept. of Taxation & Fin.*, 25 NY3d 732; *Caprio v New York State Dept. of Taxation & Fin.*, 25 NY3d 744.

UNITED STATES CODE.

26 USC § 338 (h) (10) (Internal Revenue Code; income taxes; corporate distributions and adjustments; certain stock purchases treated as asset acquisitions). *Burton v New York State Dept. of Taxation & Fin.*, 25 NY3d 732.

26 USC § 501 (c) (3) (Internal Revenue Code; exemption from taxation on corporations, certain trusts, etc.; list of exempt organizations). *Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614.

UNITED STATES CONSTITUTION.

4th Amend (Unreasonable searches and seizures prohibited). *People v Guthrie*, 25 NY3d 130.

VEHICLE AND TRAFFIC LAW.

§ 388 (Civil liability; negligence in use or operation of vehicle attributable to owner). *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799.

§ 1100 (b) (Obedience to and effect of traffic laws; provisions of title refer to vehicles upon highways; exceptions; signs and signals in parking lot). *People v Guthrie*, 25 NY3d 130.

VEHICLE AND TRAFFIC LAW—Continued

§ 1103 (b) (Obedience to rules of road; exception for “hazard vehicles”). *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102.

§ 1110 (c) (Obedience to and required traffic-control devices; presumption of validity). *People v Guthrie*, 25 NY3d 130.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

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|--|--|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 8. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 9. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 10. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |

11. **80 NY2d 1030** (People v Sallito) Change the title entry from Salito to Sallito.
12. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.
13. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.
14. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
15. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.
16. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
17. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
18. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
19. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
20. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.

Errata

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21. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
22. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
23. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
24. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.
25. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.
26. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
27. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
28. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
29. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
30. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goransongmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"

At 23 NY3d 462, in the second full paragraph the email address “larry.schiffmangmail.com” should read “larry.schiffman@gmail.com”

At 23 NY3d 463, in the second full paragraph the email address “seidel.jonathangmail.com” should read “seidel.jonathan@gmail.com”

31. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik)

At 23 NY3d 668, footnote 3, last sentence on page should read . . . For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor

32. **24 NY3d 294** (People v Silva)

At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.